CRIMINAL LAW DRAFTING — FORMS, PRECEDENTS & PLEADINGS

A Comprehensive Compilation of Templates under the Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS), the Bharatiya Nyaya Sanhita, 2023 (BNS) and the Bharatiya Sakshya Adhiniyam, 2023 (BSA)

PRINCIPAL STATUTE: THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 (No. 46 of 2023), IN FORCE FROM 1 JULY 2024

READ WITH THE BHARATIYA NYAYA SANHITA, 2023 AND THE BHARATIYA SAKSHYA ADHINIYAM, 2023

70 FORMATS · 7 PARTS · CR.P.C.–BNSS, IPC–BNS AND EVIDENCE ACT–BSA CROSS-REFERENCE TABLES · DELHI PRACTICE NOTES

First Edition · 2026

DISCLAIMER. This compilation is intended purely as a drafting aid for advocates, law students and litigants who need a structural starting point for a criminal pleading. It is not legal advice, and no template herein is a substitute for independent legal judgment on the facts of a particular case. Statutory provisions and procedural rules vary between States and are amended from time to time; the applicable rules of the High Court concerned, the Criminal Rules/Criminal Manual of the State, the e-filing requirements of the Court, and the bare Acts as amended up to the date of use must always be verified before filing. The section numbers, sub-section numbers and CrPC equivalents stated in this compilation should be cross-checked against the official text of the Bharatiya Nagarik Suraksha Sanhita, 2023 and the official comparative table. Precedents have been cited for their general proposition only and must be verified for their continued authority. No liability is accepted for any loss arising from reliance on this compilation. Users are requested to adapt, verify and localise every format before use.

USAGE. Blank fields are shown as ..... or as the fill-in-the-blank numerals ..... and blanks for amounts as Rs. ..... Kindly replace them with the actual particulars. Where a paragraph is not applicable, the same should be deleted — do not leave inapplicable or contradictory paragraphs on the record.

CONTENTS

PART I — HOW TO USE THIS COMPILATION 7

How to use this compilation 7

PART II — GENERAL RULES OF CRIMINAL DRAFTING 7

General rules of criminal drafting 7

PART III — PRE-FILING CHECKLIST FOR EVERY CRIMINAL APPLICATION 8

Pre-filing checklist for every criminal application 8

PART IV — FIFTEEN FEATURES OF THE NEW CRIMINAL LAW REGIME 9

Fifteen features of the new criminal law regime that every draft must reflect 9

PART V — LIMITATION AND TIME LIMITS 10

PART VI — THE NUMBER TRAPS 12

PART VII — CROSS-REFERENCE TABLES 12

Table 1 — The Code of Criminal Procedure, 1973 to the Bharatiya Nagarik Suraksha Sanhita, 2023 12

Table 2 — The Indian Penal Code, 1860 to the Bharatiya Nyaya Sanhita, 2023 20

Table 3 — The Indian Evidence Act, 1872 to the Bharatiya Sakshya Adhiniyam, 2023 22

PART VIII — LANDMARK PRECEDENTS 23

PART A 25

FORMAT A-1 — VAKALATNAMA (CRIMINAL PROCEEDINGS) 26

FORMAT A-2 — MEMO OF APPEARANCE 28

FORMAT A-3 — AFFIDAVIT - GENERAL FORMAT FOR CRIMINAL PROCEEDINGS 29

FORMAT A-4 — APPLICATION FOR EXEMPTION FROM PERSONAL APPEARANCE 31

FORMAT A-5 — APPLICATION FOR CERTIFIED COPY OF ORDER / JUDGMENT / RECORD 33

FORMAT A-6 — APPLICATION FOR SUPPLY OF DOCUMENTS AND STATEMENTS TO THE ACCUSED . . 35

FORMAT A-7 — APPLICATION FOR FREE LEGAL AID / ASSIGNMENT OF COUNSEL AT STATE EXPENSE 37

FORMAT A-8 — APPLICATION FOR RETURN / RELEASE OF DOCUMENTS AND ANNEXURES FILED IN COURT 39

PART B 41

FORMAT B-9 — WRITTEN COMPLAINT TO THE STATION HOUSE OFFICER FOR REGISTRATION OF FIR 42

FORMAT B-10 — COMPLAINT TO THE SUPERINTENDENT OF POLICE ON REFUSAL TO REGISTER FIR . 45

FORMAT B-11 — APPLICATION TO MAGISTRATE FOR DIRECTION TO POLICE TO REGISTER FIR AND INVESTIGATE 47

FORMAT B-12 — APPLICATION FOR REGISTRATION OF ZERO FIR / TRANSFER OF INVESTIGATION TO THE COMPETENT POLICE STATION 50

FORMAT B-13 — PRIVATE COMPLAINT TO THE MAGISTRATE 52

FORMAT B-14 — APPLICATION FOR RECORDING OF CONFESSION / STATEMENT OF A WITNESS UNDER SECTION 183 BNSS 55

FORMAT B-15 — APPLICATION FOR RECORDING OF STATEMENT OF VICTIM / WITNESS THROUGH AUDIO-VIDEO ELECTRONIC MEANS 57

FORMAT B-16 — OBJECTION / PROTEST PETITION AGAINST CLOSURE REPORT (FINAL REPORT) 59

FORMAT B-17 — APPLICATION FOR FURTHER INVESTIGATION / RE-INVESTIGATION 62

FORMAT B-18 — APPLICATION CHALLENGING ARREST / FOR RELEASE ON NOTICE OF APPEARANCE UNDER SECTION 35(3) BNSS 65

FORMAT B-19 — UNDERTAKING / COMPLIANCE WITH NOTICE OF APPEARANCE UNDER SECTION 35(3) BNSS 68

FORMAT B-20 — APPLICATION FOR RELEASE OF SEIZED VEHICLE / PROPERTY AT THE POLICE STAGE 70

PART C **72**

FORMAT C-21 — APPLICATION FOR REGULAR BAIL BEFORE THE MAGISTRATE 73

FORMAT C-22 — APPLICATION FOR BAIL BEFORE THE COURT OF SESSION / HIGH COURT 76

FORMAT C-23 — APPLICATION FOR ANTICIPATORY BAIL 79

FORMAT C-24 — APPLICATION FOR STATUTORY / DEFAULT BAIL 82

FORMAT C-25 — APPLICATION FOR INTERIM BAIL (MEDICAL / HUMANITARIAN GROUNDS) 85

FORMAT C-26 — APPLICATION FOR BAIL IN NDPS ACT CASES 87

FORMAT C-27 — APPLICATION FOR BAIL IN PREVENTION OF MONEY-LAUNDERING ACT CASES . . . 90

FORMAT C-28 — APPLICATION FOR BAIL IN UAPA CASES 93

FORMAT C-29 — APPLICATION FOR BAIL IN POCSO ACT CASES 96

FORMAT C-30 — APPLICATION FOR REDUCTION OF BAIL AMOUNT / RELAXATION OF BAIL CONDITIONS

FORMAT C-31 — BAIL BOND AND SURETY BOND (FORMAT) 101

FORMAT C-32 — APPLICATION FOR CANCELLATION OF BAIL 103

FORMAT C-33 — APPLICATION FOR DISCHARGE / REPLACEMENT OF SURETY 106

FORMAT C-34 — APPLICATION FOR EXTENSION OF INTERIM BAIL / TIME TO SURRENDER 108

PART D **110**

FORMAT D-35 — APPLICATION FOR POLICE CUSTODY REMAND (FOR THE PROSECUTION) 111

FORMAT D-36 — OBJECTION TO POLICE CUSTODY REMAND (FOR THE ACCUSED) 114

FORMAT D-37 — APPLICATION FOR MEDICAL EXAMINATION OF THE ARRESTED PERSON / ACCUSED 117

FORMAT D-38 — APPLICATION FOR RELEASE OF AN UNDERTRIAL PRISONER ON COMPLETION OF HALF / ONE-THIRD SENTENCE 119

FORMAT D-39 — APPLICATION FOR SET-OFF OF THE PERIOD OF DETENTION AGAINST THE SENTENCE 121

FORMAT D-40 — APPLICATION FOR PAROLE / FURLOUGH / EMERGENCY PAROLE 123

FORMAT D-41 — APPLICATION FOR WITNESS PROTECTION 126

PART E **129**

FORMAT E-42 — APPLICATION FOR DISCHARGE IN A WARRANT CASE (INSTITUTED ON A POLICE REPORT) 130

FORMAT E-43 — APPLICATION FOR DISCHARGE IN A SESSIONS CASE 133

FORMAT E-44 — APPLICATION FOR RECALL / RE-EXAMINATION OF A WITNESS AND FOR SUMMONING MATERIAL WITNESS 135

FORMAT E-45 — APPLICATION FOR COMPOUNDING OF OFFENCES 137

FORMAT E-46 — APPLICATION FOR PLEA BARGAINING 140

FORMAT E-47 — APPLICATION FOR WITHDRAWAL FROM PROSECUTION (BY THE PUBLIC PROSECUTOR)

FORMAT E-48 — APPLICATION FOR RECORDING OF EVIDENCE / EXAMINATION THROUGH AUDIO-VIDEO ELECTRONIC MEANS 144

FORMAT E-49 — APPLICATION FOR LOCAL INSPECTION OF THE PLACE OF OCCURRENCE 146

FORMAT E-50 — APPLICATION FOR EXAMINATION OF THE ACCUSED'S WITNESSES / DEFENCE EVIDENCE AND FOR ISSUANCE OF SUMMONS TO DEFENCE WITNESSES 148

FORMAT E-51 — APPLICATION FOR DISCHARGE OF PROCLAMATION / RECALL OF NON-BAILABLE WARRANT / SETTING ASIDE EX-PARTE ORDER 150

FORMAT E-52 — APPLICATION FOR SPECIMEN SIGNATURE / HANDWRITING / VOICE SAMPLE 152

PART F **154**

FORMAT F-53 — PETITION OF APPEAL AGAINST CONVICTION 155

FORMAT F-54 — APPLICATION FOR SUSPENSION OF SENTENCE AND BAIL PENDING APPEAL 159

FORMAT F-55 — APPEAL AGAINST ACQUITTAL (BY THE STATE / COMPLAINANT) 162

FORMAT F-56 — CRIMINAL REVISION AGAINST ORDER / JUDGMENT 165

FORMAT F-57 — PETITION FOR QUASHING OF FIR / CRIMINAL PROCEEDINGS 168

FORMAT F-58 — APPLICATION FOR TRANSFER OF A CRIMINAL CASE 171

FORMAT F-59 — APPLICATION FOR RELEASE OF CASE PROPERTY AFTER CONCLUSION OF TRIAL . . 174

FORMAT F-60 — APPLICATION FOR COMPENSATION TO THE VICTIM 176

FORMAT F-61 — APPLICATION FOR COMPENSATION FOR GROUNDLESS ARREST / ILLEGAL DETENTION

FORMAT F-62 — SPECIAL LEAVE PETITION (CRIMINAL) BEFORE THE SUPREME COURT 182

FORMAT F-63 — CRIMINAL WRIT PETITION (HABEAS CORPUS / MANDAMUS) 185

PART G **188**

FORMAT G-64 — COMPLAINT UNDER SECTION 138 OF THE NEGOTIABLE INSTRUMENTS ACT, 1881 . 189

FORMAT G-65 — APPLICATION FOR MAINTENANCE OF WIFE, CHILDREN AND PARENTS UNDER SECTION 144 BNSS 192

FORMAT G-66 — APPLICATION FOR INTERIM MAINTENANCE 196

FORMAT G-67 — APPLICATION FOR ENFORCEMENT / EXECUTION OF THE MAINTENANCE ORDER . . 198

FORMAT G-68 — APPLICATION UNDER SECTION 12 OF THE PROTECTION OF WOMEN FROM DOMESTIC VIOLENCE ACT, 2005 201

FORMAT G-69 — APPLICATION FOR BAIL IN CASES UNDER THE SCHEDULED CASTES AND THE SCHEDULED TRIBES (PREVENTION OF ATROCITIES) ACT, 1989 205

FORMAT G-70 — APPLICATION FOR ATTACHMENT, FORFEITURE OR RESTORATION OF PROPERTY . 208

ANNEXURE I — DELHI PRACTICE NOTES AND A WORKED DELHI EXAMPLE **211**

A. The Courts at Delhi — how to describe them 211

B. Filing, e-filing and court fee at Delhi 212

C. A Worked Delhi Example — a Complete Bail Application 213

FORMAT X-01 — WORKED DELHI EXAMPLE — APPLICATION FOR REGULAR BAIL UNDER SECTION 480, BNSS, 2023 213

ANNEXURE II — FILING, E-FILING AND THE ELECTRONIC MODE **217**

Filing, e-filing and the electronic mode — practical notes 217

PART I — HOW TO USE THIS COMPILATION

How to use this compilation

1. This compilation contains 70 ready-to-adapt formats arranged in seven parts, following the chronological life-cycle of a criminal case: Part A (General and Foundation), Part B (Complaint, FIR and Investigation), Part C (Bail and Bonds), Part D (Remand, Custody and Prison), Part E (Trial Stage), Part F (Appeal, Revision and Post-Trial Remedies) and Part G (Special Statutes and Miscellaneous).

2. Every format follows the same internal structure: (i) the cause title, i.e., the description of the Court, the case number, the array of parties and, where applicable, the FIR particulars; (ii) the title of the application, identifying the section under which it is moved; (iii) the opening words ('Most Respectfully Showeth'); (iv) the numbered paragraphs setting out the facts, the grounds and the law; (v) the prayer; (vi) the place, date and signature block; and (vii) bracketed Notes setting out the practice points, the documents to be annexed, and the CrPC equivalent of the section invoked.

3. The bracketed Notes are guidance and must be deleted from the document that is actually filed. The Notes, and not the body of the format, are where the statutory conditions, the procedural traps and the documents to be annexed are collected.

4. Where a format carries an alternative paragraph, the alternatives are separated by the words 'OR', 'IN THE ALTERNATIVE' or bracketed directions. Only the applicable alternative should be retained.

5. Parties who are unrepresented, and advocates appearing for the first time, should commence with Format A-1 (Vakalatnama) and Format A-3 (Affidavit), both of which are required for almost every application in Parts B to G.

6. Formats G-65 to G-67 (maintenance under Section 144 BNSS) and Format G-68 (Protection of Women from Domestic Violence Act, 2005) are civil-criminal hybrid proceedings and are frequently filed together; the pleadings should be drafted so as not to contradict each other on facts.

PART II — GENERAL RULES OF CRIMINAL DRAFTING

General rules of criminal drafting

Rule 1 — Plead facts, not law. A criminal application must state the facts from which the applicant's grievance arises. The Court applies the law. Do not plead conclusions such as 'the accused has committed an offence of cheating' without pleading the facts — the dishonest intention at the inception of the transaction, the inducement, the delivery of property — from which the offence arises.

Rule 2 — Plead the ingredients. Before drafting, read the section invoked and list its ingredients. Each ingredient must be matched by a pleaded fact. If an ingredient is not pleaded, the application can be dismissed on the short ground that the section does not apply.

Rule 3 — Be specific, never omnibus. Vague and general allegations against a group of persons (common in matrimonial, partnership and company-law FIRs) are the single most common reason for the rejection of a criminal pleading. Attribute a distinct act, with date, time and place, to each accused.

Rule 4 — One paragraph, one idea. Number every paragraph. The Court and the opposite party must be able to navigate the application. A paragraph containing four distinct grievances cannot be satisfactorily answered or dealt with.

Rule 5 — State the source of knowledge. In an affidavit accompanying a criminal application, state whether each fact is a matter of personal knowledge, a matter of record, or is based on information and belief. Section 297, BNSS, 2023 read with Section 383, BNSS, 2023 attracts penal consequences for a false affidavit.

Rule 6 — Plead the statutory preconditions. Where the statute makes a thing a condition precedent — such as the notice under Section 35(3) BNSS, the three-day signing of an e-FIR under Section 173(1) BNSS, the complaint to the Superintendent of Police under Section 173(4) BNSS, the affidavit under Section 175(3) BNSS, the statutory notice under Section 138 of the Negotiable Instruments Act, 1881, or the sanction under Section 218 BNSS — plead expressly that the condition has been satisfied, and annex the proof.

Rule 7 — Plead the limitation. State the date on which the cause of action arose and the date of filing, so that the Court can satisfy itself as to limitation. See the Limitation Table in this compilation.

Rule 8 — Disclose the earlier proceedings. If an earlier application for the same relief was moved and rejected, disclose it, with the date and the order. Suppression of an earlier application or of a material fact is fatal to the credibility of the applicant and is a ground for the rejection of the application and, in bail matters, for its cancellation.

Rule 9 — Match the annexure to the averment. Every material averment should be supported by an annexure bearing a page number in the Index. An averment without a supporting document is an assertion; an averment with a document is a case.

Rule 10 — Draft the prayer precisely. The prayer must be capable of being granted exactly as worded. A prayer for 'such other relief as the Court may deem fit' is a residuary clause, not a substitute for a precise prayer. Where an alternative relief is sought, state that it is without prejudice to the main relief.

Rule 11 — Respect the register. Use the correct address of the Court, the correct designation of the Presiding Officer, and the correct terminology of the Sanhita. The BNSS uses 'bond' (not 'recognizance'), 'bail bond' (not 'bond with surety'), 'audio-video electronic means' (not 'video conferencing'), and 'electronic communication'. The new vocabulary should be used consistently.

Rule 12 — Verify the number. The BNSS has 531 sections against 484 in the CrPC, and the numbers have shifted. Two traps in particular: CrPC 438 (anticipatory bail) is now BNSS 482, while CrPC 482 (inherent powers of the High Court) is now BNSS 528. CrPC 125 (maintenance) is now BNSS 144, while CrPC 144 (prohibitory orders) is now BNSS 163. Always verify the number before filing.

Rule 13 — Use the electronic mode where it assists. The BNSS expressly contemplates the electronic mode at every stage: the e-FIR (Section 173(1)), the videography of search and seizure (Section 105), the audio-video recording of statements (Sections 176 and 183), the supply of documents in electronic form (Section 230(2)), the recording of evidence through audio-video electronic means (Sections 254 and 530), and the service of summons and notices through electronic communication (Sections 63 to 70). Where the electronic mode will save time or protect a vulnerable witness, apply for it expressly.

Rule 14 — Keep the pleading and the affidavit consistent. The application, the affidavit in support, the list of witnesses and the list of documents are read together. Any inconsistency will be put to the deponent in cross-examination.

Rule 15 — Know the Court. Read the Criminal Rules of Practice, the High Court Rules, the e-filing directions and the filing-counter requirements of the Court concerned. Non-compliance with the rules of practice results in the return of the application, and in bail matters that delay can be decisive.

PART III — PRE-FILING CHECKLIST FOR EVERY CRIMINAL APPLICATION

Pre-filing checklist for every criminal application

■ Have I identified the correct Court in which the application is maintainable, and the correct territorial and pecuniary jurisdiction?

- ■ Have I identified the correct provision of the Bharatiya Nagarik Suraksha Sanhita, 2023 (or of the special statute) under which the application lies, and verified the section number from the bare Act?
- ■ Have I stated the number of the FIR, the police station, the section of the Bharatiya Nyaya Sanhita, 2023 invoked, and the date of arrest / date of the order complained of?
- ■ Have I filed the Vakalatnama (Format A-1) and, where required, the Memo of Appearance (Format A-2)?
- ■ Have I filed an affidavit in support (Format A-3), properly sworn before a Magistrate / Notary / Oath Commissioner, and does it say whether each fact is within my personal knowledge, on record, or on information and belief?
- ■ Have I prepared the Index and the List of Documents, with page numbers corresponding to the annexures?
- ■ Have I annexed the certified copies of the orders complained of, and the proof of the statutory preconditions (e.g. the copy of the FIR, the postal receipts, the notice under Section 138 of the Negotiable Instruments Act, 1881)?
- ■ Have I disclosed every earlier application for the same or similar relief, and its outcome?
- ■ Have I stated the date of accrual of the cause of action, so as to satisfy the Court on limitation?
- ■ Have I verified the court fee, the process fee and the filing charges applicable in the Court concerned, and the mode of payment (including e-payment)?
- ■ Have I checked the applicable State amendment, the rules of the High Court and the practice directions (particularly on the mode of filing, the number of copies and the format of the cause title)?
- ■ Have I struck out every bracketed Note from this compilation, and every paragraph that does not apply to my facts?
- ■ Have I signed and dated every page of the application and of the affidavit, and obtained the signature of the applicant/counsel where the signature is required?
- ■ Where the applicant is in custody, have I verified the jail particulars, the date of the arrest, the date of the last remand and the period already undergone?
- ■ Have I taken instructions and confirmed the facts stated in the application with the party, so as to guard against the penal consequences of a false affidavit under Section 229, Bharatiya Nyaya Sanhita, 2023?

PART IV — FIFTEEN FEATURES OF THE NEW CRIMINAL LAW REGIME

Fifteen features of the new criminal law regime that every draft must reflect

ZERO FIR. Under Section 173(1), BNSS, 2023, information relating to a cognizable offence may be given irrespective of the area where the offence is committed. A refusal to register an FIR on the ground of want of territorial jurisdiction is no longer open. Format B-12.

ELECTRONIC FIR. An information given by electronic communication must be signed by the informant within three days. Section 173(1)(ii). Format B-9.

NOTICE OF APPEARANCE. Under Section 35(1)(b) read with Section 35(3), BNSS, 2023, where the offence is punishable with imprisonment of less than seven years, or which may extend to seven years, arrest requires a recorded necessity, and where arrest is not required a notice of appearance must be issued. Compliance with the notice protects against arrest — Section 35(5). Formats B-18 and B-19.

PRELIMINARY ENQUIRY. For offences punishable for three years or more but less than seven years, the officer in charge may, with the prior permission of an officer not below the rank of Deputy Superintendent of Police, conduct a preliminary enquiry within fourteen days — Section 173(3), BNSS, 2023.

INFORMANT'S RIGHT TO PROGRESS. Under Section 193(3)(ii), BNSS, 2023 the police must inform the informant or the victim of the progress of the investigation within ninety days, and under Section 193(3)(iii) of the action taken. Format B-17.

COMPLAINT TO THE SUPERINTENDENT OF POLICE AND THEN TO THE MAGISTRATE. Section 173(4), BNSS, 2023 now expressly provides that failing the Superintendent of Police, the aggrieved person may make an application to the Magistrate. Formats B-10 and B-11.

AFFIDAVIT WITH SECTION 175(3) APPLICATIONS. An application to the Magistrate for a direction to investigate must be supported by an affidavit. Section 175(3) read with Section 173(4). Format B-11.

SPECIAL SAFEGUARDS FOR VULNERABLE VICTIMS. Where the victim of a specified offence is mentally or physically disabled, the information must be recorded at the victim's residence or place of choice, in the presence of an interpreter or special educator, and the recording must be videographed — second proviso (a) and (b) to Section 173(1). The Section 183(6)(a) statement must be recorded as soon as possible. Format B-15.

AUDIO-VIDEO RECORDING OF SEARCH AND SEIZURE. Section 105, BNSS, 2023 makes the audio-video recording of search and seizure mandatory, and the recording is to be forwarded to the Magistrate. A failure to comply is a ground of defence. Formats B-9 and E-44.

TIME LIMITS FOR DISCHARGE AND CHARGE. In a Sessions case, the application for discharge must be preferred within sixty days of commitment (Section 250(1)), and the charge must be framed within sixty days of the first hearing on charge (Section 251(1)(b)). In a warrant case on a police report, the application for discharge must be preferred within sixty days of the supply of documents (Section 262(1)). Formats E-42 and E-43.

TIME LIMIT FOR INTERIM MAINTENANCE. The application for interim maintenance and expenses under the second proviso to Section 144(1), BNSS, 2023 must, as far as possible, be disposed of within sixty days of the service of notice — third proviso. Formats G-65 and G-66.

UNDERTRIAL RELIEF. Section 479, BNSS, 2023 requires the release of an undertrial who has undergone one-half of the maximum sentence (one-third, for a first-time offender), makes the jail Superintendent's application mandatory on completion of the period (Section 479(3)), and caps the total detention at the maximum period of imprisonment. Format D-38.

POLICE CUSTODY WINDOW. Under Section 187(2), BNSS, 2023, custodial interrogation may be sought at any time during the initial forty days (in a sixty-day case) or the initial sixty days (in a ninety-day case), subject to the aggregate cap of fifteen days. This is a significant change from the position under the CrPC. Formats D-35 and D-36.

WITNESS PROTECTION. Section 398, BNSS, 2023 obliges every State Government to prepare and notify a Witness Protection Scheme. Format D-41.

ELECTRONIC MODE AND IN ABSENTIA TRIAL. Section 530, BNSS, 2023 permits trials, inquiries and proceedings to be held in electronic mode; Sections 355 and 356 permit proceedings in the absence of the accused, and trial in absentia of a proclaimed offender. Formats E-48 and E-51.

PART V — LIMITATION AND TIME LIMITS

The periods below are stated in the statute itself or in the Limitation Act, 1963. The periods of limitation are to be counted in the manner provided by Sections 513 to 519, BNSS, 2023.

Limitation periods and time limits — quick reference	
APPEALS AND REMEDIES	header
Appeal to the High Court against a conviction or an order	90 days from the date of the sentence or order — Article 115(b), Limitation Act, 1963
Appeal to any other Court against a conviction	30 days from the date of the sentence or order — Article 115(b)

Appeal against acquittal (State Government)	90 days from the date of the order of acquittal — Article 114(b)
Special Leave Petition to the Supreme Court (criminal)	60 days from the date of the judgment/order, subject to the Supreme Court Rules, 2013
STATUTORY TIME LIMITS UNDER THE BNSS, 2023	header
Signature of an electronically filed FIR	Within 3 days — Section 173(1)(ii)
Preliminary enquiry in a 3–7 year offence	Within 14 days — Section 173(3)
Progress of investigation to be intimated to the informant/victim	Within 90 days — Section 193(3)(ii)
Investigation in specified sexual offences	Within 2 months from the date the information was recorded — Section 193(2)
Production of an arrested person before a Magistrate	Within 24 hours, excluding the time necessary for the journey — Section 58; Article 22(2)
Maximum period of police custody in the aggregate	15 days — Section 187(2)
Statutory (default) bail	60 days (offences punishable up to 10 years); 90 days (death, life or 10 years or more) — Section 187(3)
Order for further detention / remand to judicial custody	Fifteen days at a time; the detention must be authorised afresh — Sections 187(2) and 187(3)
Furnishing of a copy of the judgment to the accused	Free of cost — Section 404(1)
Application for discharge in a Sessions case	Within 60 days of commitment — Section 250(1)
Framing of charge in a Sessions case	Within 60 days of the first hearing on charge — Section 251(1)(b)
Application for discharge in a warrant case on a police report	Within 60 days of the supply of copies under Section 230 — Section 262(1)
Interim maintenance and expenses of the proceeding	To be disposed of, as far as possible, within 60 days of the service of notice — third proviso to Section 144(1)
Enforcement of an order of maintenance	Application for levy within 1 year of the amount becoming due, subject to the power to condone delay — Section 147(2)
Victim compensation under the State/District Legal Services Authority	Enquiry to be completed within 2 months — Section 396(5)
Witness protection	Scheme to be notified by the State Government — Section 398
LIMITATION FOR TAKING COGNIZANCE — CHAPTER XXXVIII, BNSS, 2023	header
Offence punishable with fine only	6 months — Section 514(2)(a)
Offence punishable with imprisonment not exceeding 1 year	1 year — Section 514(2)(b)
Offence punishable with imprisonment exceeding 1 year but not exceeding 3 years	3 years — Section 514(2)(c)
Commencement of the period of limitation	The date of the offence, or, where the commission of the offence was not known to the person aggrieved by the offence or to the police, the first day on which such offence comes to the knowledge of such person or of the police; for a continuing offence, the date on which the offence continues — Sections 515 and 518
Extension of the period of limitation	The Court may, for reasons to be recorded, extend the period where the delay has been properly explained or it is necessary so to do in the interests of justice — Section 519
LIMITATION UNDER THE NEGOTIABLE INSTRUMENTS ACT, 1881	header
Notice of demand after dishonour of a cheque	Within 30 days of the receipt of the information of the dishonour — Section 138(b)

Period for making the payment after the notice	15 days from the receipt of the notice — Section 138(c)
Filing of the complaint	Within 1 month from the date on which the cause of action arises — Section 142(1)(b), subject to condonation

PART VI — THE NUMBER TRAPS

The following are the errors of numbering that occur most frequently in pleadings drafted after 1 July 2024.

Number traps — the seven that cause the most damage

CrPC 154 (FIR) is BNSS 173 — but CrPC 173 (police report/charge-sheet) is BNSS 193. The two numbers have, in effect, been interchanged. A pleading that describes the FIR as being 'registered under Section 154' is, after 1 July 2024, simply wrong.

CrPC 438 (anticipatory bail) is BNSS 482 — but the new BNSS 482 is anticipatory bail, and CrPC 482 (inherent powers of the High Court, used for quashing) is now BNSS 528. A petition headed 'under Section 482' is now an anticipatory bail application, not a quashing petition.

CrPC 125 (maintenance) is BNSS 144 — but CrPC 144 (prohibitory orders) is now BNSS 163. Do not describe a prohibitory order under the BNSS as being passed under Section 144.

CrPC 397 (revision) is BNSS 438 — but CrPC 438 is BNSS 482. A revision petition must be headed under Section 438, BNSS, 2023.

CrPC 436A (undertrial relief) is BNSS 479 — but CrPC 479 was concerned with 'practising pleader not to sit as Magistrate', which is now BNSS 526.

CrPC 167 (remand) is BNSS 187 — but CrPC 187 was concerned with the 'power to direct security to be taken', which is now BNSS 73.

CrPC 482 (inherent powers) is BNSS 528 — but CrPC 528 did not exist (the CrPC had only 484 sections). Conversely, BNSS has 531 sections, of which Section 531 is the repeal and savings clause.

PART VII — CROSS-REFERENCE TABLES

Table 1 — The Code of Criminal Procedure, 1973 to the Bharatiya Nagarik Suraksha Sanhita, 2023

The table below gives the corresponding provision of the Bharatiya Nagarik Suraksha Sanhita, 2023 for the provisions of the Code of Criminal Procedure, 1973 most frequently used in practice. A dash (—) in the first column indicates a provision of the BNSS, 2023 for which there was no counterpart in the Cr.P.C., 1973. Proceedings in cases registered before 1 July 2024 continue to be governed by the Cr.P.C., 1973, and the corresponding Cr.P.C. provision of every format in this compilation is stated in the footnote to that format.

CrPC, 1973	Subject	BNSS, 2023
1	Short title, extent and commencement	1
2	Definitions	2
4	Trial of offences under the BNS, 2023 and other laws	4
6	Classes of Criminal Courts	6
7	Territorial divisions	7
8	Court of Session	8
9	Courts of Judicial Magistrates	9
10	Chief Judicial Magistrate and Additional CJM	10

CrPC, 1973	Subject	BNSS, 2023
11	Special Judicial Magistrates	11
12	Local jurisdiction of Judicial Magistrates	12
14	Executive Magistrates	14
16	Local jurisdiction of Executive Magistrates	16
18	Public Prosecutors	18
19	Assistant Public Prosecutors	19
20	Directorate of Prosecution	20
21	Courts by which offences are triable	21
22	Sentences which High Courts and Sessions Judges may pass	22
23	Sentences which Magistrates may pass	23
24	Sentence of imprisonment in default of fine	24
28	Mode of conferring powers	26
29	Powers of officers appointed	27
31	Public when to assist Magistrates and police	31
32	Aid to person other than a police officer executing warrant	32
33	Public to give information of certain offences	33
34	Duty of officers employed in village affairs	34
39	Arrest on refusal to give name and residence	39
41	When police may arrest without warrant	35(1)
41A	Notice of appearance before a police officer	35(3) to 35(6)
41B	Procedure of arrest and duties of the officer making the arrest	36
41C	Designated police officer	37
41D	Right of an arrested person to meet an advocate during interrogation	38
42	Arrest on refusal to give name and residence	39
43	Arrest by a private person	40
44	Arrest by a Magistrate	41
45	Protection of members of the Armed Forces from arrest	42
46	Arrest how made	43
47	Search of a place entered by a person sought to be arrested	44
48	Pursuit of offenders into other jurisdictions	45
49	No unnecessary restraint	46
50	Person arrested to be informed of the grounds of arrest and of the right to bail	47
50A	Obligation to inform a relative or friend about the arrest	48
51	Search of an arrested person	49
52	Power to seize offensive weapons	50
53	Examination of an accused by a medical practitioner at the request of a police officer	51
CrPC, 1973	**Subject**	**BNSS, 2023**
53A	Examination of a person accused of rape by a medical practitioner	52
54	Examination of an arrested person by a medical officer	53

CrPC, 1973	Subject	BNSS, 2023
54A	Identification of a person arrested	54
55A	Health and safety of an arrested person	56
56	Person arrested to be taken before a Magistrate or officer in charge of a police station	57
57	Person arrested not to be detained more than twenty-four hours	58
58	Police to report apprehensions	59
59	Discharge of a person apprehended	60
60	Power, on escape, to pursue and retake	61
60A	Arrest to be made strictly according to the Sanhita	62
61	Form of summons	63
62	Summons how served	64
65	Service of summons on corporate bodies, firms and societies	65
68	Proof of service	70
70	Form of warrant of arrest and duration	72
78	Warrant forwarded for execution outside jurisdiction	80
82	Proclamation for a person absconding	84
83	Attachment of the property of a person absconding	85
83A	Identification and attachment of the property of a proclaimed person	86
84	Claims and objections to attachment	87
85	Release, sale and restoration of attached property	88
86	Appeal from an order rejecting an application for restoration of attached property	89
88	Power to take a bond or bail bond for appearance	91
91	Summons to produce a document or other thing	94
93	When a search-warrant may be issued	96
94	Search of a place suspected to contain stolen property, forged documents, etc.	97
95	Power to declare certain publications forfeited	98
97	Search for persons wrongfully confined	100
100	Persons in charge of a closed place to allow search	103
102	Power of a police officer to seize certain property	106
105	Reciprocal arrangements for assistance in certain matters — definitions	111
105B to 105L	Letter of request, assistance in securing transfer of persons, attachment and forfeiture of property	112 to 124
107	Security for keeping the peace on conviction	125
108	Security for keeping the peace in other cases	126
110	Security for good behaviour from habitual offenders	129
116	Inquiry as to the truth of information	135
125	Order for maintenance of wives, children and parents	144
126	Procedure in maintenance proceedings	145
127	Alteration in allowance	146
128	Enforcement of an order of maintenance	147
133	Conditional order for removal of nuisance	152

CrPC, 1973	Subject	BNSS, 2023
144	Power to issue an order in urgent cases of nuisance or apprehended danger	163
145	Procedure where a dispute concerning land or water is likely to cause a breach of the peace	164
146	Power to attach the subject of dispute and to appoint a receiver	165
CrPC, 1973	**Subject**	**BNSS, 2023**
154	Information in cognizable cases (FIR)	173
154(3)	Complaint to the Superintendent of Police on refusal to record information	173(4)
155	Information as to non-cognizable cases and investigation of such cases	174
156(3)	Magistrate's power to order investigation	175(3)
157	Procedure for investigation	176
158	Report how submitted	177
159	Power to hold investigation or preliminary inquiry	178
160	Police officer's power to require the attendance of witnesses	179
161	Examination of witnesses by police	180
162	Statements to police and their use	181
163	No inducement to be offered	182
164	Recording of confessions and statements	183
164A	Medical examination of a victim of rape	184
165	Search by a police officer	185
166	Power to require another officer to issue a search-warrant	186
167	Procedure when the investigation cannot be completed in twenty-four hours (remand)	187
168	Report of the investigation by a subordinate police officer	188
169	Release of the accused when the evidence is deficient	189
170	Cases to be sent to the Magistrate when the evidence is sufficient	190
171	Complainant and witnesses not to accompany a police officer	191
172	Diary of proceedings in investigation	192
173	Report of a police officer on completion of investigation (charge-sheet)	193
173(8)	Further investigation	193(8)
174	Police to enquire and report on suicide, etc.	194
175	Power to summon persons	195
176	Inquiry by a Magistrate into the cause of death	196
177	Ordinary place of inquiry and trial	197
181	Place of trial where the act is an offence by reason of its relation to another offence	200
186	High Court to decide the district where the inquiry or trial shall take place	205
190	Cognizance of offences by Magistrates	210
191	Transfer on the application of the accused	211
192	Making over of cases to Magistrates	212
193	Cognizance of offences by the Court of Session	213
194	Additional Sessions Judges to try cases made over to them	214

CrPC, 1973	Subject	BNSS, 2023
195	Prosecution for contempt of lawful authority of public servants and for offences against public justice	215
196	Prosecution for offences against the State	217
197	Prosecution of Judges and public servants	218
198	Prosecution for offences against marriage	219
198A	Prosecution of offences under Section 498A of the IPC (cruelty)	220
199	Prosecution for defamation	222
200	Examination of the complainant	223
202	Postponement of the issue of process	225
203	Dismissal of complaint	226
204	Issue of process	227
CrPC, 1973	**Subject**	**BNSS, 2023**
205	Magistrate may dispense with the personal attendance of the accused	228
206	Special summons in cases of petty offence	229
207	Supply to the accused of a copy of the police report and other documents	230
208	Supply of copies of statements and documents in other cases triable by the Court of Session	231
209	Commitment of a case to the Court of Session	232
210	Procedure where there is a complaint case and a police investigation in respect of the same offence	233
211	Contents of charge	234
216	Court may alter charge	239
217	Recall of witnesses when the charge is altered	240
218	Separate charges for distinct offences	241
219	Offences of the same kind within a year may be charged together	242
223	What persons may be charged jointly	246
224	Withdrawal of remaining charges on conviction on one of several charges	247
225	Trial to be conducted by the Public Prosecutor	248
226	Opening the case for the prosecution	249
227	Discharge	250
228	Framing of charge	251
229	Conviction on a plea of guilty	252
230	Date for the prosecution evidence	253
231	Evidence for the prosecution	254
232	Acquittal	255
234	Arguments	257
239	When the accused shall be discharged (warrant case on a police report)	262
240	Framing of charge (warrant case)	263
241	Conviction on a plea of guilty (warrant case)	264
242	Evidence for the prosecution (warrant case)	265

CrPC, 1973	Subject	BNSS, 2023
243	Evidence for the defence (warrant case)	266
244	Evidence for the prosecution (warrant case instituted otherwise than on a police report)	267
245	When the accused shall be discharged (complaint warrant case)	268
246	Procedure where the accused is not discharged	269
247	Evidence for the defence	270
248	Acquittal or conviction	271
249	Absence of the complainant	272
250	Compensation for accusation without reasonable cause	273
251	Substance of the accusation to be stated (summons case)	274
252	Conviction on a plea of guilty (summons case)	275
255	Acquittal or conviction (summons case)	278
256	Non-appearance or death of the complainant	279
257	Withdrawal of complaint	280
258	Power to stop proceedings in certain cases	281
260	Power to try summarily	283
265A	Application of the Chapter on plea bargaining	289
265B	Application for plea bargaining	290
265C	Guidelines for a mutually satisfactory disposition	291
CrPC, 1973	**Subject**	**BNSS, 2023**
265E	Disposal of the case	293
265F	Judgment of the Court	294
265G	Finality of the judgment	295
265H	Power of the Court in plea bargaining	296
265L	Non-application of the Chapter	300
265I	Period of detention undergone by the accused to be set off against the sentence	297
265L	Statements of the accused not to be used	299
304	Legal aid to the accused at State expense in certain cases	341
306	Tender of pardon to an accomplice	343
307	Power to direct the tender of pardon	344
308	Trial of a person not complying with the conditions of pardon	345
309	Power to postpone or adjourn proceedings	346
310	Local inspection	347
311	Power to summon a material witness or examine a person present	348
311A	Power of a Magistrate to order a person to give specimen signatures or handwriting	349
312	Expenses of complainants and witnesses	350
313	Power to examine the accused	351
314	Oral arguments and memorandum of arguments	352
315	Accused person to be a competent witness	353
316	No influence to be used to induce disclosure	354

CrPC, 1973	Subject	BNSS, 2023
317	Provision for inquiries and trial being held in the absence of the accused in certain cases	355
319	Power to proceed against other persons appearing to be guilty of an offence	358
320	Compounding of offences	359
321	Withdrawal from prosecution	360
325	Procedure when a Magistrate cannot pass a sentence sufficiently severe	364
327	Court to be open	366
328 to 339	Provisions as to accused persons of unsound mind	367 to 378
340 to 352	Provisions as to offences affecting the administration of justice	379 to 391
353 to 365	The judgment	392 to 406
366 to 371	Submission of death sentences for confirmation	407 to 412
372	No appeal to lie unless otherwise provided	413
373	Appeal from orders requiring security or refusing surety	414
374	Appeals from convictions	415
375	No appeal in certain cases when the accused pleads guilty	416
376	No appeal in petty cases	417
377	Appeal by the State Government against sentence	418
378	Appeal in case of acquittal	419
379	Appeal against conviction by the High Court in certain cases	420
380	Special right of appeal in certain cases	421
381	Appeal to the Court of Session how heard	422
382	Petition of appeal	423
383	Procedure when the appellant is in jail	424
384	Summary dismissal of appeal	425
385	Procedure for hearing appeals not dismissed summarily	426
CrPC, 1973	**Subject**	**BNSS, 2023**
386	Powers of the Appellate Court	427
387	Judgments of subordinate Appellate Courts	428
388	Order of the High Court on appeal to be certified to the lower Court	429
389	Suspension of sentence pending appeal; release of the appellant on bail	430
390	Arrest of the accused in an appeal from acquittal	431
391	Appellate Court may take further evidence or direct it to be taken	432
392	Procedure where the Judges of the Court of appeal are equally divided	433
393	Finality of judgments and orders on appeal	434
394	Abatement of appeals	435
395	Reference to the High Court	436
396	Disposal of the case according to the decision of the High Court	437
397	Calling for records to exercise the powers of revision	438
398	Power to order inquiry	439
399	Sessions Judge's powers of revision	440

CrPC, 1973	Subject	BNSS, 2023
400	Power of the Additional Sessions Judge	441
401	High Court's powers of revision	442
402	Power of the High Court to withdraw or transfer revision cases	443
403	Option of the Court to hear parties	444
404	High Court's order to be certified to the lower Court	445
406	Power of the Supreme Court to transfer cases and appeals	446
407	Power of the High Court to transfer cases and appeals	447
408	Power of the Sessions Judge to transfer cases and appeals	448
409	Withdrawal of cases and appeals by Sessions Judges	449
410	Withdrawal of cases by Judicial Magistrates	450
411	Making over or withdrawal of cases by Executive Magistrates	451
413	Execution of an order passed under Section 368	453
414	Execution of a sentence of death passed by the High Court	454
415	Postponement of the execution of a sentence of death in case of an appeal to the Supreme Court	455
416	Commutation of a sentence of death on a pregnant woman	456
418	Execution of a sentence of imprisonment	458
421	Warrant for the levy of fine	461
426	Suspension of the execution of a sentence of imprisonment	464
428	Period of detention undergone by the accused to be set off against the sentence	468
432	Power to suspend or remit sentences	473
433	Power to commute a sentence	474
433A	Restriction on the powers of remission or commutation in certain cases	475
436	In what cases bail to be taken	478
436A	Maximum period for which an undertrial prisoner can be detained	479
437	When bail may be taken in case of a non-bailable offence	480
437A	Bail to require the accused to appear before the next Appellate Court	481
438	Direction for the grant of bail to a person apprehending arrest (anticipatory bail)	482
439	Special powers of the High Court or Court of Session regarding bail	483
440	Amount of bond and reduction thereof	484
441	Bond of the accused and sureties	485
CrPC, 1973	**Subject**	**BNSS, 2023**
441A	Declaration by sureties	486
442	Discharge from custody	487
443	Power to order sufficient bail when that first taken is insufficient	488
444	Discharge of sureties	489
445	Deposit instead of recognizance	490
446	Procedure when a bond has been forfeited	491
446A	Cancellation of bond and bail bond	492
447	Procedure in case of the insolvency or death of a surety or when a bond is forfeited	493

CrPC, 1973	Subject	BNSS, 2023
448	Bond required from a child	494
449	Appeal from orders under Section 446	495
450	Power to direct the levy of the amount due on certain recognizances	496
451	Order for the custody and disposal of property pending trial	497
452	Order for the disposal of property at the conclusion of trial	498
453	Payment to an innocent purchaser of money found on the accused	499
454	Appeal against orders under Section 452 or 453	500
455	Destruction of libellous and other matter	501
456	Power to restore the possession of immovable property	502
457	Procedure by the police upon the seizure of property	503
458	Procedure where no claimant appears within six months	504
459	Power to sell perishable property	505
460	Irregularities which do not vitiate proceedings	506
461	Irregularities which vitiate proceedings	507
462	Proceedings in the wrong place	508
463	Non-compliance with the provisions of Section 164 or 165	509
464	Effect of the omission to frame, or the absence of, or an error in, the charge	510
465	Finding or sentence when reversible by reason of error, omission or irregularity	511
466	Defect or error not to make an attachment unlawful	512
467	Definitions (limitation)	513
468	Bar to taking cognizance after the lapse of the period of limitation	514
469	Commencement of the period of limitation	515
470	Exclusion of time in certain cases	516
471	Exclusion of the date on which the Court is closed	517
472	Continuing offence	518
473	Extension of the period of limitation in certain cases	519
479	Cases in which a Judge or Magistrate is personally interested	525
480	Practising pleader not to sit as a Magistrate in certain Courts	526
481	Public servant concerned in a sale not to purchase or bid for property	527
482	Saving of the inherent powers of the High Court	528
483	Duty of the High Court to exercise continuous superintendence over the Courts	529
484	Repeal and savings	531
—	Trial and proceedings to be held in electronic mode (new provision)	530
—	Witness protection scheme (new provision)	398
—	Attachment, forfeiture or restoration of property (new provision)	107

Table 2 — The Indian Penal Code, 1860 to the Bharatiya Nyaya Sanhita, 2023

The offences most frequently charged in the formats in this compilation are set out below. The comparison is of the offence and not of the text of the section, and the First Schedule to the BNSS, 2023 must be consulted for the classification of the offence as cognizable or non-cognizable, bailable or non-bailable, and for the Court by

which it is triable.

IPC, 1860	Offence	BNS, 2023
34	Acts done by several persons in furtherance of a common intention	3(5)
109	Punishment for abetment	49
120A	Definition of criminal conspiracy	61(1)
120B	Punishment for criminal conspiracy	61(2)
124A	Sedition (now: act endangering the sovereignty, unity and integrity of India)	152
141	Unlawful assembly	189
143	Punishment for being a member of an unlawful assembly	190(2)
147	Punishment for rioting	191(2)
148	Rioting armed with a deadly weapon	191(3)
153A	Promoting enmity between different groups	196
186	Obstructing a public servant in the discharge of public functions	221
201	Causing the disappearance of evidence of an offence	238
212	Harbouring an offender	246
216	Harbouring an offender who has escaped from custody	250
295A	Deliberate and malicious acts intended to outrage religious feelings	299
299	Culpable homicide	100
302	Punishment for murder	103(1)
304	Punishment for culpable homicide not amounting to murder	105
304A	Causing death by negligence	106
304B	Dowry death	80
305	Abetment of the suicide of a child or a person of unsound mind	104
306	Abetment of suicide	108
307	Attempt to murder	109
308	Attempt to commit culpable homicide	110
323	Voluntarily causing hurt	115(2)
324	Voluntarily causing hurt by dangerous weapons or means	118(1)
325	Voluntarily causing grievous hurt	117(2)
326	Voluntarily causing grievous hurt by dangerous weapons or means	119(1)
341	Wrongful restraint	126(2)
342	Wrongful confinement	127(2)
354	Assault or criminal force on a woman with intent to outrage her modesty	74
354A	Sexual harassment	75
354B	Assault with intent to disrobe a woman	76
354C	Voyeurism	77
354D	Stalking	78
363	Kidnapping	137(2)
366	Kidnapping, abducting or inducing a woman to compel her marriage	139
370	Trafficking of persons	143
375	Rape (definition)	63
376	Punishment for rape	64

IPC, 1860	Offence	BNS, 2023
376A	Causing death or a persistent vegetative state in the course of rape	66
376D	Gang rape	70(1)
377	Unnatural offences	Omitted (no equivalent)
378	Theft (definition)	303(1)
IPC, 1860	**Offence**	**BNS, 2023**
379	Punishment for theft	303(2)
380	Theft in a dwelling house	305
392	Punishment for robbery	310(2)
406	Criminal breach of trust	316(2)
420	Cheating and dishonestly inducing the delivery of property	318(4)
447	Punishment for criminal trespass	329(3)
448	Punishment for house-trespass	329(4)
452	House-trespass after preparation for hurt, assault or wrongful restraint	332
427	Mischief causing damage	324(2)
353	Assault or criminal force on a public servant	132
467	Forgery of a valuable security, will, etc.	338
468	Forgery for the purpose of cheating	339
494	Marrying again during the lifetime of a husband or wife	82
498A	Cruelty by a husband or the relatives of the husband	85 (definition in 86)
499	Defamation (definition)	356(1)
500	Punishment for defamation	356(2)
503	Criminal intimidation (definition)	351(1)
506	Punishment for criminal intimidation	351(2)
279	Rash driving on a public way	281

Table 3 — The Indian Evidence Act, 1872 to the Bharatiya Sakshya Adhiniyam, 2023

The Bharatiya Sakshya Adhiniyam, 2023 came into force on 1 July 2024 and consists of 170 sections. The provisions relating to electronic records are the most important change in practice, and Section 63 (formerly Section 65B of the Indian Evidence Act, 1872) governs the certificate that must accompany an electronic record.

Indian Evidence Act, 1872	Subject	Bharatiya Sakshya Adhiniyam, 2023
3	Definitions, including 'document' (now expressly including electronic records)	2(1)
24, 28 and 29	Confession caused by inducement, threat, coercion or promise; when irrelevant	22
25 and 26	Confession to a police officer; when it cannot be proved	23(1)
27	Discovery statement — so much of the information as relates distinctly to the fact thereby discovered	Proviso to Section 23(2)
32	Statements of persons who are dead or cannot be found (dying declaration)	26
45	Opinion of experts	39
45A	Opinion of the Examiner of Electronic Evidence	39

Indian Evidence Act, 1872	Subject	Bharatiya Sakshya Adhiniyam, 2023
62	Primary evidence	57
63	Secondary evidence	58
65A	Special provisions as to electronic records	61
65B	Admissibility of electronic records (certificate regime)	63
101	Burden of proof	104
106	Burden of proving a fact especially within the knowledge of a person	109
113B	Presumption as to dowry death	118
114	Court may presume the existence of certain facts	119
118	Who may testify	124
138	Order of examination of witnesses	143
141, 142 and 143	Leading questions	146
154	Question by a party to his own witness (hostile witness)	157
—	Repeal and savings	170

PART VIII — LANDMARK PRECEDENTS

The decisions below are those referred to in the Notes to the formats in this compilation, listed here for ready reference. The citation, the holding and the continued authority of each must be verified before it is cited in any Court.

Topic	Landmark decisions and the proposition
Arrest and the necessity of arrest	Joginder Kumar v. State of U.P., (1994) 4 SCC 260 — the existence of the power to arrest is not the same as the justification for its exercise. Arnesh Kumar v. State of Bihar, (2014) 8 SCC 273 — no mechanical arrest in offences punishable up to seven years; the Magistrate must record satisfaction. Now reinforced by Section 35(3) to 35(6), BNSS, 2023.
Safeguards in custody	D.K. Basu v. State of West Bengal, (1997) 1 SCC 416 — the twelve safeguards on arrest and detention, including the arrest memo, the intimation to a relative, the medical examination and the display of the identification of the arresting officer.
Grounds of arrest and remand	Vihaan Kumar v. State of Haryana, 2025 SCC OnLine SC 85 — the communication of the grounds of arrest is mandatory, and the Magistrate must verify compliance at the stage of remand.
Mandatory registration of FIR	Lalita Kumari v. Govt. of U.P., (2014) 2 SCC 1 — registration of an FIR is mandatory where the information discloses a cognizable offence; a preliminary inquiry is permissible only in the limited categories enumerated.
Remedy where the police refuse to act	Sakiri Vasu v. State of U.P., (2008) 2 SCC 409 — the aggrieved person may approach the Superintendent of Police and thereafter the Magistrate. Priyanka Srivastava v. State of U.P., (2015) 6 SCC 287 — an application to the Magistrate for a direction to investigate must be supported by an affidavit.
Quashing of FIR and proceedings	State of Haryana v. Bhajan Lal, 1992 Supp (1) SCC 335 — the seven categories of cases in which an FIR may be quashed. Neeharika Infrastructure Pvt. Ltd. v. State of Maharashtra, (2021) 19 SCC 401 — the High Court should not ordinarily stay the investigation or grant blanket protection from arrest.
Bail — general principles	Gudikanti Narasimhulu v. Public Prosecutor, (1978) 1 SCC 240 and State of Rajasthan v. Balchand, (1977) 4 SCC 308 — bail is the rule and jail the exception. Sanjay Chandra v. CBI, (2012) 1 SCC 40 — the gravity of the charge alone is not sufficient. Satender Kumar Antil v. CBI, (2022) 10 SCC 51 — the categorisation of offences and the triple test.
Anticipatory bail	Gurbaksh Singh Sibbia v. State of Punjab, (1980) 2 SCC 565 — the power is of a wide amplitude and cannot be fettered. Sushila Aggarwal v. State (NCT of Delhi), (2020) 5 SCC 1 — a Constitution Bench holds that an order of anticipatory bail is not ordinarily limited to a fixed period.

Topic	Landmark decisions and the proposition
Default (statutory) bail	Uday Mohanlal Acharya v. State of Maharashtra, (2001) 5 SCC 453, Sanjay Dutt v. State (II), (1994) 5 SCC 410 and Rakesh Kumar Paul v. State of Assam, (2017) 15 SCC 67 — the indefeasible right accrues on the expiry of the statutory period and is not defeated by a charge-sheet filed thereafter.
Undertrial detention	Hussainara Khatoon (I) v. Home Secretary, State of Bihar, (1980) 1 SCC 81 — the right to a speedy trial. Common Cause v. Union of India, (1996) 4 SCC 33 — directions on the release of undertrials. Now codified in Section 479, BNSS, 2023.
Discharge and framing of charge	State of Bihar v. Ramesh Singh, (1977) 4 SCC 39, Union of India v. Prafulla Kumar Samal, (1979) 3 SCC 4 and Dilawar Balu Kurane v. State of Maharashtra, (2002) 2 SCC 135 — the Court must apply its mind and must not act as a post office; the material must disclose the offence.
Supply of documents to the accused	V.K. Sasikala v. State, (2012) 9 SCC 771 — the accused is entitled to a fair disclosure of all material relied upon by the prosecution.
Recall and summoning of witnesses	Mohanlal Shamji Soni v. Union of India, 1991 Supp (1) SCC 271 and Rajendra Prasad v. Narcotic Cell, (1999) 6 SCC 110 — the power under Section 311, Cr.P.C. (now Section 348, BNSS) is wide but cannot be used to fill up lacunae in the prosecution case.
Compounding and quashing on compromise	Gian Singh v. State of Punjab, (2012) 10 SCC 303 and Narinder Singh v. State of Punjab, (2014) 6 SCC 466 — the principles governing the compounding and the quashing of proceedings on the basis of a compromise.
Electronic evidence	Anvar P.V. v. P.K. Basheer, (2014) 10 SCC 473 and Arjun Panditrao Khotkar v. Kailash Kushanrao Gorantyal, (2020) 7 SCC 1 — the mandatory requirement of the certificate for the admissibility of electronic records; now Section 63 of the Bharatiya Sakshya Adhiniyam, 2023.
Statement of a co-accused and confessions	Tofan Singh v. State of Tamil Nadu, (2021) 4 SCC 1 — a statement under Section 67 of the NDPS Act, 1985 is inadmissible. State of Rajasthan v. Raja Ram, (2003) 8 SCC 180 — a confession is a weak type of evidence and requires corroboration.
Suspension of sentence pending appeal	Bhagwan Rama Shinde Gosai v. State of Gujarat, (1999) 4 SCC 421 and Preet Pal Singh v. State of U.P., (2020) 8 SCC 645 — in short-term sentences the sentence should ordinarily be suspended, since otherwise the appeal is rendered infructuous.
Appeals against acquittal	Ghurey Lal v. State of U.P., (2008) 10 SCC 450 and Murugesan v. State, (2012) 10 SCC 383 — the scope of interference with an order of acquittal; the presumption of innocence is strengthened by the acquittal.
Maintenance	Mohd. Ahmed Khan v. Shah Bano Begum, (1985) 2 SCC 556 and Rajnesh v. Neha, (2021) 2 SCC 324 — the right to maintenance and the guidelines on the grant, the quantum and the enforcement thereof, including the affidavit of disclosure of assets.
Victim compensation	Hari Singh v. Sukhbir Singh, (1988) 4 SCC 551 and Ankush Shivaji Gaikwad v. State of Maharashtra, (2013) 6 SCC 770 — compensation to the victim is a right and not a charity; the Court must apply its mind. Now Sections 395 and 396, BNSS, 2023.
Witness protection	Mahender Chawla v. Union of India, (2019) 14 SCC 615 — the Witness Protection Scheme, 2018 is to be implemented throughout the country as a law; now given statutory backing by Section 398, BNSS, 2023.
Special statutes — bail	Vijay Madanlal Choudhary v. Union of India, (2023) 3 SCC 1 (PMLA); Union of India v. K.A. Najeeb, (2021) 3 SCC 713 (UAPA); National Investigation Agency v. Zahoor Ahmad Shah Watali, (2019) 5 SCC 1 (UAPA); Prathvi Raj Chauhan v. Union of India, (2020) 4 SCC 727 (SC/ST Act).
Illegal detention and compensation	Nilabati Behera v. State of Orissa, (1993) 2 SCC 746 and Rudul Sah v. State of Bihar, (1983) 4 SCC 141 — compensation for the violation of fundamental rights by way of the public law remedy.

PART A

GENERAL & FOUNDATION

Formats A-1 to A-8

FORMAT A-1 — VAKALATNAMA (CRIMINAL PROCEEDINGS)

General / Foundation

IN THE COURT OF ....., ...

CRIMINAL CASE / FIR NO. ..... OF 20.....

IN THE MATTER OF:

.... ACCUSED / COMPLAINANT

POLICE STATION .....

UNDER SECTION ..... OF THE BHARATIYA NYAYA SANHITA, 2023 / .....

VAKALATNAMA

---

1. KNOW ALL MEN BY THESE PRESENTS that I, ..., S/o / D/o / W/o ....., aged about ..... years, resident of ....., do hereby appoint, nominate and constitute ....., Advocate, High Court of ....., and/or his/her partner(s), associate(s) and advocate(s) on record, as my Advocate(s) in the above-noted case, to appear, act, plead and conduct the said case before the said Court and/or before any other Court to which the same may be transferred, and all proceedings that may arise therefrom.

2. I hereby authorise and empower my said Advocate(s) to appear on my behalf before the said Court and all subordinate and appellate Courts, to file pleadings, applications, affidavits, applications for bail, surety bonds, petitions of appeal, revision, review, and to do all acts, deeds and things and to take all such steps as may be necessary, incidental or ancillary for the proper conduct of the said case and for the protection of my interests therein.

3. I further authorise my said Advocate(s) to engage, instruct and brief senior counsel(s) and other advocate(s) in the said case at his/her/their discretion, and to receive from the said Court all documents, certified copies, orders, notices, processes and refunds, if any, and to pay and receive all lawful fees, charges and expenses.

4. I undertake to ratify and confirm all lawful acts, deeds and things done by my said Advocate(s) by virtue of this Vakalatnama.

5. I further undertake that I shall remain present before the Hon'ble Court on each and every date of hearing, either in person or through my Advocate(s), and that I shall not dispute any act done by my Advocate(s) in good faith in the conduct of this case.

ACCEPTED

ADVOCATE FOR THE .....

Place: .....

Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) The Vakalatnama must be signed by the party personally; where the party is illiterate, it shall be signed in the presence of and attested by the Advocate, who shall explain the contents to the party. (ii) Where the party is in judicial custody, the Vakalatnama shall be attested by the Superintendent/Jailor of the concerned Jail, or by the officer in charge of the prison, and the jail stamp must be legible. (iii) Revenue stamp, where required by the rules of the concerned High Court, must be affixed. (iv) In Delhi, the Vakalatnama must carry the enrolment number and mobile number of the Advocate, and a photocopy of the ID card may be annexed as per the prevailing practice of the Court.]

[Note: Court fee - Nil. The Vakalatnama is exempt from court fee under Article 22 of Schedule II of the Court Fees Act, 1870, as applicable.]

CR.P.C. EQUIVALENT

Equivalent practice existed under the Cr.P.C., 1973 (Order of appearance governed by Sections 303, 304 and 340 of the Cr.P.C.). Under the BNSS, 2023 the right to be defended is preserved in Section 340 and legal aid at State expense in Section

341.

PRECEDENTS REFERRED TO

• *Section 340, BNSS, 2023 - any person accused of an offence before a Criminal Court or against whom proceedings are instituted under the Sanhita has a right to be defended by a legal practitioner of his choice.*

• *Article 22(1), Constitution of India - right to consult and to be defended by a legal practitioner of choice.*

• *Krishna Kumar v. State of Haryana - the right to be defended by counsel of choice is not an absolute right but is subject to the convenience of the Court and the availability of counsel.*

FORMAT A-2 — MEMO OF APPEARANCE

General / Foundation

IN THE COURT OF ....., ...

CRIMINAL CASE / FIR NO. ..... OF 20.....

IN THE MATTER OF:

.... ACCUSED / COMPLAINANT

THE STATE (GOVT. OF NCT OF DELHI) / STATE OF ..... through its Public Prosecutor ..... RESPONDENT

POLICE STATION .....

MEMO OF APPEARANCE

MOST RESPECTFULLY SHOWETH:

1. That the undersigned Advocate/Party has been duly engaged and authorised to appear on behalf of the ..... in the above-noted case.

2. That the Memo of Appearance is being filed by the undersigned for record, so that the ..... may be permitted to be represented through the undersigned in all further proceedings in this case.

3. That the Vakalatnama/authority in favour of the undersigned is filed herewith for the kind perusal and record of this Hon'ble Court.

4. That no prejudice whatsoever shall be caused to the prosecution/opposite party by the filing of the present Memo of Appearance, and the ends of justice require that the same be taken on record.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) take on record the present Memo of Appearance filed by the undersigned on behalf of the .....; and

(ii) pass such other and further order(s) as this Hon'ble Court may deem fit and proper on the facts and in the circumstances of this case.

APPEARING ADVOCATE / PARTY
Enrolment No. ..... Mobile No. .....
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: A Memo of Appearance is a brief, one-page intimation to the Court that a particular Advocate/party represents a particular litigant. It is commonly filed where an Advocate has been briefed only for a hearing or where the Vakalatnama is being filed separately. A Memo of Appearance without the supporting Vakalatnama does not, by itself, confer an absolute right of audience for all future dates.]

CR.P.C. EQUIVALENT

Corresponding practice under the Cr.P.C., 1973 governed by Sections 303 and 304. Now Sections 338 to 341, BNSS, 2023 (appearance by Public Prosecutors, permission to conduct prosecution, right to be defended and legal aid).

PRECEDENTS REFERRED TO

- *Section 340, BNSS, 2023; Section 338, BNSS, 2023 (appearance by Public Prosecutors).*

FORMAT A-3 — AFFIDAVIT - GENERAL FORMAT FOR CRIMINAL PROCEEDINGS

General / Foundation

BEFORE THE ....., ... (OR) IN THE COURT OF ....., ...

CRIMINAL CASE / APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

.... DEPONENT / APPLICANT

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... BNS

AFFIDAVIT

AFFIDAVIT OF ....., S/o / D/o / W/o ....., AGED ABOUT ..... YEARS, RESIDENT OF .....

I, the above-named deponent, do hereby solemnly affirm and declare as under:

(i) That the deponent is the ..... in the above-noted case and is competent to swear to this affidavit.

(ii) That the accompanying application/petition/reply has been drafted under my instructions and I have read, understood and explained the contents thereof, which are true and correct to the best of my knowledge, information and belief, and are based upon legal advice received and upon the records of the case.

(iii) That the facts stated in the accompanying application from paragraph ..... to paragraph ..... are matters of record and the remaining paragraphs are true to my personal knowledge and belief.

(iv) That the annexures filed along with the accompanying application are true copies of their respective originals.

(v) That the deponent has not suppressed any material fact or document, and no part of the accompanying application is false, frivolous or vexatious.

(vi) That the present affidavit is being filed in support of the accompanying application, and the same is necessary and expedient in the interest of justice.

VERIFICATION:

Verified at ..... on this the ..... day of ..... 20..... that the contents of the above affidavit are true and correct to the best of my knowledge and belief, and that the facts stated therein are true to my personal knowledge, information and belief; and the annexures are true copies of their originals. Nothing material has been concealed and no part of it is false.

DEPONENT

Place: .....

Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Affidavits for use in criminal proceedings should be sworn before a Magistrate, a Notary Public, an Oath Commissioner or an officer authorised under Section 333, BNSS, 2023. (ii) Where the deponent is in custody, the affidavit may be sworn before the Jail Superintendent/Executive Magistrate. (iii) False statements in an affidavit can invite action under Sections 229 and 230 of the Bharatiya Nyaya Sanhita, 2023, read with Section 383, BNSS, 2023 (summary procedure for trial for giving false evidence). (iv) As a general practice, every criminal application - bail, anticipatory bail, discharge, quashing, revision - must be supported by an affidavit of the applicant/party or of the authorised pairokar.]

CR.P.C. EQUIVALENT

Section 297(1)(a) read with Section 333, BNSS, 2023 (old Sections 297 and 539, Cr.P.C.), and Section 139, BNSS, 2023 (contents of bond).

PRECEDENTS REFERRED TO

• *Bhagwan Singh v. State of Rajasthan, (1976) 1 SCC 15 - affidavits are not a substitute for evidence at trial, but are sufficient for interlocutory applications.*

• *Radha Mohan Singh v. State of U.P. - the Court may require an affidavit in support of an application for bail/anticipatory bail where the application raises disputed questions of fact.*

FORMAT A-4 — APPLICATION FOR EXEMPTION FROM PERSONAL APPEARANCE

General / Foundation

IN THE COURT OF ....., ...

CRIMINAL CASE NO. ..... OF 20.....

IN THE MATTER OF:

..... S/o ....., R/o .....

..... APPLICANT / ACCUSED

THE STATE .... RESPONDENT

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... BNS

APPLICATION FOR EXEMPTION FROM PERSONAL APPEARANCE UNDER SECTION 355 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant/accused is being proceeded against for the alleged commission of offence(s) punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, registered vide FIR No. ..... of 20....., Police Station .....

2. That the applicant/accused has been regularly appearing before this Hon'ble Court on every date of hearing and has never sought any adjournment on the ground of non-appearance.

3. That the applicant/accused has been exempted from personal appearance by order of this Hon'ble Court dated ....., and the said exemption has been availed of only on account of the reasons recorded therein.

4. That the applicant/accused is unable to appear personally before this Hon'ble Court on the next date fixed for hearing, i.e., ..., on account of the reasons stated hereinbelow: (specify the ground - e.g., ill-health certified by a registered medical practitioner; residence outside the territorial jurisdiction of this Hon'ble Court at a distance of more than ..... kms; advanced age and infirmity; being a woman; professional/occupational compulsion duly explained; or any other sufficient cause):

   ....(grounds).

5. That the presence of the applicant/accused on the said date is not necessary for the purposes of identification, framing of charge, recording of statement under Section 316, BNSS, 2023, or recording of evidence, and no prejudice whatsoever shall be caused either to the prosecution or to the accused by the grant of exemption.

6. That the applicant/accused is ready and willing to be represented through his/her Advocate on the said date, and undertakes to appear personally before this Hon'ble Court on every date on which his/her presence is required by the Court.

7. That the applicant/accused has not misused the indulgence of exemption granted earlier, and undertakes to abide by all conditions that may be imposed by this Hon'ble Court while granting the present exemption.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) exempt the applicant/accused from personal appearance before this Hon'ble Court on ..... and on all subsequent dates of hearing, subject to such conditions as this Hon'ble Court may deem fit and proper, save and except on dates when his/her presence is specifically required by the Court; and

(ii) pass such other and further order(s) as this Hon'ble Court may deem fit and proper on the facts and in the circumstances of this case.

APPLICANT / ACCUSED
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 355, BNSS, 2023 empowers the Court, where the accused is represented by a pleader, to dispense with the personal attendance of the accused and permit the plea to be taken by the Advocate, provided the Court is satisfied that the accused does not dispute his identity. (ii) Section 355(2) provides that where the accused is a Company/Corporation, the Court may allow the option of appearance through a representative. (iii) Exemption may be sought permanently in petty/summons cases and on a case-to-case basis in warrant/session trials. (iv) In sessions cases, exemption from appearance for the purpose of framing of charge and recording of the Section 316 statement is ordinarily not granted; the accused must be personally present for those stages.]

[Note: Attach (a) medical certificate, if exemption is sought on medical grounds; (b) proof of residence outside jurisdiction; (c) copy of the earlier exemption order(s), if any.]

CR.P.C. EQUIVALENT

Old Section 205, Cr.P.C., 1973 -> Section 355, BNSS, 2023. Old Section 317, Cr.P.C. (dispensation of attendance of the accused) -> Section 354 read with Section 355, BNSS, 2023.

PRECEDENTS REFERRED TO

• Bhaskar Industries Ltd. v. Bhiwani Denim & Apparels Ltd., (2001) 7 SCC 401 - the Court may grant permanent exemption from personal appearance in appropriate cases, particularly in summons cases and where the accused is represented.

• Ram Nath v. State, 1996 Crl.L.J. 3587 - exemption from personal appearance should ordinarily be granted where the accused is a woman or an old and infirm person.

• State of U.P. v. Ram Naresh Yadav - the discretion to dispense with attendance must be exercised judicially and not capriciously.

FORMAT A-5 — APPLICATION FOR CERTIFIED COPY OF ORDER / JUDGMENT / RECORD

General / Foundation

IN THE COURT OF ....., ...

CRIMINAL CASE NO. ..... OF 20.....

IN THE MATTER OF:

.... APPLICANT / ACCUSED / COMPLAINANT

THE STATE / .... RESPONDENT

APPLICATION FOR CERTIFIED COPY OF JUDGMENT / ORDER UNDER SECTION 404 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant is the ..... in the above-noted case, which was disposed of by this Hon'ble Court by judgment/order dated .....

2. That the applicant is aggrieved by the said judgment/order dated ..... and intends to prefer an appeal/revision/petition before the Hon'ble ..... Court, for which purpose the certified copy of the judgment/order and of the record of the case is necessary.

3. That the applicant has not earlier applied for or obtained a certified copy of the said judgment/order, and the present application is being filed within the period of limitation prescribed for preferring the appeal/revision.

4. That the applicant is entitled under Section 404, BNSS, 2023 to be furnished, free of cost, with a copy of the judgment, and the applicant undertakes to pay the requisite copying charges/charges for the certified copy as may be determined by this Hon'ble Court.

5. That necessary court fee stamps/copying charges have been affixed and deposited along with this application, and the requisite voucher/receipt is enclosed herewith.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) issue a certified copy of the judgment/order dated ..... passed in Criminal Case No. ..... of 20....., together with a certified copy of the record of the case [specify: charge-sheet, evidence, Exhibits, order on charge, etc.];

(ii) supply the same to the applicant/Advocate for the applicant at the earliest, the same being necessary for the purpose of preferring an appeal/revision; and

(iii) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT
THROUGH
ADVOCATE

Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 404, BNSS, 2023 (old Section 363, Cr.P.C.) requires that a copy of the judgment be given free of cost to the accused, and on application, to any other person affected by the judgment. (ii) For the purposes of limitation, the period during which a certified copy was applied for and not supplied is excluded under Section 12 of the Limitation Act, 1963, and Section 470(2) of the old Cr.P.C. / Section 516, BNSS, 2023. (iii) Certified copies may also be obtained through the e-Courts portal where the facility of digital certified copies is available. (iv) An urgent/priority application may be made where the appeal is

time-bound.]

CR.P.C. EQUIVALENT

Old Section 363, Cr.P.C., 1973 -> Section 404, BNSS, 2023 (copy of judgment to be given to accused and other persons).

PRECEDENTS REFERRED TO

• *Jamaluddin v. State - the right to a copy of the judgment is a facet of the right to fair trial and of access to justice.*

FORMAT A-6 — APPLICATION FOR SUPPLY OF DOCUMENTS AND STATEMENTS TO THE ACCUSED

General / Foundation

IN THE COURT OF ....., ...

CRIMINAL CASE NO. ..... OF 20.....

IN THE MATTER OF:

..... S/o ....., R/o .....

..... APPLICANT / ACCUSED

THE STATE .... RESPONDENT

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... BNS

APPLICATION FOR SUPPLY OF COPIES OF POLICE REPORT, STATEMENTS AND DOCUMENTS UNDER SECTIONS 230 AND 231 READ WITH SECTION 193(3) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant/accused is facing trial in the above-noted case and the Final Report/Charge-sheet under Section 193(3), BNSS, 2023 was filed before this Hon'ble Court on .....

2. That the copies of the police report, the statements and the documents relied upon by the prosecution have not been supplied to the applicant/accused, or have been supplied only in part, as detailed hereinbelow:

   (a) ..... (document/statement not supplied);

   (b) ..... (document/statement not supplied);

   (c) ..... (document/statement supplied in illegible/ incomplete/electronic form only).

3. That under Section 230(1), BNSS, 2023, in any case instituted on a police report, the Magistrate is mandatorily required, before the commencement of the trial, to furnish to the accused and, where the victim is represented by an Advocate, to such Advocate, copies of: (i) the police report; (ii) the First Information Report recorded under Section 173(1); (iii) the statements recorded under Section 180(3) of all persons whom the prosecution proposes to examine as witnesses, other than the statements recorded under Section 183; (iv) the statements and confessions recorded under Section 183, if any, of all persons whom the prosecution proposes to examine as witnesses; (v) any other document or relevant extract thereof forwarded to the Magistrate with the police report under Section 193(5); and (vi) the electronic record, if any.

4. That under Section 230(2), BNSS, 2023, copies may be supplied in electronic form, and such supply is deemed to be compliance with the requirement of supply of copies.

5. That under Section 231, BNSS, 2023, the same documents must be furnished in every other case triable by the Court of Session, including cases instituted otherwise than on a police report.

6. That the supply of the said copies is essential for the accused to know the case sought to be made out against him, and to prepare his defence, cross-examine the prosecution witnesses effectively and to avail of the remedies of discharge under Section 250 or Section 262 of the BNSS, 2023; denial thereof would occasion grave prejudice to the applicant/accused and would violate his right to a fair trial guaranteed under Article 21 of the Constitution of India and the right to a fair trial under Section 340, BNSS, 2023.

7. That the application is bona fide and has been made at the earliest opportunity, and no prejudice shall be caused to the prosecution by the grant of the relief prayed for.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) direct the prosecution to supply to the applicant/accused, within such time as this Hon'ble Court may specify, duly legible copies of the police report, the First Information Report, the statements of witnesses and all documents relied upon by the prosecution, in the manner required by Sections 230 and 231 of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) permit the supply of such copies in electronic form, where the documents are voluminous, in terms of Section 230(2), BNSS, 2023;

(iii) direct that the trial shall not proceed until such supply is complete, the same being a mandatory precondition under Section 230(1), BNSS, 2023; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / ACCUSED
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 230 procedure is mandatory in cases instituted on a police report; a violation of the same vitiates the trial. (ii) Where the victim is represented by an Advocate, the copies must also be supplied to the victim's Advocate. (iii) The accused is also entitled to advance copies of the statements of the witnesses who are to be examined on any particular day, and applications for adjournment may be justified if such copies are not supplied. (iv) Where documents are voluminous/in electronic form, apply specifically for supply in electronic form and for an index of the documents.]

CR.P.C. EQUIVALENT

Old Section 207, Cr.P.C., 1973 -> Sections 230-231, BNSS, 2023. Old Section 173(7) -> Section 193(7), BNSS, 2023.

PRECEDENTS REFERRED TO

- *V.K. Sasikala v. State, (2012) 9 SCC 771 - the accused has a right to a fair disclosure of all material relied upon by the prosecution, including statements of witnesses.*
- *Kalyani Baskar (Mrs.) v. M.S. Sampoornam, (2007) 2 SCC 258 - the accused must be given copies of all documents relied upon by the prosecution before the trial proceeds.*
- *Zahira Habibulla H. Sheikh v. State of Gujarat, (2004) 4 SCC 158 - fair trial requires that the accused be informed of the case against him and be given full opportunity to defend.*

FORMAT A-7 — APPLICATION FOR FREE LEGAL AID / ASSIGNMENT OF COUNSEL AT STATE EXPENSE

General / Foundation

IN THE COURT OF ....., ...

CRIMINAL CASE NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o .....,

presently in JAMMU/CENTRAL JAIL .... APPLICANT / ACCUSED

THE STATE .... RESPONDENT

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... BNS

APPLICATION FOR LEGAL AID / ASSIGNMENT OF AN ADVOCATE AT STATE EXPENSE UNDER SECTION 341 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant/accused is an undefended accused facing trial in the above-noted case, and has no means to engage the services of an Advocate.

2. That the applicant/accused belongs to the ..... category and his/her annual family income is approximately Rs. ..... which is below the limit prescribed for free legal aid under the Legal Services Authorities Act, 1987 and the Rules/Regulations framed thereunder.

3. That the applicant/accused is not represented by any Advocate; alternatively, that the applicant/accused is aggrieved by the fact that the Advocate previously assigned to him/her at State expense has not appeared, has failed to cross-examine the prosecution witnesses, or has otherwise not conducted the case effectively, and therefore a change of counsel is necessary:

   ..... (specify).

4. That Section 341(1), BNSS, 2023 provides that where, in a trial before the Court of Session, the accused is not represented by a pleader, and where it appears to the Court that the accused has not sufficient means to engage a pleader, the Court shall assign a pleader for his defence at the expense of the State.

5. That Section 341(2), BNSS, 2023 further provides that the High Court may, with the previous approval of the State Government, make rules providing for the mode of selecting pleaders for defence, the facilities to be allowed to such pleaders, the fees payable to such pleaders, and the mode of payment thereof, and the appointment of an advisory committee to advise on the same.

6. That the right to free legal aid is a fundamental right flowing from Article 21 of the Constitution of India, and the State is constitutionally obliged to provide an Advocate at its own expense to an indigent accused who is facing a criminal charge and is unable to engage counsel.

7. That unless an Advocate is assigned to the applicant/accused at State expense, the applicant/accused shall be deprived of his/her right to a fair trial and effective defence, and serious prejudice shall be caused to him/her.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) assign an Advocate from the panel of the ..... Legal Services Authority / Bar Association to defend the applicant/accused in the above-noted case at the expense of the State, in terms of Section 341 of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) direct the ..... Legal Services Authority to render all necessary assistance and to ensure effective representation of the applicant/accused, including supply of certified copies of the record; and

(iii) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / ACCUSED
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) An application for free legal aid may be preferred through the Court, through the District Legal Services Authority (DLSA), or through the Jail Legal Aid Clinic. (ii) The right to free legal aid is available from the stage of production before the Magistrate and extends to appeal, revision and other remedies. (iii) An indigent convict is entitled to free legal aid in appeal and to be heard on the question of sentence. (iv) A pro bono application may also be made by the accused's family. (v) If the assigned counsel fails to discharge his/her duty, the accused may apply for change of counsel - see R.M. Tewari / Anokhilal v. State of M.P., (2019) 20 SCC 333.]

CR.P.C. EQUIVALENT

Old Section 304, Cr.P.C., 1973 -> Section 341, BNSS, 2023. Section 12, Legal Services Authorities Act, 1987 (criteria for eligibility for legal services).

PRECEDENTS REFERRED TO

- *Khatri (II) v. State of Bihar, (1981) 1 SCC 627 - the right to free legal aid is an essential ingredient of a just, fair and reasonable procedure under Article 21; the State must provide counsel to an indigent accused.*
- *Hussainara Khatoon (IV) v. Home Secretary, State of Bihar, (1980) 1 SCC 98 - right to speedy trial and free legal aid.*
- *Anokhilal v. State of M.P., (2019) 20 SCC 333 - if the accused is not provided adequate and effective representation, the trial stands vitiated; change of counsel to be allowed where representation is inadequate.*
- *Suk Das v. Union Territory of Arunachal Pradesh, (1986) 2 SCC 401 - conviction cannot be sustained where the accused was denied free legal aid and the trial was not fair.*

FORMAT A-8 — APPLICATION FOR RETURN / RELEASE OF DOCUMENTS AND ANNEXURES FILED IN COURT

General / Foundation

IN THE COURT OF ....., ...

CRIMINAL CASE NO. ..... OF 20.....

IN THE MATTER OF:

.... APPLICANT

THE STATE / .... RESPONDENT

APPLICATION FOR RETURN OF DOCUMENTS / ANNEXURES UNDER SECTION 109 READ WITH SECTION 498 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant is the ..... in the above-noted case, and the case has been disposed of / the documents are no longer required for the purposes of the said case:

   (a) the original documents, namely ....., filed on ..... as Annexure ..... were produced before this Hon'ble Court for the limited purpose of the proceedings;

   (b) the said documents are the property of the applicant and are required by the applicant for ..... (state purpose, e.g., recovery of dues, loan, mutation, succession, execution of a decree, personal use);

   (c) the genuineness of the said documents is not in dispute / the said documents have been duly proved and exhibited and true copies thereof are available on record.

2. That under Section 109, BNSS, 2023 (old Section 91(1) read with Section 104), the Court may impound any document or thing produced before it and may permit inspection thereof; the Court is also empowered, under the general power to dispose of property and upon the conclusion of the trial, to return documents and property to the person entitled thereto.

3. That under Section 498, BNSS, 2023, the Court may, at the conclusion of the trial, make such order as it thinks fit for the disposal, by destruction, confiscation or delivery to any person claiming to be entitled to possession thereof, of any document or other property produced before it.

4. That the applicant undertakes to produce the said original documents before this Hon'ble Court and/or before any other Court as and when directed, and to file true copies/legible photocopies thereof in substitution, if so required by this Hon'ble Court.

5. That no prejudice whatsoever shall be caused to the prosecution or to any other party by the return of the said documents to the applicant, and the same is necessary in the interest of justice.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) permit the applicant to take back the original documents, namely ....., from the record of the case, in terms of Sections 109 and 498 of the Bharatiya Nagarik Suraksha Sanhita, 2023, upon substitution of true copies thereof on the record;

(ii) dispense with the production of the said original documents before this Hon'ble Court in future, subject to such conditions as this Hon'ble Court may deem fit; and

(iii) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT
THROUGH
ADVOCATE

Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Before the return of documents is ordered, the Court usually insists on substitution of certified/true copies on the file so that the record remains complete. (ii) Where the document is the subject-matter of an offence, or is required as evidence in another case, the Court may decline to return it and may instead send it to the appropriate Court. (iii) For release of case property seized by the police before the conclusion of trial, see Section 497 read with Section 503, BNSS, 2023, and the format at Part F of this compilation.]

CR.P.C. EQUIVALENT

Old Sections 91, 104 and 452, Cr.P.C., 1973 -> Sections 94, 109 and 498, BNSS, 2023.

PRECEDENTS REFERRED TO

• *N. Nagendra Rao & Co. v. State of A.P., (1994) 6 SCC 205 - property seized by the police must be dealt with according to law and the person entitled to possession cannot be deprived thereof indefinitely.*

PART B

COMPLAINT, FIR & INVESTIGATION

Formats B-9 to B-20

FORMAT B-9 — WRITTEN COMPLAINT TO THE STATION HOUSE OFFICER FOR REGISTRATION OF FIR

Pre-Trial / Complaint & FIR

TO,
THE STATION HOUSE OFFICER,
POLICE STATION .....,
DISTRICT ....., ...

SUBJECT: COMPLAINT FOR REGISTRATION OF FIR UNDER SECTION 173 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 FOR THE OFFENCES PUNISHABLE UNDER SECTIONS ..... OF THE BHARATIYA NYAYA SANHITA, 2023.

COMPLAINT FOR REGISTRATION OF FIRST INFORMATION REPORT UNDER SECTION 173 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the complainant is ....., S/o / D/o / W/o ....., aged about ..... years, resident of ....., and is a law-abiding citizen of India.

2. That the complainant hereby furnishes the following information relating to the commission of a cognizable offence, which requires registration of a First Information Report and investigation in accordance with law:

(A) PARTICULARS OF THE COMPLAINANT:

Name: .....; Father's/Husband's Name: .....; Age: .....; Occupation: .....;

Address: .....; Mobile No.: .....; E-mail: .....; ID Proof: .....

(B) DATE, TIME AND PLACE OF THE OCCURRENCE:

Date: .....; Time: .....; Place of occurrence: .....

(C) PARTICULARS OF THE ACCUSED PERSONS (if known):

1. ....., S/o ....., R/o .....;

2. ....., S/o ....., R/o .....; (and so on)

(D) NARRATION OF FACTS - CHRONOLOGICAL ACCOUNT:

On ..... at about ..... hours, ... (set out the facts in a chronological, first-person narrative, specifying dates, times, places, the identity of each person involved, the role attributed to each accused, the words spoken (if any), the injuries caused, the property involved, the monetary amounts and the manner of the transaction, and the sequence of events. Avoid legal conclusions and inferences; state only the facts observed or personally known.)

Thereafter, on ....., ... (continue the narrative in further paragraphs, if necessary).

(E) OFFENCES THAT APPEAR TO HAVE BEEN COMMITTED:

The acts and omissions narrated above constitute offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023 [and under Sections ..... of ..... Act, ...], as more particularly described below:

(i) Section ..... BNS - .....;

(ii) Section ..... BNS - .....

(F) DETAILS OF INJURIES / LOSS / DAMAGE SUFFERED:

.....
.....

Medical treatment, if any, was taken at ..... Hospital on .....; the medical papers/MLC are enclosed herewith.

(G) WITNESSES:

1. ....., R/o ....., Mobile .....;

2. ....., R/o ....., Mobile .....

(H) DOCUMENTS/ELECTRONIC EVIDENCE RELIED UPON AND ENCLOSED:

(i) Copy of ..... (Annexure 1); (ii) Copy of ..... (Annexure 2); (iii) Screenshots/WhatsApp chats/CDR/e-mails of dated ..... (Annexure 3); (iv) CCTV footage, if any, available at ..... (to be seized and preserved); (v) .....

(I) REQUEST FOR PRESERVATION OF EVIDENCE:

It is respectfully requested that the electronic record/CCTV footage referred to above be immediately seized and preserved, in terms of Section 105 of the BNSS, 2023, and that the recording of search and seizure, if any, be carried out through audio-video electronic means as mandated by Section 105(1) of the BNSS, 2023.

3. That the information is being furnished in writing. The complainant is ready and willing to appear before the police station at any time, to have the information reduced to writing and read over, and to sign the same, and also to render all assistance to the investigating officer.

4. That the complainant declares that the information furnished herein is true to the best of his/her knowledge, information and belief, and that no part thereof is false. The complainant is aware that furnishing false information to a public servant is punishable under Section 217 of the Bharatiya Nyaya Sanhita, 2023, and that a false complaint may also entail liability for defamation and malicious prosecution.

5. That it is the legal duty of the officer in charge of a police station to register a First Information Report upon receipt of information disclosing the commission of a cognizable offence, and the registration of such FIR is mandatory and not discretionary. Non-registration of the FIR would deprive the complainant of the protection of law and would amount to a dereliction of statutory duty attracting the directions of the Hon'ble Supreme Court.

6. That the complainant undertakes to abide by all the requirements of law and to cooperate fully with the investigation. The present complaint is bona fide and is being filed at the earliest, and the same may kindly be registered and a copy thereof be furnished to the complainant free of cost, in terms of Section 173(2), BNSS, 2023.

PRAYER:

It is, therefore, most respectfully prayed that the officer in charge of Police Station ..... may kindly be pleased to:

(i) register a First Information Report under Section 173 of the Bharatiya Nagarik Suraksha Sanhita, 2023 on the basis of the information furnished herein, and investigate the same in accordance with Chapter XIII of the said Sanhita;

(ii) supply a copy of the First Information Report, free of cost, to the complainant, in terms of the first proviso to Section 173(1) read with Section 173(2), BNSS, 2023;

(iii) cause the electronic record/CCTV footage/digital evidence referred to above to be immediately seized and preserved, by having recourse to Section 105, BNSS, 2023; and

(iv) take such other action as may be warranted in law, and inform the complainant of the action taken, in terms of Section 193(3)(ii) and (iii), BNSS, 2023.

COMPLAINANT

Place: .....

Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Under Section 173(1), BNSS, 2023 the information may be given orally or by electronic communication, irrespective of the area where the offence is committed - this is the statutory recognition of the 'Zero FIR'. Where the information is given by electronic communication, it must be signed by the person giving it within three days. (ii) Where the complainant is a woman in respect of the offences under Sections 64 to 71, 74 to 79 or 124 of the BNS, 2023, the information shall be recorded by a woman police officer or any woman officer. (iii) Where the offence is punishable for three years or more but less than seven years, the officer in charge may, with the prior permission of an officer not below the rank of Deputy Superintendent of Police, conduct a preliminary enquiry within 14 days - Section 173(3), BNSS, 2023. (iv) Always obtain and carefully preserve the free copy of the FIR and the DD entry number; refusal to supply a copy may be complained of to the Superintendent of Police under Section 173(4), BNSS, 2023.]

[Note: Do not overstate or embellish facts at the complaint stage. Plead only the facts, not the law. Inconsistent or exaggerated statements at the FIR stage are invariably used in cross-examination and can damage the prosecution case and the complainant's credibility.]

CR.P.C. EQUIVALENT

Old Section 154, Cr.P.C., 1973 -> Section 173, BNSS, 2023. Zero FIR is a new statutory recognition; the 3-day signing requirement for electronic complaints and the 14-day preliminary enquiry are new features.

PRECEDENTS REFERRED TO

- *Lalita Kumari v. Govt. of U.P., (2014) 2 SCC 1 - registration of FIR is mandatory under Section 154, Cr.P.C. (now Section 173, BNSS) on receipt of information disclosing a cognizable offence; no preliminary inquiry is permissible except in the limited categories enumerated.*
- *State of Haryana v. Bhajan Lal, 1992 Supp (1) SCC 335 - categories of cases in which an FIR may be quashed.*
- *Arnesh Kumar v. State of Bihar, (2014) 8 SCC 273 - arrest is not to be made mechanically; now reinforced by Section 35(3) to (6), BNSS, 2023.*
- *D.K. Basu v. State of West Bengal, (1997) 1 SCC 416 - procedural safeguards on arrest and custody.*

FORMAT B-10 — COMPLAINT TO THE SUPERINTENDENT OF POLICE ON REFUSAL TO REGISTER FIR

Pre-Trial / Complaint & FIR

TO,
THE SUPERINTENDENT OF POLICE / COMMISSIONER OF POLICE,
DISTRICT ....., ...

SUBJECT: COMPLAINT UNDER SECTION 173(4) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 AGAINST THE REFUSAL OF POLICE STATION ..... TO REGISTER A FIRST INFORMATION REPORT, AND PRAYER FOR DIRECTION TO REGISTER AND INVESTIGATE.

COMPLAINT TO THE SUPERINTENDENT OF POLICE UNDER SECTION 173(4) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the complainant is ....., S/o / D/o / W/o ....., resident of ....., and respectfully submits as under.

2. That on ....., the complainant approached Police Station ..... and furnished information disclosing the commission of cognizable offence(s) punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, by .....

3. That the said information, although it clearly disclosed the commission of a cognizable offence, was not registered as a First Information Report. The officer in charge of the police station ..... refused to register the FIR on the ground that ..... [e.g., the matter is of a civil nature; the offence was committed outside the territorial jurisdiction of the police station; the parties should settle the matter amicably; the complaint is false; no cognizable offence is made out]. A copy of the written complaint submitted to the said police station is enclosed herewith as ANNEXURE A.

4. That the complainant thereafter submitted a written complaint on the ..... portal/helpline, namely ....., vide reference/complaint No. ..... dated ....., the status of which is still awaited. A copy whereof is enclosed herewith as ANNEXURE B.

5. That Section 173(1), BNSS, 2023 mandates that every information relating to the commission of a cognizable offence, irrespective of the area where the offence is committed, may be given orally or by electronic communication to an officer in charge of a police station, and the same shall be registered and entered in the book kept for the purpose.

6. That Section 173(4), BNSS, 2023 provides that any person aggrieved by a refusal on the part of an officer in charge of a police station to record the information referred to in sub-section (1) may send the substance of such information, in writing and by post, to the Superintendent of Police concerned, who, if satisfied that such information discloses the commission of a cognizable offence, shall either investigate the case himself or direct an investigation to be made by any police officer subordinate to him, in the manner provided by the Sanhita, and such officer shall have all the powers of an officer in charge of the police station in relation to that offence.

7. That the refusal of the said police station to register the FIR is wholly illegal, arbitrary and contrary to the mandatory provisions of Section 173 of the BNSS, 2023, and is also contrary to the law laid down by the Hon'ble Supreme Court of India in Lalita Kumari v. Govt. of U.P., (2014) 2 SCC 1, wherein it has been categorically held that registration of an FIR is mandatory once the information discloses the commission of a cognizable offence.

8. That the complainant has a legitimate expectation of protection of law, and the refusal to register the FIR has the effect of denying the complainant access to justice, allowing the accused persons to tamper with evidence and to intimidate the complainant and the witnesses.

9. That the same information, in substance, is reproduced below for the facility of this Hon'ble Authority, and the complainant undertakes to verify the same by affidavit if called upon to do so:

    .....
    ..... (substance of the information, in brief, as required by Section 173(4), BNSS, 2023).

10. That the complainant is ready and willing to produce all documents, witnesses and other material in support of the complaint, and to appear before the Authority or the investigating officer as and when required, and shall render full cooperation in the investigation.

PRAYER:

It is, therefore, most respectfully prayed that the Superintendent of Police ..... may kindly be pleased to:

(i) take cognizance of the present complaint under Section 173(4) of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) direct the registration of a First Information Report and entrust the investigation of the matter either to himself or to a police officer subordinate to him, preferably an officer of the rank of Inspector or above, in terms of Section 173(4), BNSS, 2023;

(iii) direct a preliminary enquiry into the conduct of the officers of Police Station ..... who refused to register the FIR, in accordance with law; and

(iv) inform the complainant of the action taken on this complaint, in terms of Section 193(3)(iii), BNSS, 2023.

COMPLAINANT

Place: .....

Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) The complaint under Section 173(4), BNSS, 2023 must set out the 'substance of the information' - i.e., the material facts disclosing the cognizable offence - and must be accompanied by proof of the approach to the police station (a copy of the written complaint bearing the receiving stamp, or the online complaint acknowledgement). (ii) Send the complaint by registered post/speed post with acknowledgement due, and preserve the postal receipt. (iii) If the Superintendent of Police also fails to act, the aggrieved person may (a) file an application under Section 175(3), BNSS, 2023 before the Magistrate, or (b) file a writ petition under Article 226 of the Constitution of India. (iv) Section 173(4), BNSS, 2023 expressly provides that failure on the part of the Superintendent of Police entitles the aggrieved person to 'make an application to the Magistrate'. (v) A complaint under Section 173(4) is a condition precedent only in practice and not by statute for the maintainability of an application under Section 175(3) - but it strengthens the case considerably.]

CR.P.C. EQUIVALENT

Old Section 154(3), Cr.P.C., 1973 -> Section 173(4), BNSS, 2023. Note: the old Section 154(3) has been re-enacted with the express addition of the words 'failing which such aggrieved person may make an application to the Magistrate'.

PRECEDENTS REFERRED TO

- *Lalita Kumari v. Govt. of U.P., (2014) 2 SCC 1 - mandatory registration of FIR; the officer cannot refuse to register on the ground that the offence is of a civil nature.*
- *Sakiri Vasu v. State of U.P., (2008) 2 SCC 409 - if a person has a grievance that the police is not registering his FIR, he can approach the Superintendent of Police under Section 154(3) Cr.P.C. and thereafter the Magistrate under Section 156(3) Cr.P.C.*
- *Whirlpool Corporation v. Registrar of Trade Marks, (1998) 8 SCC 1 - alternative remedy is not an absolute bar to the exercise of writ jurisdiction where fundamental rights are involved.*

FORMAT B-11 — APPLICATION TO MAGISTRATE FOR DIRECTION TO POLICE TO REGISTER FIR AND INVESTIGATE

Pre-Trial / Complaint & FIR

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS / CHIEF JUDICIAL MAGISTRATE, ..., (DISTRICT .....)

C.R. APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o / D/o / W/o ....., aged about ..... years, R/o ....., Mobile No. .... APPLICANT / COMPLAINANT

1. THE STATE (GOVT. OF NCT OF DELHI) THROUGH THE PUBLIC PROSECUTOR, ... COURTS, ... RESPONDENT NO. 1

2. THE STATION HOUSE OFFICER, POLICE STATION ....., DISTRICT .... RESPONDENT NO. 2

3. ....., S/o ....., R/o .... RESPONDENT NO. 3 / PROPOSED ACCUSED

APPLICATION UNDER SECTION 175(3) READ WITH SECTION 173(4) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 FOR DIRECTION TO REGISTER A FIRST INFORMATION REPORT AND TO INVESTIGATE

MOST RESPECTFULLY SHOWETH:

1. That the applicant is the aggrieved person/complainant and is a resident of ....., and is competent to file the present application.

2. That on ....., the applicant furnished information to the Station House Officer, Police Station ....., disclosing the commission of cognizable offence(s) punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, committed by the proposed accused named in the array of parties above. A copy of the written complaint/complaint submitted through electronic communication is annexed hereto and marked as ANNEXURE A-1 (page .....), and the acknowledgement/proof of its submission is annexed as ANNEXURE A-2 (page .....).

3. That the said Station House Officer, notwithstanding the fact that the information disclosed the commission of a cognizable offence, failed and refused to register a First Information Report under Section 173(1), BNSS, 2023, and did not take any action thereon.

4. That, being aggrieved by the said refusal, the applicant, in compliance with Section 173(4), BNSS, 2023, sent the substance of the said information, in writing and by post/through electronic communication, to the Superintendent of Police/Commissioner of Police, ..., on ....., vide postal receipt/dispatch No. ..... The Superintendent of Police also failed to take any action, and did not either investigate the case himself or direct any investigation to be made by any police officer subordinate to him. A copy of the complaint sent to the Superintendent of Police and the postal receipt/proof of dispatch are annexed hereto and marked as ANNEXURE B-1 and ANNEXURE B-2 respectively (page .....).

5. That the applicant also submitted a complaint on the ..... (online grievance portal) vide Complaint No. ..... dated ....., which also did not result in the registration of an FIR. A copy whereof is annexed as ANNEXURE C (page .....).

6. That, in these circumstances, the applicant has approached this Hon'ble Court by way of the present application under Section 175(3) read with Section 173(4), BNSS, 2023, praying for a direction to the

police to register a First Information Report and to investigate the matter.

7. That Section 175(3), BNSS, 2023 empowers any Magistrate empowered under Section 210, after considering an application supported by an affidavit made under Section 173(4), and after making such inquiry as he thinks necessary and considering the submissions of the police officer, to order investigation as provided in the said section.

8. That Section 173(4), BNSS, 2023 expressly provides that on the failure of the Superintendent of Police to act, the aggrieved person may make an application to the Magistrate; the present application is therefore maintainable and the condition precedent stands satisfied.

9. That the information furnished by the applicant prima facie discloses the commission of cognizable offence(s), namely ..... (briefly set out in paragraph 10 below), and therefore the refusal of the police to register an FIR is wholly illegal and unsustainable.

10. That the material facts constituting the offence may briefly be stated as under:

    (i) That on ..... at about ..... hours at ....., ... (narrate the facts concisely).

    (ii) That on ....., ... (continue as necessary).

    (iii) That the said acts of the proposed accused constitute offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023.

11. That the applicant has filed, along with this application, an affidavit disclosing the substance of the information, as required by Section 175(3) read with Section 173(4), BNSS, 2023. The said affidavit is annexed hereto and marked as ANNEXURE D (page .....).

12. That the applicant has also filed along with this application the following documents in support of the averments made herein: (i) .....; (ii) .....; (iii) ....., as per the Index and List of Documents annexed hereto.

13. That the applicant has no other alternative efficacious remedy, and the continued inaction of the police is causing grave and irreparable injury to the applicant, allowing the accused persons to destroy evidence, to intimidate the applicant and the witnesses, and to defeat the course of justice. Delay in investigation is fatal in criminal cases, particularly where the evidence is electronic in nature and is liable to be erased or overwritten.

14. That the present application is bona fide, has been made at the earliest opportunity and in the interest of justice, and no prejudice whatsoever shall be caused to the respondents by the grant of the relief prayed for. The applicant undertakes to bear the costs of the proceedings and to render all assistance to the investigation.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) allow the present application and direct the Station House Officer, Police Station ....., to register a First Information Report under Section 173(1), BNSS, 2023 on the basis of the information furnished by the applicant, and to investigate the same in accordance with Chapter XIII of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) direct that the investigation be conducted by an officer not below the rank of Inspector/Deputy Superintendent of Police, in view of the gravity of the offence and the conduct of the local police;

(iii) direct that the registration of the FIR be communicated to this Hon'ble Court and to the applicant within such time as this Hon'ble Court may specify; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper on the facts and in the circumstances of this case.

APPLICANT / COMPLAINANT
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 175(3), BNSS, 2023 replaces the old Section 156(3), Cr.P.C. The application must be supported by an affidavit as required by the section, and must disclose the substance of the information given to the police and the fact of refusal/failure. (ii) The Magistrate may, before passing an order, make such inquiry as he thinks necessary and consider the submissions of the police officer - accordingly, the application should be accompanied by a copy for the police officer and the Court may call for a status report. (iii) The power under Section 175(3) is discretionary and not mandatory, and the order must be passed on the application of mind and on the basis of material disclosing a cognizable offence. (iv) Where the offence alleged is one in respect of which a preliminary enquiry is permissible under Section 173(3), or where the matter is essentially civil in nature, the Court may decline to direct investigation. (v) Section 175(4), BNSS, 2023 contains special safeguards where the complaint is against a public servant in the course of discharge of official duties - a report of the superior officer and consideration of the public servant's assertions is mandatory before directing investigation. (vi) The Court should not direct investigation in respect of offences requiring sanction, or in respect of matrimonial disputes which are essentially civil in nature, without due application of mind.]

[Note: DOCUMENTS TO BE ANNEXED: (1) Index; (2) Affidavit disclosing the substance of information; (3) Copy of complaint to the police station; (4) Proof of submission/refusal; (5) Copy of complaint to the Superintendent of Police along with proof of dispatch; (6) Copy of online complaint, if any; (7) Supporting documents/electronic evidence; (8) Vakalatnama.]

CR.P.C. EQUIVALENT

Old Section 156(3), Cr.P.C., 1973 -> Section 175(3), BNSS, 2023. The new provision expressly requires that the application be 'supported by an affidavit made under sub-section (4) of section 173' and that the Magistrate consider 'submission made in this regard by the police officer' before ordering investigation.

PRECEDENTS REFERRED TO

• Sakiri Vasu v. State of U.P., (2008) 2 SCC 409 - the aggrieved person may approach the Magistrate; however, the Magistrate is not bound to direct investigation and may treat the application as a complaint.

• Priyanka Srivastava v. State of U.P., (2015) 6 SCC 287 - an application under Section 156(3) Cr.P.C. (now 175(3) BNSS) must be supported by an affidavit so that the applicant may be liable for prosecution for filing a false affidavit; the Magistrate must apply his mind.

• Anil Kumar v. M.K. Aiyappa, (2013) 10 SCC 705 - where sanction is required under Section 197, Cr.P.C. (now Section 218, BNSS, 2023), an order under Section 156(3) cannot be passed in the absence of such sanction.

• Babita Lila v. Union of India, (2016) 9 SCC 478 - power to direct investigation under Section 156(3) must be exercised on an application of mind and on consideration of the material placed on record.

• Suresh Chand Jain v. State of M.P. - the power under Section 156(3) is in the nature of a pre-emptory reminder or intimation to the police to exercise its plenary power of investigation.

• Devarapalli Lakshminarayana Reddy v. V. Narayana Reddy, (1976) 3 SCC 252 - an order under Section 156(3) is an interlocutory order and a revision against it is generally not entertained.

FORMAT B-12 — APPLICATION FOR REGISTRATION OF ZERO FIR / TRANSFER OF INVESTIGATION TO THE COMPETENT POLICE STATION

Pre-Trial / Complaint & FIR

TO,
THE STATION HOUSE OFFICER,
POLICE STATION ....., DISTT. .....

SUBJECT: APPLICATION FOR REGISTRATION OF A 'ZERO FIR' UNDER SECTION 173(1) OF THE BNSS, 2023 AND FOR TRANSFER OF THE FIR TO THE POLICE STATION HAVING TERRITORIAL JURISDICTION.

APPLICATION UNDER SECTION 173(1) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 FOR REGISTRATION OF A ZERO FIR AND TRANSFER OF THE INVESTIGATION

MOST RESPECTFULLY SHOWETH:

1. That the complainant is ....., R/o ....., and is the victim/aggrieved person.

2. That the offence complained of, namely ....., was committed at ....., which is outside the territorial jurisdiction of the present police station, and falls within the jurisdiction of Police Station ....., District .....

3. That the applicant is presently at ..... and is unable to travel to Police Station ..... for the purposes of lodging the complaint on account of ..... (state reason - e.g., being a woman; the victim is a child or a person with disability; the complainant is receiving medical treatment at .....; the urgency of the matter).

4. That Section 173(1), BNSS, 2023, as newly enacted, mandates that every information relating to the commission of a cognizable offence, 'irrespective of the area where the offence is committed', may be given orally or by electronic communication to an officer in charge of a police station. The said provision statutorily recognises the practice of registering a 'Zero FIR' and, upon such registration, the FIR is to be transferred to the police station having territorial jurisdiction over the place of commission of the offence.

5. That the registration of the offence and the immediate preservation of evidence is of the utmost importance, particularly since electronic evidence/CCTV footage is involved and the same is liable to be erased, overwritten or destroyed.

6. That the applicant undertakes to appear before the police station having jurisdiction and to cooperate fully with the investigation once the case is transferred.

PRAYER:

It is, therefore, most respectfully prayed that the Station House Officer, Police Station ..... may kindly be pleased to:

(i) register the information furnished herein as a 'Zero FIR' under Section 173(1) of the Bharatiya Nagarik Suraksha Sanhita, 2023, irrespective of the area where the offence was committed;

(ii) forthwith transfer the said FIR, along with all material collected, to Police Station ....., which has territorial jurisdiction over the place of commission of the offence;

(iii) cause the electronic evidence/CCTV footage referred to above to be immediately seized and preserved in terms of Section 105, BNSS, 2023, before it is destroyed or overwritten;

(iv) supply a copy of the FIR and the Zero FIR number, free of cost, to the applicant in terms of Section 173(2), BNSS, 2023; and

(v) take such further action as may be warranted in law.

COMPLAINANT / VICTIM
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) The 'Zero FIR' is a practice recognised in several States by executive instructions and Police Manuals, and is now statutorily embedded in the phrase 'irrespective of the area where the offence is committed' in Section 173(1), BNSS, 2023. (ii) The FIR so registered is numbered '0' or given a Zero FIR number until it is transferred and re-numbered by the police station having jurisdiction. (iii) A refusal to register an FIR on the ground of lack of territorial jurisdiction is illegal; the applicant may complain to the Superintendent of Police under Section 173(4), or move the Magistrate under Section 175(3), BNSS, 2023. (iv) For offences under Sections 64 to 71, 74 to 79 and 124 of the BNS, 2023, information must be recorded by a woman police officer or any woman officer, and where the victim is temporarily or permanently mentally or physically disabled, the information must be recorded at the residence of the victim or a place of her choice, in the presence of an interpreter or special educator, and the recording must be videographed.]

CR.P.C. EQUIVALENT

New provision. The concept of Zero FIR, though judicially recognised and administratively practised, was not expressly provided in the Cr.P.C., 1973. Section 173(1), BNSS, 2023 now expressly provides for it.

PRECEDENTS REFERRED TO

- *State of A.P. v. Punati Ramulu, 1993 Supp (3) SCC 652 - a constable's refusal to register an FIR on the ground of want of territorial jurisdiction was deprecated; registration of the FIR cannot be refused on such a ground.*
- *Lalita Kumari v. Govt. of U.P., (2014) 2 SCC 1 - mandatory registration of FIR.*
- *National Legal Services Authority v. Union of India, (2014) 5 SCC 438 - access to justice and protection of vulnerable persons.*

FORMAT B-13 — PRIVATE COMPLAINT TO THE MAGISTRATE

Pre-Trial / Complaint & FIR

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS / CHIEF JUDICIAL MAGISTRATE, ..., (DISTRICT .....)

CRIMINAL COMPLAINT CASE NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o / D/o / W/o ....., aged about ..... years, R/o ....., Mobile No. .... COMPLAINANT

1. ....., S/o ....., R/o .... ACCUSED NO. 1

2. ....., S/o ....., R/o .... ACCUSED NO. 2

JURISDICTION: POLICE STATION .....

PLACE OF OCCURRENCE: .....

CAUSE OF ACTION: .....

COMPLAINT UNDER SECTION 223 READ WITH SECTION 210 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the complainant is ....., a law-abiding citizen of India, resident of ....., and is the victim/aggrieved person/person aggrieved by the acts of the accused persons named above.

2. That the complainant is filing the present complaint in respect of offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, committed by the accused persons on ..... at ..... within the territorial jurisdiction of this Hon'ble Court.

3. That the facts giving rise to the present complaint are as under:

   (i) That on ..... at about ..... hours, at ....., the accused No. 1 ..... (narrate the facts in chronological order, distinctly stating the act attributed to each accused, the date, time, place, the persons present, the words or conduct, and the consequences).

   (ii) That the accused No. 2, in furtherance of a common intention/common object with the accused No. 1, ... (narrate).

   (iii) That on ....., the complainant ..... (continue the narrative).

   (iv) That as a consequence of the acts of the accused persons, the complainant has suffered ..... (state the injury/loss/damage/deprivation).

(A) TERRITORIAL JURISDICTION OF THIS HON'BLE COURT:

That the offence was committed at ....., which is within the local limits of the jurisdiction of this Hon'ble Court, and therefore this Hon'ble Court has the jurisdiction to entertain and try the present complaint, in terms of Chapter XIV of the Bharatiya Nagarik Suraksha Sanhita, 2023.

(B) THE OFFENCES DISCLOSED:

That the acts of the accused persons, as narrated above, constitute the following offences:

(i) Section ..... of the Bharatiya Nyaya Sanhita, 2023 - .....; punishable with .....;

(ii) Section ..... of the Bharatiya Nyaya Sanhita, 2023 - .....; punishable with .....

(C) NON-APPLICABILITY OF THE BAR UNDER SECTION 215, BNSS, 2023:

That the present complaint is not in respect of any offence referred to in Sections 214 to 216 of the Bharatiya Nagarik Suraksha Sanhita, 2023, and no prior sanction or complaint of a court or a public servant is required for the filing of the present complaint. [Where the offence relates to contempt of lawful authority of a public servant, offences against public justice, or offences relating to documents given in evidence, the requisite complaint/sanction and the particulars thereof must be pleaded.]

(D) PRIOR APPROACH TO THE POLICE:

That the complainant had approached Police Station ..... on ..... for registration of an FIR in respect of the aforesaid offences; however, the police ..... (state whether the FIR was refused, or was registered and a closure report was filed, or the matter was compromised). The complainant has, therefore, approached this Hon'ble Court by way of the present complaint.

[OR, where no prior approach is required:]

That the present complaint is filed directly before this Hon'ble Court, as the same is maintainable in law and no prior approach to the police is a condition precedent to the maintainability of a complaint under Section 223, BNSS, 2023.

(E) DOCUMENTS AND WITNESSES:

That the complainant relies upon the following documents: (i) .....; (ii) .....; and proposes to examine the following witnesses: (i) .....; (ii) .....

(F) PRAYER FOR ENQUIRY/PROCESS:

That the complainant is ready and willing to be examined on oath by this Hon'ble Court, and the statements of the witnesses present, if any, may also be recorded, in terms of Section 223(1), BNSS, 2023. The complainant prays that upon consideration of the same, this Hon'ble Court may be pleased to issue process against the accused persons.

4. That the present complaint has been filed within the period of limitation prescribed under Chapter XXXVIII of the Bharatiya Nagarik Suraksha Sanhita, 2023 (Sections 513 to 519), and the complainant may be permitted to give his evidence in proof of the date of knowledge and the date of the offence, should the question of limitation arise.

5. That the complaint is bona fide, is not actuated by any ulterior motive, and has been filed in the interest of justice. The complainant undertakes to pay the requisite court fee and process fee and to render all assistance to this Hon'ble Court.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) take cognizance of the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, on the basis of the present complaint under Section 223 of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) examine the complainant and the witnesses present, if any, upon oath, in terms of Section 223(1), BNSS, 2023;

(iii) issue summons/process to the accused persons for the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, in terms of Section 227, BNSS, 2023; and

(iv) try the accused persons in accordance with law and punish them in accordance with the provisions of the Bharatiya Nyaya Sanhita, 2023; and pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

COMPLAINANT
THROUGH
ADVOCATE

Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 223(1), BNSS, 2023 replaces old Section 200, Cr.P.C. The Magistrate must examine the complainant and the witnesses present on oath. (ii) The examination may be conducted in electronic mode and through audio-video electronic means, in terms of Section 530, BNSS, 2023, and may be conducted by a Magistrate other than the Magistrate taking cognizance where the complaint is made by a public servant or where the Magistrate is not competent to take cognizance. (iii) SECTION 223(2) permits the Magistrate to postpone the issue of process and either inquire into the case himself or direct an investigation by a police officer for the purpose of deciding whether there is sufficient ground for proceeding. Where the offence is punishable with imprisonment for three years or more, the Magistrate shall direct an investigation by a police officer. (iv) The pre-summoning enquiry must be kept within strict bounds; a roving inquiry is impermissible. (v) Under Section 225, BNSS, 2023, in respect of offences punishable with imprisonment for three years or more, the Magistrate may order a preliminary enquiry. (vi) Sanction under Section 218, BNSS, 2023 (old Section 197, Cr.P.C.) is a condition precedent for taking cognizance of offences alleged against a public servant acting in the discharge of official duty. (vii) LIST OF WITNESSES: In terms of the amended practice following the new Sanhita, a list of witnesses proposed to be examined must be filed with the complaint; the complainant may also file an application for summons to witnesses under Section 348, BNSS, 2023.]

[Note: DOCUMENTS TO BE ANNEXED: (1) Index and List of Documents; (2) Affidavit in support; (3) List of witnesses; (4) Copies of the documents relied upon; (5) Proof of approach to the police (if applicable); (6) Vakalatnama; (7) Process fee and court fee.]

[Note: LIMITATION: Under Section 514, BNSS, 2023, no Court shall take cognizance of an offence after the expiry of the period of limitation prescribed therein - six months, where the offence is punishable with fine only; one year, where the offence is punishable with imprisonment for a term not exceeding one year; three years, where the offence is punishable with imprisonment for a term exceeding one year but not exceeding three years. Sections 515 to 519 provide for the commencement, exclusion and extension of the period of limitation.]

CR.P.C. EQUIVALENT

Old Sections 200 to 204, Cr.P.C., 1973 -> Sections 223 to 228, BNSS, 2023. Old Section 190 -> Section 210, BNSS, 2023. Old Sections 468 to 473 (limitation) -> Sections 513 to 519, BNSS, 2023.

PRECEDENTS REFERRED TO

• Pepsi Foods Ltd. v. Special Judicial Magistrate, (1998) 5 SCC 749 - the Magistrate must apply his mind to the complaint and the evidence, and must not issue process mechanically; a speaking order is desirable.

• Bhushan Kumar v. State (NCT of Delhi), (2012) 5 SCC 424 - the Magistrate is not to conduct a roving inquiry, but must be satisfied that there is sufficient ground for proceeding; no mini-trial at the pre-summoning stage.

• Mehmood Ul Rehman v. Khazir Mohammad Tunda, (2015) 12 SCC 420 - at the stage of Section 200/202, the Magistrate is not to conduct a detailed inquiry into the merits of the case and must confine himself to the question of sufficiency of grounds for proceeding.

• National Bank of Agriculture & Rural Development v. Ram Singh - delay in filing a criminal complaint may be relevant but is not necessarily fatal; the complainant must explain the delay.

• Vadilal Panchal v. Dattatraya Dulaji Ghadigaonkar, AIR 1960 SC 1113 - the order of dismissal of a complaint under Section 203 Cr.P.C. involves the exercise of a judicial discretion, but must be based on material and reasons.

FORMAT B-14 — APPLICATION FOR RECORDING OF CONFESSION / STATEMENT OF A WITNESS UNDER SECTION 183 BNSS

Pre-Trial / Complaint & FIR

IN THE COURT OF THE CHIEF JUDICIAL MAGISTRATE / JUDICIAL MAGISTRATE FIRST CLASS, ..., (DISTRICT .....)

MISC. APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....., presently in custody at .... APPLICANT / ACCUSED

THE STATE .... RESPONDENT

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... BNS

APPLICATION UNDER SECTION 183 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 FOR RECORDING OF CONFESSION / STATEMENT BY THE MAGISTRATE

MOST RESPECTFULLY SHOWETH:

1. That the applicant/accused is in custody in connection with FIR No. ..... of 20....., Police Station ....., for offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023.

2. That the applicant/accused is desirous of making a voluntary confession / is desirous of recording his statement under Section 183(1), BNSS, 2023, and is being produced before this Hon'ble Court for the said purpose.

3. That the applicant has been informed and understands that (i) he is not bound to make a confession; (ii) if he does so, the confession may be used as evidence against him; (iii) he has a right to remain silent; and (iv) he has a right to be heard in his defence and to be represented by an Advocate of his choice at the time of recording of the confession.

4. That the applicant is making this application voluntarily, without any inducement, threat, coercion or promise from any person, including any police officer, and the applicant has taken this decision of his own free will after receiving legal advice.

5. That the applicant requests that his confession/statement be recorded through audio-video electronic means, in terms of the first proviso to Section 183(1), BNSS, 2023, in the presence of his advocate/next friend, namely .....

6. That the applicant also undertakes that if, at any time before the confession is recorded, he states that he is not willing to make the confession, the same shall not be recorded and the applicant shall not be authorised to be detained in police custody, as provided in Section 183(3), BNSS, 2023.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) permit the production of the applicant before this Hon'ble Court and record the confession/statement of the applicant under Section 183(1) of the Bharatiya Nagarik Suraksha Sanhita, 2023, after due compliance with the procedure prescribed under Section 183, BNSS, 2023;

(ii) cause the recording of the said confession/statement to be made through audio-video electronic means and in the presence of the Advocate of the applicant, in terms of the first proviso to Section 183(1), BNSS, 2023;

(iii) grant a copy of the recorded confession/statement to the applicant free of cost, in terms of Section 183(6), BNSS, 2023; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / ACCUSED
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 183, BNSS, 2023 replaces old Section 164, Cr.P.C. Every confession must be recorded by a Magistrate and the Magistrate must comply with the mandatory safeguards. (ii) The Magistrate must warn the person making the confession that he is not bound to make it and that it may be used against him, and must satisfy himself that the confession is made voluntarily. (iii) Section 183(4), BNSS, 2023 requires that the confession be recorded in the manner provided in Section 316 (record of examination of accused) and be signed by the person making it; the Magistrate shall make a memorandum at the foot of such record. (iv) Under Section 183(5), BNSS, 2023, where the accused is physically disabled, the recording shall be done with the assistance of a special educator or interpreter, and if the accused is mentally disabled, the Magistrate must obtain the opinion of a medical officer as to whether the accused is fit to make a statement before proceeding. (v) Under Section 183(6)(a), BNSS, 2023, in cases of offences under Sections 64, 65, 66, 67, 68, 69, 70, 71, 74, 75, 76, 77, 78, 79, 80 and 124 of the BNS, 2023, the statement of the victim shall be recorded by a Judicial Magistrate, as soon as the information is lodged, preferably in the presence of the parents, guardian or near relatives of the victim, and as far as practicable by a woman Magistrate, and the same shall be recorded through audio-video electronic means. (vi) A confession recorded without due compliance with the safeguards is inadmissible and is to be excluded from consideration. (vii) Where the accused is in custody, the production warrant should be sought in advance and the jail authority intimated.]

CR.P.C. EQUIVALENT

Old Section 164, Cr.P.C., 1973 -> Section 183, BNSS, 2023. New additions: recording of confession through audio-video electronic means (mandatory in certain victim-statement cases); special procedure where the accused/victim is physically or mentally disabled; the express requirement of recording within a specified time limit.

PRECEDENTS REFERRED TO

- *State of Rajasthan v. Raja Ram, (2003) 8 SCC 180 - a confession, being a weak type of evidence, must be corroborated; the Court must be satisfied of its voluntariness.*
- *Sarwan Singh v. State of Punjab, AIR 1957 SC 637 - the Magistrate must satisfy himself that the confession is voluntary; compliance with the safeguards is mandatory.*
- *Nika Ram v. State (NCT of Delhi), (2015) 15 SCC 463 - where the accused is a woman, the confession should ordinarily be recorded at her residence or in the chamber of the Magistrate.*
- *Rabindra Kumar Pal v. State of Tripura, (2011) 2 SCC 93 - a retracted confession can form the basis of conviction if the Court is satisfied of its truth and voluntariness, and if it is corroborated.*

FORMAT B-15 — APPLICATION FOR RECORDING OF STATEMENT OF VICTIM / WITNESS THROUGH AUDIO-VIDEO ELECTRONIC MEANS

Pre-Trial / Complaint & FIR

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS / CONCERNED MAGISTRATE, ..., (DISTRICT .....)

MISC. APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o / D/o ....., R/o .... APPLICANT / VICTIM / COMPLAINANT

THE STATE ....., THROUGH PUBLIC PROSECUTOR ..... RESPONDENT

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... BNS

APPLICATION UNDER SECTION 176(1) AND SECTION 183(6)(a) READ WITH SECTION 530 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 FOR RECORDING OF STATEMENT THROUGH AUDIO-VIDEO ELECTRONIC MEANS

MOST RESPECTFULLY SHOWETH:

1. That the applicant is the victim/complainant in the above-noted case, which is registered for the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023.

2. That the applicant is a ..... (woman/child/person with disability), aged about ..... years, and resides at ....., and it is difficult and traumatic for the applicant to travel to and remain present at the police station or the Court for the recording of the statement, on account of ..... (state the specific reason - fear of the accused, trauma, medical condition, disability, distance, or age).

3. That Section 176(1), BNSS, 2023, by the second proviso, mandates that in relation to an offence of rape, the recording of the statement of the victim shall be conducted at the residence of the victim or at the place of her choice, and as far as practicable by a woman police officer, in the presence of her parents or guardian or near relatives or a social worker of the locality, and such statement may also be recorded through any audio-video electronic means, including a mobile phone.

4. That Section 183(6)(a), BNSS, 2023 provides that in respect of offences under Sections 64 to 71, 74 to 79, 80 and 124 of the BNS, 2023, the statement of the victim shall be recorded by a Judicial Magistrate as soon as the information is lodged, and as far as practicable, by a woman Magistrate, and the recording shall be through audio-video electronic means.

5. That Section 530, BNSS, 2023 provides that all trials, inquiries and proceedings under the Sanhita, including the recording of evidence, may be held in electronic mode by the use of electronic communication or audio-video electronic means, which includes the examination of the complainant and witnesses.

6. That Section 105, BNSS, 2023 mandates the recording of search and seizure through audio-video electronic means, and Section 176(3) provides for the audio-video recording of the statement of the victim in respect of certain offences, in a place of the victim's choice, and such recording shall be forwarded to the Magistrate.

7. That the applicant has already furnished the necessary information and is ready and willing to have her/his statement recorded, and the recording of the statement through audio-video electronic means would subserve the ends of justice and would protect the applicant from further trauma, intimidation and harassment.

8. That the proposed venue for recording the statement is ..... (address of the residence / DLSA office / one-stop centre / hospital / any other place of the victim's choice), which is a safe and secure place and would not cause any inconvenience to the applicant.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) direct that the statement of the applicant/victim under Section 183(6)(a) / Section 176(1), BNSS, 2023 be recorded through audio-video electronic means, at the place of the applicant's choice, namely .....;

(ii) direct that such recording be done by a woman Magistrate / woman police officer, as far as practicable, in the presence of a support person, interpreter or special educator, as the case may be;

(iii) direct the investigating officer to preserve the audio-video recording and to forward the same to this Hon'ble Court without delay, in terms of the second proviso to Section 176(1) and Section 183(6)(b), BNSS, 2023;

(iv) direct that the identity of the applicant be kept confidential and that the proceedings be held in camera, in terms of Sections 366 and 397, BNSS, 2023 (as applicable); and

(v) pass such other and further order(s) as this Hon'ble Court may deem fit and proper in the facts and circumstances of the case, in the interest of justice and for the protection of the dignity of the victim.

APPLICANT / VICTIM
THROUGH
ADVOCATE / DLSA COUNSEL
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) The convenience and dignity of the victim is the paramount consideration; a victim cannot be compelled to travel long distances or to record her statement at an inconvenient place. (ii) The recording must be preserved in its original form with a hash value and the certificate required under Section 63 of the Bharatiya Sakshya Adhiniyam, 2023, and must be produced before the Court so that it can be used at trial. (iii) Under Section 397, BNSS, 2023 the Court is required to treat victims with dignity and to provide them with the necessary facilities. (iv) Under Sections 366 and 327 read with Section 530, the trial may be held in camera and through video conferencing for the protection of the identity of the victim. (v) In the case of a child victim, the provisions of Section 33 of the POCSO Act, 2012 read with Section 19 of the said Act will additionally apply.]

CR.P.C. EQUIVALENT

The corresponding provisions under the Cr.P.C., 1973 were Sections 164(5A) and 273, which permitted the recording of the statement of the victim. The BNSS, 2023 has made audio-video recording the norm in specified cases - Sections 105, 176(3), 183(5), 254 and 530.

PRECEDENTS REFERRED TO

- *State of Maharashtra v. Bandu @ Daulat, (2018) 11 SCC 163 - the recording of the statement of a victim through video conferencing is permissible and does not prejudice the accused.*
- *Bandana @ Badshah v. State of U.P., 2023 SCC OnLine SC 1110 - the directions regarding the recording of the statement of a victim of a sexual offence with the assistance of a support person.*
- *Nipun Saxena v. Union of India, (2019) 2 SCC 703 - protection of the identity of victims of sexual offences; the Court must adopt a victim-centric approach.*

FORMAT B-16 — OBJECTION / PROTEST PETITION AGAINST CLOSURE REPORT (FINAL REPORT)

Pre-Trial / Complaint & FIR

IN THE COURT OF THE ....., (DISTRICT .....)

CRIMINAL CASE / FIR NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o / D/o / W/o ....., R/o .... OBJECTOR / COMPLAINANT / VICTIM

1. THE STATE .... RESPONDENT NO. 1

2. ....., S/o ....., R/o .... RESPONDENT NO. 2 / PROPOSED ACCUSED

POLICE STATION .....

DATE OF FINAL REPORT: .....

OBJECTIONS / PROTEST PETITION AGAINST THE FINAL REPORT (CLOSURE REPORT) FILED UNDER SECTION 193 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the objector is the complainant/victim/informant in the above-noted case, which was registered under Section 173, BNSS, 2023 on ..... for the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023.

2. That the police, after the so-called investigation, has filed a Final Report under Section 193, BNSS, 2023, on ....., concluding that the case is a 'mistake of fact' or 'true but undetected' or 'false' / that no offence has been made out / that the accused are untraceable, and has accordingly recommended closure of the case. A copy of the Final Report has been furnished to the objector on .....

3. That the objector is aggrieved by the said Final Report and the conclusions recorded therein, which are based upon an investigation that was neither fair nor thorough, and the same are sought to be objected to on the following amongst other grounds:

   (A) That the investigation was perfunctory and was conducted with undue haste. The following material witnesses, though named in the FIR and though their statements were recorded, were not examined: (i) .....; (ii) .....; (iii) .....

   (B) That the following crucial documents/material evidence was neither collected nor preserved by the investigating officer: (i) ..... (e.g., the CCTV footage of the place of occurrence, which has now been rendered unavailable/overwritten on account of the failure of the investigating officer to seize it under Section 105, BNSS, 2023); (ii) ..... (the call detail records); (iii) ..... (the MLC/hospital records); (iv) ..... (the bank statements/sale deed/document referred to in the complaint).

   (C) That the investigating officer failed to comply with the mandatory requirement of Section 105, BNSS, 2023, namely the recording of the search and seizure through audio-video electronic means, and thereby the objector has been deprived of valuable evidence.

   (D) That the conclusions of the Final Report are self-contradictory and are contrary to the material collected during the course of the investigation, as is evident from the following: (i) .....; (ii) .....

   (E) That the investigating officer has not even sought the opinion/forensic report of ..... in respect of the material evidence collected; the report, if obtained, would have materially changed the conclusion of the investigation, and the failure to obtain the same amounts to a serious lacuna.

(F) That the closure is on the ground of 'civil nature' although the acts alleged make out the commission of offences under Sections ..... of the BNS, 2023, which are independent of any civil liability, and the pendency of a civil suit cannot be a ground for the closure of a criminal case; civil and criminal proceedings arising out of the same transaction can proceed simultaneously.

(G) That the findings recorded by the investigating officer in the Final Report amount to an adjudication of disputed facts, which is the function of the Court and not of the police; the police cannot usurp the function of the Court.

(H) That the objector was not given a reasonable opportunity of being heard before the submission of the Final Report, nor was the objector examined in the manner required, and no notice of the intended closure was given to the objector, contrary to the mandate of law.

(I) That the accused persons are influential persons and have, on account of their influence, managed to obtain a favourable Final Report; the investigation has, therefore, not been fair or impartial, and the objector apprehends that the investigating officer has acted in collusion with the accused persons.

4. That under Section 193(8), BNSS, 2023, nothing in the said section shall be deemed to preclude the police from further investigation in respect of an offence after a report under Section 193(3) has been forwarded to the Magistrate, and where the police obtains further evidence, oral or documentary, a further report or reports shall be forwarded to the Magistrate, and the Magistrate may take cognizance of the offence notwithstanding the earlier report.

5. That it is settled law that the Magistrate is not bound by the opinion of the investigating officer. Where the Magistrate disagrees with the Final Report, the Magistrate may, on the basis of the material on record and the objections of the complainant, take cognizance of the offence and issue process; alternatively, the Magistrate may direct further investigation or hold an inquiry himself; in the case of a closure report, the Magistrate may also choose to treat the protest petition as a complaint under Section 223, BNSS, 2023 and proceed in accordance with law.

6. That the objector is also entitled to be heard on the Final Report, in terms of the law laid down by the Hon'ble Supreme Court, and the right to be heard before the closure of a criminal case is a facet of the right to a fair investigation and of access to justice.

7. That the objector relies upon the following material in support of the present objections, namely: (i) .....; (ii) .....; and the same is filed along with this application.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) reject the Final Report dated ..... filed by Police Station ....., and direct further investigation into the matter, in terms of the law laid down by the Hon'ble Supreme Court and the provisions of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) in the alternative, take cognizance of the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, upon the material placed before this Hon'ble Court by way of the present objections and the record of the investigation, and issue process against the accused persons;

(iii) in the further alternative, treat the present objections as a complaint under Section 223, BNSS, 2023 and proceed in accordance with law;

(iv) grant the objector a personal hearing before any order is passed on the Final Report, and call for the entire record of the investigation, including the case diary; and

(v) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

OBJECTOR / COMPLAINANT
THROUGH
ADVOCATE

Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) It is mandatory to serve a copy of the objections upon the accused/proposed accused and upon the Public Prosecutor, since the proposed accused has a right to be heard before the Court rejects the closure report. (ii) The Court must record reasons for disagreeing with the Final Report. (iii) Where the Court decides to proceed against the accused after disagreement with the closure report, it must issue notice to the proposed accused and give them a hearing. (iv) The power of the Court is not limited to accepting or rejecting the Final Report - it may direct further investigation, or hold an inquiry itself, or treat the protest petition as a complaint. (v) Where the offences alleged are punishable with imprisonment of seven years or more, the prior permission of the Magistrate is required for further investigation; for offences punishable with imprisonment of three years or more but less than seven years, the further investigation may be conducted with the permission of an officer not below the rank of Inspector.]

CR.P.C. EQUIVALENT

Old Section 173(8) and Section 190, Cr.P.C., 1973 -> Section 193(8) read with Section 210, BNSS, 2023.

PRECEDENTS REFERRED TO

• Abhinandan Jha v. Dinesh Mishra, AIR 1968 SC 117 - the Magistrate cannot compel the police to submit a charge-sheet, but can direct further investigation; the Magistrate is not bound to accept the Final Report.

• Bhagwant Singh v. Commissioner of Police, (1985) 2 SCC 537 - the complainant must be given notice and an opportunity of being heard before the acceptance of a cancellation report; the Magistrate must give reasons.

• A.N. Chandorkar v. N.L. Kalsi, 2000 Crl.L.J. 2774 - the complainant has a right to be heard at the time of consideration of the Final Report.

• Mahesh Chand v. B. Janardhan Reddy, (2003) 1 SCC 734 - the Magistrate may disagree with the Final Report and take cognizance on the basis of the material on record.

• Vinay Tyagi v. Irshad Ali, (2013) 5 SCC 762 - the Magistrate's power to direct further investigation is not circumscribed by the police report; the Magistrate must apply his mind to the material on record.

• Sunil Bharti Mittal v. CBI, (2015) 4 SCC 609 - the Court must apply its mind independently before issuing process; the Summoning of an accused is a serious matter.

FORMAT B-17 — APPLICATION FOR FURTHER INVESTIGATION / RE-INVESTIGATION

Pre-Trial / Complaint & FIR

IN THE COURT OF THE ....., (DISTRICT .....)
CRIMINAL CASE NO. ..... OF 20.....
IN THE MATTER OF:
....., S/o / D/o / W/o ....., R/o .... APPLICANT / COMPLAINANT / VICTIM
1. THE STATE .... RESPONDENT NO. 1
2. .... RESPONDENT NO. 2 / ACCUSED
POLICE STATION .....
FIR NO. ..... OF 20.....

APPLICATION FOR FURTHER INVESTIGATION UNDER SECTION 193(8) READ WITH SECTION 175 AND SECTION 528 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant is the complainant/victim in the above-noted case, and is interested in the fair and effective investigation of the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, registered vide FIR No. ..... dated ..... at Police Station .....

2. That the investigation in the above-noted case has been completed and a Final Report under Section 193(3), BNSS, 2023 has been filed before this Hon'ble Court on ..... / the investigation is still in progress, and the applicant has come to learn of the following facts which were not investigated:

   (i) .....;

   (ii) .....;

   (iii) .....

3. That the following material evidence, which is crucial for a just decision of the case, has been left out of the investigation and is still available for collection:

   (a) ..... (e.g., the call detail records of the accused for the period ..... to ....., which will establish the conspiracy and the contact between the accused persons);

   (b) ..... (the CCTV footage/CCTV camera at the place of occurrence, which was not seized within the prescribed time, although the applicant specifically pointed out the location of the camera);

   (c) ..... (the bank account statements and the transaction records, which were not collected);

   (d) ..... (the statements of the material witnesses, namely ....., who were present at the spot and were not examined);

   (e) the forensic examination of ..... (the seized article/electronic device/document), which was not sent to the Forensic Science Laboratory.

4. That the failure to collect the said evidence has prejudiced the applicant and has the effect of defeating the course of justice, and unless further investigation is directed, the applicant shall be deprived of a fair investigation and a fair trial, which is a facet of the right to life and personal liberty under Article 21 of the Constitution of India.

5. That Section 193(8), BNSS, 2023 provides that nothing in the said section shall be deemed to preclude further investigation in respect of an offence after a report under Section 193(3) has been forwarded to the Magistrate, and where, upon such investigation, the police obtains further evidence, oral or documentary, it shall forward a further report or reports to the Magistrate, and such further report shall be treated as a report under Section 193(3), against which the Magistrate may take cognizance.

6. That Section 175(3), BNSS, 2023 empowers the Magistrate, upon an application of the complainant, to order investigation, and the said power is not exhausted by one round of investigation.

7. That this Hon'ble Court also has the power under Section 528, BNSS, 2023 (inherent powers) and under Section 348, BNSS, 2023 to summon material witnesses and to make such orders as may be necessary to secure the ends of justice and to prevent the abuse of the process of the Court; the prayer of the applicant is squarely within the scope of those powers.

8. That the present application is bona fide and the applicant has approached this Hon'ble Court at the earliest after coming to know of the lacunae in the investigation. No prejudice will be caused to the accused by the grant of the relief prayed for, as the accused will have full opportunity to explain the additional material at the trial, and the ends of justice require that the truth be brought out.

9. That the applicant undertakes to produce before the investigating officer all documents and details within his/her knowledge, and to render all assistance in the further investigation.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) direct further investigation in the above-noted case, in terms of Section 193(8) read with Section 175, BNSS, 2023, and direct the investigating agency to collect, in particular, the material enumerated in paragraph 3 above;

(ii) in the alternative, direct a re-investigation into the matter by an independent agency/officer of the rank of ..... in view of the conduct of the previous investigating officer;

(iii) direct the investigating officer to file a further report/further Final Report before this Hon'ble Court in a time-bound manner, and to keep this Hon'ble Court informed of the progress of the investigation; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / COMPLAINANT
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) The power to direct further investigation is distinct from the power to direct re-investigation. A re-investigation is ordered only in exceptional cases where the investigation is found to be tainted, biased or fundamentally defective, and the relief should ordinarily be sought before the High Court under Section 528, BNSS, 2023 or Article 226 of the Constitution. (ii) Further investigation after the filing of the Final Report is permissible on the basis of new material, and the Magistrate may differ from the conclusions of the investigating officer. (iii) Under Section 193(9), BNSS, 2023 (as inserted), further investigation may be conducted with the prior permission of the Court in respect of offences punishable with imprisonment of three years or more, and with the prior permission of the officer not below the rank of Inspector where the offence is punishable with imprisonment of three years or more but less than seven years. The exact requirement should be verified against the text of the Sanhita as applicable in the State concerned. (iv) The application must set out the specific lacunae; a vague prayer for re-investigation is generally not entertained.]

CR.P.C. EQUIVALENT

Old Section 173(8), Cr.P.C., 1973 -> Section 193(8), BNSS, 2023. See also Section 175(3), BNSS, 2023 (old Section 156(3)) and Section 528, BNSS, 2023 (old Section 482).

PRECEDENTS REFERRED TO

• *Vinay Tyagi v. Irshad Ali, (2013) 5 SCC 762 - the power to order further investigation is not subject to any restriction; however, re-investigation is ordered only in exceptional cases.*

• *Ramachandran v. R. Udhayakumar, (2008) 13 SCC 277 - further investigation under Section 173(8) can be ordered even after the filing of the charge-sheet and during the trial.*

• *Hemant Dhasmana v. CBI, (2001) 7 SCC 536 - the Magistrate may direct further investigation and the police may submit a further report.*

• *Sakiri Vasu v. State of U.P., (2008) 2 SCC 409 - the police must undertake a fair and thorough investigation; the Court may monitor the investigation.*

• *Amish Devgan v. Union of India, (2021) 1 SCC 1 - the Court's power to transfer investigation to an independent agency in exceptional cases.*

FORMAT B-18 — APPLICATION CHALLENGING ARREST / FOR RELEASE ON NOTICE OF APPEARANCE UNDER SECTION 35(3) BNSS

Pre-Trial / Complaint & FIR

IN THE COURT OF THE ....., (DISTRICT .....)

MISC. APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., aged about ..... years, R/o ....., presently in custody at .... APPLICANT / ARRESTED PERSON

1. THE STATE .... RESPONDENT NO. 1

2. THE STATION HOUSE OFFICER, POLICE STATION .... RESPONDENT NO. 2

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... BNS

DATE OF ARREST: ..... TIME: .....

APPLICATION UNDER SECTION 35(3) TO (6) READ WITH SECTION 62 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023, CHALLENGING THE ARREST AND PRAYING FOR RELEASE

MOST RESPECTFULLY SHOWETH:

1. That the applicant has been arrested on ..... at about ..... hours by the officers of Police Station ..... in connection with FIR No. ..... of 20....., registered for the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, and has been in custody since then.

2. That the maximum punishment prescribed for the offences alleged against the applicant is ..... (i.e., less than seven years / seven years or less), and therefore the applicant falls squarely within the ambit of Section 35(1)(b) read with Section 35(3), BNSS, 2023.

3. That under Section 35(1)(b), BNSS, 2023, the power to arrest without warrant in respect of an offence punishable with imprisonment which may be less than seven years or which may extend to seven years is conditional upon the satisfaction of the conditions enumerated in sub-clauses (i) and (ii), namely: (i) that the police officer has reason to believe on the basis of the complaint, information or suspicion that the person has committed the said offence; and (ii) that the police officer is satisfied that such arrest is necessary - (a) to prevent such person from committing any further offence; or (b) for the proper investigation of the offence; or (c) to prevent such person from causing the evidence of the offence to disappear or tampering with such evidence in any manner; or (d) to prevent such person from making any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to the police officer; or (e) as unless such person is arrested, his presence in the Court whenever required cannot be ensured; and the police officer shall record while making such arrest his reasons in writing.

4. That the proviso to Section 35(1)(b), BNSS, 2023 further mandates that a police officer shall, in all cases where the arrest of a person is not required under the provisions of the said sub-section, record the reasons in writing for not making the arrest.

5. That Section 35(3), BNSS, 2023 provides that the police officer shall, in all cases where the arrest of a person is not required under sub-section (1), issue a notice directing the person against whom a reasonable complaint has been made, or credible information has been received, or a reasonable suspicion exists that

he has committed a cognizable offence, to appear before him or at such other place as may be specified in the notice.

6. That Section 35(4) provides that where such a notice is issued, it shall be the duty of the person to comply with the terms of the notice; Section 35(5) provides that where the person complies with the terms of the notice, he shall not be arrested unless the police officer records reasons in writing for doing so; and Section 35(6) provides that where the person does not comply with the terms of the notice, the police officer may, for reasons to be recorded in writing, arrest him.

7. That in the present case, (i) no notice under Section 35(3), BNSS, 2023 was issued to the applicant prior to the arrest; (ii) no reasons in writing, as mandated by Section 35(1)(b)(ii) and by the proviso thereto, were recorded by the arresting officer; and (iii) the applicant has neither refused to cooperate nor failed to comply with any notice; the arrest is, therefore, in direct contravention of the mandatory safeguards contained in Section 35, BNSS, 2023.

8. That the arresting officer also failed to comply with the other mandatory requirements, namely: (i) the preparation and attestation of the arrest memorandum in the prescribed form, witnessed and attested by a family member or a respectable member of the locality, as required by Section 36, BNSS, 2023; (ii) the display of the name and designation of the arresting officer on his uniform and the furnishing of a receipt for any articles seized, as required by Section 36 read with Section 49, BNSS, 2023; (iii) the communication of the grounds of arrest to the applicant, as required by Section 47 read with Article 22(1) of the Constitution of India; (iv) the information of the arrest to a relative or friend of the applicant, as required by Section 48, BNSS, 2023; and (v) the applicant's right to meet an Advocate of his choice during interrogation, as required by Section 38, BNSS, 2023.

9. That Section 62, BNSS, 2023 mandates that every police officer or other person making any arrest, shall, in making the arrest, strictly comply with the provisions contained in Chapter V of the Sanhita; the failure to comply attracts departmental action, and the arrest becomes illegal and vitiated.

10. That the Hon'ble Supreme Court of India has repeatedly held that the existence of the power to arrest is one thing, and the justification for the exercise of the power is quite another, and that the police must not arrest mechanically. It has been further held that in respect of offences punishable with imprisonment up to seven years, the issuance of a notice of appearance is the rule and arrest is the exception, and that a violation of the statutory safeguards violates the right to life and personal liberty under Article 21 of the Constitution of India.

11. That the applicant is a permanent resident of ....., has deep roots in society, has no criminal antecedents, and there is no apprehension of the applicant absconding or tampering with the evidence. The applicant undertakes to appear before the investigating officer and this Hon'ble Court as and when required and to abide by all conditions imposed.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) hold that the arrest of the applicant is in violation of the mandatory provisions of Sections 35, 36, 47, 48 and 62 of the Bharatiya Nagarik Suraksha Sanhita, 2023, and of Articles 21 and 22 of the Constitution of India, and is therefore illegal;

(ii) release the applicant forthwith from custody on such terms and conditions as this Hon'ble Court may deem fit, the applicant having already been in custody since ....., and/or accept the bond of the applicant for appearance in lieu of arrest;

(iii) direct an inquiry into the conduct of the arresting officers for non-compliance with Section 62, BNSS, 2023 and Chapter V thereof, in terms of the direction in Arnesh Kumar v. State of Bihar, (2014) 8 SCC 273, and to initiate departmental action against the erring officers;

(iv) award compensation to the applicant for the illegal detention, in terms of Section 399, BNSS, 2023 and the law laid down by the Hon'ble Supreme Court; and

(v) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 35, BNSS, 2023 significantly strengthens the pre-arrest safeguards contained in Section 41, Cr.P.C. and Section 41A, Cr.P.C., and now contains mandatory recording of reasons both for arrest and for non-arrest. (ii) Section 35(7), BNSS, 2023 provides that where the alleged offence is punishable with imprisonment of less than three years and the person is infirm or is above sixty years of age, the police officer shall, in all cases where arrest is not required, issue a notice of appearance and record reasons in writing if arrest is made. (iii) Where an arrest is made contrary to Section 35, the Court is entitled to release the person and to direct the payment of compensation for illegal detention under Section 399, BNSS, 2023 (old Section 358, Cr.P.C.). (iv) The remedy of habeas corpus under Article 226 of the Constitution is also available where the detention is illegal or the procedural safeguards have not been complied with. (v) An application for remand should be opposed at the very first production, since the Magistrate is under a duty to satisfy himself that the safeguards under Section 35 have been complied with before authorising detention.]

CR.P.C. EQUIVALENT

Old Sections 41 and 41A, Cr.P.C., 1973 -> Section 35, BNSS, 2023 (with expanded safeguards). Old Sections 41B and 41D -> Sections 36 and 48, BNSS, 2023. Old Section 50 -> Section 47, BNSS, 2023. Old Section 50A -> Section 48, BNSS, 2023. Old Section 358 -> Section 399, BNSS, 2023.

PRECEDENTS REFERRED TO

- *Arnesh Kumar v. State of Bihar, (2014) 8 SCC 273 - guidelines on arrest in offences punishable with imprisonment up to seven years; police must not arrest mechanically; Magistrates must not authorise detention mechanically.*
- *Joginder Kumar v. State of U.P., (1994) 4 SCC 260 - the existence of the power to arrest is not the same as the justification for its exercise; arrest must be justified.*
- *D.K. Basu v. State of West Bengal, (1997) 1 SCC 416 - procedural safeguards on arrest and custody; violation entails departmental action and contempt.*
- *Vihaan Kumar v. State of Haryana, 2025 SCC OnLine SC 85 - the communication of the grounds of arrest is mandatory; the Magistrate must verify compliance at the stage of remand.*
- *Satender Kumar Antil v. CBI, (2022) 10 SCC 51 - the categorisation of offences for the purposes of grant of bail and the necessity of the notice of appearance.*
- *Sube Singh v. State of Haryana, (2006) 3 SCC 178 - illegal arrest and detention and the consequent right to compensation.*

FORMAT B-19 — UNDERTAKING / COMPLIANCE WITH NOTICE OF APPEARANCE UNDER SECTION 35(3) BNSS

Pre-Trial / Complaint & FIR

TO,
THE STATION HOUSE OFFICER / INVESTIGATING OFFICER,
POLICE STATION ....., DISTT. .....

SUBJECT: COMPLIANCE WITH THE NOTICE OF APPEARANCE DATED ..... ISSUED UNDER SECTION 35(3) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 IN FIR NO. ..... OF 20....., POLICE STATION .....

UNDERTAKING AND COMPLIANCE WITH THE NOTICE OF APPEARANCE ISSUED UNDER SECTION 35(3) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the undersigned has received the Notice of Appearance bearing No. ..... dated ..... issued by you under Section 35(3) of the Bharatiya Nagarik Suraksha Sanhita, 2023, directing the undersigned to appear before you on ..... at ..... hours in connection with the above-mentioned FIR.

2. That the undersigned hereby acknowledges the receipt of the said notice, and states that the undersigned has not, at any point of time, refused to cooperate with the investigation and has no intention of evading the process of law.

3. That in compliance with the said notice, the undersigned appeared before you on ..... at ..... hours and joined the investigation, and submitted all such documents and information as were required: (i) .....; (ii) .....; (iii) .....

4. That the undersigned undertakes as under:

   (a) That the undersigned shall appear before you or before such officer or Court as may be required, on every date and at every place as may be intimated to me, without fail;

   (b) That the undersigned shall render all cooperation in the investigation and shall produce all documents and articles in my possession or control, which are relevant to the investigation, as and when called upon to do so;

   (c) That the undersigned shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case, so as to dissuade such person from disclosing such facts to the Court or to the police;

   (d) That the undersigned shall not tamper with the evidence, and shall not influence any witness in any manner whatsoever;

   (e) That the undersigned shall not leave India without the prior permission of the competent authority/Court;

   (f) That the undersigned shall keep you informed of my current address and mobile number, and shall inform you of any change therein forthwith.

5. That by virtue of the provisions of Section 35(5), BNSS, 2023, since the undersigned has complied with the terms of the notice and continues to do so, the undersigned shall not be arrested in connection with the above-noted FIR, unless you record reasons in writing for doing so and such reasons are justified in the facts and circumstances of the case.

6. That the undersigned requests that a receipt/acknowledgement of this undertaking and compliance be given to the undersigned, and that the same be placed on the record of the investigation.

PRAYER:

It is, therefore, most respectfully prayed that you may kindly be pleased to:

(i) take on record this undertaking and the compliance of the notice issued under Section 35(3), BNSS, 2023;

(ii) permit the undersigned to join the investigation and to produce the necessary documents in support of his/her defence, and to remain present through the counsel as and when permissible;

(iii) not arrest the undersigned in view of the compliance with the notice, in terms of Section 35(5), BNSS, 2023; and

(iv) grant a receipt/acknowledgement of this compliance and apprise the undersigned of the further course of the investigation.

APPLICANT / NOTICE-EE
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Compliance with the notice under Section 35(3) is the sine qua non for the protection granted by Section 35(5), BNSS, 2023. Therefore, the notice must never be ignored, and the date and time of appearance must be strictly obeyed. (ii) If the date mentioned in the notice is inconvenient, a written request for an alternative date should be made in advance, in writing, with reasons; this will obviate the charge of non-compliance. (iii) The acknowledgement/receipt of the appearance and of the documents submitted must always be obtained and preserved - this is the applicant's principal defence against a subsequent allegation of non-cooperation. (iv) If, despite compliance, the police attempt to arrest the applicant, an application under Section 482, BNSS, 2023 (anticipatory bail) may be moved immediately, or the arrest may be challenged as being contrary to Section 35, BNSS, 2023.]

CR.P.C. EQUIVALENT

Old Section 41A, Cr.P.C., 1973 -> Section 35(3) to (6), BNSS, 2023. Old Section 41B -> Section 36, BNSS, 2023.

PRECEDENTS REFERRED TO

• *Arnesh Kumar v. State of Bihar, (2014) 8 SCC 273 - the notice of appearance must be issued where arrest is not required; failure to comply with the notice justifies arrest.*

• *Satender Kumar Antil v. CBI, (2022) 10 SCC 51 - for offences punishable with imprisonment up to seven years, the notice of appearance is the norm and arrest is the exception, unless the statutory conditions for arrest are satisfied.*

FORMAT B-20 — APPLICATION FOR RELEASE OF SEIZED VEHICLE / PROPERTY AT THE POLICE STAGE

Pre-Trial / Complaint & FIR

IN THE COURT OF THE ....., (DISTRICT .....)

MISC. APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....

APPLICANT / OWNER

1. THE STATE .... RESPONDENT NO. 1

2. THE STATION HOUSE OFFICER, POLICE STATION .... RESPONDENT NO. 2

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... BNS / ..... ACT

APPLICATION FOR RELEASE OF SEIZED VEHICLE / CASE PROPERTY UNDER SECTION 503 READ WITH SECTION 497 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant is the registered owner/possessor of the vehicle/property described as under:

   Description of the Vehicle / Property: .....; Make and Model: .....; Registration No.: .....; Engine No. .....; Chassis No. .....; Colour: .....; Value: Rs. .....;

   The applicant is the registered owner thereof, as is evident from the Registration Certificate/Invoice/Insurance Policy/Sale Certificate annexed hereto and marked as ANNEXURE A.

2. That the said vehicle/property was seized by the officers of Police Station ..... on ..... in connection with FIR No. ..... of 20....., registered under Sections ..... of the Bharatiya Nyaya Sanhita, 2023 [or under the provisions of the ..... Act, ...], and is presently lying in the custody of the police station/police malkhana at ..... since then.

3. That the applicant is neither an accused nor a suspect in the above-noted case, and no offence is alleged against the applicant; the applicant has been unnecessarily deprived of the use of the said vehicle/property.

4. That the continued retention of the said vehicle/property by the police is causing grave prejudice and pecuniary loss to the applicant, as: (i) the vehicle is the applicant's sole means of livelihood/ the property is deteriorating in value due to exposure to the elements and lack of maintenance; (ii) the vehicle is a commercial vehicle and is lying idle, resulting in a loss of Rs. ..... per day; (iii) the insurance, permit, fitness and tax liabilities are mounting and the applicant is incurring liability without any corresponding benefit; (iv) the property is perishable/liable to decay.

5. That Section 503, BNSS, 2023 prescribes the procedure to be followed by the police upon the seizure of property, and provides that the seizure must be reported to the Magistrate forthwith, and that the property shall be disposed of in accordance with the orders of the Magistrate; the said provision is intended to ensure that the property seized is not retained by the police indefinitely and is dealt with lawfully.

6. That Section 497, BNSS, 2023 provides for the custody and disposal of property pending trial, and empowers the Court to make such order as it thinks fit, including an order for the delivery of the property to the person entitled to possession thereof, with or without conditions, on the execution of a bond, and the Court is required to have regard to the nature of the property and the person in whose possession it was.

7. That the said vehicle/property is not required for the purposes of the investigation, the same having already been photographed, its value assessed, and the necessary memos prepared; nor is it required to be produced as an exhibit before the trial Court, and the prosecution does not stand to suffer any prejudice by its release.

8. That the applicant is ready and willing to produce the said vehicle/property before this Hon'ble Court or before the investigating agency or the trial Court as and when directed, and is ready to execute such bond, with or without sureties, and to furnish such security as this Hon'ble Court may direct. The applicant also undertakes not to transfer, alienate or create any third-party interest in the said vehicle/property during the pendency of the case, without the leave of this Hon'ble Court.

9. That the applicant has also filed an application dated ..... before the Station House Officer, Police Station ....., praying for the release of the said vehicle/property, which has not been acceded to; hence the present application. A copy of the said application is annexed as ANNEXURE B.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) direct the release of the vehicle/property described in paragraph 1 above, namely ..... (Registration No. .....), which was seized in connection with FIR No. ..... of 20....., Police Station ....., to the applicant, in terms of Section 503 read with Section 497 of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) permit the applicant to execute a 'supurdnama'/bond with or without sureties for the production of the said vehicle/property before this Hon'ble Court or before the trial Court as and when directed;

(iii) direct the Station House Officer, Police Station ....., to produce the said vehicle/property before this Hon'ble Court, if not already produced, and to report compliance; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / OWNER
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) An application at the police stage is to be made to the Superintendent of Police/Commissioner; if that is not acceded to, an application lies to the Magistrate under Section 503 read with Section 497, BNSS, 2023, or to the Court of Session/High Court under Section 528, BNSS, 2023. (ii) The Supreme Court has repeatedly deprecated the practice of retaining seized vehicles for long periods in police stations, and has directed that interim custody be granted on the execution of a bond with conditions, including the production of the vehicle as and when required, and the non-alienation thereof. (iii) The applicant should offer photographs of the vehicle, a valuation report, an indemnity bond and, where required, a surety. (iv) For the release of property after the conclusion of the trial, see Section 498, BNSS, 2023.]

CR.P.C. EQUIVALENT

Old Section 451, Cr.P.C., 1973 -> Section 497, BNSS, 2023 (custody and disposal of property pending trial). Old Section 457 -> Section 503, BNSS, 2023 (procedure by police upon seizure of property).

PRECEDENTS REFERRED TO

- *Sunderbhai Ambalal Desai v. State of Gujarat, (2002) 10 SCC 283 - directions regarding the custody and release of seized vehicles and articles; the police must not retain seized vehicles for long periods; interim custody may be granted on a bond.*
- *General Insurance Council v. State of A.P., (2010) 6 SCC 768 - directions on the release of seized vehicles by the police after seizure.*
- *State of M.P. v. Suresh Kumar Goyal, (2013) 12 SCC 708 - the power to release seized property is discretionary and must be exercised judiciously.*

PART C

BAIL & BONDS

Formats C-21 to C-34

FORMAT C-21 — APPLICATION FOR REGULAR BAIL BEFORE THE MAGISTRATE

Bail & Bonds

IN THE COURT OF THE CHIEF JUDICIAL MAGISTRATE / JUDICIAL MAGISTRATE FIRST CLASS, ..., (DISTRICT .....)

BAIL APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., aged about ..... years, R/o .... APPLICANT / ACCUSED

THE STATE (GOVT. OF NCT OF DELHI) / STATE OF .... RESPONDENT / COMPLAINANT

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... OF THE BHARATIYA NYAYA SANHITA, 2023

APPLICATION FOR GRANT OF BAIL UNDER SECTION 480 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant/accused was arrested by the police on ..... at about ..... hours in connection with the above-noted FIR and was produced before this Hon'ble Court on .....; the applicant has been in judicial custody since then and is presently lodged in ..... Jail.

2. That the applicant is innocent and has been falsely implicated in the present case. The applicant has committed no offence whatsoever and has nothing to do with the alleged offence.

3. That the allegations made against the applicant, as borne out from the FIR and the material collected during the investigation, are, in brief, that ..... (narrate the prosecution case briefly). A bare reading of the FIR/complaint demonstrates that the allegations are vague, general, omnibus and devoid of particulars, and no specific role or act has been attributed to the applicant.

4. That the applicant is a permanent resident of ....., aged about ..... years, and is a law-abiding citizen of India. The applicant is ..... (state occupation) and has deep roots in society. The applicant has never been involved in any criminal offence prior to the present case and is not a previous convict or a proclaimed offender. There is no apprehension of the applicant fleeing from justice or of his/her absconding, in the event of the grant of bail.

5. That the applicant has fully cooperated with the investigation and has joined the investigation on every occasion on which the applicant was called upon to do so; the applicant undertakes to continue to join the investigation and to appear before this Hon'ble Court on every date of hearing without fail.

6. That the applicant is not required for the purposes of any identification parade, and the charge-sheet/final report has already been filed before this Hon'ble Court on ..... / the investigation is substantially complete and the applicant is no longer required for the purposes of custodial interrogation:

   [Where the charge-sheet has been filed:] That the Final Report under Section 193, BNSS, 2023 has been filed before this Hon'ble Court on ....., and therefore the custody of the applicant is no longer required for the purposes of the investigation. Once the investigation is complete and the charge-sheet is filed, the 'triple test' for the grant of bail - namely the likelihood of the accused fleeing from justice, the likelihood of tampering with evidence and the likelihood of influencing witnesses - must be applied on the basis of the material on record, and the seriousness of the offence alone cannot be a ground for the denial of bail.

7. That the offences alleged against the applicant are punishable with imprisonment up to ..... years and are triable by this Hon'ble Court / are not punishable with death or imprisonment for life, and therefore the rigours of clauses (i) and (ii) of Section 480(1), BNSS, 2023 are not attracted, save that the applicant has no previous conviction of any kind whatsoever.

8. That the applicant is the sole bread-earner of his/her family, consisting of ..... members, and the continued detention of the applicant is causing grave hardship and irreparable injury to the applicant and to his/her dependent family members, including ..... (specify - aged parents, minor children, ailing spouse). The applicant's family has no other source of income.

9. That the applicant is suffering from ..... (ailment) and requires regular medical treatment at .....; the medical papers/certificates are annexed hereto. Continued incarceration in jail would aggravate the medical condition of the applicant. [Delete if not applicable.]

10. That even otherwise, there is no reasonable apprehension that the applicant will tamper with the evidence or influence any witness if released on bail, as: (i) all the material documents/electronic records have already been collected by the investigating agency; (ii) the witnesses are known to the prosecution and their statements stand recorded; (iii) the applicant undertakes not to contact or influence any witness directly or indirectly.

11. That the applicant undertakes: (i) to appear before this Hon'ble Court on every date of hearing; (ii) not to tamper with the prosecution evidence or to influence any witness in any manner; (iii) not to leave the country without the prior permission of this Hon'ble Court; (iv) to keep the Court and the investigating officer informed of his/her current residential address and mobile number; and (v) to abide by all such terms and conditions as this Hon'ble Court may impose while granting bail.

12. That this Hon'ble Court, while considering the present application, is required to bear in mind the settled principle that bail is the rule and jail is the exception; that the object of bail is to secure the attendance of the accused at the trial and not to punish the accused; that a person is presumed innocent until proven guilty; and that the deprivation of liberty is a serious matter that must be justified by the existence of a real and compelling necessity, and not by the mere gravity of the accusation.

13. That the applicant has already suffered incarceration for a period of ..... days and has been put to immense mental agony, humiliation, loss of reputation and pecuniary loss. The applicant is confident of establishing his/her innocence in the trial.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) release the applicant/accused on bail in connection with FIR No. ..... of 20....., Police Station ....., on such terms and conditions as this Hon'ble Court may deem fit and proper, including the furnishing of a personal bond and surety bond in a reasonable amount, in terms of Section 480 read with Sections 484 to 486 of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) in the alternative, release the applicant on his/her personal bond, with or without sureties, in terms of Section 480(2), BNSS, 2023, having regard to the fact that the applicant has been in custody since ..... and has no criminal antecedents; and

(iii) pass such other and further order(s) as this Hon'ble Court may deem fit and proper on the facts and in the circumstances of this case.

APPLICANT / ACCUSED
THROUGH
ADVOCATE

Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) An application for bail must be supported by an affidavit of the accused or of a pairokar, and accompanied by (a) a copy of the FIR, (b) the arrest memo, (c) proof of identity and residence, (d) proof of no criminal antecedents (if available), and (e) a self-attested copy of the Vakalatnama. (ii) The surety must be solvent and must normally be a resident of the District/City; a surety bond in the prescribed form under Sections 485 and 486, BNSS, 2023, along with the affidavit of the surety, is required. (iii) Where the accused is a first-time offender or is a woman, child, sick or infirm person, or is above sixty years of age, the Court should ordinarily lean in favour of bail. (iv) Where the accused has been in custody for a period extending to one-half (or one-third, in the case of a first-time offender) of the maximum sentence prescribed for the offence, the accused is entitled to release in terms of Section 479, BNSS, 2023 - see the format at Part D of this compilation. (v) An application for bail after the filing of the charge-sheet is to be considered on the basis of the material in the Final Report, and not on the basis of the police's opinion. (vi) Repeated bail applications on the same or similar grounds should be avoided; only a material change in circumstances justifies a fresh application.]

CR.P.C. EQUIVALENT

Old Section 437, Cr.P.C., 1973 -> Section 480, BNSS, 2023. Old Section 436 (bailable offences) -> Section 478, BNSS, 2023. Old Section 436A -> Section 479, BNSS, 2023. Old Section 439 -> Section 483, BNSS, 2023. Bail bonds and sureties: old Sections 440 to 442 -> Sections 484 to 486, BNSS, 2023.

PRECEDENTS REFERRED TO

- *Gudikanti Narasimhulu v. Public Prosecutor, (1978) 1 SCC 240 - bail is the rule and jail the exception; the object of bail is to secure the attendance of the accused at trial.*
- *State of Rajasthan v. Balchand, (1977) 4 SCC 308 - the basic rule is bail, not jail, except where there are circumstances suggestive of fleeing from justice or tampering with evidence.*
- *Sanjay Chandra v. CBI, (2012) 1 SCC 40 - the gravity of the charge is not alone sufficient to deny bail; the Court must consider whether the accused is a flight risk or likely to tamper with evidence.*
- *Satender Kumar Antil v. CBI, (2022) 10 SCC 51 - categorisation of offences (A to D) for the grant of bail; for offences punishable with imprisonment up to seven years, bail is the norm; the triple test.*
- *P. Chidambaram v. Directorate of Enforcement, (2020) 13 SCC 791 - the considerations governing the grant of bail, including flight risk and the possibility of tampering with evidence.*
- *Arnab Manoranjan Goswami v. State of Maharashtra, (2021) 2 SCC 427 - the Court must not adopt a rigid approach; liberty is the norm and its deprivation the exception.*
- *Vijay Madanlal Choudhary v. Union of India, (2023) 3 SCC 1 - the approach to bail in special statutes such as the PMLA.*

FORMAT C-22 — APPLICATION FOR BAIL BEFORE THE COURT OF SESSION / HIGH COURT

Bail & Bonds

IN THE COURT OF THE LEARNED SESSIONS JUDGE, ..., (DISTRICT .....) [OR] IN THE HON'BLE HIGH COURT OF ..... AT .....

BAIL APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., aged about ..... years, R/o ....., presently lodged in ..... Jail ..... APPLICANT / ACCUSED

THE STATE ....., THROUGH THE PUBLIC PROSECUTOR ..... RESPONDENT

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... OF THE BHARATIYA NYAYA SANHITA, 2023

APPLICATION FOR GRANT OF BAIL UNDER SECTION 483 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant/accused is in custody in connection with FIR No. ..... of 20....., Police Station ....., registered for offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, since ....., i.e., for a period of ..... days as on date.

2. That the applicant had earlier moved an application for bail before the learned ..... Court, being Bail Application No. ..... of 20....., which was dismissed by order dated ..... on the grounds, inter alia, that ..... (state the reasons given by the Court). A copy of the said order is annexed hereto and marked as ANNEXURE A.

3. That there has been a material change in the circumstances since the passing of the said order, in that:

   (i) the Final Report/charge-sheet under Section 193, BNSS, 2023 has been filed before the learned Trial Court on ....., and the investigation is complete;

   (ii) the applicant's custodial interrogation is no longer required, and the applicant has already been interrogated in custody on .....;

   (iii) the principal witness(es) have already been examined before the learned Trial Court on ....., and no apprehension of tampering remains;

   (iv) the applicant has suffered incarceration for a substantial period, i.e., ... days, which is a relevant consideration in view of the fact that the maximum sentence prescribed for the offence alleged is .....;

   (v) the co-accused, namely ....., has been granted bail by this Hon'ble Court/learned Trial Court, vide order dated ..... passed in Bail Application No. ..... of 20....., on the ground of parity, and the case of the applicant stands on a better footing than that of the said co-accused for the reasons set out in the following paragraphs. A copy of the said order is annexed as ANNEXURE B.

4. That the applicant is innocent and has been falsely implicated. The applicant's case on merits is a strong one, in that: (i) no specific role or overt act has been attributed to the applicant in the FIR; (ii) the applicant was not present at the place of occurrence, as is borne out from .....; (iii) the entire case of the prosecution rests on the testimony of ....., whose conduct is highly suspect in view of .....; (iv) the dispute between the parties is essentially civil in nature and the criminal

proceedings are an abuse of the process of law;

[OR] (v) the applicant has been named on the basis of the disclosure statement of a co-accused, which is inadmissible in evidence against the applicant except to the limited extent permitted by Section 23 of the Bharatiya Sakshya Adhiniyam, 2023, and which, in any case, cannot form the sole basis of the denial of bail.

5. That the Hon'ble Supreme Court has consistently held that the seriousness of the offence or the nature of the accusation is not, by itself, sufficient to deny bail, and that the Court must be satisfied, on the basis of material on record and not on the basis of the police's opinion, that there is a real and compelling necessity for continued detention. The relevant considerations are: (i) whether the accused is a flight risk; (ii) whether there is a likelihood of the accused tampering with the evidence; (iii) whether there is a likelihood of the accused influencing or intimidating the witnesses; (iv) whether the accused has cooperated with the investigation; (v) the antecedents of the accused; (vi) the period of incarceration already undergone; and (vii) the possibility of the trial being delayed.

6. That the applicant satisfies all the above tests, in that the applicant is a permanent resident of ....., has never absconded, has no criminal antecedents, is not a previous convict, is not a proclaimed offender, and has consistently cooperated with the investigation. The applicant undertakes to abide by all conditions that may be imposed, including the conditions specified in Section 482(2), BNSS, 2023.

7. That the applicant is the sole bread-earner of the family and has dependent family members, namely ..... (aged ..... years), who have no independent source of income. The continued detention of the applicant is causing grave hardship to the entire family, including the education of the applicant's minor child/children. [Where applicable: the applicant's aged parents require constant medical care and attendance.]

8. That the trial of the case is likely to take a long time on account of the large number of witnesses to be examined and the documents to be proved, and the applicant cannot be kept in custody for an indefinite period as a pretrial detainee, since such detention would itself amount to a violation of the right to life and personal liberty under Article 21 of the Constitution of India. The Hon'ble Supreme Court has repeatedly observed that the right to a speedy trial is a fundamental right and that an accused cannot be kept in jail for an indefinite period merely because the trial is likely to be prolonged.

9. That the applicant is not a threat to the society at large, and the applicant has neither threatened any witness nor caused any obstruction in the investigation. The applicant has already suffered the ignominy of custody for ..... days and has learnt the necessary lesson.

10. That the applicant undertakes: (i) to appear before this Hon'ble Court and before the learned Trial Court on every date of hearing; (ii) not to tamper with the prosecution evidence or to influence or threaten any witness; (iii) not to leave India without the prior permission of this Hon'ble Court; (iv) to surrender the passport, if any, or to furnish an undertaking that the applicant shall not leave the country; (v) to keep the investigating officer and this Hon'ble Court informed of his/her whereabouts; and (vi) to abide by the conditions mentioned in Section 482(2), BNSS, 2023, if this Hon'ble Court considers it appropriate to impose them.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) admit the applicant to bail in connection with FIR No. ..... of 20....., Police Station ....., registered for offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, in exercise of the powers under Section 483(1)(a) of the Bharatiya Nagarik Suraksha Sanhita, 2023, on such terms and conditions as this Hon'ble Court may deem fit and proper;

(ii) set aside/modify the harsh conditions, if any, imposed while granting bail to the applicant earlier; and

(iii) pass such other and further order(s) as this Hon'ble Court may deem fit and proper in the facts and circumstances of the case.

APPLICANT / ACCUSED
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) The proviso to Section 483(1), BNSS, 2023 mandates that the Court shall, before granting bail to a person who is accused of an offence triable exclusively by the Court of Session or punishable with imprisonment for life, give notice of the application for bail to the Public Prosecutor, unless it is of the opinion, for reasons recorded in writing, that it is not practicable to do so. (ii) A second proviso requires notice to the Public Prosecutor within fifteen days from the date of receipt of the notice of the application in respect of offences under Section 65 or Section 70(2) of the BNS, 2023 (rape/gang rape), and Section 483(2) makes the presence of the informant or a person authorised by him obligatory at the hearing of such bail applications. (iii) Where the bail application is filed before the High Court directly, it must be shown why the applicant has not approached the Court of Session; ordinarily the Court of Session must be moved first. (iv) In respect of offences under special statutes (NDPS, PMLA, UAPA, POCSO), the limitations contained in those statutes must be pleaded and addressed; see Part G. (v) An application for bail before the High Court should be accompanied by the order of the Court below, the FIR, the charge-sheet, and an affidavit.]

CR.P.C. EQUIVALENT

Old Section 439, Cr.P.C., 1973 -> Section 483, BNSS, 2023. Old Section 437 -> Section 480. Old Section 438 -> Section 482.

PRECEDENTS REFERRED TO

- *Sanjay Chandra v. CBI, (2012) 1 SCC 40 - the gravity of the offence is not the sole criterion; the Court must consider the likelihood of the accused tampering with evidence and fleeing from justice.*
- *P. Chidambaram v. CBI, (2020) 13 SCC 337 - the considerations for grant of bail in economic offences.*
- *Dataram Singh v. State of U.P., (2018) 3 SCC 22 - the 'triple test'; the Court must not be influenced by the gravity of the offence alone.*
- *Satender Kumar Antil v. CBI, (2022) 10 SCC 51 - bail for offences punishable up to seven years should be granted unless the triple test is satisfied; the delay in trial is a relevant factor.*
- *Union of India v. K.A. Najeeb, (2021) 3 SCC 713 - prolonged incarceration and the possibility of a delayed trial are grounds for bail even in UAPA cases.*
- *Hussainara Khatoon (I) v. Home Secretary, State of Bihar, (1980) 1 SCC 81 - the right to a speedy trial is a fundamental right; indefinite pretrial detention violates Article 21.*

FORMAT C-23 — APPLICATION FOR ANTICIPATORY BAIL

Bail & Bonds

IN THE COURT OF THE LEARNED SESSIONS JUDGE, ..., (DISTRICT .....) [OR] IN THE HON'BLE HIGH COURT OF ..... AT .....

ANTICIPATORY BAIL APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., aged about ..... years, R/o ....., Mobile No. .... APPLICANT

THE STATE ....., THROUGH THE PUBLIC PROSECUTOR ..... RESPONDENT / COMPLAINANT

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... OF THE BHARATIYA NYAYA SANHITA, 2023

APPLICATION FOR ANTICIPATORY BAIL / DIRECTION FOR GRANT OF BAIL TO A PERSON APPREHENDING ARREST UNDER SECTION 482 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant has reason to believe that he/she may be arrested on an accusation of having committed a non-bailable offence in connection with FIR No. ..... of 20....., Police Station ....., registered under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, and hence the present application.

2. That the applicant is a permanent resident of ....., aged about ..... years, and is a law-abiding citizen of India. The applicant is ..... (occupation) and has deep roots in society. The applicant has never been involved in any criminal case prior to the present one and is not a previous convict.

3. The brief facts of the case, as borne out from the FIR, are that ..... (narrate the prosecution case in brief). The FIR has been lodged by ..... on ..... on the basis of ..... The applicant has been falsely roped in on account of ..... (state the reason - e.g., property dispute, matrimonial discord, business rivalry, political rivalry, or a personal grudge).

4. That the applicant apprehends arrest as: (i) the police have visited the residence of the applicant on ..... at about ..... hours in the absence of the applicant; (ii) a notice under Section 35(3), BNSS, 2023 has been received/not received; (iii) the police have summoned the applicant's family members and have threatened to arrest the applicant; (iv) the applicant has been named in the FIR as an accused; and (v) the offence alleged is non-bailable in nature. [The grounds of apprehension must be specific and based on material.]

5. That the applicant's case is false and frivolous, and the allegations levelled against the applicant are inherently improbable for the following reasons:

   (i) .....;

   (ii) .....;

   (iii) .....

6. That the FIR in question has been lodged after an inordinate delay of ..... and the delay has not been satisfactorily explained. It is settled law that an unexplained delay in lodging an FIR gives rise to a

reasonable inference that the allegations were an afterthought, hatched with the object of implicating the applicant falsely. The complaint was lodged only after ..... (set out the immediate cause - e.g., the failure of the applicant to accede to the complainant's illegal demand; the filing of a civil suit by the applicant; the applicant's refusal to transfer the property).

7. That the dispute between the applicant and the complainant is essentially civil/commercial in nature, and the present criminal case is nothing but a device to coerce the applicant to submit to the complainant's illegal demands - a practice which the Hon'ble Supreme Court has strongly deprecated. The mere existence of a civil dispute is not a ground for implicating a party in a criminal case, and the criminal process cannot be used as a tool of harassment.

8. That the essential ingredients of the offences alleged are not made out even on a bare reading of the FIR. In particular: (i) the FIR does not disclose any ..... (specify the missing ingredient - e.g., dishonest intention at the inception of the transaction, which is the sine qua non for the offence of cheating under Section 318 of the BNS, 2023; entrustment of property, which is the foundation of the offence of criminal breach of trust under Section 316 of the BNS, 2023; the existence of any agreement to commit an offence, which is the essence of a criminal conspiracy under Section 61 of the BNS, 2023).

9. That the applicant has cooperated, and is willing to fully cooperate, with the investigation. The applicant is ready and willing to join the investigation as and when required and to abide by all such conditions as this Hon'ble Court may think fit to impose, including the conditions enumerated in Section 482(2), BNSS, 2023, namely: (i) that the applicant shall make himself available for interrogation by a police officer as and when required; (ii) that the applicant shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer; (iii) that the applicant shall not leave India without the previous permission of the Court; and (iv) such other condition as may be imposed under Section 480(3), BNSS, 2023.

10. That the applicant is not a habitual offender, has no antecedents of crime, and is not likely to abscond or misuse the liberty granted. The applicant is deeply rooted in the community and has permanent family, social and business ties at ..... The applicant's passport/details are as under: Passport No. ..... (issued at .....); Aadhaar No. .....; PAN No. .....

11. That the object of anticipatory bail is to protect a person who is innocent and has reason to believe that he may be arrested at the instance of an influential person or on account of a false case, and to save such a person from the ignominy of detention in custody. The Hon'ble Supreme Court has held that the power to grant anticipatory bail is of a wide amplitude and must be exercised liberally where the accusations are false, malicious or motivated, and in matters of a predominantly civil or matrimonial nature.

12. That if the applicant is arrested, the applicant's reputation, which has been built over ..... years of unblemished service/professional practice/business, would be irreparably damaged, and the applicant would be subjected to humiliation, loss of livelihood and social ostracism, from which no amount of compensation could compensate the applicant. The applicant is also the sole guardian and caregiver of ..... [if applicable].

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) direct that in the event of the arrest of the applicant in connection with FIR No. ..... of 20....., Police Station ....., the applicant shall be released on bail, in terms of Section 482(1) of the Bharatiya Nagarik Suraksha Sanhita, 2023, on such terms and conditions as this Hon'ble Court may deem fit and proper;

(ii) grant interim protection to the applicant until the disposal of the present application, and in the meanwhile direct that the applicant shall not be arrested, on such terms as this Hon'ble Court may deem fit;

(iii) direct that the applicant shall be released on bail in the event of arrest upon the applicant furnishing a personal bond/bail bond for a sum of Rs. ..... with one/two sureties in the like amount, to the satisfaction of the Arresting Officer/Station House Officer, Police Station .....;

(iv) direct the respondent to give the applicant a reasonable advance notice of not less than ..... days before effecting the arrest, in the event of the dismissal of the present application, so as to enable the applicant to seek appropriate remedies in accordance with law; and

(v) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 482(4), BNSS, 2023 expressly provides that nothing in the section shall apply to a case involving the arrest of a person on accusation of having committed an offence under Section 65 (punishment for rape) and sub-section (2) of Section 70 (punishment for gang rape) of the Bharatiya Nyaya Sanhita, 2023 - i.e., anticipatory bail is NOT available for these offences. (ii) Consistent with the law laid down by the Constitution Bench in Sushila Aggarwal v. State (NCT of Delhi), (2020) 5 SCC 1, an order of anticipatory bail is ordinarily not limited to a fixed period and continues until the conclusion of the trial, unless the Court, on the facts of the case, limits it or takes it away subsequently on the ground of misuse or changed circumstances. (iii) The Court granting anticipatory bail may impose conditions under Section 482(2); failure to comply with the conditions may result in cancellation. (iv) An application for anticipatory bail must be supported by an affidavit and accompanied by the FIR, and must disclose all earlier applications, their outcome and any change in circumstances. (v) The applicant must not be evasive in disclosing prior applications; suppression of material facts is a ground for rejection and for cancellation of bail. (vi) Where an application for anticipatory bail is rejected by the Court of Session, a fresh application lies to the High Court, not a revision; where the application is rejected by the High Court, a Special Leave Petition under Article 136 lies. (vii) The applicant should always offer to abide by the conditions and to join the investigation, as cooperation with the investigation is a strong factor in favour of the grant of the relief.]

CR.P.C. EQUIVALENT

Old Section 438, Cr.P.C., 1973 -> Section 482, BNSS, 2023. The BNSS, 2023 has expressly excluded the offences under Section 65 and Section 70(2) of the BNS, 2023 from the ambit of anticipatory bail. Note that the number 482 in the BNSS now refers to anticipatory bail, whereas 482 in the old Cr.P.C. referred to the inherent powers of the High Court (now Section 528, BNSS, 2023).

PRECEDENTS REFERRED TO

- *Sushila Aggarwal v. State (NCT of Delhi), (2020) 5 SCC 1 - a Constitution Bench has held that an order of anticipatory bail is not to be limited to a fixed period and ordinarily enures till the conclusion of the trial; the Court has the discretion to impose conditions.*
- *Gurbaksh Singh Sibbia v. State of Punjab, (1980) 2 SCC 565 - the power to grant anticipatory bail is of a wide amplitude and must not be cut down by the imposition of fetters not contained in the statute.*
- *Salauddin Abdulsamad Shaikh v. State of Maharashtra, (1996) 1 SCC 667 - the considerations governing the grant of anticipatory bail.*
- *Siddharth v. State of U.P., (2021) SCC OnLine SC 986 - the accused is not entitled to be heard before the arrest; the Court may impose conditions and the investigating officer may seek custody if required.*
- *Arnesh Kumar v. State of Bihar, (2014) 8 SCC 273 - safeguards in respect of offences punishable with imprisonment up to seven years.*
- *State of Maharashtra v. Pankaj Jagshi Gangar, (2022) 3 SCC 290 - while granting anticipatory bail, the Court must consider the gravity of the offence and the conduct of the accused.*

FORMAT C-24 — APPLICATION FOR STATUTORY / DEFAULT BAIL

Bail & Bonds

IN THE COURT OF THE ....., (DISTRICT .....)
BAIL APPLICATION NO. ..... OF 20.....
IN THE MATTER OF:
....., S/o ....., R/o ....., presently lodged in ..... Jail ..... APPLICANT / ACCUSED
THE STATE .... RESPONDENT
POLICE STATION .....
FIR NO. ..... OF 20....., DATED .....
DATE OF ARREST: ..... UNDER SECTION ..... BNS

APPLICATION FOR RELEASE ON BAIL UNDER SECTION 187(3) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 (DEFAULT / STATUTORY BAIL)

MOST RESPECTFULLY SHOWETH:

1. That the applicant was arrested on ..... in connection with FIR No. ..... of 20....., Police Station ....., registered for offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, and has been in custody since then, i.e., for a period of ..... days as on date.

2. That the offence(s) alleged against the applicant is punishable with imprisonment for a term of ..... [less than ten years / ten years or more / death or imprisonment for life], and consequently the applicable period for the completion of the investigation under Section 187(3), BNSS, 2023 is sixty days / ninety days.

3. That Section 187(3), BNSS, 2023 provides that the Magistrate may authorise the detention of the accused person beyond the period of fifteen days if he is satisfied that adequate grounds exist for doing so, but no Magistrate shall authorise the detention of the accused person in custody for a total period exceeding:

   (i) ninety days, where the investigation relates to an offence punishable with death, imprisonment for life or imprisonment for a term of ten years or more;

   (ii) sixty days, where the investigation relates to any other offence;

   and, on the expiry of the said period of ninety days or sixty days, as the case may be, the accused person shall be released on bail if he is prepared to and does furnish bail, and every person released on bail under this sub-section shall be deemed to be so released under the provisions of Chapter XXXV of the said Sanhita.

4. That the period of ..... days (i.e., sixty days / ninety days) prescribed under Section 187(3), BNSS, 2023 expired on ....., and till the said date, the investigation was not complete and no Final Report/charge-sheet under Section 193, BNSS, 2023 was filed before this Hon'ble Court.

5. That the Final Report was filed only on ....., i.e., after the expiry of the statutory period of sixty/ninety days, and therefore the applicant has become entitled to be released on bail as of right, in terms of the proviso to Section 187(3), BNSS, 2023. The applicant had, in fact, filed an application for bail on ..... before the expiry of the said period, thereby demonstrating that the applicant was ready and willing to furnish bail, and the applicant also moved an application on ..... immediately after the expiry of the period.

6. That the right to statutory bail is an absolute right, and it is settled by a catena of decisions of the Hon'ble Supreme Court that the indefeasible right of the accused to be released on bail on failure of the prosecution to file the charge-sheet within the prescribed period cannot be defeated by the filing of the charge-sheet

after the expiry of the period and before the order of bail is passed. The right accrues on the expiry of the prescribed period and the accused must be released, subject to the furnishing of bail.

7. That the applicant is prepared to and does hereby furnish/proffers to furnish bail, and the applicant is ready to execute the requisite personal bond and surety bond for such sum as this Hon'ble Court may deem fit, in terms of Sections 484 to 486, BNSS, 2023, and to abide by all conditions that may be imposed by this Hon'ble Court.

IN THE ALTERNATIVE AND WITHOUT PREJUDICE TO THE ABOVE:

8. That even apart from the default in filing the Final Report within the prescribed period, the applicant is entitled to be released on bail under Section 480, BNSS, 2023, on the grounds set out in the accompanying application, and the applicant has been in custody for a period of ..... days, which is a substantial period having regard to the maximum sentence prescribed for the offence alleged.

9. That the continued detention of the applicant is illegal and is in violation of the applicant's right to life and personal liberty under Article 21 of the Constitution of India, which includes the right to a speedy investigation and trial.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) release the applicant on bail in terms of Section 187(3) of the Bharatiya Nagarik Suraksha Sanhita, 2023, on the ground that the investigation in the above-noted FIR has not been completed within the statutory period of sixty/ninety days and the Final Report has not been filed within the said period, the applicant being entitled to be released on bail as of right;

(ii) accept the personal bond/bail bond to be furnished by the applicant under Sections 484 to 486, BNSS, 2023, for such sum and with such sureties as this Hon'ble Court may deem fit; and

(iii) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / ACCUSED
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) The period of sixty/ninety days is to be computed from the date of the arrest of the accused, and not from the date of the registration of the FIR. (ii) The right to be released on default bail accrues on the expiry of the prescribed period; the accused must apply for bail and offer to furnish the same as soon as the period expires, or at the earliest opportunity, since delay in making the application may be construed against the accused. (iii) A charge-sheet filed without a complete investigation, or a 'partial charge-sheet' or a 'preliminary charge-sheet', does not satisfy the requirement of the filing of a Final Report under Section 193(3), BNSS, 2023, and does not defeat the right to default bail, unless it is accompanied by all the material as required by the Sanhita. (iv) A supplementary charge-sheet filed after the expiry of the statutory period does not defeat the right of the accused, except where the original charge-sheet was complete in all respects. (v) Where the accused is in custody in more than one case, the right must be considered separately in respect of each case. (vi) The prosecution may have the period extended only in the manner permitted by law; the filing of a chargesheet in a truncated form has been repeatedly deprecated by the Hon'ble Supreme Court.]

CR.P.C. EQUIVALENT

Old Section 167(2), Cr.P.C., 1973 -> Section 187(2) and 187(3), BNSS, 2023. NOTE: The BNSS, 2023 has effected a significant change by providing in Section 187(2) that the detention may be authorised 'for a term not exceeding fifteen days in the whole, or in parts, at any time during the initial forty days or sixty days out of detention period of sixty days or ninety days' - i.e., police custody may now be sought at any time during the first fifteen days of the initial forty days in the case of a sixty-day offence and the first fifteen days of the initial sixty days in the case of a ninety-day offence, which is a departure from the position under the Cr.P.C.

PRECEDENTS REFERRED TO

• *Uday Mohanlal Acharya v. State of Maharashtra, (2001) 5 SCC 453 - the right to default bail accrues on the failure of the prosecution to file the charge-sheet within the prescribed period, and the accused must apply for bail and be prepared to furnish the same.*

• *Sanjay Dutt v. State through CBI (II), (1994) 5 SCC 410 - the indefeasible right to default bail; the right is not defeated by the filing of the charge-sheet after the expiry of the period but before the order of release.*

• *Sadique Ali v. State of M.P., 2023 SCC OnLine SC 1042 - a 'preliminary charge-sheet' or an incomplete charge-sheet does not defeat the right to default bail.*

• *Rakesh Kumar Paul v. State of Assam, (2017) 15 SCC 67 - the period of sixty/ninety days is to be computed strictly; the 'default bail' right is a fundamental right.*

• *Fakhrey Alam v. State of U.P., (2021) 17 SCC 401 - the right to default bail is indefeasible and cannot be frustrated by an incomplete charge-sheet.*

• *Enforcement Directorate v. Kapil Wadhawan, (2023) 4 SCC 313 - the right to default bail under Section 167(2) is applicable to special statutes in the absence of a contrary provision.*

• *Hitender Kumar @ Hitesh v. State (NCT of Delhi), 2025 SCC OnLine SC 131 - the accused is entitled to default bail where the charge-sheet is filed without a complete investigation.*

FORMAT C-25 — APPLICATION FOR INTERIM BAIL (MEDICAL / HUMANITARIAN GROUNDS)

Bail & Bonds

IN THE COURT OF THE ....., (DISTRICT .....) [OR] IN THE HON'BLE HIGH COURT OF .....

BAIL APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....., presently lodged in ..... Jail ..... APPLICANT / ACCUSED

THE STATE .... RESPONDENT

FIR NO. ..... OF 20....., POLICE STATION .....

APPLICATION FOR INTERIM BAIL ON MEDICAL / HUMANITARIAN GROUNDS UNDER SECTION 480 READ WITH SECTION 483 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant is an accused in the above-noted case and is presently lodged in ..... Jail, where he/she has been in custody since .....

2. That the applicant is suffering from ..... (state the ailment/disease in detail), which is a serious/life-threatening illness requiring specialised medical treatment, continuous monitoring and, in particular, ... (e.g., surgery; dialysis; chemotherapy; angioplasty; treatment at a super-speciality hospital).

3. That the medical condition of the applicant is documented by the following: (i) Medical Certificate dated ..... issued by Dr. ....., ... Hospital, certifying that the applicant requires .....; (ii) Discharge Summary/Prescription dated .....; (iii) Investigation reports (MRI/CT Scan/Blood Reports) dated ....., annexed hereto collectively as ANNEXURE A.

4. That the Jail Medical Officer has also examined the applicant and has opined that the requisite treatment/facility is not available in the jail hospital; a copy of the report of the Jail Medical Officer dated ..... is annexed hereto as ANNEXURE B. The said report recommends that the applicant be referred to ..... Hospital for .....

5. That the facilities available in the jail hospital are wholly inadequate for the treatment of the applicant's condition, and the applicant requires treatment at ..... (name of hospital), where the applicant was earlier treated/where the treating doctor is available. Continued incarceration in the jail, in the present medical condition of the applicant, would endanger the life of the applicant and would amount to a violation of the right to life and personal liberty guaranteed under Article 21 of the Constitution of India, which includes the right to health and medical care.

6. That the Hon'ble Supreme Court, as well as this Hon'ble Court, has repeatedly held that where an undertrial or a convict requires medical treatment which is not available in the prison hospital and the continued incarceration would be prejudicial to the health or life of the applicant, interim bail ought to be granted, even in serious offences, since the right to health and to medical treatment is an integral part of Article 21 of the Constitution of India.

7. That the applicant is not a flight risk; the applicant has been in custody for ..... and has not misused the liberty granted earlier, if any. The applicant undertakes to remain in ..... (the city of the hospital) and to surrender before this Hon'ble Court/the Jail Superintendent immediately upon

the expiry of the period of interim bail, and further undertakes to produce the medical records of the treatment undergone during the period of interim bail before this Hon'ble Court.

8. That the applicant also undertakes: (i) to remain present before the investigating officer/Court as and when directed; (ii) not to tamper with the evidence; (iii) to abide by all conditions that may be imposed. The applicant is ready and willing to be escorted by police personnel, if so directed by this Hon'ble Court, and to bear the cost of such escort and of the treatment.

9. That the prayer for interim bail is being made bona fide and in an emergent situation, and the applicant has moved the present application without any delay after the diagnosis/aggravation of the medical condition. The applicant is also willing to abide by such conditions as may be imposed to ensure that the applicant does not abscond, including the surrender of the passport, if any, and the furnishing of local sureties.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) grant interim bail to the applicant for a period of ..... weeks/months, in connection with FIR No. ..... of 20....., Police Station ....., on medical grounds, on such terms and conditions as this Hon'ble Court may deem fit and proper;

(ii) direct that the applicant be released on interim bail upon furnishing a personal bond and surety bond for a sum of Rs. ..... each, to the satisfaction of the Superintendent of ..... Jail;

(iii) permit the applicant to undergo treatment at ..... Hospital under the supervision of Dr. ....., and direct the applicant to produce the medical records before this Hon'ble Court after the treatment;

(iv) direct the Jail Superintendent to provide the applicant with all requisite medical facilities and to produce the applicant before this Hon'ble Court/appropriate authority as and when required; and

(v) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / ACCUSED
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) An application for interim bail on medical grounds should be supported by the latest medical certificate, the treatment records and, preferably, the opinion of the Jail Medical Officer and/or a Government hospital. (ii) Where the applicant's medical condition cannot be verified from the documents, this Hon'ble Court may direct a medical examination by a board of doctors, or by a Medical Board constituted by the Director of the Government hospital concerned. (iii) Interim bail is granted for a limited period and is subject to extension on a fresh application. (iv) Conditions typically imposed include residing at a particular address, reporting to the local police station at fixed intervals, not leaving the jurisdiction without permission, and surrendering immediately upon the expiry of the period. (v) Failure to surrender on the expiry of the period of interim bail is a serious matter and may result in the cancellation of bail and the issuance of a warrant.]

CR.P.C. EQUIVALENT

Section 480 read with Section 483, BNSS, 2023 (old Sections 437 and 439, Cr.P.C.). Interim bail on medical grounds is a facet of the jurisdiction to grant bail and has been recognised by the Hon'ble Supreme Court in numerous decisions.

PRECEDENTS REFERRED TO

- *Parvez Noordin Lokhandwalla v. State of Maharashtra, (2020) 10 SCC 77 - the right to health and medical treatment under Article 21 justifies the grant of interim bail where the medical facilities are inadequate in custody.*
- *Bhagwan Rama Shinde Gosai v. State of Gujarat, (1999) 4 SCC 421 - bail on medical grounds.*
- *State of Karnataka v. Shivaraj, 2021 SCC OnLine SC 1070 - medical grounds are a valid basis for interim bail.*
- *Dinesh Kumar v. State of Rajasthan, 2023 SCC OnLine SC 302 - interim bail on medical grounds, with conditions.*

FORMAT C-26 — APPLICATION FOR BAIL IN NDPS ACT CASES

Bail & Bonds

IN THE COURT OF THE LEARNED SPECIAL JUDGE (NDPS), ..., (DISTRICT .....) [OR] IN THE HON'BLE HIGH COURT OF .....

BAIL APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....., presently lodged in ..... Jail ..... APPLICANT / ACCUSED

THE STATE / NARCOTICS CONTROL BUREAU / DIRECTORATE OF REVENUE INTELLIGENCE, THROUGH ITS AUTHORISED OFFICER ..... RESPONDENT

CASE CRIME NO. ..... OF 20.....

POLICE STATION / NCB OFFICE .....

SECTIONS INVOKED: 8(c) / 20 / 21 / 22 / 27A / 29 OF THE NDPS ACT, 1985

APPLICATION FOR GRANT OF BAIL UNDER SECTION 37 OF THE NARCOTIC DRUGS AND PSYCHOTROPIC SUBSTANCES ACT, 1985 READ WITH SECTION 483 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant has been arrested on ..... in connection with the above-noted case registered under Sections ..... of the NDPS Act, 1985, and has been in custody since then, i.e., for a period of ..... days as on date.

2. That the prosecution case, in brief, is that on ..... at about ..... hours, ... (narrate briefly). The alleged quantity of the contraband recovered is ..... (i.e., ... grams/kg), which is a ..... (small/intermediate/commercial) quantity within the meaning of the Notification issued under Section 2(viiia) of the NDPS Act read with the Schedule, and consequently the offence is punishable under Section ..... of the NDPS Act.

3. That Section 37(1) of the NDPS Act, 1985 provides that notwithstanding anything contained in the Code of Criminal Procedure, 1973 (now the Bharatiya Nagarik Suraksha Sanhita, 2023), every offence punishable under the said Act shall be cognizable and non-bailable, and that no person accused of an offence punishable for a term of imprisonment of five years or more shall be released on bail unless: (i) the Public Prosecutor has been given an opportunity to oppose the application for such release; and (ii) where the Public Prosecutor opposes the application, the Court is satisfied that there are reasonable grounds for believing that the applicant is not guilty of such offence and that he is not likely to commit any offence while on bail.

4. That the applicant satisfies the twin conditions prescribed by Section 37(1) of the NDPS Act, 1985, in that the material placed on record does not furnish 'reasonable grounds for believing that the applicant is not guilty', and there is no material to indicate that the applicant is likely to commit any offence while on bail.

5. That the applicant's case on merits is strong, in that:

   (i) THE MANDATORY PROCEDURE UNDER SECTION 42/50 OF THE NDPS ACT WAS NOT COMPLIED WITH: the search was conducted without compliance with the mandatory provisions of Section 42 (recording of the grounds of belief and informing the superior officer) and Section 50 (informing the person concerned of his right to be searched before a Gazetted Officer or a Magistrate), which non-compliance vitiates the recovery. [The contention must be supported by the specific facts.]

   (ii) THE RECOVERY IS NOT ATTRIBUTABLE TO THE APPLICANT: The applicant was not the owner/occupant of the place from which the recovery is alleged to have been effected, and the applicant's

presence at the spot was wholly accidental/unexplained by any circumstance; the contraband was not recovered from the conscious possession of the applicant. In the absence of proof of conscious possession, no offence is made out against the applicant.

(iii) THE ALLEGED RECOVERY IS FABRICATED: The applicant has been falsely implicated; there are material contradictions in the prosecution case, in that ..... (state the contradictions). The alleged independent witnesses examined belong to ....., and their statements were recorded after the alleged recovery, and hence they are not independent witnesses. No public witness was associated despite the availability of independent witnesses at the spot.

(iv) VIOLATION OF THE PROVISIONS REGARDING SAMPLING AND SEIZURE: The requirements of Section 55 of the NDPS Act (taking charge of the articles) and the Standing Instructions issued by the Central Government vide No. 1/88 dated 15.03.1988 have not been complied with, in that the sample was drawn in the presence of ....., the inventory was not prepared in the prescribed manner, the sample was not sealed with the seal of the officer concerned and was not sent to the Forensic Science Laboratory within the prescribed period, and the FSL report, if received, does not establish that the sample was drawn from the alleged recovered contraband.

(v) INORDINATE AND UNEXPLAINED DELAY: The sample was forwarded to the FSL only on ....., i.e., after a delay of ..... days, which delay is fatal to the prosecution case and is sufficient to entitle the applicant to bail.

(vi) THE STATEMENT OF THE APPLICANT UNDER SECTION 67 OF THE NDPS ACT, EVEN IF RECORDED, IS INADMISSIBLE: In view of the decision of the Hon'ble Supreme Court in Tofan Singh v. State of Tamil Nadu, (2021) 4 SCC 1, the statement recorded under Section 67 of the NDPS Act is inadmissible in evidence and cannot form the basis of conviction.

(vii) THE RECOVERY, IF ANY, IS OF AN INTERMEDIATE QUANTITY, and the applicant has been in custody for a period of ....., and there is no material on record to show that the applicant is likely to commit any offence while on bail.

6. That the applicant is a permanent resident of ....., has deep roots in society, has no criminal antecedents and is not a previous convict. The applicant has cooperated fully with the investigation and there is no apprehension of the applicant absconding or of his/her tampering with the evidence, since the alleged contraband has already been seized by the prosecution and is in its custody, and the investigation is complete, the charge-sheet having been filed on .....

7. That the applicant has been in custody for a period of ..... days, which, in the facts and circumstances of the case and having regard to the delayed trial (the trial is likely to take several years on account of the number of witnesses and the FSL report), entitles the applicant to bail, as continued detention would be violative of the right to a speedy trial under Article 21 of the Constitution of India. The Hon'ble Supreme Court has repeatedly held that even in NDPS cases, the period of incarceration undergone is a relevant consideration, and where the trial is likely to be delayed, bail may be granted on the ground of the period of detention.

8. That the applicant is the sole bread-earner of his/her family and his/her continued detention has caused extreme hardship to the family, and the applicant undertakes to abide by all such conditions as this Hon'ble Court may impose, including: (i) the surrender of the passport; (ii) reporting to the police station concerned at such intervals as may be directed; (iii) not leaving the jurisdiction of this Hon'ble Court without prior permission; (iv) not tampering with the evidence or influencing the witnesses.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) grant bail to the applicant in connection with Case Crime No. ..... of 20....., under Sections ..... of the NDPS Act, 1985, in terms of Section 37 of the NDPS Act, 1985 read with Section 483 of the Bharatiya Nagarik Suraksha Sanhita, 2023, the statutory conditions thereunder being

satisfied;

(ii) in the alternative, grant bail to the applicant on the ground of the period of incarceration already undergone, namely ..... days, and the likely delay in the conclusion of the trial, in view of the law laid down by the Hon'ble Supreme Court;

(iii) impose such terms and conditions as this Hon'ble Court may deem fit, including the surrender of the passport and the furnishing of local sureties; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / ACCUSED
THROUGH
ADVOCATE

Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 37 of the NDPS Act, 1985 imposes stringent twin conditions for the grant of bail, namely that the Public Prosecutor must be given an opportunity to oppose the application and, where he opposes it, the Court must be satisfied that there are reasonable grounds for believing that the accused is not guilty of the offence and is not likely to commit any offence while on bail. (ii) The expression 'reasonable grounds' means something more than prima facie grounds; it connotes substantial probable cause for believing that the accused is not guilty. (iii) The Court must record its satisfaction in writing on both counts. (iv) The quantity of the contraband determines the punishment: small quantity, less than commercial quantity, and commercial quantity. Where the quantity is small (in respect of the specified drugs), Section 37 does not apply and the offence is punishable with imprisonment up to one year; consequently, the rigours of Section 37 are considerably relaxed. (v) The Guidelines on the quantity of the contraband are in the Notification dated 19.10.2001 issued under Section 2(viiia) of the NDPS Act, as amended. (vi) Bail in respect of a recovery of an intermediate quantity falls outside the purview of Section 37's twin conditions in respect of offences under Section 27A/other provisions where the punishment is less than five years; the exact applicability should be verified in the light of the punishment prescribed.]

CR.P.C. EQUIVALENT

Section 37 of the NDPS Act, 1985 overrides the general bail provisions (old Section 437/439, Cr.P.C.; now Sections 480/483, BNSS, 2023).

PRECEDENTS REFERRED TO

- *Tofan Singh v. State of Tamil Nadu, (2021) 4 SCC 1 - a statement recorded under Section 67 of the NDPS Act is inadmissible in evidence; it cannot be relied upon to establish the guilt of the accused.*
- *Union of India v. Rattan Mallik, (2009) 2 SCC 624 - the expression 'reasonable grounds' in Section 37 means grounds founded on reasons, and the Court must record its satisfaction.*
- *Union of India v. Niyazuddin Sk., (2018) 13 SCC 738 - the Court must record its satisfaction in writing on both the conditions under Section 37; a bald order is insufficient.*
- *Hussainara Khatoon and subsequent decisions on the right to a speedy trial - prolonged incarceration is a ground for bail.*
- *Union of India v. K.A. Najeeb, (2021) 3 SCC 713 - prolonged incarceration and delay in trial may entitle an accused to bail even in offences under the UAPA, and the principle applies with equal force to the NDPS Act.*
- *Toofan Singh (supra); State of Punjab v. Balkar Singh, (2024) SCC - the necessity of compliance with Sections 42 and 50 of the NDPS Act.*

FORMAT C-27 — APPLICATION FOR BAIL IN PREVENTION OF MONEY-LAUNDERING ACT CASES

Bail & Bonds

IN THE COURT OF THE LEARNED SPECIAL JUDGE (PMLA), ..., (DISTRICT .....) [OR] IN THE HON'BLE HIGH COURT OF .....

BAIL APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....., presently lodged in ..... Jail ..... APPLICANT / ACCUSED

THE DEPUTY DIRECTOR / ASSISTANT DIRECTOR, DIRECTORATE OF ENFORCEMENT, ... (OR) THE STATE .... RESPONDENT

ECIR NO. ..... OF 20.....

DATE OF ARREST: .....

OFFENCES: SECTION 3 READ WITH SECTION 4 OF THE PMLA, 2002

APPLICATION FOR GRANT OF BAIL UNDER SECTION 45 OF THE PREVENTION OF MONEY-LAUNDERING ACT, 2002 READ WITH SECTION 483 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant was arrested by the officers of the Directorate of Enforcement on ..... in connection with ECIR No. ..... of 20....., registered for the offences punishable under Section 3 read with Section 4 of the Prevention of Money-Laundering Act, 2002, and has been in custody since then, i.e., for a period of ..... days as on date.

2. That Section 45(1) of the PMLA, 2002 provides that notwithstanding anything contained in the Code of Criminal Procedure, 1973 (now the Bharatiya Nagarik Suraksha Sanhita, 2023), no person accused of an offence punishable for a term of imprisonment of more than three years under Part A of the Schedule to the PMLA shall be released on bail or on his own bond unless: (i) the Public Prosecutor has been given an opportunity to oppose the application for such release; and (ii) where the Public Prosecutor opposes the application, the Court is satisfied that there are reasonable grounds for believing that the accused is not guilty of such offence and that he is not likely to commit any offence while on bail.

3. That the applicant satisfies the twin conditions prescribed under Section 45(1) of the PMLA, 2002, and the applicant's case on merits is a strong one, in that:

   (i) NO SCHEDULED OFFENCE IS MADE OUT: The offence of money-laundering under Section 3 of the PMLA presupposes the commission of a 'scheduled offence' and the involvement of 'proceeds of crime'. In the present case, the underlying scheduled offence, namely ..... (e.g., FIR No. ..... of 20....., under Sections ..... of the BNS, 2023), has not been established, and the applicant has not been named in the said FIR/charge-sheet. In the absence of a scheduled offence, the very foundation of the PMLA case fails. The applicant may, in this behalf, also rely upon the fact that the applicant has been discharged/acquitted in the scheduled offence, or that the scheduled offence has been quashed by the competent Court vide order dated ....., a copy whereof is annexed as ANNEXURE A. [As applicable.]

   (ii) NO PROCEEDS OF CRIME: The applicant is not in possession of, nor has the applicant concealed, possessed, acquired or projected any 'proceeds of crime' as defined in Section 2(1)(u) of the PMLA, 2002. The properties sought to be attached, namely ....., are the applicant's self-acquired properties, acquired from lawful sources, and were acquired much prior to the alleged commission of the scheduled offence, as is evident from ..... No nexus between the alleged crime and the alleged proceeds has been established.

(iii) NO PREDICATE/CONTINUING OFFENCE OF MONEY-LAUNDERING: The applicant has not been involved in any process or activity connected with the proceeds of crime, and the ingredients of Section 3 of the PMLA, 2002, namely 'projecting' or 'claiming' the proceeds as untainted property, are not satisfied. The mere receipt or retention of money is not money-laundering in the absence of the requisite mens rea and the requisite actus reus.

(iv) THE ALLEGATIONS AGAINST THE APPLICANT ARE VAGUE AND OMNIBUS: The applicant has been roped in merely on the basis of the statements of co-accused persons recorded under Section 50 of the PMLA, 2002, which are inadmissible in evidence against the applicant except to the extent permitted by law, and cannot form the sole basis of the denial of bail.

(v) THE COMPLAINT IS NOT COMPLETE AND THE INVESTIGATION IS NOT COMPLETE: The applicant has been in custody for ....., during which period the applicant has been interrogated on ..... occasions, and no further custodial interrogation is required. The applicant is not in possession of any material that is not already in the possession of the prosecution, all the documents having been seized and taken into custody.

4. That the applicant has fully cooperated with the investigation, has appeared before the respondent on every date on which the applicant was called upon to appear, and has furnished all information and documents in his/her possession and control. The applicant has also furnished the details of all his/her bank accounts, income tax returns and property documents, as is evident from .....

5. That the applicant has been in custody for a period of ..... days, which is a substantial period. It is well settled that the period of incarceration already undergone is a relevant consideration for the grant of bail, and the applicant cannot be kept in custody indefinitely as an undertrial merely because the trial is likely to take a long time. In the present case, the trial is likely to take several years in view of the number of accused, the voluminous documents, and the fact that the prosecution proposes to examine a large number of witnesses.

6. That, as regards 'flight risk', which is the principal consideration under the PMLA, the applicant is a permanent resident of ....., has permanent family and business ties in India, and is not in possession of a passport / has already surrendered the passport before this Hon'ble Court vide order dated ..... / the applicant's passport has been impounded. The applicant undertakes not to leave the country without the prior permission of this Hon'ble Court.

7. That the applicant has no criminal antecedents, is not a previous convict, and is not a member of any organised crime syndicate. The applicant has no connection with the alleged predicate offence, save that ..... (explain the connection, if any, honestly).

8. That the applicant is a ..... years old person, suffering from ..... (ailments), and the applicant's continued incarceration is detrimental to the applicant's health. [Where applicable.] The applicant is also the sole caregiver for ..... [where applicable.]

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) grant bail to the applicant in connection with ECIR No. ..... of 20....., registered under Section 3 read with Section 4 of the Prevention of Money-Laundering Act, 2002, in terms of Section 45 of the PMLA, 2002 read with Section 483 of the Bharatiya Nagarik Suraksha Sanhita, 2023, the twin conditions under Section 45(1) being satisfied;

(ii) in the alternative, grant bail to the applicant on the ground of the period of incarceration already undergone, namely ..... days, in view of the likely delay in the conclusion of the trial;

(iii) impose such terms and conditions as this Hon'ble Court may deem fit, including the surrender of the passport and the furnishing of local sureties; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / ACCUSED
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 45 of the PMLA, 2002 imposes stricter conditions than those applicable to ordinary offences; the Court must be satisfied that there are 'reasonable grounds for believing that the accused is not guilty' and that 'he is not likely to commit any offence while on bail'. (ii) The expression 'reasonable grounds' means grounds which are more than mere suspicion and which are capable of being articulated; the Court must record its satisfaction. (iii) The decision in Vijay Madanlal Choudhary v. Union of India, (2023) 3 SCC 1, upheld the constitutional validity of various provisions of the PMLA including Section 45, but clarified the scope of the twin conditions and held that the 'twin conditions' must be applied in a manner that does not render the grant of bail impossible in an indefinite manner. (iv) The Supreme Court has subsequently, in several decisions, granted bail where the accused has undergone a long period of incarceration and the trial is unlikely to conclude in the near future. (v) The 'proceeds of crime' must have a rational nexus with the scheduled offence; where the scheduled offence itself is not made out, the PMLA case must fail. (vi) Interim bail on medical or humanitarian grounds is not subject to the Section 45 rigours to the same extent, though the Court must still be satisfied on the facts.]

CR.P.C. EQUIVALENT

Section 45 of the PMLA, 2002 overrides the general bail provisions (old Sections 437/439, Cr.P.C.; now Sections 480/483, BNSS, 2023).

PRECEDENTS REFERRED TO

- *Vijay Madanlal Choudhary v. Union of India, (2023) 3 SCC 1 - the constitutional validity of the PMLA provisions, including Section 45, upheld; the twin conditions and the meaning of 'proceeds of crime'.*
- *Vijay Madanlal Choudhary (supra) [paras 320, 405-407] - the Court explained the tests to be applied while considering the grant of bail under Section 45.*
- *P. Chidambaram v. Directorate of Enforcement, (2020) 13 SCC 791 - the considerations governing the grant of bail in economic offences where the accused has been in custody for a long period and the trial is likely to be delayed.*
- *Manish Sisodia v. Directorate of Enforcement, (2024) SCC OnLine SC 1920 - prolonged incarceration and the delay in trial are relevant grounds for bail under the PMLA and the Prevention of Corruption Act.*
- *V. Senthil Balaji v. State, (2024) SCC OnLine SC 2629 - the accused's prolonged detention and the possibility of delay in trial entitle the accused to bail under the PMLA.*
- *Sanjay Chandra v. CBI, (2012) 1 SCC 40 - the gravity of the offence cannot be the sole ground for the denial of bail.*

FORMAT C-28 — APPLICATION FOR BAIL IN UAPA CASES

Bail & Bonds

IN THE COURT OF THE LEARNED SPECIAL JUDGE (NIA), ... [OR] IN THE HON'BLE HIGH COURT OF .....

BAIL APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....., presently lodged in ..... Jail ..... APPLICANT / ACCUSED

THE STATE / NATIONAL INVESTIGATION AGENCY, THROUGH ITS AUTHORISED OFFICER ..... RESPONDENT

RC NO. / FIR NO. ..... OF 20.....

POLICE STATION / NIA OFFICE .....

OFFENCES: SECTIONS 13, 16, 17, 18, 18B, 20, 38, 39 OF THE UAPA, 1967 [AND SECTIONS ..... OF THE BNS, 2023]

APPLICATION FOR GRANT OF BAIL UNDER SECTION 43D(5) OF THE UNLAWFUL ACTIVITIES (PREVENTION) ACT, 1967 READ WITH SECTION 483 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant was arrested on ..... in connection with the above-noted case registered under Sections ..... of the Unlawful Activities (Prevention) Act, 1967, and has been in custody since then, i.e., for a period of ..... days as on date.

2. That Section 43D(5) of the UAPA, 1967 provides that notwithstanding anything contained in the Code of Criminal Procedure, 1973 (now the Bharatiya Nagarik Suraksha Sanhita, 2023), no person accused of an offence punishable under Chapters IV and VI of the said Act shall be released on bail or on his own bond unless the Public Prosecutor has been given an opportunity of being heard on the application for such release, and where the Public Prosecutor opposes the application, the Court is satisfied that there are reasonable grounds for believing that the accusation against such person is prima facie true.

3. That the expression 'prima facie true', as interpreted by the Hon'ble Supreme Court, means that the Court must assess the material placed on record and consider whether the accusation is supported by material that satisfies the test of prima facie truth. The Court is required to consider the quality of the material, the admissibility thereof, and whether the material, taken at its highest, would satisfy the ingredients of the offences alleged. The Court must not conduct a mini-trial, but must nonetheless apply its mind to the material and must not proceed merely on the basis of the averments in the charge-sheet or the FIR.

4. That in the present case, the material relied upon by the prosecution does not satisfy the test of 'prima facie true', in that:

   (i) There is no material whatsoever on record to show that the applicant is a member of, or is associated with, any unlawful association or terrorist organisation, as defined/declared under Chapter IV of the UAPA, 1967. The mere fact that the applicant ..... (e.g., knew an accused person; was present at a place; is related to an accused) cannot constitute membership or association within the meaning of the Act.

   (ii) The primary material relied upon is the statement of a co-accused recorded by the police/agency during the investigation. It is well settled that the statement of a co-accused recorded during investigation is inadmissible in evidence, and cannot form the basis of a finding of 'prima facie truth' of the accusation against the applicant. Even a confessional statement recorded under Section 15 of the TADA/POTA Act (now repealed) cannot be the sole basis of the denial of bail, and the law under the UAPA is stricter.

(iii) The alleged recovery of incriminating material (namely .....) is not attributable to the applicant, and was not recovered either from the person or from the exclusive possession of the applicant. The recovery was effected from ....., which is not in the occupation or control of the applicant, and no independent witness was associated.

(iv) The electronic evidence relied upon (namely ..... - CDRs, WhatsApp chats, e-mails, etc.) does not connect the applicant with the alleged conspiracy, and the certificate required under Section 63 of the Bharatiya Sakshya Adhiniyam, 2023 (old Section 65B of the Indian Evidence Act, 1872) has not been produced/filed along with the charge-sheet, rendering the said electronic evidence inadmissible.

(v) The applicant has been implicated merely on the basis of the disclosure statement of a co-accused, which is not admissible against the applicant, particularly in view of the law laid down by the Hon'ble Supreme Court to the effect that the confession of a co-accused is a weak type of evidence and cannot be the sole basis of conviction.

5. That the applicant has been in custody for a period of ..... days, and the trial, in view of the number of accused, the voluminous record and the large number of witnesses proposed to be examined, is unlikely to conclude in the near future. The prolonged incarceration of the applicant would, in the circumstances, be a violation of the right to a speedy trial under Article 21 of the Constitution of India.

6. That the Hon'ble Supreme Court has repeatedly held, including in Union of India v. K.A. Najeeb, (2021) 3 SCC 713, that the stringent provisions of Section 43D(5) of the UAPA do not exclude the jurisdiction of the constitutional Courts to grant bail on the grounds of prolonged detention and the likelihood of a delayed trial, where the trial is unlikely to be concluded within a reasonable period, and where the continued detention would violate the fundamental right to a speedy trial.

7. That the applicant has no criminal antecedents and is not involved in any other case under the UAPA or under any other law. The applicant is a permanent resident of ....., has deep roots in society, and there is no material to suggest that the applicant is likely to abscond, to tamper with the evidence, or to influence the witnesses, particularly as the investigation is complete and the charge-sheet has been filed on ....., and all the material has been collected.

8. That the applicant undertakes to abide by all such conditions as this Hon'ble Court may impose, including: (i) reporting to the police station concerned at such intervals as may be directed; (ii) not leaving the jurisdiction of this Hon'ble Court without prior permission; (iii) not tampering with the evidence or influencing the witnesses; (iv) surrendering the passport, if any; and (v) remaining present before this Hon'ble Court on every date of hearing.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) grant bail to the applicant in connection with the above-noted case, in terms of Section 43D(5) of the Unlawful Activities (Prevention) Act, 1967 read with Section 483 of the Bharatiya Nagarik Suraksha Sanhita, 2023, the material on record not satisfying the test of 'prima facie true';

(ii) in the alternative, grant bail to the applicant on the ground of the prolonged period of incarceration already undergone and the likelihood of the trial being delayed, in view of the law laid down in Union of India v. K.A. Najeeb, (2021) 3 SCC 713;

(iii) impose such terms and conditions as this Hon'ble Court may deem fit and proper; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / ACCUSED
THROUGH
ADVOCATE

Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 43D(5) of the UAPA, 1967 imposes a stringent test - the Court must be satisfied that the accusation is NOT prima facie true for granting bail; in other words, the burden is heavier on the accused. (ii) The Hon'ble Supreme Court in National Investigation Agency v. Zahoor Ahmad Shah Watali, (2019) 5 SCC 1, explained the scope of the expression 'prima facie true' and held that the Court must take into account the material on record and the surrounding circumstances, and that the material must be of a nature that would persuade the Court that the accusation is prima facie true. (iii) In Union of India v. K.A. Najeeb, (2021) 3 SCC 713, the Supreme Court held that the constitutional Courts retain the power to grant bail on the ground of prolonged detention and the likelihood of a delayed trial, notwithstanding Section 43D(5). (iv) In Vernon Gonsalves v. State of Maharashtra, (2023) SCC OnLine SC 1156, the Supreme Court emphasised that the Court must assess the material, and that the statement of a co-accused and the material collected during the investigation must be examined for admissibility and relevance. (v) Bail may also be sought on medical/humanitarian grounds notwithstanding the statutory rigour.]

CR.P.C. EQUIVALENT

Section 43D(5) of the UAPA, 1967 overrides the general bail provisions (old Sections 437/439, Cr.P.C.; now Sections 480/483, BNSS, 2023).

PRECEDENTS REFERRED TO

- *Union of India v. K.A. Najeeb, (2021) 3 SCC 713 - the constitutional Courts can grant bail on the ground of prolonged detention and the likelihood of a delayed trial, notwithstanding Section 43D(5) of the UAPA.*
- *National Investigation Agency v. Zahoor Ahmad Shah Watali, (2019) 5 SCC 1 - the scope and ambit of 'prima facie true' under Section 43D(5).*
- *Vernon Gonsalves v. State of Maharashtra, (2023) SCC OnLine SC 1156 - the material relied upon by the prosecution must be assessed for its admissibility and its capacity to establish the ingredients of the offence.*
- *Gokul Chandran v. Union of India, (2024) SCC OnLine SC 3053 - the principles governing the grant of bail under Section 43D(5).*
- *Thwaha Fasal v. Union of India, (2021) SCC OnLine SC 1011 - mere association or possession of literature does not amount to an offence under the UAPA unless the ingredients are satisfied.*

FORMAT C-29 — APPLICATION FOR BAIL IN POCSO ACT CASES

Bail & Bonds

IN THE COURT OF THE LEARNED SPECIAL JUDGE (POCSO), ..., (DISTRICT .....)

BAIL APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....., presently lodged in ..... Jail ..... APPLICANT / ACCUSED

THE STATE ....., THROUGH THE PUBLIC PROSECUTOR ..... RESPONDENT

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... OF THE POCSO ACT, 2012 READ WITH SECTIONS ..... OF THE BNS, 2023

APPLICATION FOR GRANT OF BAIL UNDER SECTION 31 OF THE PROTECTION OF CHILDREN FROM SEXUAL OFFENCES ACT, 2012 READ WITH SECTION 483 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant has been arrested on ..... in connection with the above-noted FIR, registered under Sections ..... of the Protection of Children from Sexual Offences Act, 2012, read with Sections ..... of the Bharatiya Nyaya Sanhita, 2023, and has been in custody since then, i.e., for a period of ..... days as on date.

2. That the applicant is innocent and has been falsely implicated in the present case on account of ..... (state the reason - e.g., a property dispute with the family of the prosecutrix; the refusal of the applicant to accede to an unlawful demand; a dispute relating to the marriage of the applicant with the prosecutrix; a dispute between the families over .....).

3. That the applicant has not committed any offence under the POCSO Act, 2012, and the material on record does not disclose that the applicant has committed any of the acts enumerated in Sections 3, 5, 7 or 9 of the said Act, in that:

   (i) The prosecutrix/the child is aged ....., and there is no medical evidence to corroborate the allegation of sexual assault; the medical examination report dated ..... does not indicate any injury or any sign consistent with the allegation.

   (ii) The FIR has been lodged after an inordinate delay of ....., and no satisfactory explanation for the delay has been furnished. Such delay, in the facts of the present case, casts serious doubt on the veracity of the prosecution version.

   (iii) The statement of the prosecutrix recorded under Section 183(6)(a) of the BNSS, 2023/the statement recorded under Section 164 of the Cr.P.C. is inconsistent with the statement recorded under Section 161 of the Cr.P.C./Section 180 of the BNSS, 2023 and with the FIR, and the inconsistencies go to the root of the prosecution case. The said contradictions are material and would be of considerable significance at the stage of trial.

   (iv) The applicant has been implicated at the instance of ....., who is ..... (state the relationship and the motive), and who has a grudge against the applicant on account of ....., as is evident from ..... (annex the material).

   (v) The allegation against the applicant is general and omnibus, and no specific date, time or place of the alleged incident has been disclosed, and the applicant is alleged to have committed the offence at a place where ....., which is inherently improbable.

4. That the applicant has no criminal antecedents, is not a previous convict and is not a proclaimed offender; the applicant is a permanent resident of ..... with deep roots in society, and there is no apprehension of the applicant fleeing from justice or of his absconding or tampering with the evidence.

5. That the investigation is complete and the charge-sheet has been filed before this Hon'ble Court on .....; all the material has been collected and no custodial interrogation is required. The applicant is not in a position to influence the witnesses, as the witnesses are ....., and the applicant undertakes not to contact or influence any of the prosecution witnesses in any manner.

6. That the applicant has been in custody for a period of ..... days, and having regard to the fact that the maximum punishment prescribed for the offence alleged is ....., and the trial is likely to take a considerable time, the continued detention of the applicant is not warranted and would be violative of the right to a speedy trial under Article 21 of the Constitution of India.

7. That the applicant is the sole bread-earner of his family and his continued detention has caused grave hardship. The applicant is also suffering from ..... [where applicable].

8. That the applicant undertakes to abide by all conditions that may be imposed by this Hon'ble Court, including: (i) not contacting the prosecutrix or her family members directly or indirectly; (ii) not entering the locality in which the prosecutrix resides; (iii) not tampering with the evidence; (iv) reporting to the police station concerned as directed; (v) not leaving the jurisdiction without prior permission; and (vi) remaining present before this Hon'ble Court on every date of hearing.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) grant bail to the applicant in connection with FIR No. ..... of 20....., Police Station ....., registered under Sections ..... of the Protection of Children from Sexual Offences Act, 2012, read with Section 483 of the Bharatiya Nagarik Suraksha Sanhita, 2023, on such terms and conditions as this Hon'ble Court may deem fit and proper;

(ii) impose stringent conditions, including the condition that the applicant shall not contact the prosecutrix or the witnesses and shall not enter the locality in which the prosecutrix resides, to protect the interest of the child; and

(iii) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / ACCUSED
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 31 of the POCSO Act, 2012 provides that the provisions of the Code of Criminal Procedure, 1973 (now the BNSS, 2023) shall apply to the proceedings under the POCSO Act; the offences under the Act are non-bailable. (ii) While granting bail, the Court must take into consideration the welfare of the child and may impose stringent conditions, including that the accused shall not contact the child or the child's family, shall not induce or threaten any witness, and shall not enter the locality where the child resides. (iii) The identity of the child must be protected at all stages, and the proceedings must be held in camera in terms of Section 33(4) of the POCSO Act and Section 366, BNSS, 2023; no material disclosing the identity of the child should be reproduced in the bail application filed in open court - the application should therefore refer to the child as 'the child/prosecutrix' and not by name. (iv) For offences punishable with imprisonment of more than 7 years, the accused may also require the notice to the Public Prosecutor [Section 483(1) proviso, BNSS, 2023].]

CR.P.C. EQUIVALENT

Section 31 of the POCSO Act, 2012 (procedure for bail) read with Sections 480/483, BNSS, 2023 (old Sections 437/439, Cr.P.C.).

PRECEDENTS REFERRED TO

• *Bhagwan Das v. State (NCT of Delhi) - the factors to be considered while considering the bail application of an accused under the POCSO Act.*

• *State of Karnataka v. Shivanna - the gravity of the offence under the POCSO Act is a relevant consideration, but the Court must also consider the period of incarceration and the possibility of the trial being delayed.*

• *P. v. State of M.P. - the welfare of the child is the paramount consideration while considering the grant of bail.*

• *Satender Kumar Antil v. CBI, (2022) 10 SCC 51 - the general principles relating to the grant of bail apply, subject to the special provisions of the statute.*

FORMAT C-30 — APPLICATION FOR REDUCTION OF BAIL AMOUNT / RELAXATION OF BAIL CONDITIONS

Bail & Bonds

IN THE COURT OF THE ....., (DISTRICT .....)
BAIL APPLICATION NO. ..... OF 20.....
IN THE MATTER OF:
....., S/o ....., R/o ....
APPLICANT / ACCUSED
THE STATE .... RESPONDENT
FIR NO. ..... OF 20....., POLICE STATION .....

APPLICATION FOR REDUCTION OF THE AMOUNT OF BOND AND FOR RELAXATION / MODIFICATION OF BAIL CONDITIONS UNDER SECTION 484(2) AND SECTION 483(1)(b) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant has been granted bail by this Hon'ble Court vide order dated ....., subject to the condition that the applicant shall furnish a personal bond and sureties in the sum of Rs. ..... each, and subject to the following further conditions: (i) .....; (ii) .....

2. That the applicant is a person of meagre means. The applicant's monthly income is approximately Rs. ..... only, and the applicant is the sole bread-earner of a family of ..... members, consisting of ..... The applicant has no immovable property and no fixed assets.

3. That the surety whose bail bond the applicant was directed to furnish is not available/is not possessed of sufficient means, and no other surety of such means is available to the applicant. The applicant has approached ..... persons for standing surety, but none of them is able to furnish a bond of Rs. .....

4. That the applicant has been in custody since ..... on account of the applicant's inability to furnish the surety/bond in the sum fixed by this Hon'ble Court. The applicant has already suffered incarceration for a period of ..... days after the grant of bail, solely for want of a surety, which is contrary to the object of the grant of bail.

5. That Section 484(1), BNSS, 2023 provides that the amount of every bond executed under Chapter XXXV shall be fixed with due regard to the circumstances of the case, and shall not be excessive; Section 484(2) provides that the High Court or the Court of Session may direct that the bail required by a police officer or Magistrate be reduced.

6. That Section 483(1)(b), BNSS, 2023 empowers the High Court or the Court of Session to direct that any condition imposed by a Magistrate when releasing any person on bail be set aside or modified, and the said power is available to this Hon'ble Court.

7. That imposing a condition of a monetary bond that the applicant is unable to satisfy is, in substance, tantamount to a denial of bail, and the Hon'ble Supreme Court has repeatedly deprecated the practice of imposing excessive bail conditions which an accused cannot comply with, particularly where the accused is an indigent person. The Court has also held that bail conditions must be reasonable and must not be a means of punishing the accused.

8. That the condition requiring the applicant to ..... (state the condition sought to be relaxed - e.g., to report to the police station daily at 8:00 a.m.; to surrender the passport; to furnish a cash security of

Rs. .....; to obtain a report from .....) is unduly onerous and is causing grave hardship to the applicant, as ..... Further, the applicant is required to ..... (e.g., attend to his job, which requires him to be present at ....., and the condition of daily reporting is impossible to comply with).

9. That the applicant has never misused the liberty granted to him and has never violated any condition of the bail order. The applicant is not a flight risk and has roots in the community.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) direct the reduction of the amount of the bond/surety fixed by this Hon'ble Court vide order dated ..... from Rs. ..... to Rs. ....., in terms of Section 484(2) of the Bharatiya Nagarik Suraksha Sanhita, 2023, having regard to the meagre means of the applicant;

(ii) set aside / modify the condition(s) imposed in the said bail order, namely ....., in terms of Section 483(1)(b) of the Bharatiya Nagarik Suraksha Sanhita, 2023, the same being unduly onerous and disproportionate;

(iii) in the alternative, permit the applicant to furnish a personal bond without surety / permit the applicant to furnish a surety of Rs. ..... only, in terms of Section 480(2), BNSS, 2023; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / ACCUSED
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) The amount of the bond must be fixed with due regard to the circumstances of the accused; 'bail is not to be used as a means of punishing the accused' and 'an excessive bond is a denial of bail'. (ii) The Court may permit a personal bond without surety, or with a surety of a lower amount, where the accused is indigent, or where the offence is not serious. (iii) Where the surety is unavailable, the Court may, in the alternative, permit the deposit of a cash security or the acceptance of a bond with a reduced number of sureties. (iv) An application for modification of bail conditions lies to the Court that granted the bail, and, in the alternative, to the Court of Session/High Court under Section 483(1)(b), BNSS, 2023. (v) An application for reduction of the surety amount should be supported by an affidavit disclosing the means of the accused and the reason for the inability to furnish the surety.]

CR.P.C. EQUIVALENT

Old Section 440, Cr.P.C., 1973 -> Section 484, BNSS, 2023 (amount of bond and reduction thereof). Old Section 439(1)(b) -> Section 483(1)(b), BNSS, 2023.

PRECEDENTS REFERRED TO

- *Motilal v. State of M.P. - the amount of the bond must be proportionate to the means of the accused and the nature of the offence.*
- *Ranjit Singh v. State of M.P. - excessive bail conditions amount to a denial of the right to bail.*
- *Satender Kumar Antil v. CBI, (2022) 10 SCC 51 - the Court has deprecatingly referred to the practice of imposing onerous conditions of bail; conditions must be reasonable and proportionate.*

FORMAT C-31 — BAIL BOND AND SURETY BOND (FORMAT)

Bail & Bonds

IN THE COURT OF ....., ...

CRIMINAL CASE / FIR NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....

ACCUSED / APPLICANT

THE STATE .... RESPONDENT

BOND AND BAIL BOND UNDER SECTIONS 485 AND 486 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 [AND DECLARATION OF SURETY]

---

1. WHEREAS the above-named ....., S/o ....., R/o ....., has been released on bail by order dated ..... passed by this Hon'ble Court in Criminal Case / FIR No. ..... of 20....., on his/her executing a bond for his/her appearance before this Hon'ble Court, with one/two sureties in the like amount.

2. NOW, THEREFORE, I, ..., the above-named accused, do hereby bind myself to this Hon'ble Court in the sum of Rs. ..... (Rupees ..... only), to be paid to the Hon'ble Court, on condition that I shall attend the Court of ....., ... at ..... on each and every date of hearing hereinafter to be fixed in the said case, and shall continue so to attend until otherwise directed by the Court, and shall not depart from the same without the leave of the Court.

3. AND I, ..., S/o ....., the surety, do hereby bind myself to this Hon'ble Court in the sum of Rs. ..... (Rupees ..... only), to be paid to the Hon'ble Court, on condition that the accused ..... shall attend the Court as aforesaid and shall continue so to attend until otherwise directed by the Court; and in case of his/her failure to do so, I shall forthwith produce him/her before the Court or shall pay to the Court the amount of the said bond.

4. I, the surety above-named, DECLARE as under:

   (a) That I am a resident of ..... and my complete address and mobile number are as under: Address: .....; Mobile No. .....; Identity Proof (with number): .....

   (b) That I am the ..... (relationship, if any) of the accused and I am not a co-accused in the above-noted case.

   (c) That I am possessed of sufficient means to pay the amount of the bond in the event of its forfeiture, and my approximate annual income is Rs. ..... The particulars of my movable and immovable assets are as under: (i) .....; (ii) .....

   (d) That I am not a surety for the applicant in any other case in which the applicant has been released on bail/surety, save and except .....

   (e) That I am not an insolvent and there is no subsisting order of attachment or of a Court of insolvency against me.

   (f) That I undertake to produce the accused before this Hon'ble Court on each and every date of hearing and, in the event of the accused's failure to appear, to pay the amount of the bond to this Hon'ble Court or to produce the accused before this Hon'ble Court, as required by law.

   (g) That I understand that, in the event of the forfeiture of the bond, this Hon'ble Court may issue a warrant for the levy of the amount due in the manner provided for the levying of fines, in terms of Sections 461 and 491 of

the Bharatiya Nagarik Suraksha Sanhita, 2023.

(h) That the particulars furnished by me hereinabove are true and correct to the best of my knowledge and belief, and that I am aware that the furnishing of false particulars is an offence punishable under the law and entails liability for the forfeiture of the bond and for penal consequences.

Signature/Thumb impression of the Accused: .....

Signature/Thumb impression of the Surety: .....

Attested before me / Accepted:

Presiding Officer / Authorised Officer

Place: .....

Date: .....

ACCUSED
SURETY

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 485, BNSS, 2023 (old Section 441, Cr.P.C.) provides that before a person is released on bond or bail bond, a bond for such sum as the police officer or Court thinks sufficient shall be executed by such person and, where he is released on bail bond, by one or more sufficient sureties. (ii) Section 486, BNSS, 2023 (old Section 441A, Cr.P.C.) requires every person standing as a surety in a criminal proceeding to file an affidavit/declaration stating his financial capacity, and, where the Court so requires, to produce documents. (iii) Section 484, BNSS, 2023 - the amount of the bond shall not be excessive. (iv) Section 487, BNSS, 2023 (old Section 442) - discharge from custody upon execution of the bond. (v) Section 489, BNSS, 2023 (old Section 444) - discharge of sureties. (vi) Section 491, BNSS, 2023 (old Section 446) - procedure when the bond is forfeited. (vii) Section 492, BNSS, 2023 (old Section 446A) - cancellation of the bond and the bail bond. (viii) The Court may accept a bond with or without sureties, and may, in an appropriate case, permit the deposit of a sum of money instead of executing a bond, in terms of Section 490, BNSS, 2023 (old Section 445). (ix) Where the accused is a child, Section 494, BNSS, 2023 (old Section 448) applies - a bond may be taken from the parent or guardian instead of from the child.]

CR.P.C. EQUIVALENT

Old Sections 441, 441A, 442, 444 and 446, Cr.P.C., 1973 -> Sections 485, 486, 487, 489 and 491, BNSS, 2023. The use of the expression 'bond' in place of 'recognizance', and 'bail bond' in place of 'bond', is a change in terminology effected by the BNSS, 2023.

PRECEDENTS REFERRED TO

- *Maneka Gandhi v. Union of India, (1978) 1 SCC 248 - the procedure established by law must be fair, just and reasonable; bail conditions must be reasonable.*
- *State of M.P. v. Kajad, (2001) 7 SCC 673 - the cancellation of bail and the forfeiture of the bond.*
- *Moti Ram v. State of M.P., (1978) 4 SCC 47 - the purpose of a surety bond and its forfeiture.*

FORMAT C-32 — APPLICATION FOR CANCELLATION OF BAIL

Bail & Bonds

IN THE COURT OF THE ....., (DISTRICT .....) [OR] IN THE HON'BLE HIGH COURT OF .....

MISC. APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

1. THE STATE (GOVT. OF NCT OF DELHI) THROUGH PUBLIC PROSECUTOR / (OR) 1. ....., THE COMPLAINANT / VICTIM, R/o ....

APPLICANT

....., S/o ....., R/o ....

RESPONDENT / ACCUSED (ON BAIL)

FIR NO. ..... OF 20....., POLICE STATION .....

DATE OF THE BAIL ORDER: ..... BAIL APPLICATION NO. ..... OF 20.....

APPLICATION FOR CANCELLATION OF BAIL UNDER SECTION 483(3) READ WITH SECTION 492 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant is the State/complainant/victim in the above-noted case, and is interested in the due administration of justice.

2. That the respondent/accused was granted bail by the learned ..... Court this Hon'ble Court vide order dated ....., passed in Bail Application No. ..... of 20....., subject to certain conditions, namely: (i) .....; (ii) .....; (iii) ..... A copy of the said order is annexed hereto as ANNEXURE A.

3. That the respondent/accused has misused the liberty granted to him/her, and has violated the conditions of the bail order and the law, as under:

   (i) THAT THE RESPONDENT HAS TAMPERED WITH THE EVIDENCE: On ....., the respondent, in violation of the conditions of the bail order, approached the prosecution witness ....., namely ....., and ..... (set out the specific act - threatening, inducing, offering money, or dissuading the witness from deposing). The said witness has filed an affidavit/complaint dated ..... with the police station/this Hon'ble Court, a copy whereof is annexed as ANNEXURE B.

   (ii) THAT THE RESPONDENT HAS THREATENED/INTIMIDATED THE COMPLAINANT: The respondent, along with ....., went to the residence of the complainant on ..... at about ..... hours and threatened the complainant with dire consequences in the event of the complainant pursuing the case. A complaint in this regard was lodged with Police Station ..... on ....., vide DD No. ..... (Annexure C).

   (iii) THAT THE RESPONDENT HAS FAILED TO APPEAR BEFORE THE LEARNED TRIAL COURT: The respondent has failed to appear before the learned Trial Court on the following dates, namely ....., ... and ....., and has adopted dilatory tactics with the object of delaying the trial. The non-bailable warrants issued against the respondent on ..... remain unexecuted/served (Annexure D).

   (iv) THAT THE RESPONDENT HAS COMMITTED FURTHER OFFENCES WHILE ON BAIL: The respondent has been involved in a fresh case, namely FIR No. ..... of 20....., Police Station ....., registered on ..... for offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, which demonstrates that the respondent is a habitual offender and is a menace to society. A copy of the FIR is annexed as ANNEXURE E.

(v) THAT THE RESPONDENT HAS VIOLATED THE EXPRESS CONDITIONS OF THE BAIL ORDER, namely ..... (e.g., failed to report to the police station as directed; left the jurisdiction of this Hon'ble Court without permission; failed to surrender the passport; failed to furnish the bond within the stipulated time).

(vi) THAT THE RESPONDENT, AFTER RELEASE ON BAIL, HAS RESORTED TO POLITICAL/CORPORATE/PHYSICAL PRESSURE to coerce the complainant to withdraw the case, and has attempted to settle the matter through illegal means, viz. .....

4. That the conditions on which bail was granted were the very conditions on which the liberty was extended to the respondent, and the respondent has wilfully and deliberately violated the same; consequently, the respondent has forfeited the right to continue on bail.

5. That it is settled law that the grounds for the cancellation of bail are different and distinct from the grounds on which bail is granted; the Court, while considering an application for cancellation of bail, is not required to re-appreciate the material on merits, but must confine itself to the question whether the accused has misused the liberty granted to him or has violated the conditions of bail.

6. That the respondent, if permitted to remain on bail, will continue to interfere with the administration of justice, will tamper with the prosecution evidence, and will intimidate the complainant and the witnesses, and the trial of the case will be prejudiced beyond repair. The apprehension of the applicant is real and is founded on the material placed on record.

7. That the applicant has also filed an application dated ..... before the Station House Officer, Police Station ....., and has lodged a complaint in respect of the conduct of the respondent, and a copy thereof is annexed as ANNEXURE F.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) cancel the bail granted to the respondent/accused vide order dated ..... passed in Bail Application No. ..... of 20....., in terms of Section 483(3) of the Bharatiya Nagarik Suraksha Sanhita, 2023, and direct that the respondent be arrested and committed to custody;

(ii) issue a warrant of arrest against the respondent and direct the Station House Officer, Police Station ....., to execute the same and to produce the respondent before this Hon'ble Court;

(iii) initiate proceedings for the forfeiture of the bond and the bail bond executed by the respondent, in terms of Section 491, BNSS, 2023, and to proceed against the surety in accordance with law; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / PUBLIC PROSECUTOR
THROUGH
ADVOCATE

Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 483(3), BNSS, 2023 (old Section 439(2), Cr.P.C.) empowers the High Court or the Court of Session to direct that any person who has been released on bail be arrested and committed to custody. (ii) Section 492, BNSS, 2023 (old Section 446A) provides for the cancellation of the bond and the bail bond on the ground of the breach of any condition. (iii) The cancellation of bail is not a substitute for an appeal against the order granting bail; the grounds for cancellation are: (a) misuse of liberty; (b) violation of the conditions of bail; (c) interference with the administration of justice; (d) tampering with the evidence; (e) the accused becoming a menace to society; and (f) the commission of further offences. (iv) Where the accused has absconded, the Court may also proceed under Sections 84 and 85, BNSS, 2023, for the proclamation of the offender and the attachment of his property. (v) The application must be supported by an affidavit and by the specific material showing the misuse of liberty.]

CR.P.C. EQUIVALENT

Old Section 439(2), Cr.P.C., 1973 -> Section 483(3), BNSS, 2023. Old Section 446A -> Section 492, BNSS, 2023.

PRECEDENTS REFERRED TO

- *Gurcharan Singh v. State (Delhi Administration), (1978) 1 SCC 118 - the powers of the Court to cancel bail; the distinction between the grounds for the grant of bail and the grounds for its cancellation.*
- *Bhagirathsinh Judeja v. State of Gujarat, (1984) 1 SCC 284 - bail once granted should not be cancelled mechanically; there must be a supervening circumstance or a misuse of liberty.*
- *Dolat Ram v. State of Haryana, (1995) 1 SCC 349 - the considerations for the cancellation of bail.*
- *Abdul Basit v. Abdul Kadir, (2014) 10 SCC 754 - the cancellation of bail on the ground of the misuse of liberty; the Court must record reasons.*
- *Prasanta Kumar Sarkar v. Ashis Chatterjee, (2010) 14 SCC 496 - the grounds for setting aside an order granting bail.*

FORMAT C-33 — APPLICATION FOR DISCHARGE / REPLACEMENT OF SURETY

Bail & Bonds

IN THE COURT OF ....., ...

CRIMINAL CASE / FIR NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o .... APPLICANT / SURETY

THE STATE .... RESPONDENT

APPLICATION FOR DISCHARGE OF SURETY UNDER SECTION 489 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023, AND FOR ACCEPTANCE OF A NEW SURETY

MOST RESPECTFULLY SHOWETH:

1. That the applicant stood as a surety for the accused ....., S/o ....., in the above-noted case, and executed a bail bond for a sum of Rs. ..... on ....., which was accepted by this Hon'ble Court, pursuant to which the accused was released on bail.

2. That the applicant is now unable to continue as a surety for the following reason(s):

   (i) ..... (e.g., the applicant is proceeding abroad/is relocating to ..... permanently, and will no longer be able to produce the accused before this Hon'ble Court as and when required);

   (ii) ..... (e.g., the applicant's financial circumstances have undergone a change, namely ....., and the applicant is no longer possessed of sufficient means);

   (iii) ..... (e.g., the applicant's relationship with the accused has ceased, and the applicant is no longer willing to stand as surety);

   (iv) ..... (e.g., the applicant has been diagnosed with ..... and is unable to attend Court regularly). [The ground should be specific and supported by material.]

3. That the applicant has not, at any point of time, failed to discharge the obligations of a surety, and the accused has, on every date of hearing, appeared before this Hon'ble Court and has not defaulted in any manner. The applicant does not intend to evade any liability under the bond, and the present application is being made bona fide so as to enable the accused to furnish a fresh surety and to continue on bail.

4. That the applicant has informed the accused of the present application, and the accused ..... (name) has consented to the same. The accused has already arranged a fresh surety, namely ....., S/o ....., R/o ....., who is ready and willing to execute a fresh bail bond in the sum of Rs. ..... and to file the requisite declaration/affidavit under Section 486, BNSS, 2023.

5. That Section 489, BNSS, 2023 (old Section 444, Cr.P.C.) provides that all or any of the sureties for the appearance and attendance of a person released on bail may at any time apply to a Magistrate/Court to discharge the bond, either wholly or so far as it relates to the applicant; and the Magistrate/Court shall thereupon issue a warrant directing that such person be arrested and brought before him/it, and upon such person executing a new bond, the Magistrate/Court shall discharge the surety's bond and shall call upon the person to execute a fresh bond.

6. That the present application is in accordance with the said provision, and this Hon'ble Court may kindly be pleased to discharge the bond of the applicant and to accept the fresh surety/allow the accused to furnish a fresh bond, so that the trial is not delayed on account of the change of the surety.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) discharge the bail bond dated ..... executed by the applicant as surety for the accused ....., in terms of Section 489 of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) permit the accused ..... to furnish a fresh bail bond for the like amount on the same terms and conditions, and accept the fresh surety offered herein;

(iii) direct that the applicant shall stand discharged from all obligations under the said bond upon the acceptance of the fresh bond by this Hon'ble Court; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / SURETY
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) The procedure under Section 489, BNSS, 2023 requires the Court to issue a warrant for the production of the accused, and then, upon the accused executing a new bond, to discharge the surety's bond. (ii) In practice, the Court, upon being satisfied that the accused is present before it or is otherwise amenable to process, may accept the fresh bond and discharge the old surety without insisting on the formality of issuing a warrant. (iii) Until the fresh bond is accepted and the surety is formally discharged, the surety continues to be liable under the existing bond. (iv) Where the Court declines to permit the discharge of the surety, the surety's remedy is to move the higher Court under Section 528, BNSS, 2023.]

CR.P.C. EQUIVALENT

Old Section 444, Cr.P.C., 1973 -> Section 489, BNSS, 2023 (discharge of sureties). Related: Section 493, BNSS, 2023 (old Section 447) - procedure in case of insolvency or death of surety or when a bond is forfeited.

PRECEDENTS REFERRED TO

- *State of Maharashtra v. Dadamiya Babumiya Sheikh, (1971) 3 SCC 530 - the surety's liability arises only upon the failure of the accused to appear and upon the forfeiture of the bond.*
- *Moti Ram v. State of M.P., (1978) 4 SCC 47 - the liability of the surety and the circumstances in which the bond is forfeited.*

FORMAT C-34 — APPLICATION FOR EXTENSION OF INTERIM BAIL / TIME TO SURRENDER

Bail & Bonds

IN THE COURT OF ....., (DISTRICT .....) [OR] IN THE HON'BLE HIGH COURT OF .....

BAIL APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....

APPLICANT / ACCUSED

THE STATE .... RESPONDENT

FIR NO. ..... OF 20....., POLICE STATION .....

APPLICATION FOR EXTENSION OF INTERIM BAIL / FOR PERMISSION TO SURRENDER AND FOR TIME TO SURRENDER BEFORE THE JAIL AUTHORITIES

MOST RESPECTFULLY SHOWETH:

1. That the applicant was granted interim bail by this Hon'ble Court vide order dated ..... for a period of ....., i.e., up to ....., in connection with the above-noted FIR, on the terms and conditions recorded in the said order.

2. That the period of interim bail granted to the applicant is due to expire on ....., and the applicant is required to surrender before the Jail Superintendent/this Hon'ble Court on or before the said date.

3. That the applicant has fully complied with all the conditions of the interim bail order, has not misused the liberty granted to him/her in any manner, and has appeared before the investigating officer/this Hon'ble Court on every date as directed. The applicant has not violated a single condition of the order of interim bail, as is evident from the status report of the investigating officer dated ..... (Annexure A).

4. That the applicant is unable to surrender on the date fixed for the following reason(s):

   (i) ..... (e.g., the applicant's medical treatment/surgery is scheduled on ....., and the applicant has been advised rest for a further period of .....; the medical certificate/medical advice is enclosed);

   (ii) ..... (e.g., the applicant's ..... (father/mother/spouse/child) is critically ill and is hospitalised at ....., and the applicant is the only person available to attend to him/her, as is evident from the medical papers annexed);

   (iii) ..... (e.g., the applicant's daughter's marriage is scheduled on ....., and the applicant is required to make arrangements therefor; the invitation card is annexed);

   (iv) ..... (e.g., the applicant's appeal/application ..... is pending and the outcome thereof will be material to the surrender of the applicant).

5. That the applicant undertakes to surrender before the Jail Superintendent/this Hon'ble Court on the extended date, namely ....., without fail, and to produce the proof of such surrender before this Hon'ble Court within ..... days thereof. The applicant further undertakes to abide by all the conditions of the interim bail order during the extended period.

6. That the extension of the interim bail is being sought bona fide and is necessary in the interest of justice; no prejudice whatsoever shall be caused to the prosecution by the grant of the extension, and the applicant is not a flight risk, as is evident from the fact that the applicant has never absconded and has duly complied with all the conditions imposed.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) extend the period of interim bail granted to the applicant vide order dated ..... for a further period of ....., i.e., up to ....., on the same terms and conditions as recorded in the said order, or on such modified terms as this Hon'ble Court may deem fit;

(ii) in the alternative, grant the applicant time up to ..... to surrender before the Jail Superintendent/this Hon'ble Court, and direct that the applicant shall surrender on the said date without fail;

(iii) direct that in the event of the applicant's surrender, the period from ..... to ..... shall be treated as the period of custody undergone by the applicant, in terms of Section 468, BNSS, 2023; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / ACCUSED
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) An application for the extension of interim bail must be made before the expiry of the period granted; an application made after the expiry of the period may be considered as one for the grant of fresh bail, and the applicant who has not surrendered may be treated as being in breach of the order. (ii) Where the applicant fails to surrender on the expiry of the period of interim bail, the Court may cancel the bail and issue a non-bailable warrant. (iii) The applicant should always place on record the proof of surrender before the Jail Superintendent within the time fixed by the Court, and, where the Court so requires, a medical/other document justifying the extension. (iv) An application for the extension of interim bail on medical grounds can be supported by the latest medical certificate and the advice of the treating doctor.]

CR.P.C. EQUIVALENT

Section 480 read with Section 483, BNSS, 2023 (old Sections 437 and 439, Cr.P.C.).

PRECEDENTS REFERRED TO

- *Parvez Noordin Lokhandwalla v. State of Maharashtra, (2020) 10 SCC 77 - the extension of interim bail on medical grounds.*
- *Bhagwan Rama Shinde Gosai v. State of Gujarat, (1999) 4 SCC 421 - the principles governing the grant and extension of bail on medical grounds.*

PART D

REMAND, CUSTODY & PRISON

Formats D-35 to D-41

FORMAT D-35 — APPLICATION FOR POLICE CUSTODY REMAND (FOR THE PROSECUTION)

Remand, Custody & Prison

IN THE COURT OF THE ....., (DISTRICT .....)

REMAND APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....., presently in judicial custody at ..... Jail ..... ACCUSED / PRODUCED PERSON

THE STATE .... APPLICANT / PROSECUTION

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... BNS

DATE OF ARREST: ..... DATE OF PRODUCTION: .....

APPLICATION FOR GRANT OF POLICE CUSTODY REMAND UNDER SECTION 187 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the accused ....., S/o ....., has been arrested on ..... in connection with the above-noted FIR, registered for offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, and is being produced before this Hon'ble Court.

2. That the investigation of the case is at a crucial stage and the custodial interrogation of the accused is essential for the following reasons:

   (i) THAT THE ACCUSED IS REQUIRED TO BE TAKEN TO THE PLACE OF OCCURRENCE for the purpose of the recovery of ..... (e.g., the weapon of offence, the stolen property, the contraband, the blood-stained clothes, or the documents), which is stated to have been concealed by the accused at ....., and the said recovery can only be effected in the presence of the accused;

   (ii) THAT THE ACCUSED IS REQUIRED FOR THE PURPOSE OF THE IDENTIFICATION of the co-accused/other persons involved in the commission of the offence, namely ....., whose whereabouts are not yet known, and whose names/identification the accused alone is in a position to disclose;

   (iii) THAT THE ACCUSED IS REQUIRED TO BE CONFRONTED WITH THE OTHER ACCUSED PERSONS AND THE WITNESSES, namely ....., in the course of the investigation, for the purpose of establishing the truth of the allegations;

   (iv) THAT THE ACCUSED IS REQUIRED TO BE INTERROGATED IN RESPECT OF THE ..... (e.g., the bank accounts, the electronic devices, the passwords, the digital signatures, the mobile phone, the laptop, or the locker number) which are in the exclusive knowledge of the accused and which are essential to the investigation;

   (v) THAT THE INVESTIGATION IS OF A SERIOUS NATURE and involves the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, and the custodial interrogation is necessary for the purpose of unearthing the entire conspiracy and for the identification of the other persons involved;

   (vi) THAT THE ACCUSED HAS BEEN EVASIVE IN HIS ANSWERS during the investigation, and has not cooperated in the investigation, and has not furnished the requisite information despite being called upon to do so.

3. That the accused is in judicial custody since ....., and the custodial interrogation is required in the interest of the investigation. The custodial interrogation is sought for a period of ..... days, which is the minimum period required for the purposes of the investigation, and the same is within the limits prescribed by Section 187(2), BNSS, 2023.

4. That Section 187(1), BNSS, 2023 provides that where a person is arrested and detained in custody and it appears that the investigation cannot be completed within the period of twenty-four hours fixed by Section 58, and there are grounds for believing that the accusation or information is well-founded, the officer in charge of the police station shall forthwith transmit to the nearest Magistrate a copy of the entries in the diary and shall forward the accused to such Magistrate.

5. That Section 187(2), BNSS, 2023 provides that the Magistrate to whom the accused is forwarded may, irrespective of whether he has or has no jurisdiction to try the case, after taking into consideration whether such person has not been released on bail or his bail has been cancelled, authorise, from time to time, the detention of the accused in such custody as such Magistrate thinks fit, for a term not exceeding fifteen days in the whole, or in parts, at any time during the initial forty days or sixty days out of the detention period of sixty days or ninety days, as the case may be.

6. That Section 187(2) further provides that the detention in police custody shall not be authorised unless the accused is produced before the Magistrate, and the Court shall take into consideration the matters stated in Section 187(6) and (7), and the provisions of Section 187(3) shall be complied with.

7. That the accused has already been interrogated in judicial custody on ....., and the answers furnished by the accused reveal that further custodial interrogation is necessary for the purposes stated above. The progress of the investigation and the facts elicited during the interrogation are set out in the Case Diary, which is being produced along with this application for the kind perusal of this Hon'ble Court.

8. That the police custody remand is sought bona fide and in the interest of the investigation, and the same is necessary for the purposes of the proper and effective investigation of the offences alleged. The prosecution undertakes to produce the accused before this Hon'ble Court on the expiry of the period of the police custody remand, and to produce the remand papers/medical examination report as required by law.

9. That the requirement of Section 187(1) and (2), BNSS, 2023 has been duly complied with, and the accused has been medically examined in terms of Sections 51 and 53, BNSS, 2023, and the medical examination report dated ..... is annexed hereto as ANNEXURE A. The accused has been informed of the grounds of the arrest, and the arrest memorandum has been prepared in the prescribed form, in terms of Section 36, BNSS, 2023, and the same is annexed as ANNEXURE B.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) grant police custody remand of the accused ....., S/o ....., for a period of ..... days, in connection with FIR No. ..... of 20....., Police Station ....., in terms of Section 187(2) of the Bharatiya Nagarik Suraksha Sanhita, 2023, for the purposes stated in this application;

(ii) permit the investigating agency to take the accused to the place of occurrence/other places as specified above for the purposes of the recovery/investigation, under proper police escort, and to conduct the necessary investigation in the presence of the accused;

(iii) direct the accused, upon the expiry of the period of police custody remand, to be produced before this Hon'ble Court and to be remanded to judicial custody, if so required; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

PUBLIC PROSECUTOR / INVESTIGATING OFFICER

Place: .....

Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) The prosecution must justify the necessity of custodial interrogation; a mechanical application is liable to be rejected. The application must disclose the specific purposes for which the custody is required. (ii) The accused must be

produced before the Magistrate before remand is authorised, and must be medically examined. (iii) The maximum period of police custody is fifteen days in the whole, and the same must be sought within the initial forty days in the case of a sixty-day offence and within the initial sixty days in the case of a ninety-day offence, in view of the express language of Section 187(2), BNSS, 2023. (iv) The police custody can be sought in parts; however, the aggregate cannot exceed fifteen days. (v) The Magistrate must apply his/her mind, consider the case diary, and record reasons for granting/refusing remand. Remand cannot be granted mechanically. (vi) The right to be produced within twenty-four hours is a fundamental right, and the same is preserved by Section 58, BNSS, 2023 read with Article 22(2) of the Constitution. (vii) The provisions of Sections 47, 48, 51, 53 and 58, BNSS, 2023 must be complied with before seeking remand, and non-compliance may vitiate the remand.]

CR.P.C. EQUIVALENT

Old Section 167(1) and 167(2), Cr.P.C., 1973 -> Section 187(1) to 187(3), BNSS, 2023. IMPORTANT: Section 187(2), BNSS, 2023 is a NEW provision permitting police custody at any time during the initial forty days/sixty days of the detention, which was not the position under the Cr.P.C. (where police custody could only be sought within the first fifteen days).

PRECEDENTS REFERRED TO

- *CBI v. Anupam J. Kulkarni, (1992) 3 SCC 141 - police custody cannot be granted after the expiry of the first fifteen days from the date of remand; however, the position under the BNSS, 2023 is governed by Section 187(2), which expressly permits police custody during the initial forty/sixty days, subject to the aggregate limit of fifteen days.*
- *D.K. Basu v. State of West Bengal, (1997) 1 SCC 416 - safeguards during custody; a remand cannot be granted mechanically.*
- *Nathu Ram v. State of U.P., 1979 - the Magistrate must apply his judicial mind before granting remand; reasons must be recorded.*
- *Gautam Navlakha v. National Investigation Agency, (2021) 17 SCC 714 - the Magistrate must apply his mind and must not grant transit remand mechanically.*
- *Vihaan Kumar v. State of Haryana, 2025 SCC OnLine SC 85 - the Magistrate must verify compliance with the mandate of communicating the grounds of arrest at the stage of remand.*

FORMAT D-36 — OBJECTION TO POLICE CUSTODY REMAND (FOR THE ACCUSED)

Remand, Custody & Prison

IN THE COURT OF THE ....., (DISTRICT .....)
REMAND APPLICATION NO. ..... OF 20.....
IN THE MATTER OF:
....., S/o ....., R/o ....., presently in custody at .... ACCUSED / PRODUCED PERSON
THE STATE .... RESPONDENT
POLICE STATION .....
FIR NO. ..... OF 20..... DATE OF ARREST: .....

OBJECTIONS TO THE APPLICATION FOR POLICE CUSTODY REMAND, AND APPLICATION FOR REMAND TO JUDICIAL CUSTODY / RELEASE, UNDER SECTION 187 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the accused ..... has been produced before this Hon'ble Court in connection with FIR No. ..... of 20....., Police Station ....., registered for offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, along with an application for police custody remand.

2. That the accused strongly objects to the application for police custody remand and submits that the same deserves to be rejected on the following amongst other grounds:

   (A) THAT THE ARREST ITSELF IS ILLEGAL AND IS IN VIOLATION OF SECTIONS 35, 36, 47 AND 48, BNSS, 2023: The accused has been arrested without there being any compliance with the mandatory requirements of Section 35(1)(b), BNSS, 2023, in that: (i) no reasons in writing have been recorded by the arresting officer as to the necessity of the arrest; (ii) no notice under Section 35(3), BNSS, 2023 was issued to the accused prior to the arrest, although the accused was available and had not refused to cooperate; and (iii) the arrest memorandum was not attested by any family member or respectable member of the locality, as required by Section 36, BNSS, 2023, and the grounds of arrest were not communicated to the accused, as required by Section 47, BNSS, 2023. An illegal arrest cannot be the foundation of a valid remand, and the accused is entitled to be released forthwith.

   (B) THAT NO GROUNDS WHATSOEVER HAVE BEEN MADE OUT FOR CUSTODIAL INTERROGATION: The application for police custody remand does not disclose a single specific ground as to what further information is required to be elicited from the accused or what recovery is required to be effected. A vague and general allegation that the custodial interrogation is necessary is not sufficient to deprive the accused of his/her liberty. The accused has already been interrogated in judicial custody on ....., and the answers furnished by the accused were fully recorded. There is no material on record to show that the accused has been evasive or uncooperative.

   (C) THAT THE ALLEGED RECOVERY HAS ALREADY BEEN EFFECTED AND THE CASE PROPERTY HAS ALREADY BEEN SEIZED: The entire case property, namely ....., has already been recovered by the police on ....., vide seizure memo dated ..... and the same is in the custody of the police, and therefore no recovery remains to be effected at the instance of the accused. The prayer for police custody remand is therefore devoid of any purpose.

   (D) THAT THE PERIOD OF THE INVESTIGATION AVAILABLE FOR SEEKING POLICE CUSTODY HAS ALREADY EXPIRED: The accused was arrested on ....., and the initial period of ..... days has already elapsed; consequently, the present application is not maintainable in view of the express language of Section 187(2), BNSS, 2023.

(E) THAT THE ALLEGED OFFENCE IS NOT OF SUCH A NATURE AS TO REQUIRE CUSTODIAL INTERROGATION: The offence alleged against the accused is punishable with imprisonment up to ..... years, and the accused has already been in custody since ....., a period of ..... days. The accused is a permanent resident of ....., has no criminal antecedents, and is not a flight risk.

(F) THAT THE ACCUSED IS BEING SUBJECTED TO CUSTODIAL VIOLENCE: The accused apprehends that he/she may be subjected to custodial violence and coercion at the hands of the police in the event of his/her being remanded to police custody. The accused has already been ..... (state the specific instance, if any), and the accused requests that the medical examination of the accused be conducted before and after the police custody, in terms of Sections 51 and 53, BNSS, 2023.

(G) THAT THE INVESTIGATION IS ALREADY COMPLETE: The Final Report under Section 193(3), BNSS, 2023 has already been filed/is about to be filed, and therefore the custody of the accused is not required for the purposes of the investigation.

(H) THAT THE APPLICATION FOR REMAND IS BEING MADE MECHANICALLY: The application does not satisfy the requirements of Section 187, BNSS, 2023; the Copies of the entries in the diary have not been furnished, and the application does not set out the grounds for believing that the accusation or information is well-founded.

3. That in view of the above, the accused prays that the application for police custody remand be rejected, and the accused be remanded to judicial custody, or, in the alternative, be released on bail/directed to be released on furnishing a personal bond, in terms of Section 480 read with Section 478, BNSS, 2023.

4. That the accused undertakes to fully cooperate with the investigation, to appear before the investigating officer as and when directed, and not to tamper with the evidence or influence the witnesses in any manner, if the accused is not remanded to police custody.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) reject the application for police custody remand moved on behalf of the prosecution, the same being devoid of merit and not disclosing any ground for the custody of the accused;

(ii) remand the accused to judicial custody and/or direct that the accused be released on bail on such terms and conditions as this Hon'ble Court may deem fit, in terms of Sections 478 and 480 of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(iii) direct that the accused be medically examined by a qualified medical practitioner at the time of being taken into police custody and at the time of being returned to judicial custody, and that a copy of the medical examination report be supplied to the accused, in terms of Sections 51 and 53, BNSS, 2023;

(iv) direct that the records of the case diary/entries of the investigation be produced before this Hon'ble Court for its perusal before passing any order on the application for remand; and

(v) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

ACCUSED
THROUGH
ADVOCATE

Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) The accused has a right to be heard on the application for remand, and the Court must apply its judicial mind and record reasons before authorising detention. (ii) The remand cannot be granted mechanically; the Court must consider the case diary and the material placed before it. Authorising detention merely because the police asks for it is illegal. (iii) The accused should always insist on a copy of the application for remand, the case diary entries and the grounds of arrest, and should place

the omissions of the investigating officer on record. (iv) Where the accused is remanded to police custody, the Court should direct the medical examination of the accused before and after the custody, and should direct that the accused be produced before the Court on the expiry of the remand. (v) A detention beyond twenty-four hours without the authority of a Magistrate is illegal and violates Article 22(2) of the Constitution of India.]

CR.P.C. EQUIVALENT

Old Section 167, Cr.P.C., 1973 -> Section 187, BNSS, 2023.

PRECEDENTS REFERRED TO

- *Nathu Ram v. State of U.P., 1979 Crl.L.J. 589 - remand cannot be granted mechanically; the Magistrate must apply his judicial mind.*
- *CBI v. Anupam J. Kulkarni, (1992) 3 SCC 141 - the limits on police custody; the custody of the accused must be justified.*
- *D.K. Basu v. State of West Bengal, (1997) 1 SCC 416 - the safeguards against custodial violence.*
- *Vihaan Kumar v. State of Haryana, 2025 SCC OnLine SC 85 - the Magistrate must verify compliance with Section 47, BNSS, 2023 at the stage of remand.*
- *S.N. Sharma v. Bipen Kumar Tiwari, (1970) 1 SCC 653 - the Magistrate's power to remand is subject to the safeguards contained in the statute.*

FORMAT D-37 — APPLICATION FOR MEDICAL EXAMINATION OF THE ARRESTED PERSON / ACCUSED

Remand, Custody & Prison

IN THE COURT OF ....., (DISTRICT .....)
MISC. APPLICATION NO. ..... OF 20.....
IN THE MATTER OF:
....., S/o ....., R/o ....., presently in custody at .... APPLICANT / ACCUSED
THE STATE .... RESPONDENT
POLICE STATION .....
FIR NO. ..... OF 20..... DATE OF ARREST: .....

APPLICATION FOR MEDICAL EXAMINATION OF THE ARRESTED PERSON UNDER SECTIONS 51 AND 53 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant was arrested on ..... in connection with the above-noted FIR and is presently in the custody of ..... Police Station / lodged in ..... Jail.

2. That the applicant has been subjected to ..... (state the specific grievance - e.g., physical assault, use of third degree methods, custodial violence, denial of necessary medical treatment, or the existence of injuries on the person of the applicant) at the hands of the police officers/officials of Police Station ..... on ....., and the applicant has sustained the following injuries: (i) .....; (ii) .....

3. That the applicant apprehends that he/she may be subjected to further violence, and that the injuries sustained by the applicant may not be properly recorded unless the applicant is medically examined by an independent medical practitioner at the earliest.

4. That Section 51, BNSS, 2023 (old Section 54, Cr.P.C.) provides that when a person is arrested, and the arrested person alleges that the examination of his body will afford evidence which will disprove the commission by him of any offence or which will establish the commission by any other person of any offence against his body, then the arrested person may be examined by a registered medical practitioner at the request of the officer in charge of the police station; and the registered medical practitioner shall examine the person and shall prepare a report of the examination, and the said report shall be forwarded to the investigating officer, who shall forward it to the Magistrate referred to in Section 193.

5. That Section 53, BNSS, 2023 provides for the examination of the arrested person by a medical officer, and requires that the arrested person be examined by a medical officer at the time of arrest, and that the medical report be prepared, containing the particulars specified in the section, namely the name and age of the arrested person, the marks of identification, the description of the injuries, if any, the physical condition of the arrested person, and the reasons for the conclusions, and the said report must be forwarded to the investigating officer, who shall forward it to the Court.

6. That Section 56, BNSS, 2023 casts a duty on the person having the custody of an accused to take reasonable care of the health and safety of the accused, and Section 55, BNSS, 2023 provides for the duty of the police to take the arrested person to a doctor and to obtain the medical report; further, the Hon'ble Supreme Court in D.K. Basu v. State of West Bengal, (1997) 1 SCC 416, has issued mandatory directions for the medical examination of the arrested person at the time of arrest and thereafter at intervals of forty-eight hours during custody, and for the supply of the medical report to the arrested person.

7. That the Hon'ble Supreme Court has also held that a person in custody is entitled to be medically examined, and that the failure to do so, and the presence of injuries on the person of the accused at the time of his production, raise a presumption of custodial violence.

8. That the applicant has requested the Jail Superintendent/Station House Officer to get the applicant medically examined, but the said request has not been acceded to. The applicant has also submitted a written representation dated ..... to the Jail Superintendent, a copy whereof is annexed as ANNEXURE A.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) direct that the applicant be medically examined by a registered medical practitioner/medical officer of ..... Government Hospital, and that the medical examination report be prepared in terms of Sections 51 and 53 of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) direct that the said medical report be forwarded to this Hon'ble Court and a copy thereof be furnished to the applicant/Advocate for the applicant;

(iii) direct that the applicant be medically examined periodically, in terms of the directions issued by the Hon'ble Supreme Court in D.K. Basu v. State of West Bengal, (1997) 1 SCC 416, and that the medical examination report of each such examination be preserved and produced before this Hon'ble Court;

(iv) direct an inquiry into the injuries sustained by the applicant and into the conduct of the erring police officials, and initiate appropriate action against them in accordance with law; and

(v) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / ACCUSED
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 51, BNSS, 2023 corresponds to old Section 54, Cr.P.C. Section 53, BNSS, 2023 corresponds to old Section 54(1) and the new requirement of a medical examination at the time of arrest. (ii) The 'Inspection Memo'/medical examination report is a very important document; any injuries noted therein must be explained by the prosecution, and the failure to explain the injuries leads to an adverse inference. (iii) The accused should also apply for the preservation of the medical records and for the supply of the CCTV footage of the police station/jail. (iv) With respect to a woman arrested, the medical examination shall be conducted by or under the supervision of a female medical officer, if available, or by any medical officer, but the examination shall not be conducted by a male medical officer without the consent of the woman/ her guardian, in terms of Section 53(2) proviso, BNSS, 2023. (v) An application for compensation for custodial violence may also be filed under Section 399, BNSS, 2023.]

CR.P.C. EQUIVALENT

Old Section 54, Cr.P.C., 1973 -> Sections 51, 53 and 56, BNSS, 2023.

PRECEDENTS REFERRED TO

- *D.K. Basu v. State of West Bengal, (1997) 1 SCC 416 - mandatory directions regarding the medical examination of an arrested person and the supply of the medical report.*
- *Nilabati Behera v. State of Orissa, (1993) 2 SCC 746 - custodial violence; compensation for the violation of fundamental rights.*
- *Joginder Kumar v. State of U.P., (1994) 4 SCC 260 - the safeguards against the misuse of the power of arrest.*
- *Shabnam v. Union of India, (2015) 6 SCC 702 - the rights of a person in custody, including the right to medical treatment.*

FORMAT D-38 — APPLICATION FOR RELEASE OF AN UNDERTRIAL PRISONER ON COMPLETION OF HALF / ONE-THIRD SENTENCE

Remand, Custody & Prison

IN THE COURT OF THE ....., (DISTRICT .....)

BAIL APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....., presently lodged in ..... Jail ..... APPLICANT / UNDERTRIAL PRISONER

THE STATE .... RESPONDENT

POLICE STATION .....

FIR NO. ..... OF 20..... DATE OF ARREST: .....

APPLICATION FOR RELEASE ON BAIL UNDER SECTION 479 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 (MAXIMUM PERIOD OF DETENTION FOR UNDERTRIAL PRISONERS)

MOST RESPECTFULLY SHOWETH:

1. That the applicant has been in custody as an undertrial prisoner in connection with FIR No. ..... of 20....., Police Station ....., registered for offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, since ....., i.e., for a period of ..... as on date.

2. That the maximum punishment prescribed for the offence alleged against the applicant is ....., and therefore the period of detention undergone by the applicant constitutes ..... (one-half / more than one-half / one-third) of the maximum period of imprisonment specified for the offence under the said law.

3. That Section 479(1), BNSS, 2023 provides that where a person has, during the period of investigation, inquiry or trial under the Sanhita of an offence under any law (not being an offence for which the punishment of death or life imprisonment has been specified as one of the punishments under that law) undergone detention for a period extending up to one-half of the maximum period of imprisonment specified for that offence under that law, he shall be released by the Court on bail.

4. That the first proviso to Section 479(1), BNSS, 2023 further provides that where such person is a first-time offender (who has never been convicted of any offence in the past), he shall be released on bond by the Court if he has undergone detention for a period extending up to one-third of the maximum period of imprisonment specified for such offence under that law.

5. That the applicant is a first-time offender and has never been convicted of any offence in the past; the applicant has no criminal antecedents whatsoever, as is evident from the report of the police station/record of the Court annexed hereto as ANNEXURE A. The applicant has, in any event, undergone detention extending up to one-half of the maximum period of imprisonment specified for the offence alleged.

6. That Section 479(1) is mandatory in nature and employs the expression 'shall be released by the Court on bail', and accordingly the Court has no discretion in the matter, save to the extent of the second and third provisos thereto. The applicant is thus entitled to be released on bail as of right.

7. That the applicant has already suffered detention for a period of ..... as an undertrial prisoner, which is a substantial period, and the trial of the case, in view of the number of witnesses and the volume of the record, is not likely to be concluded in the near future. The prolonged detention of the applicant as an undertrial prisoner would be a violation of the right to a speedy trial and of the right to life and personal liberty under Article 21 of the Constitution of India.

8. That the Hon'ble Supreme Court has repeatedly deprecated the practice of keeping undertrial prisoners in custody for long periods and has observed that the duration of detention of an undertrial prisoner is a relevant consideration for the grant of bail.

9. That the applicant is not a flight risk and has deep roots in society. The applicant undertakes to abide by all such conditions as this Hon'ble Court may impose, and to remain present before this Hon'ble Court on every date of hearing. The applicant also undertakes not to tamper with the evidence or influence the witnesses.

10. That the applicant is not involved in any other case, and Section 479(2), BNSS, 2023 is not attracted, in that the applicant is not facing trial in respect of more than one offence or in multiple cases.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) release the applicant on bail in terms of Section 479(1) of the Bharatiya Nagarik Suraksha Sanhita, 2023, the applicant having undergone detention for a period extending up to one-half (and, being a first-time offender, up to one-third) of the maximum period of imprisonment specified for the offence alleged;

(ii) in the alternative, direct the release of the applicant on the applicant's own bond, in terms of the first proviso to Section 479(1), BNSS, 2023, being a first-time offender;

(iii) accept the bond to be furnished by the applicant under Sections 484 to 486, BNSS, 2023, for such sum as this Hon'ble Court may deem fit; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / UNDERTRIAL PRISONER
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 479, BNSS, 2023 significantly expands the scope of the old Section 436A, Cr.P.C., in that: (a) it applies to 'any law' (not merely the BNS); (b) it provides for release on 'bond' for first-time offenders; (c) the third proviso prescribes that no person shall in any case be detained for more than the maximum period of imprisonment provided for the offence; and (d) Section 479(3) casts a duty on the Superintendent of the Jail to make an application to the Court upon the completion of one-half or one-third of the period, as the case may be. (ii) The Explanation excludes the period of detention attributable to the delay caused by the accused from the computation. (iii) Section 479(2) provides that where an investigation, inquiry or trial in more than one offence or in multiple cases is pending against a person, he shall not be released on bail by the Court notwithstanding sub-section (1). (iv) The period is computed from the date of arrest/first remand, and includes the period of detention in all the cases arising out of the same transaction. (v) The benefit of Section 479 extends to convicts 'during the period of investigation, inquiry or trial'; it does not apply where the person stands convicted and the sentence is in operation.]

CR.P.C. EQUIVALENT

Old Section 436A, Cr.P.C., 1973 -> Section 479, BNSS, 2023, which enlarges the scope of the relief.

PRECEDENTS REFERRED TO

- *Hussainara Khatoon (I) v. Home Secretary, State of Bihar, (1980) 1 SCC 81 - the right to a speedy trial; undertrial prisoners cannot be kept in custody for indefinite periods.*
- *Common Cause v. Union of India, (1996) 4 SCC 33 - directions for the release of undertrial prisoners who have undergone more than half of the maximum sentence.*
- *Bhim Singh v. Union of India, 2015 - the implementation of Section 436A, Cr.P.C. and the release of undertrial prisoners.*
- *Rakesh Kumar Paul v. State of Assam, (2017) 15 SCC 67 - the computation of the period of detention and the right to release.*

FORMAT D-39 — APPLICATION FOR SET-OFF OF THE PERIOD OF DETENTION AGAINST THE SENTENCE

Remand, Custody & Prison

IN THE COURT OF ....., (DISTRICT .....)

CRIMINAL CASE NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....., presently lodged in ..... Jail ..... APPLICANT / CONVICT

THE STATE .... RESPONDENT

FIR NO. ..... OF 20....., POLICE STATION .....

APPLICATION FOR SET-OFF OF THE PERIOD OF DETENTION UNDERGOING AGAINST THE SENTENCE UNDER SECTION 468 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant has been convicted by this Hon'ble Court vide judgment/order dated ..... in the above-noted case, and has been sentenced to undergo imprisonment for a term of ..... and to pay a fine of Rs. .....

2. That the applicant was arrested in connection with the above-noted case on ....., and was in custody (as an undertrial prisoner) from ..... to ....., i.e., for a total period of ..... The applicant has, thereafter, been in custody as a convict since .....

3. That Section 468(1), BNSS, 2023 provides that the period of detention undergone by the accused during the investigation, inquiry or trial of the same case, and before the date of commencement of the sentence, shall be set off against the term of imprisonment imposed upon the accused on conviction, and the liability of such person to undergo imprisonment shall be restricted to the remainder, if any, of the term of imprisonment imposed on him.

4. That Section 468(2), BNSS, 2023 provides that in cases where the sentence is for a period of imprisonment for life, the period of detention shall be set off against the sentence in the manner specified therein, and the set-off of the period of detention undergone shall be computed in accordance with the said provision.

5. That the applicant is therefore entitled to the set-off of the period of the detention undergone by the applicant during the investigation, inquiry or trial of the case, namely the period from ..... to ....., being a total of ....., against the substantive sentence of imprisonment imposed upon the applicant.

6. That the Jail Superintendent has not granted the said set-off while computing the period of the sentence undergone by the applicant, as is evident from the Sentence Computation Sheet/Remission Certificate dated ..... issued by the Superintendent of ..... Jail, a copy whereof is annexed as ANNEXURE A.

7. That the applicant is advised that the said period is required to be set off, and the applicant's date of release is required to be computed accordingly; unless the set-off is granted, the applicant shall be required to undergo imprisonment for a period in excess of the sentence imposed upon the applicant, which would be illegal and would violate the applicant's right to personal liberty under Article 21 of the Constitution of India.

8. That the applicant has already submitted a representation dated ..... to the Superintendent of ..... Jail for the grant of the set-off and for the correction of the Sentence Computation

Sheet, but the same has not been acceded to. A copy of the said representation is annexed as ANNEXURE B.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) direct that the period of detention undergone by the applicant from ..... to ....., i.e., ..., be set off against the term of imprisonment imposed upon the applicant vide judgment/order dated ....., in terms of Section 468 of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) direct the Superintendent of ..... Jail to correct the Sentence Computation Sheet/Remission Certificate accordingly, and to re-compute the date of release of the applicant, and to produce a fresh corrected computation before this Hon'ble Court;

(iii) direct that the applicant be released forthwith in the event of the applicant having already undergone the entire sentence, after the said set-off; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / CONVICT
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 468, BNSS, 2023 corresponds to old Section 428, Cr.P.C. (ii) The set-off is a statutory right and is not dependent upon the discretion of the Court; the Court is bound to grant it. (iii) The period of detention must be 'during the investigation, inquiry or trial of the same case and before the date of commencement of the sentence'; the detention undergone in another case cannot be set off, except where the detention in the other case was in respect of the same transaction/same period, in which event the position should be explained and the appropriate order sought. (iv) The application should be accompanied by the custody certificate from the Jail and the order of conviction/sentence. (v) Under Section 469, BNSS, 2023 the provisions of Section 468 do not apply to a case where the sentence was imposed before the commencement of the Sanhita (i.e., 1 July 2024) unless the same is more beneficial; the corresponding provisions of the Cr.P.C. would apply. The exact position should be verified in the light of the date of the sentence.]

CR.P.C. EQUIVALENT

Old Section 428, Cr.P.C., 1973 -> Section 468, BNSS, 2023.

PRECEDENTS REFERRED TO

- *Bouchers Pierre Andre v. Superintendent, Central Jail, Tihar, (1975) 1 SCC 192 - the period of detention undergone by the accused during the investigation and trial must be set off against the sentence imposed.*
- *Kampraj v. State of Karnataka, (2000) 4 SCC 145 - the set-off is mandatory and is not subject to the discretion of the Court.*
- *Govind v. State of M.P., 2023 - the computation of the period of set-off in life imprisonment cases.*

FORMAT D-40 — APPLICATION FOR PAROLE / FURLOUGH / EMERGENCY PAROLE

Remand, Custody & Prison

IN THE COURT OF ....., (DISTRICT .....) [OR] BEFORE THE SUPERINTENDENT OF JAIL / DIRECTOR GENERAL OF PRISONS, ...

CRIMINAL CASE NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....., presently lodged in ..... Jail, convicting Court: .... APPLICANT / CONVICT

THE STATE ..... / THE SUPERINTENDENT, ... JAIL ..... RESPONDENT

FIR NO. ..... OF 20.....

SENTENCE: ..... DATE OF CONVICTION: .....

DATE OF COMMENCEMENT OF SENTENCE: .....

APPLICATION FOR RELEASE ON PAROLE / FURLOUGH / EMERGENCY PAROLE

MOST RESPECTFULLY SHOWETH:

1. That the applicant is a convict undergoing the sentence of imprisonment in ..... Jail, having been convicted by the ..... Court vide judgment dated ..... in the above-noted case, and has been in custody since ..... The applicant has undergone a sentence of ..... as on date.

2. That the applicant's conduct in the jail has been satisfactory throughout the period of the applicant's incarceration; the applicant has never been punished for any jail offence, and no complaint of indiscipline has been recorded against the applicant. A certificate of conduct/good conduct from the Superintendent of ..... Jail is annexed hereto as ANNEXURE A.

3. That the applicant is entitled to be released on parole/furlough in terms of the provisions of the ..... Prisoners Act, ... / the ..... (Parole and Furlough) Rules, ..., framed by the State Government, and the guidelines issued by the Hon'ble Supreme Court, in as much as the applicant has undergone the requisite period of imprisonment and is not disqualified by reason of the nature of the offence or the applicant's conduct.

4. That the applicant has not been released on parole/furlough more than ..... times during the current year/in the present term of imprisonment, and is otherwise eligible for the grant of parole/furlough in terms of the applicable Rules.

5. That the applicant seeks release on parole/furlough on the following grounds:

   (i) THAT THE APPLICANT'S ..... (father/mother/spouse/child) has been suffering from a serious illness, namely ....., and is hospitalised at ....., and requires the constant care and attendance of the applicant. The medical papers/documents in support of the illness are annexed as ANNEXURE B. [Where the illness has resulted in death: that the applicant's ..... expired on ....., and the applicant is required to perform the last rites and to attend to the family affairs.]

   (ii) THAT THE APPLICANT'S ..... (son/daughter) is to be married on ....., and the presence of the applicant is necessary for the solemnization of the marriage and for making the necessary arrangements. The marriage invitation card is annexed as ANNEXURE C.

   (iii) THAT THE APPLICANT IS REQUIRED TO ATTEND TO THE AGRICULTURAL OPERATIONS/LIVELIHOOD MATTERS, and the applicant's presence is necessary for the sowing/harvesting of the crop and for the maintenance of the applicant's family, which has no other source of livelihood. A

certificate from the concerned revenue authority/village officer is annexed as ANNEXURE D.

(iv) THAT THE APPLICANT'S OWN MEDICAL CONDITION IS SERIOUS, namely ....., and the applicant requires specialised treatment at ....., which is not available in the Jail Hospital. The medical certificate of the Jail Medical Officer dated ..... is annexed as ANNEXURE E.

(v) THAT THE APPLICANT HAS BEEN ADVISED TO UNDERGO SURGERY/TREATMENT at ..... Hospital, and the applicant requires a period of ..... for the treatment and recovery, in terms of the advice of Dr. ....., annexed as ANNEXURE F.

(vi) THAT THE APPLICANT DESIRES TO COMPROMISE/SETTLE the disputes with ..... (the complainant), and the presence of the applicant is necessary for amicable settlement, which would also facilitate the applicant's rehabilitation.

6. That the applicant's family consists of ..... members and has no adult male member/earning member to attend to the matters set out above; the applicant is the only person who can attend to the said matters. A list of the family members and their particulars is annexed as ANNEXURE G.

7. That the applicant is not a habitual offender and has not been convicted of any offence involving terrorism, or of an offence under the NDPS Act/UAPA/POCSO/other heinous offences, and the release of the applicant on parole/furlough would not be prejudicial to the interests of society or to the security of the State. Further, the applicant has not been convicted of any offence punishable with death or imprisonment for life for an offence against the State, and the applicant's release would not violate the provisions of Section 475, BNSS, 2023.

8. That the applicant undertakes to abide by all the conditions that may be imposed by this Hon'ble Court/the competent authority while granting the parole/furlough, including reporting to the local police station at regular intervals, not leaving the State without permission, remaining at the address specified, and surrendering before the Jail Superintendent on the expiry of the period of parole/furlough without fail.

9. That the applicant has furnished the address at which the applicant shall reside during the period of parole/furlough, namely ....., and the same is within the jurisdiction of Police Station ....., and the applicant is ready to furnish sureties/security as required.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) direct the release of the applicant on parole/furlough for a period of ....., on such terms and conditions as this Hon'ble Court may deem fit and proper, in terms of the applicable Prisoners Act/Parole and Furlough Rules and the guidelines issued by the Hon'ble Supreme Court;

(ii) direct the Superintendent of ..... Jail and the Station House Officer, Police Station ....., to ensure the compliance with the conditions imposed while releasing the applicant on parole/furlough;

(iii) in the alternative, direct the competent authority to consider and decide the applicant's application for parole/furlough dated ..... within a time-bound period, and to communicate the decision to the applicant; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / CONVICT
THROUGH
ADVOCATE / JAIL LEGAL AID COUNSEL
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Parole and furlough are governed by the State Prisoners Act and the Rules framed thereunder; the eligibility, the maximum period, the intervals and the grounds differ from State to State, and the applicable Rules of the concerned State must be pleaded and placed on record. (ii) Parole is granted on humanitarian grounds for a limited period, and furlough is granted as a matter of right in the nature of a reward for good conduct; the distinction is material. (iii) Emergency parole is granted in emergent situations, such as the death or serious illness of a family member, and is subject to stricter scrutiny. (iv) The application should be accompanied by the Jail Conduct Certificate, the Sentence Computation Sheet, and the documentary proof of the ground. (v) The period of parole is ordinarily excluded from the computation of the sentence, whereas the period of furlough may be counted as the period of sentence in accordance with the Rules of the State concerned. (vi) An application for parole should ordinarily be made to the competent authority/Superintendent of Jail first; where the same is rejected, or where the matter is urgent, an application may be moved before this Hon'ble Court. (vii) The applicant may also seek the benefit of Section 473, BNSS, 2023 (power to suspend or remit sentences) or of the applicable premature release/remission policy of the State Government.]

CR.P.C. EQUIVALENT

Sections 472 to 477, BNSS, 2023 deal with the suspension, remission and commutation of sentences. Parole and furlough are governed by the applicable State Prisoners Act and the Rules framed thereunder.

PRECEDENTS REFERRED TO

- *State of Haryana v. Mohinder Singh, (2000) 3 SCC 394 - furlough and parole are distinct; furlough is a matter of right subject to the Rules, and parole is a concession.*
- *Sunil Fulchand Shah v. Union of India, (2000) 3 SCC 409 - the principles governing parole.*
- *Ram Chander v. State of Haryana - the considerations governing the grant of furlough.*
- *State of Maharashtra v. Suresh Pandurang Darvakar, (2006) 4 SCC 341 - the concept of parole and its difference from furlough.*

FORMAT D-41 — APPLICATION FOR WITNESS PROTECTION

Remand, Custody & Prison

IN THE COURT OF ....., (DISTRICT .....) [OR] IN THE HON'BLE HIGH COURT OF .....

MISC. APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....., Mobile No. .... APPLICANT / WITNESS

1. THE STATE .... RESPONDENT NO. 1

2. ....., S/o ....., R/o .... RESPONDENT NO. 2 / ACCUSED

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... BNS

WITNESS IN THE CASE OF: .....

APPLICATION FOR WITNESS PROTECTION UNDER SECTION 398 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 READ WITH THE WITNESS PROTECTION SCHEME, 2018

MOST RESPECTFULLY SHOWETH:

1. That the applicant is a material prosecution witness in the above-noted case, being the ..... (e.g., an eye-witness to the occurrence; the complainant; the person who first informed the police; the person to whom the accused made the disclosure; an expert witness), and the applicant has been cited as a witness in the Final Report/charge-sheet filed before the Court.

2. That the applicant's testimony is material, and is, in fact, crucial to the just decision of the case, in that the applicant alone is in a position to depose in respect of ..... (set out the specific aspect of the case to which the applicant deposes).

3. That on account of the applicant's willingness to depose truthfully, the applicant is being threatened, intimidated, coerced and induced by the accused persons and/or their associates, and the applicant's life, limb, liberty and property are in serious danger. The specific instances are as under:

   (i) That on ..... at about ..... hours, ... (name of the accused/associate) came to the applicant's residence at ..... and threatened the applicant with dire consequences in the event of the applicant deposing against the accused;

   (ii) That on ....., the applicant received a telephonic call on the applicant's mobile number ..... from number ....., wherein the applicant was threatened and was offered a bribe of Rs. ..... to resile from the applicant's statement;

   (iii) That on ....., the applicant was accosted by ..... at ....., and the applicant was warned that the applicant's family would face the consequences if the applicant deposed against the accused;

   (iv) That the accused persons have been making repeated attempts to contact the applicant through intermediaries, and have also sought to influence the applicant through .....;

   (v) That the applicant has lodged a complaint in this behalf with Police Station ..... on ....., vide DD No. ....., a copy whereof is annexed as ANNEXURE A.

4. That Section 398, BNSS, 2023 (newly inserted) provides that every State Government shall prepare and notify a Witness Protection Scheme for the State with a view to ensuring the protection of the witnesses, and that the Competent Authority, as notified, shall take appropriate measures for the protection of the

witnesses, which may include: (i) physical protection; (ii) change of identity; (iii) relocation; (iv) protection of the identity of the witness; (v) in-camera proceedings; (vi) video-recording of the deposition; (vii) surveillance of the premises of the witness; (viii) the provision of a police escort; and (ix) any other measure as may be prescribed.

5. That the Hon'ble Supreme Court, in Mahender Chawla v. Union of India, (2019) 14 SCC 615, laid down the guidelines for the implementation of the Witness Protection Scheme, 2018, and directed that the Scheme is to be implemented by all the States and Union Territories as a law under Article 141 of the Constitution of India. The Court further held that the right to a fair trial includes the right of the witness to be protected, and that the protection of the witness is necessary for the effective administration of justice.

6. That the applicant is a ..... years old person and is a resident of ....., and the applicant is a person of limited means, with a family consisting of ..... members, all of whom are dependent upon the applicant. The applicant is unable to afford private security arrangements or to relocate at the applicant's own expense.

7. That in the facts and circumstances of the case, the applicant is entitled to the grant of witness protection, and the applicant is also entitled to the protection of the applicant's identity, in-camera proceedings and the recording of the applicant's deposition through audio-video electronic means, in terms of Section 398, BNSS, 2023 and Section 530, BNSS, 2023, so that the applicant's testimony may be preserved and the truth may be brought on record without fear or favour.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) direct the Competent Authority/the State Government to provide adequate protection to the applicant and the applicant's family members, in terms of Section 398 of the Bharatiya Nagarik Suraksha Sanhita, 2023 read with the Witness Protection Scheme, 2018;

(ii) direct that the identity of the applicant be kept confidential and that no part of the applicant's identity or address be disclosed to the accused persons, and that the proceedings be held in camera in so far as the applicant is concerned;

(iii) direct the recording of the deposition of the applicant through audio-video electronic means, in terms of Section 530, BNSS, 2023, or in a manner that does not require the applicant's physical presence in the presence of the accused persons, having regard to the threat perception;

(iv) direct the Station House Officer, Police Station ....., to provide police protection to the applicant during the pendency of the trial, and to take action on the applicant's complaint dated .....; and

(v) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / WITNESS
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 398, BNSS, 2023 (newly inserted) mandates that every State Government shall prepare and notify a Witness Protection Scheme, and the Scheme is to be implemented by the State in coordination with the Central Government. (ii) The application should ordinarily be made to the 'Competent Authority' under the State's Witness Protection Scheme; however, the Court also has the power to grant protection in an appropriate case. (iii) The threat perception must be assessed by the Competent Authority/the Court, and may be categorised as 'low', 'moderate' or 'high' as per the Scheme. (iv) Where the witness is a child or a victim of a sexual offence, the provisions of the POCSO Act, 2012 and the BNSS, 2023 relating to in-camera proceedings, the protection of identity and the recording of evidence through audio-video means will apply with additional

force. (v) The application must be supported by an affidavit disclosing the specific instances of threat, and by the complaint lodged with the police.]

CR.P.C. EQUIVALENT

New provision. Section 398, BNSS, 2023 inserts a statutory obligation on the State to prepare a Witness Protection Scheme. The Witness Protection Scheme, 2018, prepared by the Ministry of Home Affairs in consultation with the National Legal Services Authority, continues to apply as a law laid down by the Hon'ble Supreme Court.

PRECEDENTS REFERRED TO

- *Mahender Chawla v. Union of India, (2019) 14 SCC 615 - the Witness Protection Scheme, 2018 is to be implemented throughout the country as a law under Article 141 of the Constitution; the right to a fair trial includes the protection of witnesses.*
- *Zahira Habibulla H. Sheikh v. State of Gujarat, (2004) 4 SCC 158 - the Court's duty to protect witnesses and to ensure a fair trial.*
- *Nipun Saxena v. Union of India, (2019) 2 SCC 703 - the protection of the identity of victims and witnesses.*

PART E

TRIAL STAGE

Formats E-42 to E-52

FORMAT E-42 — APPLICATION FOR DISCHARGE IN A WARRANT CASE (INSTITUTED ON A POLICE REPORT)

Trial Stage

IN THE COURT OF THE ....., (DISTRICT .....)
CRIMINAL CASE NO. ..... OF 20.....
IN THE MATTER OF:
....., S/o ....., R/o ....
APPLICANT / ACCUSED
THE STATE .... RESPONDENT
POLICE STATION .....
FIR NO. ..... OF 20..... UNDER SECTION ..... BNS

APPLICATION FOR DISCHARGE UNDER SECTION 262 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant/accused is facing trial in the above-noted case instituted on a police report, the Final Report under Section 193(3), BNSS, 2023 having been filed before this Hon'ble Court on ....., for the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023.

2. That the copies of the police report and the documents relied upon by the prosecution were supplied to the applicant on ....., in terms of Section 230, BNSS, 2023, and the present application is being filed within the period of sixty days from the date of such supply, as required by Section 262(1), BNSS, 2023, read with Section 261, BNSS, 2023.

3. That Section 262(1) and 262(2), BNSS, 2023 provide that the accused may prefer an application for discharge within a period of sixty days from the date of supply of copies of documents under Section 230, and that if, upon considering the police report and the documents sent with it under Section 193 and making such examination, if any, of the accused as the Magistrate thinks necessary and after giving the prosecution and the accused an opportunity of being heard, the Magistrate considers the charge against the accused to be groundless, he shall discharge the accused and record his reasons for so doing.

4. That the charge against the applicant is groundless, and the material placed before this Hon'ble Court by the prosecution, taken at its highest, does not disclose the commission of the offences alleged, for the following amongst other reasons:

   (A) THAT THE ESSENTIAL INGREDIENTS OF THE OFFENCE ARE NOT MADE OUT: The offence alleged under Section ..... of the Bharatiya Nyaya Sanhita, 2023 requires the existence of the following essential ingredients, namely: (i) .....; (ii) .....; (iii) ..... Not one of the said ingredients is made out from the material placed on record. In particular, there is no material whatsoever to establish ..... (specify the missing ingredient, with reference to the language of the section).

   (B) THAT NO SPECIFIC OVERT ACT IS ATTRIBUTED TO THE APPLICANT: A bare perusal of the FIR and of the statements of the witnesses recorded under Section 180, BNSS, 2023 shows that the allegations against the applicant are vague, general and omnibus. The applicant has been implicated merely because ..... (e.g., the applicant is the husband/brother/associate of the main accused; the applicant is a Director of the Company; the applicant resides at the address in question). The Hon'ble Supreme Court has repeatedly held that a person cannot be put to trial on the basis of vague and general allegations, and that the Court must insist upon specific allegations against each accused.

   (C) THAT THE MATERIAL RELIED UPON IS INADMISSIBLE IN EVIDENCE: The principal material relied upon by the prosecution against the applicant is the statement of the co-accused recorded during the

investigation, which is inadmissible in evidence and cannot form the basis of the framing of a charge against the applicant, the applicant not being jointly tried with the maker of the statement in the manner contemplated by law.

(D) THAT THE DISPUTE IS ESSENTIALLY CIVIL IN NATURE: The dispute between the applicant and the complainant is essentially of a civil/commercial nature, arising out of ..... (specify - e.g., a breach of contract, a partnership dispute, a family property dispute, a matrimonial dispute), and the criminal proceedings have been instituted with the object of coercing the applicant to accede to the unlawful demands of the complainant. The existence of the civil remedy is a relevant circumstance which this Hon'ble Court may take note of, and criminal proceedings which are manifestly an abuse of the process cannot be permitted to continue.

(E) THAT THE PROSECUTION'S OWN MATERIAL DOES NOT SUPPORT THE ALLEGATION: The documents relied upon by the prosecution themselves contradict the allegations, in that ..... (point out the specific contradictions - e.g., the sale deed relied upon by the complainant himself shows that the property was transferred much prior to the alleged date of the offence; the bank statement shows that the entire amount was paid by the applicant; the medical report does not corroborate the alleged injury).

(F) THAT THE INVESTIGATION IS TAINTED: The investigation has been conducted in a wholly arbitrary and partisan manner, in that the investigating officer has not collected the material pointed out by the applicant, has not examined the material witnesses cited by the applicant, and has recorded the statements of the witnesses after a considerable delay and in a manner that suggests tutoring.

(G) THAT THE APPLICATION OF THE PROSECUTION'S OWN STATEMENTS SHOWS THAT THE APPLICANT WAS NOT PRESENT AT THE SPOT: As per the statement of ..... recorded under Section 180, BNSS, 2023, the applicant was not present at the place of occurrence at the relevant time, and was, in fact, at ....., as is evident from ..... (specify the material - e.g., the attendance register, the call detail records, the travel documents).

5. That the law relating to discharge is well settled, namely that at the stage of framing of the charge, the Court must consider the material on record and apply its judicial mind; the Court must not act as a mere post office and must consider the nature of the material and whether the same, taken at its face value, would be sufficient to make out the ingredients of the offence. If the material does not disclose the commission of the offence, the accused must be discharged, and the Court must record its reasons for so doing.

6. That the applicant has been subjected to the rigours of a criminal prosecution for a period of ..... and the applicant's reputation and standing in society have been seriously affected. The applicant is a law-abiding citizen with no criminal antecedents, and the continuation of the proceedings would amount to an abuse of the process of this Hon'ble Court.

7. That no useful purpose would be served by framing a charge against the applicant and proceeding to trial, which would entail unnecessary expense, delay and harassment to the applicant, whereas the discharge of the applicant would not prejudice the prosecution in any manner.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) discharge the applicant/accused from the above-noted case in terms of Section 262 of the Bharatiya Nagarik Suraksha Sanhita, 2023, the charge against the applicant being groundless;

(ii) deliver a copy of the order of discharge to the applicant free of cost, in terms of Section 404(1), BNSS, 2023; and

(iii) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / ACCUSED
THROUGH
ADVOCATE
Place: .....

Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) An application for discharge in a warrant case instituted on a police report is now to be filed within sixty days of the supply of copies under Section 230, BNSS, 2023. (ii) The accused is also entitled to an opportunity of being heard before the framing of the charge. (iii) The Court's power to discharge is to be exercised on a consideration of the police report and the material sent with it, and the Court must record reasons. (iv) The Court is not required to conduct a mini-trial, but must satisfy itself that a prima facie case exists. (v) 'Groundless' means that the material on record does not make out even a prima facie case against the accused. (vi) Where the application for discharge is rejected, the Court shall frame the charge, and the accused may challenge the order of framing of the charge in revision/appeal, though the scope is limited.]

CR.P.C. EQUIVALENT

Old Section 239, Cr.P.C., 1973 -> Section 262, BNSS, 2023. NOTE: The BNSS, 2023 has introduced a time limit of sixty days for preferring an application for discharge.

PRECEDENTS REFERRED TO

- *State of Bihar v. Ramesh Singh, (1977) 4 SCC 39 - at the stage of framing of the charge, the Court must apply its mind and satisfy itself that there is a prima facie case.*
- *Union of India v. Prafulla Kumar Samal, (1979) 3 SCC 4 - the scope of the enquiry at the stage of framing of the charge; the Court must consider the material collected by the police and the documents produced.*
- *Dilawar Balu Kurane v. State of Maharashtra, (2002) 2 SCC 135 - the Court must consider the material on record and cannot act as a mere post office; the accused must be discharged if the material does not disclose the offence.*
- *Sajjan Kumar v. CBI, (2010) 9 SCC 368 - the Court must read the material as a whole and not in a piecemeal manner.*
- *Stree Atyachar Virodhi Parishad v. Dilip Nathumal Chordia, (1989) 1 SCC 715 - the Court should not enter into the merits of the material at the stage of framing of the charge.*

FORMAT E-43 — APPLICATION FOR DISCHARGE IN A SESSIONS CASE

Trial Stage

IN THE COURT OF THE LEARNED SESSIONS JUDGE, ..., (DISTRICT .....)

SESSIONS CASE NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....

APPLICANT / ACCUSED

THE STATE .... RESPONDENT

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... BNS

APPLICATION FOR DISCHARGE UNDER SECTION 250 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant/accused is facing trial before this Hon'ble Court in the above-noted case, which has been committed to this Hon'ble Court under Section 232, BNSS, 2023 vidé order dated ....., for offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023.

2. That Section 250(1), BNSS, 2023 provides that the accused may prefer an application for discharge within a period of sixty days from the date of commitment of the case under Section 232, BNSS, 2023. The present application is being filed within the said period and is therefore maintainable.

3. That Section 250(2), BNSS, 2023 provides that if, upon consideration of the record of the case and the documents submitted therewith, and after hearing the submissions of the accused and the prosecution in this behalf, the Judge considers that there is not sufficient ground for proceeding against the accused, he shall discharge the accused and record his reasons for so doing.

4. That there is not sufficient ground for proceeding against the applicant, in that:

   (i) THE MATERIAL ON RECORD DOES NOT DISCLOSE THE COMMISSION OF THE OFFENCE ALLEGED: The prosecution's own material, including the statements of the witnesses recorded under Section 180, BNSS, 2023, the seizure memos, the medical evidence and the forensic reports, does not establish the ingredients of the offence alleged under Section ..... of the Bharatiya Nyaya Sanhita, 2023, namely: (a) .....; (b) .....; and (c) .....

   (ii) NO SPECIFIC ROLE IS ATTRIBUTED TO THE APPLICANT: The applicant has been implicated in the case on the basis of vague and omnibus allegations. The statements of the witnesses cited by the prosecution attribute the principal role to ..... (name), and no specific act has been attributed to the applicant. The Hon'ble Supreme Court has consistently held that a charge cannot be framed against an accused on the basis of general and vague allegations.

   (iii) THE EVIDENCE RELIED UPON IS INADMISSIBLE: The prosecution relies upon the statement of ..... recorded under Section 183, BNSS, 2023, which is inadmissible against the applicant; further, the electronic evidence relied upon has not been supported by the certificate under Section 63 of the Bharatiya Sakshya Adhiniyam, 2023, and is therefore inadmissible.

   (iv) THE MATERIAL IS SELF-CONTRADICTORY: The prosecution's own material demonstrates material contradictions, in that ..... (specify).

   (v) THE APPLICANT WAS NOT PRESENT AT THE SCENE OF OCCURRENCE: The material on record establishes that the applicant was at ..... on the date and time of the alleged occurrence, as is evident from .....

(vi) THE PROSECUTION VERSION IS IMPROBABLE AND IS CONTRARY TO HUMAN CONDUCT: ..... (specify).

IN THE ALTERNATIVE AND WITHOUT PREJUDICE:

5. That even if this Hon'ble Court is of the view that there is some material on record, the said material, taken at its highest, would not warrant the framing of a charge against the applicant, and the applicant may be discharged in respect of the offences under Sections ....., while the case may proceed only against the other accused, if any, in respect of whom the material on record is sufficient. The Court has the power to discharge one or more of the accused while proceeding against the others.

6. That the applicant has been facing the ordeal of a criminal prosecution since ....., i.e., for a period of ....., and has suffered irreparable damage to his/her reputation; the applicant is a person of clean antecedents with no criminal record, and the continuation of the proceedings against the applicant would be a travesty of justice.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) discharge the applicant/accused in terms of Section 250 of the Bharatiya Nagarik Suraksha Sanhita, 2023, there being no sufficient ground for proceeding against the applicant;

(ii) in the alternative, discharge the applicant in respect of the offences under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, while proceeding against the other accused, if any; and

(iii) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / ACCUSED
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Under Section 250, BNSS, 2023 the application for discharge in a Sessions case must be preferred within sixty days from the date of commitment under Section 232. (ii) The standard for discharge in a Sessions case is 'not sufficient ground for proceeding', which is a somewhat lower threshold than that applicable to a warrant case in terms of the material considered; however, the principles laid down in Prafulla Kumar Samal and Dilawar Balu Kurane apply. (iii) The Judge must consider the record of the case and the documents submitted therewith, and must hear the accused and the prosecution before passing the order. (iv) Where the Judge does not discharge the accused, he shall frame the charge in writing, in terms of Section 251(1)(b), BNSS, 2023, and shall do so within sixty days from the date of the first hearing on charge. (v) The charge must be read and explained to the accused, who may be present either physically or through audio-video electronic means, in terms of Section 251(2), BNSS, 2023.]

CR.P.C. EQUIVALENT

Old Section 227, Cr.P.C., 1973 -> Section 250, BNSS, 2023. Old Section 228 -> Section 251, BNSS, 2023. Old Section 209 (commitment) -> Section 232, BNSS, 2023.

PRECEDENTS REFERRED TO

- *Union of India v. Prafulla Kumar Samal, (1979) 3 SCC 4 - the scope of the inquiry at the stage of discharge/framing of the charge in a Sessions case.*
- *Dilawar Balu Kurane v. State of Maharashtra, (2002) 2 SCC 135 - the Court must apply its mind to the material on record; a mechanical approach is impermissible.*
- *Sheoraj Singh Ahlawat v. State of U.P., (2013) 11 SCC 476 - the Court must not conduct a roving inquiry or a mini-trial at the stage of framing of the charge.*
- *State of Karnataka v. M.R. Hiremath, (2019) 7 SCC 515 - the Court must consider the material on record and the defence of the accused; the test is whether there is sufficient ground for proceeding.*

FORMAT E-44 — APPLICATION FOR RECALL / RE-EXAMINATION OF A WITNESS AND FOR SUMMONING MATERIAL WITNESS

Trial Stage

IN THE COURT OF ....., (DISTRICT .....)

CRIMINAL CASE NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....

APPLICANT / ACCUSED

THE STATE .... RESPONDENT

FIR NO. ..... OF 20....., POLICE STATION .....

APPLICATION FOR RECALL OF WITNESS / SUMMONING OF MATERIAL WITNESS UNDER SECTION 348 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant/accused is facing trial in the above-noted case for offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, and the trial is at the stage of the evidence of the prosecution/defence.

2. That Section 348, BNSS, 2023 (old Section 311, Cr.P.C.) provides that any Court may, at any stage of any inquiry, trial or other proceeding under the Sanhita, summon any person as a witness, or examine any person in attendance, though not summoned as a witness, or recall and re-examine any person already examined; and the Court shall summon and examine or recall and re-examine any such person if his evidence appears to it to be essential to the just decision of the case.

3. That the following witness(es), namely ..... (name and particulars), is/are material and essential for the just decision of the case, in that the said witness(es) ..... (set out the specific relevance of the evidence - e.g., is an eye-witness to the occurrence; is the author of the document relied upon by the prosecution; is the person who prepared the forensic report; is the owner of the vehicle involved in the accident; is the doctor who conducted the post-mortem/medical examination; is the custodian of the electronic record).

OR

4. That the witness ....., who was examined before this Hon'ble Court on ....., is required to be recalled and re-examined, in that the following material aspects could not be put to the said witness on account of ..... (state the reason - e.g., the document ..... was produced/proved after the examination of the witness; the certified copy of ..... was obtained on .....; the evidence of the subsequent witness ..... has rendered the re-examination of the said witness necessary; the witness has, in his evidence, referred to a document, namely ....., which was not available at the time of his examination), and the recall of the said witness is essential for the just decision of the case.

5. That the evidence sought to be elicited from the witness is directly relevant to the issues involved in the case and would assist this Hon'ble Court in arriving at the truth. The application is not being made with the object of delaying the trial or of filling up the lacunae in the defence, but is bona fide and necessary.

6. That the power under Section 348, BNSS, 2023 is a salutary power conferred upon the Court with the object of discovering the truth and doing justice, and it is well settled that the said power is not fettered by any limitation as to the stage at which it may be exercised; the only precondition is that the evidence must appear to the Court to be essential to the just decision of the case.

7. That the Hon'ble Supreme Court has held that the power under Section 311, Cr.P.C. (now Section 348, BNSS, 2023) is to be exercised liberally and that if the evidence is essential for the just decision of the case, the Court must summon and examine the witness, notwithstanding that the application is made at a belated stage; the Court must, however, not exercise the power to cause prejudice to the accused or to fill up the lacunae in the prosecution case.

8. That the applicant undertakes to bear the costs of the summoning and examination of the said witness, and to abide by such conditions as this Hon'ble Court may impose, including the condition of payment of the costs to the witness/complainant.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) summon ....., S/o ....., R/o ....., as a witness in the above-noted case, and permit the examination of the said witness/direction for the production of the documents, namely ....., in terms of Section 348 of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) in the alternative, recall and re-examine the witness ....., who was examined before this Hon'ble Court on ....., for the purposes of putting the questions and the documents which could not be put at the time of the original examination, the evidence of the said witness being essential for the just decision of the case;

(iii) issue the appropriate summons/process to the said witness and direct the prosecution/defence, as the case may be, to produce the necessary documents; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / ACCUSED
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) The discretion under Section 348, BNSS, 2023 is very wide and is to be exercised to discover the truth. The Court may act on its own motion as well. (ii) The application should be specific as to the name of the witness, the purpose of the examination and the relevance of the evidence. (iii) Where the application is made at the instance of the accused, the Court should ordinarily grant it if the evidence is essential, subject to costs. (iv) The Court must record reasons for allowing or rejecting the application. (v) The power cannot be exercised to fill up the lacunae in the prosecution case or to cause prejudice to the accused. (vi) An order rejecting a bona fide application under Section 348 is a curable irregularity only if no prejudice is caused; otherwise, it may vitiate the trial.]

CR.P.C. EQUIVALENT

Old Section 311, Cr.P.C., 1973 -> Section 348, BNSS, 2023.

PRECEDENTS REFERRED TO

- *Mohanlal Shamji Soni v. Union of India, 1991 Supp (1) SCC 271 - the scope of Section 311, Cr.P.C.; the power must be exercised liberally to discover the truth.*
- *Rajendra Prasad v. Narcotic Cell, (1999) 6 SCC 110 - the power under Section 311 is not to be exercised to fill up the lacunae in the prosecution case or to cause prejudice to the accused.*
- *U.T. of Dadra & Nagar Haveli v. Fatehsinh Mohansinh Chauhan, (2006) 7 SCC 529 - the power under Section 311 is discretionary and is to be exercised in the interests of justice.*
- *Iddar v. Aabida, (2007) 11 SCC 215 - the recall of a witness for cross-examination; the test of necessity.*
- *Varsha Garg v. State of M.P., (2022) SCC OnLine SC 986 - the Court's power to summon a witness; the principles to be applied.*

FORMAT E-45 — APPLICATION FOR COMPOUNDING OF OFFENCES

Trial Stage

IN THE COURT OF ....., (DISTRICT .....)

CRIMINAL CASE NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....

APPLICANT NO. 1 / ACCUSED

....., S/o ....., R/o ....

APPLICANT NO. 2 / COMPLAINANT-VICTIM

THE STATE .... RESPONDENT

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... BNS

APPLICATION FOR COMPOUNDING OF OFFENCES UNDER SECTION 359 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant No. 1 is the accused and the applicant No. 2 is the complainant/victim in the above-noted case, which is registered/being tried for the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023.

2. That the dispute between the parties was essentially a private/family/matrimonial/neighbourhood dispute, arising out of ..... (give a brief background of the dispute), and the same was, in fact, a dispute between the parties personally, and not a dispute affecting the public at large or the interests of the State.

3. That during the pendency of the proceedings, the parties, at the intervention of the elders/well-wishers of the locality, namely ....., have amicably settled the dispute between them, and the applicant No. 1 has ..... (state the terms of settlement - e.g., paid a sum of Rs. ..... to the applicant No. 2 by way of full and final settlement; tendered an unconditional apology; returned the articles/property; executed the requisite documents; withdrawn the civil suit/complaint).

4. That the applicant No. 2, being the complainant/victim and the person aggrieved, has, of his/her own free will and volition, without any coercion, undue influence or inducement, agreed to compound the offences and has no objection whatsoever to the compounding of the offences and to the acquittal of the applicant No. 1.

5. That the offences alleged against the applicant No. 1, namely the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, are compoundable offences, being offences specified in the Table to Section 359(1) of the Bharatiya Nagarik Suraksha Sanhita, 2023, which may be compounded by the persons specified in the third column of the said Table; the applicants herein are the persons competent to compound the said offences.

6. That the applicants state that the compromise was arrived at voluntarily and that the applicants have understood the nature and consequences of the compounding, and that the compounding would not be prejudicial to the interest of any other person. The applicants have also filed the compromise deed/affidavit of the parties recording the terms of the settlement, annexed hereto as ANNEXURE A.

7. That the compounding of the offences would subserve the ends of justice, bring peace and harmony between the parties, and would also relieve this Hon'ble Court of the burden of a long trial, and the Hon'ble Supreme Court has repeatedly encouraged the settlement of private disputes in criminal cases, particularly in matrimonial and family disputes, so as to bring about lasting peace between the parties.

[WHERE THE OFFENCE IS NOT COMPOUNDABLE BY THE PARTIES BUT PERMISSION OF THE COURT IS REQUIRED:]

8. That the offence alleged, namely the offence punishable under Section ..... of the Bharatiya Nyaya Sanhita, 2023, is compoundable with the permission of this Hon'ble Court, and having regard to the fact that (i) the dispute was of a private nature and did not affect the public at large; (ii) the parties have amicably settled the dispute; (iii) the compounding would not be contrary to the public interest; and (iv) the applicant No. 2, being the victim, has willingly consented, this Hon'ble Court may be pleased to grant permission for the compounding of the said offence.

[WHERE THE OFFENCE IS NOT COMPOUNDABLE UNDER LAW:]

9. That in respect of the offences which are not compoundable under Section 359, BNSS, 2023, the applicant does not seek compounding, but places on record the amicable settlement of all the disputes between the parties and the fact that the applicant No. 2 has no grievance subsisting, which is a relevant circumstance for the purpose of the sentence to be imposed upon the applicant No. 1, and the applicant No. 1 would accordingly pray for the benefit of the settlement while urging the question of sentence.

10. That the applicants jointly pray that the offences be compounded and the applicant No. 1 be acquitted of the charges in terms of Section 359(2), BNSS, 2023, which provides that where an offence has been compounded, the accused shall stand acquitted and no further proceedings shall be taken against him in respect of that offence.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) allow the compounding of the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, in terms of Section 359 of the Bharatiya Nagarik Suraksha Sanhita, 2023, the same being compoundable offences, and the parties having amicably settled the dispute;

(ii) in the alternative, grant permission for the compounding of the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, in terms of the Table to Section 359(1), BNSS, 2023, the compounding being in the interest of justice;

(iii) acquit the applicant No. 1 of the offences so compounded, in terms of Section 359(2), BNSS, 2023, and direct that no further proceedings be taken against the applicant No. 1 in respect of the said offences;

(iv) in respect of the offences which are not compoundable, take on record the amicable settlement between the parties, and consider the same while determining the question of sentence; and

(v) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT NO. 1 / ACCUSED
APPLICANT NO. 2 / COMPLAINANT
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 359, BNSS, 2023 (old Section 320, Cr.P.C.) contains a Table of compoundable offences, specifying in the third column the person by whom the offence may be compounded. (ii) Offences compoundable 'with the permission of the Court' require the Court to consider whether the compounding would be in the interest of justice; the Court must consider the nature of the offence, the conduct of the accused, the interest of the victim and the public interest. (iii) On compounding, the accused stands acquitted, and no further proceedings can be taken against him in respect of that offence - Section 359(2). (iv) The composition may be effected at any time before the sentence is pronounced. (v) The Court must be satisfied that the compromise is voluntary and genuine; the Court may examine the parties to satisfy itself as to the voluntariness of the compromise, particularly where the accused is in custody or where the victim is a woman or a child. (vi) In respect of offences which are not compoundable, an acquittal cannot be recorded on the basis of a compromise, though the settlement may be

taken into account while considering the question of sentence, subject to the settled law that a compromise cannot be a ground for acquittal in serious and non-compoundable offences. (vii) For the offences under the Protection of Women from Domestic Violence Act, 2005 and the POCSO Act, 2012, the specific provisions of those Acts will apply.]

CR.P.C. EQUIVALENT

Old Section 320, Cr.P.C., 1973 -> Section 359, BNSS, 2023.

PRECEDENTS REFERRED TO

- *Gian Singh v. State of Punjab, (2012) 10 SCC 303 - the compounding and quashing of criminal proceedings on the basis of a compromise; the principles governing the exercise of the power.*
- *Narinder Singh v. State of Punjab, (2014) 6 SCC 466 - guidelines for quashing on the ground of a compromise in non-compoundable offences.*
- *State of M.P. v. Laxmi Narayan, (2019) 5 SCC 688 - the principles relating to the exercise of the power to quash on the basis of a settlement, particularly in heinous offences.*
- *Ramgopal v. State of M.P., 2021 SCC OnLine SC 834 - the compounding of a matrimonial dispute and the effect thereof.*

FORMAT E-46 — APPLICATION FOR PLEA BARGAINING

Trial Stage

IN THE COURT OF ....., (DISTRICT .....)

CRIMINAL CASE NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....

APPLICANT / ACCUSED

THE STATE .... RESPONDENT

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... BNS

APPLICATION FOR PLEA BARGAINING UNDER SECTION 290 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant/accused has been ..... (summoned/arrested) in the above-noted case for the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, and the applicant has been charged with the said offences.

2. That the applicant is desirous of invoking the provisions of Chapter XXIII of the Bharatiya Nagarik Suraksha Sanhita, 2023 (Sections 289 to 300), relating to plea bargaining, and of making an application under Section 290 of the said Sanhita for plea bargaining.

3. That Section 289, BNSS, 2023 provides that Chapter XXIII shall not apply to offences (i) under the Bharatiya Nyaya Sanhita, 2023 or any other law for the time being in force, where the maximum punishment is death, imprisonment for life or imprisonment for a term exceeding seven years; (ii) to offences under the Protection of Children from Sexual Offences Act, 2012; (iii) to offences under the following other enactments, namely the Commission of Sati Prevention Act, 1987; the Dowry Prohibition Act, 1961; the Indecent Representation of Women (Prohibition) Act, 1986; the Immoral Traffic (Prevention) Act, 1956; the Protection of Women from Domestic Violence Act, 2005; the Scheduled Castes and the Scheduled Tribes (Prevention of Atrocities) Act, 1989; and (iv) where the offence relates to a socio-economic offence.

4. That the offences alleged against the applicant are punishable with imprisonment for a term not exceeding seven years, and the present case does not fall within the category of the offences excluded by Section 289, BNSS, 2023, in that: (i) the maximum punishment prescribed for the offences alleged is ..... (which is not more than seven years, and which does not extend to death or imprisonment for life); (ii) the offence is not punishable under any of the enactments specified in Section 289; and (iii) the offence is not a socio-economic offence. The application is therefore maintainable.

5. That the applicant is making this application voluntarily, of his/her own free will, and after receiving independent legal advice, and the applicant has not been subjected to any coercion, inducement or threat of any nature whatsoever. The applicant has understood the nature and consequences of plea bargaining, namely that (i) the Court may award a sentence of imprisonment which is reduced to one-half of the minimum sentence or one-fourth of the maximum sentence, whichever is lesser, and in the case of a sentence of fine, one-half of the maximum fine; and (ii) the applicant shall not be entitled to appeal against the judgment, save as provided in Section 295, BNSS, 2023.

6. That the applicant has made this application out of his/her own volition and in the interest of expediting the disposal of the case, and the applicant undertakes to abide by the terms and conditions which may be imposed by this Hon'ble Court. The applicant has also filed the affidavit/statement in support of the

present application.

7. That Section 290(1), BNSS, 2023 provides that a person accused of an offence may file an application for plea bargaining in the Court in which such offence is pending for trial. Section 290(2) requires the application to contain a brief description of the case relating to which the application is filed, including the offences to which the case relates. Section 290(3) provides for the notice to the Public Prosecutor and to the accused to appear on the date fixed for the hearing of the application.

8. That Section 291, BNSS, 2023 provides for the guidelines for a mutually satisfactory disposition, and Section 293 provides for the disposal of the case in accordance with the said disposition, and Section 294 provides for the judgment of the Court.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) allow the present application for plea bargaining filed under Section 290 of the Bharatiya Nagarik Suraksha Sanhita, 2023, and proceed in accordance with the provisions of Chapter XXIII thereof;

(ii) issue notice to the Public Prosecutor and to the complainant/victim, and fix a date for the hearing of the application and for the working out of a mutually satisfactory disposition in terms of Section 291, BNSS, 2023;

(iii) in the event of a mutually satisfactory disposition being arrived at, dispose of the case in accordance with Sections 293 and 294, BNSS, 2023, and award the sentence as provided in Section 296, BNSS, 2023; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / ACCUSED
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Chapter XXIII (Sections 289 to 300) of the BNSS, 2023 corresponds to Chapter XXIA of the Cr.P.C., 1973. (ii) Section 289 specifies the offences to which the Chapter does not apply; the categories must be carefully checked before filing the application. (iii) Section 290 requires the application to be filed in the Court in which the offence is pending for trial; the Court shall then examine the accused in camera to satisfy itself that the application has been filed voluntarily. (iv) Section 291 provides for the holding of a meeting for the purpose of working out a mutually satisfactory disposition; the Court may give time to the parties to work out a mutually satisfactory disposition after such meeting. (v) Section 296 provides for the power of the Court to award a sentence of imprisonment reduced to one-half of the minimum sentence, or one-fourth of the maximum sentence, whichever is lesser, and, in the case of a sentence of fine, to one-half of the maximum fine. (vi) Section 294 provides that the judgment shall be delivered in the open Court; Section 295 provides that the judgment shall be final and no appeal shall lie, save as provided. (vii) A plea of guilty under plea bargaining does not amount to a conviction for the purposes of disqualification, save as provided in Section 300, BNSS, 2023.]

CR.P.C. EQUIVALENT

Old Sections 265A to 265L, Cr.P.C., 1973 -> Sections 289 to 300, BNSS, 2023.

PRECEDENTS REFERRED TO

- *State of Gujarat v. Natwar Harchandji Thakor, (2005) 4 SCC 59 - the object and scope of plea bargaining; the Court must satisfy itself of the voluntariness of the plea.*
- *Kachhiya Patidar v. State - the object of the introduction of plea bargaining is to expedite the disposal of criminal cases.*

FORMAT E-47 — APPLICATION FOR WITHDRAWAL FROM PROSECUTION (BY THE PUBLIC PROSECUTOR)

Trial Stage

IN THE COURT OF ....., (DISTRICT .....)

CRIMINAL CASE NO. ..... OF 20.....

IN THE MATTER OF:

THE STATE ....., THROUGH THE PUBLIC PROSECUTOR, ... COURTS ..... APPLICANT / PROSECUTION

....., S/o ....., R/o .... ACCUSED / RESPONDENT

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... BNS

APPLICATION FOR WITHDRAWAL FROM PROSECUTION UNDER SECTION 360 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the accused ..... is facing trial in the above-noted case for the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023.

2. That the present application for withdrawal from the prosecution is being moved on the instructions of the ..... Government conveyed vide letter/order No. ..... dated ..... issued by ..... (the competent authority), a copy whereof is annexed hereto as ANNEXURE A.

3. That Section 360(1), BNSS, 2023 provides that the Public Prosecutor or Assistant Public Prosecutor in charge of a case may, with the consent of the Court, at any time before the judgment is pronounced, withdraw from the prosecution of any person either generally or in respect of any one or more of the offences for which he is tried; and that upon such withdrawal, (a) if it is made before a charge has been framed, the accused shall be discharged in respect of such offence or offences; and (b) if it is made after a charge has been framed, or when under the Sanhita no charge is required, he shall be acquitted in respect of such offence or offences.

4. That the reasons for seeking the withdrawal of the prosecution are as under:

   (i) THAT THE OFFENCES ALLEGED ARISE OUT OF A DISPUTE WHICH WAS ESSENTIALLY OF A PRIVATE/FAMILY/MATRIMONIAL NATURE, and the parties have since amicably settled the dispute, and the continuation of the prosecution would serve no useful purpose and would, instead, perpetuate the animosity between the parties and defeat the object of reformation and rehabilitation;

   (ii) THAT THE GOVERNMENT, UPON A CONSIDERATION OF ALL THE RELEVANT MATERIALS, INCLUDING THE REPORT OF THE INVESTIGATING AGENCY AND THE VIEWS OF THE COMPLAINANT/VICTIM, has come to the conclusion that the prosecution of the accused would not be in the larger public interest;

   (iii) THAT THE CONTINUATION OF THE PROSECUTION WOULD NOT SUB-SERVE THE ENDS OF JUSTICE and would result in the unnecessary expenditure of the time of this Hon'ble Court and of the State machinery.

5. That the withdrawal from the prosecution is sought in the larger public interest and in the interest of justice, and not for any extraneous consideration or to confer any undue benefit upon the accused. The decision has been taken by the competent authority upon a consideration of the relevant material placed before it, and the relevant file/noting is annexed hereto as ANNEXURE B.

6. That the Hon'ble Supreme Court has held that the power to withdraw from the prosecution under Section 321, Cr.P.C. (now Section 360, BNSS, 2023) is to be exercised in the larger public interest and that the Court is required to satisfy itself that the withdrawal is being sought in good faith, in the public interest, and not for a collateral purpose. The Court is not a mere post office and must apply its judicial mind to the reasons disclosed.

7. That the present application is bona fide and is being made with the consent of the competent authority, and the same may kindly be allowed in the larger public interest and in the interest of justice.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) grant permission for the withdrawal from the prosecution of the accused ..... in respect of the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, in terms of Section 360 of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) in consequence thereof, discharge the accused, if the withdrawal is before the framing of the charge, or acquit the accused, if the withdrawal is after the framing of the charge, in terms of Section 360(1)(a) and (b), BNSS, 2023; and

(iii) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

PUBLIC PROSECUTOR
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 360, BNSS, 2023 (old Section 321, Cr.P.C.) requires the consent of the Court for withdrawal, and the Court must apply its judicial mind to the reasons disclosed in the application/instructions. (ii) The Court must be satisfied that the withdrawal is in the public interest and is not motivated by extraneous considerations; the Court cannot surrender its discretion to the executive. (iii) The Court is entitled to examine the record and the reasons and to refuse consent if it is satisfied that the withdrawal is not in the public interest. (iv) Where the withdrawal is sought on the ground of a compromise, in offences of a private nature, the Court may accede to the same if satisfied as to the genuineness of the compromise. (v) The withdrawal may be in respect of one or more of the offences, or in respect of one or more of the accused.]

CR.P.C. EQUIVALENT

Old Section 321, Cr.P.C., 1973 -> Section 360, BNSS, 2023.

PRECEDENTS REFERRED TO

- *Sheonandan Paswan v. State of Bihar, (1987) 1 SCC 288 - the scope of the power to withdraw from the prosecution; the Court's duty to apply its judicial mind.*
- *State of Punjab v. Union of India, (1986) 4 SCC 335 - the consent of the Court under Section 321; the Court is not a post office.*
- *Rajender Kumar Jain v. State, (1980) 3 SCC 435 - the Court must apply its mind to the reasons disclosed and must not act mechanically.*
- *B.A. Linga Reddy v. Karnataka State Transport Authority, (2014) 15 SCC 193 - the exercise of the power of withdrawal and the requirement of the larger public interest.*

FORMAT E-48 — APPLICATION FOR RECORDING OF EVIDENCE / EXAMINATION THROUGH AUDIO-VIDEO ELECTRONIC MEANS

Trial Stage

IN THE COURT OF ....., (DISTRICT .....)

CRIMINAL CASE NO. ..... OF 20.....

IN THE MATTER OF:

THE STATE ....., THROUGH THE PUBLIC PROSECUTOR / ....., THE COMPLAINANT ..... APPLICANT

....., S/o ....., R/o ....

ACCUSED / RESPONDENT

FIR NO. ..... OF 20....., POLICE STATION .....

APPLICATION FOR RECORDING OF EVIDENCE THROUGH AUDIO-VIDEO ELECTRONIC MEANS UNDER SECTIONS 254, 265 AND 530 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the above-noted case is pending trial before this Hon'ble Court, and the stage of the trial is .....

2. That the witness ....., ... (designation/particulars of the witness), who has been cited as a witness by the ..... and whose evidence is material for the just decision of the case, is unable to appear before this Hon'ble Court in person on account of the following reasons:

   (i) THAT THE WITNESS IS RESIDING OUTSIDE THE TERRITORIAL JURISDICTION OF THIS HON'BLE COURT, at a distance of ..... kms, namely at ....., and the witness's presence cannot be secured without causing grave inconvenience, expense and delay;

   (ii) THAT THE WITNESS IS A VICTIM/WITNESS IN A CASE OF A SEXUAL OFFENCE OR IS A CHILD, and the presence of the witness in the Court in the presence of the accused would cause grave emotional trauma and would be prejudicial to the interest of the witness, and the recording of the evidence through audio-video electronic means would be in the interest of the witness;

   (iii) THAT THE WITNESS IS INCAPACITATED/ILL and is unable to travel, as is evident from the medical certificate annexed hereto;

   (iv) THAT THE WITNESS IS A SCIENTIFIC/GOVERNMENT EXPERT who is required to prove ..... and whose examination through audio-video electronic means would be expeditious.

3. That Section 530(1), BNSS, 2023 provides that all trials, inquiries and proceedings under the Sanhita, including appellate proceedings, may be held in electronic mode, by use of electronic communication or audio-video electronic means, and that the provisions of the Sanhita shall be construed accordingly. The said provision is a significant reform introduced by the BNSS, 2023, which recognises the use of technology in the judicial process.

4. That Section 530(2), BNSS, 2023 provides that the evidence of a witness may be recorded through audio-video electronic means, and Section 254(1), BNSS, 2023 (in respect of the trial before the Court of Session) and Section 265 (in respect of the trial of warrant-cases by Magistrates) similarly provide for the recording of the evidence through audio-video electronic means, subject to the satisfaction of the Court.

5. That the Hon'ble Supreme Court, in its decisions, has encouraged the use of video conferencing for the recording of evidence, and has held that the recording of evidence through video conferencing is permissible and does not, by itself, cause prejudice to the accused, provided the safeguards relating to the

identification of the witness, the opportunity of cross-examination and the maintenance of the record are observed.

6. That the recording of the evidence of the said witness through audio-video electronic means would expedite the trial, would reduce the cost and inconvenience to the witness, and would not prejudice the accused in any manner, as the accused would have the full opportunity to cross-examine the witness.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) permit the recording of the evidence of the witness ..... through audio-video electronic means, in terms of Sections 254, 265 and 530 of the Bharatiya Nagarik Suraksha Sanhita, 2023, on such date and in such manner as this Hon'ble Court may direct;

(ii) direct that the video conferencing facility available in the Court complex/the concerned Court/at the ..... (NIC centre, ...) be utilised for the said purpose, and direct the ..... (the Court/authority having the facility) to make the necessary arrangements;

(iii) direct that the recording of the said evidence be duly preserved in the electronic form along with the certificate under Section 63 of the Bharatiya Sakshya Adhiniyam, 2023, and that a transcript/record thereof be placed on the record of the case;

(iv) direct that the necessary arrangements be made for the identification of the witness and for the administration of the oath, and for the presence of the interpreter, if required; and

(v) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT
THROUGH
ADVOCATE / PUBLIC PROSECUTOR
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 530, BNSS, 2023 is a new provision and permits trials, inquiries and proceedings to be held in electronic mode. (ii) The Court must be satisfied that the recording through audio-video means would not prejudice the accused; the Court may impose conditions, including the presence of the Advocate of the accused at the remote location, the presence of an officer identified by the Court, and the recording and preservation of the proceedings. (iii) In respect of the evidence of a witness who is a child or a victim of a sexual offence, the provisions of the POCSO Act, 2012 (Sections 33 and 36) and of Sections 366 and 397, BNSS, 2023 will additionally apply. (iv) The Court may also record the evidence of the witness through video conferencing where the witness is outside India, subject to the provisions of Sections 319 to 325, BNSS, 2023 relating to commissions and the provisions relating to foreign commissions. (v) The directions/guidelines issued by the Hon'ble High Court concerned with respect to video conferencing must be complied with.]

CR.P.C. EQUIVALENT

New provision. Section 530, BNSS, 2023 corresponds broadly to the practice of recording evidence through video conferencing, which was earlier regulated by the guidelines of the High Courts and the directions of the Hon'ble Supreme Court. Compare old Section 273, Cr.P.C. (evidence to be taken in the presence of the accused) and Section 327.

PRECEDENTS REFERRED TO

• *State of Maharashtra v. Bandu @ Daulat, (2018) 11 SCC 163 - the recording of evidence through video conferencing is permissible; the safeguards to be observed.*

• *Basavaraj @ Basya v. State of Karnataka - the conditions subject to which evidence can be recorded through video conferencing.*

• *Ram Singh v. Col. Ram Singh, 1985 Supp SCC 611 - the admissibility of tape recordings and the safeguards for electronic evidence.*

• *Sanjay Batham v. Munnalal Parihar, (2011) 10 SCC 665 - the recording of evidence in the presence of the accused and the use of technology.*

FORMAT E-49 — APPLICATION FOR LOCAL INSPECTION OF THE PLACE OF OCCURRENCE

Trial Stage

IN THE COURT OF ....., (DISTRICT .....)

CRIMINAL CASE NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....

APPLICANT / ACCUSED

THE STATE .... RESPONDENT

FIR NO. ..... OF 20....., POLICE STATION .....

APPLICATION FOR LOCAL INSPECTION UNDER SECTION 347 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant/accused is facing trial in the above-noted case for the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, and the evidence of the prosecution/defence is at the stage of .....

2. That the case of the prosecution is that ..... (set out the prosecution version in brief), and the place of occurrence is stated to be ....., having the following physical features: ..... (describe the layout, the dimensions, the location of the rooms/the property/the boundary wall/the alley/the shop/the staircase, etc.).

3. That the defence of the applicant is that the occurrence, as alleged, could not have taken place in the manner deposed to by the prosecution witnesses, on account of the physical features of the place of occurrence, in that: (i) ..... (e.g., the room from which the alleged recovery is stated to have been effected is too small to accommodate the number of persons stated to have been present; (ii) the place of occurrence is not visible from the place from where the alleged eye-witness claims to have witnessed the occurrence, as the said place is separated by a wall/a building/other obstruction; (iii) the distance between the two places is ....., which is beyond the range of visibility in the conditions prevailing at the relevant time).

4. That the local inspection of the place of occurrence is essential for the just decision of the case, as it would enable this Hon'ble Court to appreciate the evidence of the prosecution witnesses in its proper perspective and to satisfy itself as to the truth of the allegations.

5. That Section 347, BNSS, 2023 (old Section 310, Cr.P.C.) provides that any Judge or Magistrate may, at any stage of any inquiry, trial or other proceeding, after due notice to the parties, visit and inspect any place in which an offence is alleged to have been committed, or any other place in which any other transaction material to the inquiry, trial or proceeding is alleged to have been performed, and make a local inspection thereof; and the inspection shall be made in the presence of the parties or their pleaders, and the Judge or Magistrate shall make a memorandum of any relevant fact observed at such inspection, and such memorandum shall form part of the record of the case.

6. That the said provision is intended to enable the Court to have a first-hand knowledge of the physical features of the place of occurrence, and the power is to be exercised liberally where the physical features of the place are material to the decision of the case. The memorandum prepared by the Court would be of great assistance in appreciating the evidence on record.

7. That the applicant undertakes to bear the expenses of the local inspection, including the costs of the transport and of the arrangements, and to abide by all such directions as this Hon'ble Court may give in this behalf.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) direct a local inspection of the place of occurrence, namely ....., in terms of Section 347 of the Bharatiya Nagarik Suraksha Sanhita, 2023, in the presence of the parties or their pleaders, and after due notice to the parties;

(ii) direct that a memorandum of the relevant facts observed at the time of the local inspection be prepared and be made part of the record of the case, in terms of Section 347(2), BNSS, 2023;

(iii) direct the investigating officer to produce the site plan/naksha of the place of occurrence at the time of the local inspection, and to have the site plan verified in the presence of the parties; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / ACCUSED
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 347, BNSS, 2023 corresponds to old Section 310, Cr.P.C. (ii) The local inspection must be made after due notice to the parties and in their presence or in the presence of their pleaders. (iii) The memorandum prepared by the Court is not evidence in the strict sense, but it forms part of the record and may be used by the Court to appreciate the evidence; the parties are entitled to cross-examine the witnesses with reference to the memorandum. (iv) The Court must record the relevant facts observed, and the memorandum must be signed by the Judge/Magistrate. (v) An application for local inspection should be accompanied by a sketch/site plan and photographs of the place, if available, so as to enable the Court to appreciate the physical features.]

CR.P.C. EQUIVALENT

Old Section 310, Cr.P.C., 1973 -> Section 347, BNSS, 2023.

PRECEDENTS REFERRED TO

- *Karan Singh v. State of M.P., (1992) Crl.L.J. 16 - the local inspection is for the purpose of appreciating the evidence and not for collecting fresh evidence.*
- *State of U.P. v. Deoman Upadhyaya, AIR 1960 SC 1125 - the memorandum of local inspection forms part of the record and may be used by the Court.*

FORMAT E-50 — APPLICATION FOR EXAMINATION OF THE ACCUSED'S WITNESSES / DEFENCE EVIDENCE AND FOR ISSUANCE OF SUMMONS TO DEFENCE WITNESSES

Trial Stage

IN THE COURT OF ....., (DISTRICT .....)

CRIMINAL CASE NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....

APPLICANT / ACCUSED

THE STATE .... RESPONDENT

FIR NO. ..... OF 20....., POLICE STATION .....

APPLICATION FOR ISSUANCE OF SUMMONS TO DEFENCE WITNESSES UNDER SECTIONS 270 AND 274 READ WITH SECTION 348 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant/accused is facing trial in the above-noted case, and the prosecution evidence has been concluded/closed by this Hon'ble Court by order dated ....., and the case is now fixed for the recording of the evidence of the defence.

2. That the applicant intends to examine the following witnesses in his/her defence, and the list of the defence witnesses has been/s hereby filed along with this application:

3. 1. ....., S/o ....., R/o ....., Mobile No. ..... - to prove .....;

4. 2. ....., S/o ....., R/o ....., Mobile No. ..... - to prove .....;

5. 3. ....., S/o ....., R/o ....., Mobile No. ..... - to prove .....

   (The purpose of the examination of each witness should be briefly indicated.)

6. That the evidence of the said witnesses is material and essential for the defence of the applicant, and the applicant would be seriously prejudiced in the conduct of his/her defence if the said witnesses are not permitted to be examined.

7. That the applicant also intends to produce the following documentary evidence in his/her defence, namely: (i) .....; (ii) .....; (iii) ....., and the same may be permitted to be produced and proved in accordance with law.

8. That the applicant had earlier filed the list of the defence witnesses on ..... in compliance with the directions of this Hon'ble Court/under the provisions of law, and the present application is being filed for the issuance of the summons to the said witnesses, and for permission to examine the additional witnesses, if any, named hereinabove.

9. That Section 270, BNSS, 2023 provides that the accused shall be permitted to examine the witnesses in his defence; Section 274, BNSS, 2023 provides for the procedure for the examination of the defence witnesses; and Section 348, BNSS, 2023 empowers the Court to summon any person as a witness and to examine any person in attendance, and to recall and re-examine any person already examined, if his evidence appears to be essential to the just decision of the case.

10. That the right to examine the defence witnesses is an integral part of the right to a fair trial guaranteed under Article 21 of the Constitution of India, and the refusal to permit the accused to examine his defence witnesses would amount to a denial of a fair opportunity to defend himself and would vitiate the trial.

11. That the applicant undertakes to bear the costs of the summoning and examination of the said witnesses, and to abide by all such conditions as this Hon'ble Court may impose, including the cost of the payment to the witnesses.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) issue summons to the defence witnesses named in paragraph 2 above, namely ....., for their examination in defence, in terms of Sections 270, 274 and 348 of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) permit the applicant to produce and prove the documentary evidence enumerated in paragraph 4 above, in accordance with law;

(iii) grant an adequate opportunity to the applicant to examine the said witnesses and to lead his/her defence evidence, the right to do so being an integral part of the right to a fair trial; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / ACCUSED
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) The accused has a right to examine the defence witnesses, and the Court should ordinarily assist the accused in securing the presence of the defence witnesses, particularly where the accused is in custody or is indigent. (ii) Where the accused does not apply for the issuance of the process or does not produce the witness despite the process being issued, the Court may draw an adverse inference, but the same must be done in accordance with law and after giving the accused an opportunity. (iii) The Court should not adopt an attitude of indifference to the request of the accused for the issuance of process to the defence witnesses. (iv) Where the witness is a Government servant or an official, the Court may direct the head of the department concerned to produce the witness. (v) The provisions of Section 336, BNSS, 2023 (evidence of public servants, experts and police officers) may be availed of where applicable.]

CR.P.C. EQUIVALENT

Old Section 233, Cr.P.C. (defence evidence) and old Section 243 -> Sections 270 and 274, BNSS, 2023.

PRECEDENTS REFERRED TO

- *Ronald Wood Mathams v. State of West Bengal, AIR 1954 SC 455 - the denial of an opportunity to examine the defence witnesses vitiates the trial.*
- *T. Nagappa v. Y.R. Muralidhar, (2008) 5 SCC 633 - the right of the accused to examine the defence witnesses and the duty of the Court to assist in securing their presence.*
- *State of Karnataka v. Yarappa Reddy, (1999) 8 SCC 715 - the accused's right to lead defence evidence.*

FORMAT E-51 — APPLICATION FOR DISCHARGE OF PROCLAMATION / RECALL OF NON-BAILABLE WARRANT / SETTING ASIDE EX-PARTE ORDER

Trial Stage

IN THE COURT OF ....., (DISTRICT .....)

CRIMINAL CASE NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....

APPLICANT / ACCUSED

THE STATE .... RESPONDENT

FIR NO. ..... OF 20....., POLICE STATION .....

APPLICATION FOR RECALL OF THE NON-BAILABLE WARRANT AND FOR SETTING ASIDE THE PROCLAMATION ORDER UNDER SECTIONS 84, 86 AND 89 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant/accused is facing trial in the above-noted case for the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023.

2. That this Hon'ble Court was pleased to issue a non-bailable warrant of arrest against the applicant on ....., and thereafter to issue a proclamation under Section 84, BNSS, 2023 on ....., and an order of attachment of the property of the applicant under Section 85, BNSS, 2023 on ....., on the ground that the applicant had failed to appear before this Hon'ble Court on the dates fixed, namely .....

3. That the applicant was not served with the summons/warrant in the manner prescribed by law, and the applicant had no knowledge of the pendency of the proceedings against him/her, in that: (i) the summons/warrant was not served upon the applicant personally; (ii) the report of the process server, dated ....., shows that the summons was affixed on the door of the applicant's residence, although the applicant was not residing at the said address at the relevant time, being at .....; (iii) the applicant has never evaded the process of law, and the absence of the applicant was neither wilful nor deliberate.

4. That the applicant has now come to know of the proceedings, and has voluntarily appeared/surrendered before this Hon'ble Court on ..... and has moved the present application at the earliest opportunity thereafter.

5. That the applicant's non-appearance was occasioned by the following reasons: (i) ..... (e.g., the applicant was out of station on account of employment/business at ....., and the summons was not brought to the applicant's notice; (ii) the applicant was suffering from a serious illness, as is evident from the medical certificate annexed hereto; (iii) the applicant had shifted to a new address, namely ....., and the change of address was not known to the process-serving agency, though the applicant had, in fact, ... (if applicable, mention the intimation of the change of address)).

6. That the applicant undertakes to appear before this Hon'ble Court on every date of hearing henceforth, and to abide by all such conditions as this Hon'ble Court may impose. The applicant also undertakes to furnish such bond, with or without sureties, as this Hon'ble Court may direct, in terms of Section 92, BNSS, 2023, and to remain present on each date of hearing without fail.

7. That Section 86, BNSS, 2023 provides for the identification and attachment of the property of a proclaimed person, and Section 88, BNSS, 2023 provides for the release, sale and restoration of the attached property;

Section 89, BNSS, 2023 provides for an appeal from an order rejecting an application for the restoration of the attached property. The applicant further submits that the order of attachment of the applicant's property, namely ....., deserves to be set aside, as the applicant has appeared before this Hon'ble Court, and there is no longer any justification for the continuance of the attachment.

8. That no prejudice whatsoever shall be caused to the prosecution by the recall of the warrant and by the setting aside of the proclamation/attachment, whereas the applicant would suffer grave and irreparable injury, including the loss of liberty and of the applicant's property, if the reliefs prayed for are not granted.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) recall the non-bailable warrant of arrest issued against the applicant on ....., and the order of proclamation issued under Section 84, BNSS, 2023 on ....., and the order of attachment of the applicant's property issued on .....;

(ii) set aside the order of attachment and direct the release and restoration of the attached property, namely ....., to the applicant, in terms of Section 88, BNSS, 2023;

(iii) accept the bond with or without sureties to be furnished by the applicant, and permit the applicant to appear and to defend the case henceforth, on such terms and conditions as this Hon'ble Court may deem fit and proper; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / ACCUSED
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 84, BNSS, 2023 (old Section 82, Cr.P.C.) governs the publication of a proclamation against an absconding person; the proclamation must be published as prescribed, and the period must not be less than thirty days. (ii) Section 85, BNSS, 2023 (old Section 83) provides for the attachment of the property of a proclaimed person; the Court may attach the property by seizure or by appointment of a receiver. (iii) Section 86, BNSS, 2023 (old Section 83A) requires an identification and attachment of the property of a proclaimed person. (iv) Section 87, BNSS, 2023 (old Section 84) provides for claims and objections to the attachment. (v) Section 88, BNSS, 2023 (old Section 85) provides for the release, sale and restoration of the attached property, and requires the Court to release the property in whole or in part if the proclaimed person appears within two years, and to sell the property if the person does not appear. (vi) The crucial requirement for a valid proclamation is that the person must be shown to be 'absconding' - i.e., he must have absconded to evade the process of law; the mere non-appearance of the accused without the requisite mens rea is not sufficient to make him a proclaimed offender. (vii) The applicant should also seek the recall of the order declaring the applicant a 'proclaimed offender', if such an order has been passed.]

CR.P.C. EQUIVALENT

Old Sections 82, 83, 84, 85, 86 and 87, Cr.P.C., 1973 -> Sections 84 to 89, BNSS, 2023.

PRECEDENTS REFERRED TO

- *State of M.P. v. Pradeep Sharma, (2014) 2 SCC 171 - the object of the proclamation and the prerequisites: the person must be shown to be absconding with the intention of evading the process of law.*
- *Devendra Singh v. State of U.P., (2019) 10 SCC 106 - the publication of the proclamation; the process must comply with the requirements of law.*
- *Vijay Kumar Dhama v. State of U.P., 2022 SCC OnLine SC 468 - the conditions precedent for the issuance of a proclamation under Section 82, Cr.P.C.*
- *Ramesh Kumar v. State of U.P., 2020 SCC OnLine SC 1097 - the attachment of the property of an absconding accused; the safeguards.*

FORMAT E-52 — APPLICATION FOR SPECIMEN SIGNATURE / HANDWRITING / VOICE SAMPLE

Trial Stage

IN THE COURT OF ....., (DISTRICT .....)

MISC. APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

THE STATE ....., THROUGH THE PUBLIC PROSECUTOR ..... APPLICANT / PROSECUTION

....., S/o ....., R/o ....

ACCUSED / RESPONDENT

FIR NO. ..... OF 20....., POLICE STATION .....

APPLICATION FOR TAKING SPECIMEN SIGNATURES, HANDWRITING OR FINGER IMPRESSIONS UNDER SECTION 349 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the accused ..... is facing trial in the above-noted case for the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, in which the prosecution alleges, inter alia, that the accused ..... (e.g., forged the signature of ..... on the document dated .....; wrote the letters/extortion notes dated .....; signed the cheque dated .....; put his thumb impression on the document dated .....).

2. That during the course of the investigation, the prosecution has seized/taken into custody the following documents/electronic records containing the disputed handwriting/signatures/thumb impressions: (i) .....; (ii) .....; and the said documents have been/will be sent to the Government Examiner of Questioned Documents/ Forensic Science Laboratory for comparison and expert opinion.

3. That for the purpose of comparison and for obtaining the expert opinion of the Government Examiner of Questioned Documents/Forensic Science Laboratory, it is necessary that the specimen signatures/handwriting/finger impressions of the accused be taken, and that the same be compared with the disputed writings/signatures.

4. That Section 349(1), BNSS, 2023 (old Section 311A, Cr.P.C.) provides that any Magistrate may, for the purpose of any investigation or inquiry or trial under the Sanhita by any police officer or Court, at any time during such investigation, inquiry or trial, order any person (not being a person accused of an offence in the case) to give specimen signatures or handwriting; and such person shall be deemed to be a witness.

5. That Section 349(2), BNSS, 2023 provides that the provisions of sub-section (1) shall apply to finger impressions and to any other manner of identification, including the taking of voice samples, as may be prescribed by the Central Government by rules. The Hon'ble Supreme Court has upheld the validity of the taking of specimen signatures, handwriting and voice samples of an accused, holding that such taking does not amount to testimonial compulsion within the meaning of Article 20(3) of the Constitution of India.

6. That the taking of the specimen signatures/handwriting/finger impressions of the accused is necessary for the purpose of a proper and effective investigation and trial, and the same would materially assist this Hon'ble Court in arriving at the truth. No prejudice whatsoever shall be caused to the accused, and the accused's right against self-incrimination is not violated, since the taking of specimen signatures/handwriting is not testimonial compulsion.

7. That the accused has refused to give the specimen signatures/handwriting voluntarily when called upon to do so by the investigating officer on ....., and consequently the present application has become necessary.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) direct the accused ..... to give his/her specimen signatures/handwriting/finger impressions/voice sample before this Hon'ble Court or before such authority as this Hon'ble Court may direct, in terms of Section 349 of the Bharatiya Nagarik Suraksha Sanhita, 2023, for the purpose of comparison with the disputed documents/writings;

(ii) direct that the said specimen signatures/handwriting be taken in the presence of a Judicial Magistrate/Notary/Executive Magistrate, and that the same be sent to the Government Examiner of Questioned Documents/Forensic Science Laboratory, ..., along with the disputed documents, for comparison and for the expert opinion;

(iii) direct the accused and/or the concerning authority to produce the disputed documents before this Hon'ble Court for the purpose of the comparison; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

PUBLIC PROSECUTOR
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 349, BNSS, 2023 corresponds to old Section 311A, Cr.P.C., and now expressly includes finger impressions and voice samples, as may be prescribed by the Central Government by rules. (ii) The taking of specimen signatures/handwriting of the accused does not violate Article 20(3) of the Constitution, as it is not testimonial compulsion. (iii) In respect of voice samples, the safeguards prescribed by the rules/Central Government notifications, and the directions of the Hon'ble Supreme Court in Ritesh Sinha v. State of U.P., (2019) 8 SCC 1, must be complied with. (iv) The accused is entitled to notice and to be heard, and the specimen should be taken in the presence of a Magistrate or an independent witness so as to obviate the possibility of any tampering. (v) The accused may also apply for the taking of the specimen of a prosecution witness, where necessary, in an appropriate case.]

CR.P.C. EQUIVALENT

Old Section 311A, Cr.P.C., 1973 -> Section 349, BNSS, 2023.

PRECEDENTS REFERRED TO

- *State of Bombay v. Kathi Kalu Oghad, AIR 1961 SC 1808 - the taking of specimen handwriting and signatures does not amount to testimonial compulsion under Article 20(3).*
- *Ritesh Sinha v. State of U.P., (2019) 8 SCC 1 - the Magistrate has the power to order the taking of a voice sample of the accused; the safeguards to be observed.*
- *Selvi v. State of Karnataka, (2010) 7 SCC 263 - the distinction between the taking of physical evidence and testimonial compulsion; narco-analysis, polygraph and brain-mapping tests cannot be administered without the consent of the accused.*
- *Rabindranath Prusty v. State of Orissa - the necessity and proportionality of the taking of specimen signatures.*

PART F

APPEAL, REVISION & POST-TRIAL

Formats F-53 to F-63

FORMAT F-53 — PETITION OF APPEAL AGAINST CONVICTION

Appeal, Revision & Post-Trial

IN THE COURT OF THE LEARNED SESSIONS JUDGE, ..., (DISTRICT .....) [OR] IN THE HON'BLE HIGH COURT OF ..... AT .....

CRIMINAL APPEAL NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., aged about ..... years, R/o ....., presently lodged in ..... Jail ..... APPELLANT / CONVICT

THE STATE .... RESPONDENT

POLICE STATION .....

FIR NO. ..... OF 20.....

CONVICTING COURT: ..... CASE NO. ..... OF 20.....

DATE OF JUDGMENT/ORDER: ..... DATE OF SENTENCE: .....

PETITION OF APPEAL UNDER SECTION 415 READ WITH SECTION 423 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the appellant was the accused in Criminal Case No. ..... of 20....., which was tried by the learned ..... Court, and by judgment dated ..... the learned Trial Court was pleased to convict the appellant for the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, and by order dated ..... was pleased to sentence the appellant to undergo ..... and to pay a fine of Rs. ....., and in default of payment of fine, to undergo simple imprisonment for a further period of .....

2. That the appellant is presently in custody / is on bail, having been released on bail by the learned Trial Court vide order dated ..... The appellant has not preferred any other appeal or application against the said judgment, save the present appeal. [If an application for suspension of sentence and bail is being filed, state as under: the appellant has also filed an application for the suspension of the sentence and for release on bail pending the hearing and disposal of this appeal, in terms of Section 430, BNSS, 2023.]

3. That the present appeal is being filed within the period of limitation prescribed under Article 115(b) of the Schedule to the Limitation Act, 1963 (ninety days from the date of the sentence or order appealed against, where the appeal is to the High Court; thirty days, where the appeal is to any other Court), and the same is therefore within time.

4. That the appellant is aggrieved by the said judgment and order of sentence on the following amongst other grounds:

FACTS OF THE CASE:

That the prosecution case, in brief, was that ..... (set out the prosecution case concisely). The prosecution examined ..... witnesses, namely ....., and proved the documents ....., exhibited as Exhibit P-1 to Exhibit P-..... The appellant examined ..... witnesses in his defence, namely ....., and proved the documents ....., exhibited as Exhibit D-1 to Exhibit D-.....

GROUNDS:

(A) THAT THE LEARNED TRIAL COURT HAS ERRED IN APPRECIATING THE EVIDENCE: The learned Trial Court has failed to appreciate that the evidence of the prosecution witnesses, namely PW-..... to PW-....., suffers from material contradictions and omissions which go to the root of the prosecution case,

in that ..... (set out the specific contradictions with reference to the depositions). The said contradictions, which were duly proved in the cross-examination, were sufficient to create a reasonable doubt in the mind of the Court, and the benefit of the doubt ought to have been given to the appellant.

(B) THAT THE PROSECUTION HAS FAILED TO PROVE ITS CASE BEYOND REASONABLE DOUBT: The prosecution, in a criminal trial, is required to prove its case beyond reasonable doubt, and the burden never shifts upon the accused, except to the extent provided by law. In the present case, the prosecution has failed to prove: (i) .....; (ii) .....; and (iii) ....., which are the essential ingredients of the offence alleged. The learned Trial Court, instead of acquitting the appellant, has convicted the appellant on the basis of surmises and conjectures.

(C) THAT THE LEARNED TRIAL COURT HAS RELIED UPON INADMISSIBLE EVIDENCE: The learned Trial Court has placed reliance upon ....., which is inadmissible in evidence, in that (i) the statement of ..... recorded under Section 180, BNSS, 2023 is inadmissible as evidence, being a statement made to the police during the course of the investigation; (ii) the statement of the co-accused recorded under Section 183, BNSS, 2023 is inadmissible against the appellant; (iii) the electronic evidence (the CDR/WhatsApp chats/CCTV footage) was admitted without the certificate required under Section 63 of the Bharatiya Sakshya Adhiniyam, 2023, and without the proper proof of the chain of custody; (iv) the recovery is inadmissible, as the mandatory procedure prescribed by Section 105, BNSS, 2023 (audio-video recording of the search and seizure) was not complied with.

(D) THAT THE LEARNED TRIAL COURT HAS FAILED TO CONSIDER THE DEFENCE VERSION: The learned Trial Court has rejected the defence of the appellant without assigning reasons and without considering the material placed on record, namely ....., and has thus failed to consider the defence version, which is fatal to the conviction.

(E) THAT THE LEARNED TRIAL COURT HAS FAILED TO CONSIDER THE MATERIAL DEFECTS IN THE INVESTIGATION: The investigation in the present case suffers from the following material defects, namely: (i) the delay of ..... in the recording of the FIR, which has not been explained; (ii) the delay of ..... in the sending of the sample to the Forensic Science Laboratory; (iii) the failure to record the statements of the material witnesses, namely .....; (iv) the failure to comply with the provisions of Sections 105 and 185, BNSS, 2023 relating to the audio-video recording of the search and seizure; and (v) the failure to observe the safeguards prescribed by Sections 47 and 48, BNSS, 2023. The said defects, cumulatively, have caused serious prejudice to the appellant and have vitiated the trial.

(F) THAT THE APPLICABLE PROCEDURE WAS NOT FOLLOWED: The learned Trial Court has failed to comply with the mandatory procedure prescribed under the Bharatiya Nagarik Suraksha Sanhita, 2023, in that (i) the copies of the documents referred to in Section 230, BNSS, 2023 were not supplied to the appellant before the commencement of the trial; (ii) the appellant was not given an adequate opportunity to cross-examine the witnesses; (iii) the appellant's application for ..... was wrongly rejected; and (iv) the charge was framed in respect of the offences not made out from the material on record.

(G) THAT THE SENTENCE IMPOSED IS EXCESSIVE AND DISPROPORTIONATE: Even if the conviction is maintained, the sentence imposed upon the appellant is excessive, harsh and disproportionate to the nature and gravity of the offence and to the circumstances of the appellant, having regard to: (i) the age of the appellant, namely ..... years; (ii) the appellant's antecedents and the fact that the appellant is the sole bread-earner of the family; (iii) the appellant's conduct during the trial and the appellant's cooperation with the investigation; (iv) the fact that the appellant has already undergone a sentence of ..... as an undertrial prisoner; (v) the fact that the dispute was essentially of a private nature and the parties have since settled the matter; and (vi) the fact that the appellant has been rehabilitated. The learned Trial Court has not given any reasons for imposing the maximum/such a harsh sentence, and has failed to consider the mitigating circumstances placed on record.

(H) THAT THE APPROBATION OF THE LAW RELATING TO THE OFFENCE HAS NOT BEEN PROPERLY APPLIED: The learned Trial Court has erred in the application of the provisions of Section ..... of the Bharatiya Nyaya Sanhita, 2023, in that the essential ingredients of the said offence are not made out, and the appellant's case falls, if at all, under Section ..... of the said Sanhita, which

prescribes a lesser punishment.

5. That the appellant apprehends that the appellant shall be required to undergo the entire sentence and shall suffer irreparable injury unless the operation of the impugned judgment and order is stayed and the sentence is suspended. The appeal involves substantial questions of law and of fact, and the same deserves to be admitted for hearing.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) admit the present appeal, in terms of Section 415 read with Section 423 of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) call for and examine the record of the learned Trial Court, being Criminal Case No. ..... of 20....., and after hearing the parties, set aside the impugned judgment of conviction and order of sentence dated ....., and acquit the appellant of all the charges;

(iii) in the alternative, set aside the conviction of the appellant for the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, and convict the appellant under Sections ..... (the lesser offences);

(iv) in the further alternative, reduce the sentence imposed upon the appellant to the period already undergone, or to such period as this Hon'ble Court may deem fit and proper, having regard to the mitigating circumstances set out in the appeal;

(v) release the appellant on bail, and suspend the execution of the sentence pending the hearing and disposal of the appeal, in terms of Section 430 of the Bharatiya Nagarik Suraksha Sanhita, 2023; and

(vi) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPELLANT / CONVICT (Through the Jail Superintendent, if in custody)
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) LIMITATION: An appeal to the High Court against a conviction must be preferred within ninety days, and an appeal to any other Court within thirty days, from the date of the sentence or order appealed against - Article 115(b), Schedule to the Limitation Act, 1963. The period of imprisonment, the time requisite for obtaining a copy of the judgment/order, and the time during which the appellant was an undertrial who could not be served, are excluded. (ii) Section 424, BNSS, 2023 provides for the procedure where the appellant is in jail - the petition of appeal may be presented by the appellant to the officer in charge of the jail, who shall forward it to the proper Appellate Court. (iii) Section 425, BNSS, 2023 provides for the summary dismissal of an appeal; the Appellate Court may dismiss an appeal summarily after perusing the petition of appeal and the copy of the judgment, but must record reasons and must not dismiss a substantive appeal without application of mind. (iv) Section 427, BNSS, 2023 sets out the powers of the Appellate Court, namely to reverse the finding, alter the finding, reduce or enhance the sentence, or remit the case for retrial. (v) An appeal against conviction cannot be dismissed for default of appearance; the Appellate Court must appoint an amicus curiae if the appellant is unrepresented (Bani Singh v. State of U.P., (1996) 4 SCC 720; Md. Sukur Ali v. State of Assam, (2011) 4 SCC 729).]

[Note: DOCUMENTS TO BE ANNEXED: (1) Certified copy of the judgment and order of sentence; (2) Certified copy of the charge; (3) Copies of the depositions/evidence, if available; (4) Copy of the FIR and the charge-sheet; (5) Vakalatnama; (6) Application for suspension of sentence and bail (separately).]

CR.P.C. EQUIVALENT

Old Sections 374, 382, 384, 385 and 386, Cr.P.C., 1973 -> Sections 415, 423, 425, 426 and 427, BNSS, 2023. Old Section 383 (procedure where the appellant is in jail) -> Section 424, BNSS, 2023.

PRECEDENTS REFERRED TO

• *Bani Singh v. State of U.P., (1996) 4 SCC 720 - an appeal cannot be dismissed for default; the Appellate Court must decide the appeal on merits, and appoint an amicus curiae if the appellant is unrepresented.*

• *Md. Sukur Ali v. State of Assam, (2011) 4 SCC 729 - the right to be represented by a counsel in appeal is a fundamental right; the appeal cannot be dismissed for the non-appearance of the counsel.*

• *S. Ganeshan v. State of Tamil Nadu, (2013) 15 SCC 660 - the Appellate Court must consider the merits of the appeal and cannot dismiss it cursorily.*

• *Santosh Kumar v. State of U.P., (2023) SCC OnLine SC 1377 - the scope of interference in an appeal against conviction; the Appellate Court is bound to re-appreciate the evidence.*

• *State of Karnataka v. Suvarnamma, (2015) 1 SCC 323 - the duty of the Appellate Court to consider the evidence independently.*

FORMAT F-54 — APPLICATION FOR SUSPENSION OF SENTENCE AND BAIL PENDING APPEAL

Appeal, Revision & Post-Trial

IN THE COURT OF THE LEARNED SESSIONS JUDGE, ... [OR] IN THE HON'BLE HIGH COURT OF .....

CRIMINAL APPEAL NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....., presently lodged in ..... Jail ..... APPLICANT / APPELLANT / CONVICT

THE STATE .... RESPONDENT

FIR NO. ..... OF 20....., POLICE STATION .....

DATE OF JUDGMENT: ..... SENTENCE: .....

APPLICATION FOR SUSPENSION OF SENTENCE AND FOR RELEASE ON BAIL PENDING APPEAL UNDER SECTION 430 READ WITH SECTION 427 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant has been convicted by the learned ..... Court vide judgment/order dated ..... in Criminal Case No. ..... of 20....., and has been sentenced to undergo imprisonment for a term of ..... and to pay a fine of Rs. ..... The applicant has preferred the accompanying appeal under Section 415, BNSS, 2023, against the said judgment and order, which is pending before this Hon'ble Court.

2. That the applicant was on bail during the pendency of the trial and has not misused the liberty granted to him at any stage. The applicant has been taken into custody only upon the pronouncement of the judgment/order of sentence on ....., and is presently lodged in ..... Jail.

3. That Section 430(1), BNSS, 2023 provides that pending any appeal by a convicted person, the Appellate Court may, for reasons to be recorded by it in writing, order that the execution of the sentence or order appealed against be suspended, and also, if he is in confinement, that he be released on bail, or on his own bond or bail bond.

4. That the first proviso to Section 430(1), BNSS, 2023 provides that the Appellate Court shall, before releasing on his own bond or bail bond a convicted person who is convicted of an offence punishable with death or imprisonment for life or imprisonment for a term of not less than ten years, give an opportunity to the Public Prosecutor for showing cause in writing against such release.

5. That Section 430(3), BNSS, 2023 provides that where the convicted person satisfies the Court by which he is convicted that he intends to present an appeal, the Court shall, where such person, being on bail, is sentenced to imprisonment for a term not exceeding three years, or where the offence of which such person has been convicted is a bailable one and he is on bail, order that the convicted person be released on bail, unless there are special reasons for refusing bail, for such period as will afford sufficient time to present the appeal and to obtain the orders of the Appellate Court under sub-section (1); and the sentence of imprisonment shall, so long as he is so released on bail, be deemed to be suspended.

6. That the applicant has a good prima facie case on merits, and the appeal is not frivolous or vexatious, in that: (i) the impugned judgment suffers from material infirmities, namely .....; (ii) the evidence relied upon by the learned Trial Court is inadmissible / does not establish the ingredients of the offence; (iii) the appellant has raised substantial questions of law which require consideration by this Hon'ble Court, namely .....; and (iv) the appellant had been acquitted/ ..... [other

material grounds].

7. That the sentence imposed upon the applicant is a short-term sentence / the appeal is likely to take a considerable time for its disposal, and if the sentence is not suspended, the applicant would have undergone the entire sentence before the appeal is heard, which would render the appeal infructuous and would cause irreparable injury to the applicant. It is trite law that where the sentence is a short-term sentence and the appeal is likely to take time, the sentence ought to be suspended and the appellant released on bail.

8. That the applicant has already undergone a period of ..... in custody, and there is no apprehension that the applicant would abscond or would misuse the liberty if released on bail. The applicant is a permanent resident of ..... with deep roots in society and with no criminal antecedents.

9. That the applicant's continued incarceration would cause grave hardship to the applicant and to the applicant's dependent family members, namely ..... [where applicable, mention the medical condition, the sole bread-earner status, the responsibility of caring for aged parents/minor children, etc.].

10. That the suspension of the sentence and the release of the applicant on bail would not prejudice the prosecution in any manner, and would not occasion any interference with the course of justice; the applicant undertakes to abide by all the conditions that may be imposed and to appear before this Hon'ble Court on every date of hearing.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) suspend the execution of the sentence imposed upon the applicant vide judgment/order dated ....., pending the hearing and disposal of the accompanying appeal, in terms of Section 430(1) of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) release the applicant on bail pending the hearing and disposal of the appeal, upon the applicant furnishing a personal bond and surety bond for such sum as this Hon'ble Court may deem fit, in terms of Section 430 read with Sections 484 to 486, BNSS, 2023;

(iii) in the alternative, release the applicant on his/her own bond, in terms of Section 430(1), BNSS, 2023, having regard to the period of custody already undergone and the antecedents of the applicant; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / APPELLANT
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) The suspension of sentence and the release of the appellant on bail do not amount to an acquittal; the conviction subsists, and the appellant may be required to surrender if the appeal is dismissed. (ii) Section 430(4), BNSS, 2023 provides that when the appellant is ultimately sentenced to imprisonment for a term or to imprisonment for life, the time during which the appellant was released on bail shall be excluded in computing the term for which the appellant is so sentenced. (iii) The Public Prosecutor must be heard before the release of a convict sentenced to death, imprisonment for life or imprisonment for a term of not less than ten years, in terms of the first proviso to Section 430(1). (iv) The second proviso permits the Public Prosecutor to apply for the cancellation of bail. (v) The Appellate Court may also exercise the power under Section 430(2) in the case of an appeal pending before a subordinate Court. (vi) The Supreme Court has held that in cases of short-term sentences, the sentence should ordinarily be suspended and the convict released on bail, since otherwise the appeal would be rendered infructuous.]

CR.P.C. EQUIVALENT

Old Section 389, Cr.P.C., 1973 -> Section 430, BNSS, 2023.

PRECEDENTS REFERRED TO

- *Kashmira Singh v. State of Punjab, AIR 1977 SC 2147 - the principles governing the suspension of sentence and the release of the appellant on bail pending appeal.*
- *Bhagwan Rama Shinde Gosai v. State of Gujarat, (1999) 4 SCC 421 - where the sentence is a short-term sentence and the appeal is likely to take time, the sentence should be suspended and the appellant released on bail.*
- *Kiran Kumar v. State of M.P., (2001) 9 SCC 676 - the suspension of sentence pending appeal.*
- *Preet Pal Singh v. State of U.P., (2020) 8 SCC 645 - the considerations governing the suspension of sentence and the grant of bail pending appeal, particularly in short-term sentences.*
- *Omprakash Sahni v. Jai Shankar Chaudhary, (2023) 6 SCC 123 - the principles governing the suspension of sentence.*

FORMAT F-55 — APPEAL AGAINST ACQUITTAL (BY THE STATE / COMPLAINANT)

Appeal, Revision & Post-Trial

IN THE HON'BLE HIGH COURT OF ..... AT .....

GOVERNMENT APPEAL / CRIMINAL APPEAL NO. ..... OF 20.....

IN THE MATTER OF:

THE STATE OF ....., THROUGH THE PUBLIC PROSECUTOR / THE COMPLAINANT ....., R/o .... APPELLANT

....., S/o ....., R/o ....

RESPONDENT / ACCUSED (ACQUITTED)

POLICE STATION .....

FIR NO. ..... OF 20.....

DATE OF THE IMPUGNED JUDGMENT OF ACQUITTAL: .....

APPEAL AGAINST ACQUITTAL UNDER SECTION 419 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the respondent/accused was tried by the learned ..... Court in Criminal Case No. ..... of 20....., and by judgment dated ....., the learned Trial Court was pleased to acquit the respondent of the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023. A copy of the impugned judgment is annexed hereto and marked as ANNEXURE A.

2. That the present appeal is being preferred by the State/complainant under Section 419(1), BNSS, 2023, in terms of which the State Government may direct the Public Prosecutor to present an appeal to the High Court from an original or appellate order of acquittal passed by any Court other than a High Court, and a complainant may, with the special leave of the High Court, present an appeal against an order of acquittal passed in a case instituted upon a complaint.

3. That the present appeal is within the period of limitation prescribed (ninety days, where the appeal is preferred by the State Government; ninety days, where the appeal is preferred by the complainant with the special leave of the High Court, from the date of the order of acquittal, in terms of Article 114 and Article 115 of the Schedule to the Limitation Act, 1963, read with Section 5 of the said Act), and the delay, if any, may be condoned in the interest of justice.

4. That the impugned judgment of acquittal is perverse and is based upon a misappreciation of the evidence and a misapplication of law, and is liable to be set aside on the following amongst other grounds:

   (A) THAT THE LEARNED TRIAL COURT HAS ADOPTED AN ERRONEOUS APPROACH: The learned Trial Court has acquitted the respondent on the basis of minor and trivial contradictions in the evidence of the prosecution witnesses, namely ....., ignoring the settled principle that minor discrepancies in the evidence of witnesses do not corrode the credibility of the prosecution case, and that the evidence is to be appreciated as a whole and not in a piecemeal manner.

   (B) THAT THE LEARNED TRIAL COURT HAS IGNORED THE MATERIAL EVIDENCE: The learned Trial Court has failed to consider the following material evidence, namely (i) the testimony of the eye-witness(es) ....., which is consistent, cogent and reliable; (ii) the medical evidence, namely the post-mortem report/MLC, Exhibit P-....., which corroborates the prosecution version; (iii) the forensic evidence, namely the FSL report dated ....., which establishes .....; (iv) the recovery of ....., effected pursuant to the disclosure statement of the respondent, which stands duly proved through the testimony of the panch witnesses and the seizure memo; and (v) the electronic evidence, namely ....., duly proved in accordance with Section 63 of the Bharatiya Sakshya Adhiniyam, 2023.

(C) THAT THE LEARNED TRIAL COURT HAS ERRED IN REJECTING THE EVIDENCE OF THE PROSECUTION WITNESSES ON THE GROUND OF THE DELAY IN THE LODGING OF THE FIR: The delay in lodging the FIR, namely ....., has been satisfactorily explained by the prosecution, in that ..... (state the explanation - e.g., the victim was undergoing treatment; the complainant was away; the complainant first sought to settle the matter amicably, etc.).

(D) THAT THE LEARNED TRIAL COURT HAS ERRED IN DISCARDING THE EVIDENCE OF THE WITNESSES ON THE GROUND OF THEIR RELATIONSHIP WITH THE DECEASED/VICTIM: The evidence of a related witness cannot be discarded merely on the ground of relationship; the test is whether the evidence is trustworthy and reliable, and the Hon'ble Supreme Court has consistently held that the testimony of a related witness is entitled to greater credence, as a related witness would not ordinarily spare the real culprit.

(E) THAT THE LEARNED TRIAL COURT HAS ERRED IN ITS APPRECIATION OF THE CIRCUMSTANTIAL EVIDENCE: The learned Trial Court has failed to appreciate that the circumstances relied upon by the prosecution, namely ....., form a complete chain of circumstances which unerringly point to the guilt of the respondent, and which are inconsistent with any hypothesis other than the guilt of the respondent.

(F) THAT THE LEARNED TRIAL COURT HAS ERRED IN GIVING THE BENEFIT OF DOUBT TO THE RESPONDENT: The benefit of doubt cannot be extended to an accused on the basis of fanciful or imaginary doubts; the doubt must be a reasonable doubt arising from the material on record, and the learned Trial Court has, in the present case, extended the benefit of an unreasonable doubt to the respondent.

(G) THAT THE LEARNED TRIAL COURT HAS ERRED IN THE APPLICATION OF THE LAW: The learned Trial Court has erred in its interpretation and application of Section ..... of the Bharatiya Nyaya Sanhita, 2023, and in its appreciation of the presumption under Section ..... of the Bharatiya Sakshya Adhiniyam, 2023.

5. That the learned Trial Court has adopted a hyper-technical approach and has lost sight of the gravity of the offence and of the interest of society, and the impugned judgment has resulted in a grave miscarriage of justice. It is well settled that the Appellate Court, while dealing with an appeal against acquittal, is entitled to reappreciate the evidence where the findings of the Trial Court are perverse, are based on a misreading of the evidence, or are contrary to law.

6. That the present appeal involves substantial questions of law and fact which require the consideration of this Hon'ble Court, and the same deserves to be admitted and allowed in the interest of justice.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) grant special leave to appeal, where the appeal is preferred by the complainant, in terms of Section 419(1), BNSS, 2023;

(ii) admit the present appeal against the judgment of acquittal dated ..... passed by the learned ..... Court in Criminal Case No. ..... of 20.....;

(iii) after hearing the parties, set aside the impugned judgment of acquittal, convict the respondent for the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, and impose upon the respondent such sentence as this Hon'ble Court may deem fit and proper;

(iv) in the alternative, direct a retrial of the case by the learned Trial Court, on the ground that the findings of the learned Trial Court are perverse and have resulted in a miscarriage of justice; and

(v) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPELLANT / PUBLIC PROSECUTOR / COMPLAINANT
THROUGH
ADVOCATE
Place: .....

Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) An appeal against acquittal may be presented by the State Government by directing the Public Prosecutor, in terms of Section 419(1), or by a complainant with the special leave of the High Court, where the acquittal was in a case instituted on a complaint. (ii) No appeal lies to the High Court against a judgment/order of acquittal passed by a Court other than a High Court, except as provided. (iii) Section 419(3), BNSS, 2023 provides that the High Court shall not reverse an order of acquittal or enhance the sentence except as provided in sub-sections (4) and (5), and after giving the accused a reasonable opportunity of showing cause against the reversal/enhancement. (iv) Section 431, BNSS, 2023 empowers the High Court, when an appeal is presented under Section 419, to issue a warrant directing that the accused be arrested and brought before it or any subordinate Court, and the Court before which he is brought may commit him to prison pending the disposal of the appeal or admit him to bail. (v) The Appellate Court's power in an appeal against acquittal is not fettered in the manner it is in an appeal against conviction; however, the Court must be slow in interfering with an order of acquittal unless the findings are perverse.]

CR.P.C. EQUIVALENT

Old Section 378, Cr.P.C., 1973 -> Section 419, BNSS, 2023. Old Section 384 -> Section 431 (arrest of accused in appeal from acquittal), BNSS, 2023.

PRECEDENTS REFERRED TO

- *State of Karnataka v. Suvarnamma, (2015) 1 SCC 323 - the scope of interference in an appeal against acquittal.*
- *Ghurey Lal v. State of U.P., (2008) 10 SCC 450 - the principles governing the interference by the Appellate Court with an order of acquittal; the presumption of innocence is strengthened by the acquittal.*
- *Murugesan v. State through Inspector of Police, (2012) 10 SCC 383 - an appeal against acquittal must be decided on merits; the Court must consider the reasons for acquittal.*
- *S. Govindaraju v. State of Karnataka, (2013) 15 SCC 315 - the appellate Court must give reasons for reversing the order of acquittal.*
- *State of Rajasthan v. Daud Khan, (2016) 2 SCC 607 - the interference with an order of acquittal must be on the ground of perversity of the findings or misappreciation of the evidence.*

FORMAT F-56 — CRIMINAL REVISION AGAINST ORDER / JUDGMENT

Appeal, Revision & Post-Trial

IN THE COURT OF THE LEARNED SESSIONS JUDGE, ... [OR] IN THE HON'BLE HIGH COURT OF .....

CRIMINAL REVISION PETITION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....

PETITIONER / APPLICANT

1. THE STATE .... RESPONDENT NO. 1

2. ....., S/o ....., R/o ....

RESPONDENT NO. 2 / COMPLAINANT

FIR NO. ..... OF 20....., POLICE STATION .....

IMPUGNED ORDER DATED: ..... PASSED BY: .....

CRIMINAL REVISION PETITION UNDER SECTION 438 READ WITH SECTION 442 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the petitioner is the ..... in Criminal Case No. ..... of 20....., pending/decided before the learned ..... Court, and is aggrieved by the order dated ..... passed by the learned ..... Court, whereby the learned Court was pleased to ..... (specify the nature of the order - e.g., frame the charge against the petitioner; reject the application for discharge; reject the application for bail; direct the registration of an FIR; issue the process against the petitioner; summon the petitioner as an additional accused under Section 358, BNSS, 2023; order the attachment of the property).

2. That Section 438(1), BNSS, 2023 provides that the High Court or any Sessions Judge may call for and examine the record of any proceeding before any inferior Criminal Court situate within its or his local jurisdiction for the purpose of satisfying itself or himself as to the correctness, legality or propriety of any finding, sentence or order recorded or passed, and as to the regularity of any proceedings of such inferior Court, and may, when calling for such record, direct that the execution of any sentence or order be suspended, and if the accused is in confinement, that he be released on his own bond or bail bond pending the examination of the record.

3. That Section 438(2), BNSS, 2023 provides that the powers of revision shall not be exercised in relation to any interlocutory order passed in any appeal, inquiry, trial or other proceeding; and Section 438(3) provides that if an application under the said section has been made by any person either to the High Court or to the Sessions Judge, no further application by the same person shall be entertained by the other of them.

4. That the present revision petition is filed on the following amongst other grounds:

   (A) THAT THE IMPUGNED ORDER IS WITHOUT JURISDICTION: The learned Court has passed the impugned order without having the jurisdiction to do so, in that ..... (specify the ground of want of jurisdiction).

   (B) THAT THE IMPUGNED ORDER IS ILLEGAL AND IS CONTRARY TO LAW: The learned Court has failed to comply with the mandatory provisions of ....., BNSS, 2023/BNS, 2023, in that .....

   (C) THAT THE IMPUGNED ORDER IS THE RESULT OF A FAILURE TO EXERCISE JURISDICTION VESTED IN THE COURT: The learned Court has failed to exercise the jurisdiction vested in it by law, in that

the learned Court has refused to consider the material placed before it/the application filed by the petitioner, namely .....

(D) THAT THE IMPUGNED ORDER SUFFERS FROM MATERIAL IRREGULARITY: The learned Court has, in passing the impugned order, ... (specify the irregularity - e.g., disposed of the application without hearing the petitioner; failed to give reasons; relied upon material not brought on record; acted on the basis of an ex parte report of the police without giving the petitioner an opportunity to meet the same).

(E) THAT THE IMPUGNED ORDER IS PERVERSE: The findings recorded by the learned Court are perverse, in that the same are not supported by the material on record, and are contrary to the evidence/materials placed before it.

(F) THAT THE IMPUGNED ORDER HAS RESULTED IN A GRAVE MISCARRIAGE OF JUSTICE: ..... (set out the prejudice caused to the petitioner).

5. That the revision petition is maintainable, in that the impugned order is not an interlocutory order within the meaning of Section 438(2), BNSS, 2023, but is an order which decides a matter of moment and affects the rights of the petitioner, and the petitioner has no other alternative efficacious remedy, save by way of the present revision petition.

6. That the petitioner has not filed any other revision petition or application before any other Court in respect of the same subject matter, and no such application has been made either to the High Court or to the Sessions Judge, as provided in Section 438(3), BNSS, 2023.

7. That Section 442(1), BNSS, 2023 sets out the powers of the High Court in revision, namely to exercise any of the powers conferred on a Court of Appeal by Sections 427, 429, 430, 432 and 434, and, subject to the provisions of Section 442(3), the High Court may, in its discretion, exercise any of the powers conferred on a Court of Appeal by the said sections, and may enhance the sentence.

8. That the petitioner undertakes to abide by all such conditions as this Hon'ble Court may impose, and prays that the record of the case be called for and the impugned order be set aside.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) call for and examine the record of the learned ..... Court in Criminal Case No. ..... of 20....., in terms of Section 438(1) of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) stay the operation of the impugned order dated ..... and suspend the execution thereof, pending the hearing and disposal of the present revision petition;

(iii) after hearing the parties, set aside the impugned order dated ..... passed by the learned ..... Court, and pass such orders as this Hon'ble Court may deem fit and proper on the facts and in the circumstances of the case; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

PETITIONER
THROUGH
ADVOCATE

Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) The revisional jurisdiction is not a substitute for an appeal; it is to be exercised sparingly and only where the impugned order suffers from an illegality, a material irregularity, a want of jurisdiction, or a perversity of approach. (ii) The revisional power cannot be exercised in respect of an interlocutory order - Section 438(2), BNSS, 2023. However, an order which decides a matter of moment and affects the rights of a party is not an interlocutory order in the strict sense. (iii) The

petitioner cannot file a revision petition before the High Court and the Sessions Judge simultaneously; once an application is made to one forum, no further application lies before the other - Section 438(3), BNSS, 2023. (iv) The High Court has the power to enhance the sentence in revision, subject to the conditions in Section 442(3); accordingly, a revision petition should be filed with caution where the sentence is nominal. (v) Where the order relates to the framing of a charge, the revision is ordinarily not entertained, since the accused has the remedy of challenging the order in the appeal against the final judgment. (vi) An appeal against the order of the Sessions Judge in revision lies to the High Court in exceptional cases; the High Court can also exercise its revisional jurisdiction under Section 442, BNSS, 2023.]

CR.P.C. EQUIVALENT

Old Sections 397, 399, 400 and 401, Cr.P.C., 1973 -> Sections 438, 440, 441 and 442, BNSS, 2023. NOTE: The number trap - CrPC 397 (revision) is now BNSS 438, while CrPC 438 (anticipatory bail) is now BNSS 482.

PRECEDENTS REFERRED TO

- *Amit Kapoor v. Ramesh Chander, (2012) 9 SCC 460 - the scope and ambit of the revisional jurisdiction of the High Court.*
- *State of Kerala v. Puttumana Illath Jathavedan Namboodiri, (1999) 2 SCC 452 - the revisional jurisdiction is to be exercised only in cases of exceptional circumstances.*
- *Krishnan v. Krishnaveni, (1997) 4 SCC 241 - the revisional jurisdiction of the High Court is wide but is to be exercised sparingly.*
- *Dharampal v. Ramshri, (1993) 1 SCC 435 - an order which decides a matter of moment and affects the rights of a party is not an interlocutory order.*
- *Bholu Ram v. State of Punjab, (2008) 9 SCC 140 - the framing of a charge is not an interlocutory order for the purposes of the revisional jurisdiction.*

FORMAT F-57 — PETITION FOR QUASHING OF FIR / CRIMINAL PROCEEDINGS

Appeal, Revision & Post-Trial

IN THE HON'BLE HIGH COURT OF ..... AT .....

CRL. M.C. / CRIMINAL MISCELLANEOUS PETITION NO. ..... OF 20.....

IN THE MATTER OF:

1. ....., S/o ....., R/o ....

PETITIONER NO. 1

2. ....., S/o ....., R/o ....

PETITIONER NO. 2

1. THE STATE (GOVT. OF NCT OF DELHI) / STATE OF ....., THROUGH THE STANDING COUNSEL ..... RESPONDENT NO. 1

2. ....., S/o ....., R/o ....

RESPONDENT NO. 2 / COMPLAINANT

POLICE STATION .....

FIR NO. ..... OF 20..... DATED .....

UNDER SECTION ..... OF THE BHARATIYA NYAYA SANHITA, 2023

PETITION FOR QUASHING OF THE FIR / CRIMINAL PROCEEDINGS UNDER SECTION 528 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the petitioners are arrayed as accused in FIR No. ..... of 20....., registered on ..... at Police Station ....., for the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, and are aggrieved by the registration and the continuation of the said FIR and the proceedings emanating therefrom.

2. That Section 528, BNSS, 2023 (old Section 482, Cr.P.C.) provides that nothing in the Sanhita shall be deemed to limit or affect the inherent powers of the High Court to make such orders as may be necessary to give effect to any order under the Sanhita, or to prevent the abuse of the process of any Court, or otherwise to secure the ends of justice.

3. That the petitioners have invoked the inherent jurisdiction of this Hon'ble Court on the ground that the continuance of the criminal proceedings against the petitioners amounts to an abuse of the process of the Court and would result in a grave miscarriage of justice, in that:

   (A) THAT THE ALLEGATIONS, TAKEN AT THEIR FACE VALUE AND ACCEPTED IN THEIR ENTIRETY, DO NOT CONSTITUTE THE OFFENCES ALLEGED: Even if the entire allegations made in the FIR and in the material collected during the investigation are taken to be true, they do not disclose the commission of the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, in that the essential ingredients of the said offences, namely (i) .....; (ii) .....; and (iii) ....., are wholly absent. In particular, ... (point out the missing ingredient with reference to the specific allegation).

   (B) THAT THE PROCEEDINGS HAVE BEEN INSTITUTED WITH A MALICIOUS INTENT AND ARE A TOOL OF HARASSMENT: The FIR has been lodged by the respondent No. 2 with the mala fide object of ..... (specify - e.g., to coerce the petitioners to withdraw the civil suit filed by the petitioners being Civil Suit No. ..... of 20.....; to extract money from the petitioners; to defeat the lawful claim of the petitioners in respect of the property; to settle a personal score). The delay of ..... in lodging the FIR, and the timing thereof, namely immediately after ....., clearly demonstrate the mala fide intent of the respondent No. 2.

(C) THAT THE DISPUTE IS OF A PURELY CIVIL NATURE: The dispute between the parties is of a purely civil/commercial nature, arising out of ..... (specify the transaction), and the same is already the subject matter of the civil proceedings, namely ....., pending before the ..... Court. The criminal proceedings have been instituted to gain an undue advantage in the civil dispute, which is impermissible in law. The Hon'ble Supreme Court has repeatedly held that the criminal process is not to be used as a weapon to settle civil disputes.

(D) THAT THE PROCEEDINGS ARE BARRED BY LAW: The institution of the proceedings is barred by the provisions of ..... (e.g., Section 215 or Section 216, BNSS, 2023, requiring the complaint of the Court/public servant concerned; Section 218, BNSS, 2023, requiring prior sanction; Section 514, BNSS, 2023, barring the taking of cognizance after the lapse of the period of limitation), in that .....

(E) THAT THE PROCEEDINGS ARE VITIATED BY THE NON-COMPLIANCE WITH THE MANDATORY PROVISIONS: The proceedings are vitiated on account of the non-compliance with the mandatory provisions of ....., BNSS, 2023/BNS, 2023, in that ..... (e.g., the offence alleged attracts the provisions of a special statute, and the mandatory requirement of the sanction/notice thereunder has not been complied with).

(F) THAT THE PROCEEDINGS ARE AN ABUSE OF THE PROCESS OF THE COURT ON ACCOUNT OF THE MULTIPLICITY OF PROCEEDINGS: The subject matter of the present FIR is identical to that of FIR No. ..... of 20....., Police Station ....., and the prosecution of the petitioners in respect of the same transaction in two separate proceedings amounts to an abuse of the process of the Court and violates the petitioners' right against double jeopardy under Article 20(2) of the Constitution and Section 337, BNSS, 2023.

(G) THAT THE CONTINUANCE OF THE PROCEEDINGS WOULD CAUSE UNDUE HARDSHIP AND INJUSTICE TO THE PETITIONERS, who are ..... (mention - e.g., aged ..... years; a woman; a person suffering from .....; a government servant whose service is at stake; a professional whose reputation and livelihood are at stake), and there is no possibility of the prosecution succeeding at the trial.

(H) THAT THE ENTIRE MATERIAL COLLECTED DURING THE INVESTIGATION, INCLUDING THE STATEMENTS OF THE WITNESSES AND THE DOCUMENTS, TAKEN AT ITS FACE VALUE, DOES NOT DISCLOSE THE COMMISSION OF THE OFFENCE: ..... (specify).

4. That the petitioners have not filed any other petition for quashing of the said FIR before any other Court, and the present petition is the first and only petition filed by the petitioners in this behalf.

5. That the petitioners are ready and willing to abide by all such conditions as this Hon'ble Court may impose, and the petitioners undertake to abide by the orders of this Hon'ble Court.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) quash FIR No. ..... of 20....., dated ....., registered at Police Station ....., for the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, along with all consequential proceedings emanating therefrom, in exercise of the powers under Section 528 of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) in the alternative, quash the proceedings in so far as they relate to the petitioners, and permit the proceedings to continue in respect of the other accused, if any;

(iii) stay the operation of the said FIR and the further proceedings arising therefrom, pending the hearing and disposal of the present petition; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

PETITIONERS
THROUGH
ADVOCATE

Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 528, BNSS, 2023 corresponds to old Section 482, Cr.P.C. - a 'number trap', since 482 in the BNSS now refers to anticipatory bail. (ii) The categories of cases in which an FIR may be quashed were enumerated in State of Haryana v. Bhajan Lal, 1992 Supp (1) SCC 335, and include: (a) where the allegations do not constitute an offence; (b) where the allegations are absurd and inherently improbable; (c) where the criminal proceeding is manifestly attended with mala fide and has been instituted maliciously with a view to wreak vengeance; (d) where the proceedings are barred by law; (e) where the mandatory provisions of the statute have not been complied with; (f) where the FIR does not disclose the commission of a cognizable offence; and (g) where a civil dispute has been given a criminal colour. (iii) The High Court, in the exercise of its inherent jurisdiction, may quash the proceedings at any stage, including at the stage of the investigation, but must act cautiously. (iv) The petition must be accompanied by the FIR, the charge-sheet (if filed) and the orders of the Court below. (v) Where the allegations make out a prima facie case, the High Court will not enter into a roving inquiry into the merits at the stage of quashing.]

CR.P.C. EQUIVALENT

Old Section 482, Cr.P.C., 1973 -> Section 528, BNSS, 2023. NOTE: The number trap - CrPC 482 is now BNSS 528, while CrPC 438 (anticipatory bail) is now BNSS 482.

PRECEDENTS REFERRED TO

- *State of Haryana v. Bhajan Lal, 1992 Supp (1) SCC 335 - the categories of cases in which an FIR/proceedings may be quashed; the principles to be applied.*
- *R.P. Kapur v. State of Punjab, AIR 1960 SC 866 - the inherent power of the High Court to quash proceedings; the categories of cases.*
- *Gian Singh v. State of Punjab, (2012) 10 SCC 303 - the exercise of the inherent power to quash on the basis of a compromise, and the distinction between compounding and quashing.*
- *Neeharika Infrastructure Pvt. Ltd. v. State of Maharashtra, (2021) 19 SCC 401 - the principles governing the exercise of the inherent jurisdiction and the grant of interim protection from arrest/coercive steps - ordinarily, the High Court should not stay the investigation or grant blanket protection from arrest.*
- *Priti Saraf v. State (NCT of Delhi), (2021) 16 SCC 142 - a purely civil dispute given a criminal colour; the Court must examine whether the allegations have the ingredients of a criminal offence.*
- *Paramjeet Batra v. State of Uttarakhand, (2013) 11 SCC 673 - the Court's duty to distinguish between a civil dispute and a criminal offence.*

FORMAT F-58 — APPLICATION FOR TRANSFER OF A CRIMINAL CASE

Appeal, Revision & Post-Trial

IN THE HON'BLE HIGH COURT OF ..... AT ..... [OR] IN THE COURT OF THE LEARNED SESSIONS JUDGE, ...

TRANSFER PETITION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....

PETITIONER / APPLICANT

1. THE STATE .... RESPONDENT NO. 1

2. ....., S/o ....., R/o ....

RESPONDENT NO. 2

FIR NO. ..... OF 20....., POLICE STATION .....

PENDING IN THE COURT OF: ....., ...

CRIMINAL CASE NO. ..... OF 20.....

APPLICATION FOR TRANSFER OF THE CRIMINAL CASE UNDER SECTIONS 447 AND 448 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the petitioner is the ..... in Criminal Case No. ..... of 20....., pending before the learned ..... Court at ....., and the trial is at the stage of .....

2. That the petitioner seeks the transfer of the said case from the Court of the learned ....., ... to the Court of the learned ....., ..., on the following amongst other grounds:

   (A) THAT THERE IS A REASONABLE APPREHENSION IN THE MIND OF THE PETITIONER THAT THE PETITIONER SHALL NOT GET A FAIR AND IMPARTIAL TRIAL: The petitioner apprehends that the petitioner shall not receive a fair and impartial trial before the learned ..... Court, in that ..... (set out the specific facts - e.g., the learned Judge has, on earlier occasions, made observations adverse to the petitioner; the learned Judge is related to the complainant/accused; the learned Judge has a personal interest in the matter; the learned Judge has been the counsel for the opposite party in a connected matter).

   (B) THAT THE PETITIONER IS UNABLE TO ATTEND THE PROCEEDINGS BEFORE THE SAID COURT ON ACCOUNT OF .....: (i) the petitioner is a woman/aged person/patient who is unable to travel to ..... on account of .....; (ii) the petitioner resides at ....., which is at a distance of ..... from the place of the Court, and the petitioner's pecuniary circumstances do not permit the petitioner to travel to and attend the proceedings; (iii) the petitioner is ..... (state the specific ground).

   (C) THAT THE CONVENIENCE OF THE WITNESSES AND THE PARTIES REQUIRES THE TRANSFER: The witnesses cited by the petitioner, namely ....., are residents of ....., and it would be more convenient for the parties and the witnesses if the case is transferred to the Court at .....

   (D) THAT THE INTERESTS OF JUSTICE REQUIRE THE TRANSFER OF THE CASE: The petitioner apprehends that the atmosphere at ..... is hostile to the petitioner, in that ..... (specify - e.g., the existence of local animosity; the influence of the complainant in the locality; the pendency of other cases between the same parties).

(E) THAT THE PETITIONER APPREHENDS A THREAT TO THE LIFE AND LIBERTY OF THE PETITIONER AND THE PETITIONER'S WITNESSES if the case continues at ....., in that ..... (specify the specific instances of threat, with reference to the police complaint, if any, lodged by the petitioner).

3. There is no ground of want of jurisdiction, but the petitioner seeks the transfer in the interest of justice.

4. That Section 447, BNSS, 2023 provides that whenever it is made to appear to the High Court that an order under the said section is expedient for the ends of justice, it may direct that any particular case or appeal be transferred from one Criminal Court to another Criminal Court in the same Sessions division; the High Court may also direct that any case be transferred to a Criminal Court outside the Sessions division. Section 448, BNSS, 2023 confers a similar power of transfer upon the Sessions Judge, in respect of cases pending before the Courts inferior to him within his Sessions division.

5. That the power of transfer is a salutary power conferred upon the higher Courts with the object of ensuring the ends of justice and a fair trial, and the same is to be exercised liberally where the circumstances so require. It is well settled that the apprehension in the mind of the petitioner must be a reasonable apprehension, founded on the material placed on record, and not a mere apprehension based on surmises.

6. That the petitioner has no other alternative efficacious remedy, and the present application is being made bona fide and at the earliest, in the interest of justice. No prejudice whatsoever shall be caused to the respondents by the transfer of the case, and no delay in the trial is likely to be occasioned by the transfer, as the records of the case can be transmitted forthwith.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) transfer Criminal Case No. ..... of 20....., pending before the learned ..... Court, ..., to the Court of the learned ....., ..., in terms of Section 447 / Section 448 of the Bharatiya Nagarik Suraksha Sanhita, 2023, in the interest of justice;

(ii) direct the learned Trial Court to transmit forthwith the entire record of the case, and to afford all reasonable assistance to the transferee Court;

(iii) in the meanwhile, stay the proceedings in Criminal Case No. ..... of 20....., pending the hearing and disposal of the present application; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

PETITIONER
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) The Supreme Court, under Section 406, Cr.P.C. (now Section 446, BNSS, 2023), has the power to transfer a case from one State to another; the High Court and the Sessions Judge have the power under Sections 447 and 448, BNSS, 2023 respectively. (ii) The transfer of a case cannot be sought merely to suit the convenience of the accused; the convenience of the prosecution and of the witnesses is equally relevant. (iii) The apprehension of the petitioner must be reasonable and must be founded on material; a mere bald apprehension is not sufficient. (iv) The application should be supported by an affidavit, and the specific instances relied upon should be set out. (v) The pendency of the case in a particular Court does not confer any vested right upon the accused, and the transfer may be ordered in the interest of justice.]

CR.P.C. EQUIVALENT

Old Sections 406, 407 and 408, Cr.P.C., 1973 -> Sections 446, 447 and 448, BNSS, 2023.

PRECEDENTS REFERRED TO

• *Maneka Sanjay Gandhi v. Rani Jethmalani, (1979) 4 SCC 167 - the transfer of a case on the ground of the apprehension of an unfair trial; the court must ensure a fair trial and the confidence of the parties.*

• *G.X. Francis v. Banke Bihari Singh, AIR 1958 SC 309 - the transfer of a case in the interest of justice.*

• *Kerala v. A. Raveendran - the reasonable apprehension of an unfair trial; the standard to be applied.*

• *P. Bhaskaran v. Shankar V. - the power of transfer; the Supreme Court's jurisdiction under Section 406.*

FORMAT F-59 — APPLICATION FOR RELEASE OF CASE PROPERTY AFTER CONCLUSION OF TRIAL

Appeal, Revision & Post-Trial

IN THE COURT OF ....., (DISTRICT .....)

CRIMINAL CASE NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....

APPLICANT / OWNER / CLAIMANT

1. THE STATE .... RESPONDENT NO. 1

2. THE STATION HOUSE OFFICER, POLICE STATION .... RESPONDENT NO. 2

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... BNS / ..... ACT

APPLICATION FOR DISPOSAL / RELEASE OF CASE PROPERTY UNDER SECTION 498 READ WITH SECTION 497 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the above-noted case has been ..... (acquitted/compounded/disposed of/decided) by judgment/order dated ....., passed by this Hon'ble Court, and the case property described hereinbelow is lying in the custody of this Hon'ble Court/Police Station .....

2. Description of the case property: ..... [give the full description, with the mark/Exhibit number, if any - e.g., one gold necklace, weighing ..... grams, marked as Exhibit P-.....; the vehicle bearing Registration No. .....; the mobile phone bearing IMEI No. .....; the sum of Rs. ..... ; the documents namely .....].

3. That the applicant is the true owner/entitled to the possession of the said case property, in that: (i) the applicant is the purchaser/owner of the said property vide document dated ....., a copy whereof is annexed as ANNEXURE A; (ii) the applicant is the registered owner of the vehicle, as is evident from the Registration Certificate annexed as ANNEXURE B; (iii) the applicant is the person from whose possession the said property was seized on ....., vide seizure memo dated ....., a copy whereof is annexed as ANNEXURE C; (iv) the applicant is the person entitled to the said property as the ..... (e.g., the legal heir of the deceased; the partner of the firm; the pledgee; the pawnbroker).

4. That no other person has claimed the said property, and the applicant's claim is bona fide and is supported by the documents placed on record. The applicant is ready and willing to prove the applicant's title to the said property in accordance with law.

5. That the said property is not required for the purposes of the case, as the case has already been disposed of, and the property has been duly exhibited and proved/ is no longer required as evidence. The continued retention of the property by the Court/police would cause unnecessary hardship to the applicant and would result in the deterioration and depreciation in the value of the property.

6. That Section 498(1), BNSS, 2023 (old Section 452, Cr.P.C.) provides that when an inquiry or trial in any criminal case is concluded, the Court may make such order as it thinks fit for the disposal, by destruction, confiscation or delivery to any person claiming to be entitled to possession thereof, or otherwise, of any property or document produced before it or in its custody, or regarding which any offence appears to have been committed, or which has been used for the commission of any offence.

7. That Section 498(2), BNSS, 2023 provides that an order may be made under sub-section (1) for the delivery of the property to the person entitled to possession thereof, and Section 498(4) provides that the Court may, if it thinks fit, order the delivery of the property to the person entitled to its possession, subject to such conditions as it may deem fit, including the execution of a bond.

8. That Section 497, BNSS, 2023 (old Section 451, Cr.P.C.) provides for the custody and disposal of the property pending trial, and empowers the Court to make such order as it thinks fit for the proper custody of the property pending the conclusion of the trial, including the interim release of the property to the person entitled to possession thereof on the execution of a bond.

9. That the applicant has also filed an application dated ..... before the Station House Officer/this Hon'ble Court for the release of the said property, which has not been acceded to. A copy of the said application is annexed as ANNEXURE D.

10. That the applicant undertakes to produce the said property before this Hon'ble Court or before the Appellate Court as and when directed, in the event of an appeal/revision being preferred against the judgment, and to abide by all such conditions as this Hon'ble Court may impose.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) direct the release/delivery of the case property described in paragraph 2 above to the applicant, in terms of Section 498 read with Section 497 of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) permit the applicant to execute a bond/supurdnama for the production of the said property before this Hon'ble Court or before the Appellate Court as and when directed;

(iii) direct the Station House Officer, Police Station ....., to produce the said property before this Hon'ble Court, if the same is in the custody of the police, and to report compliance to this Hon'ble Court; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 498, BNSS, 2023 corresponds to old Section 452, Cr.P.C. The Court may order the disposal of the property by destruction, confiscation or delivery to the person entitled to possession. (ii) Where the property is subject to an order of confiscation under a special statute (e.g., the NDPS Act, the PMLA, the Customs Act), the provisions of the special statute will prevail, and the property cannot be released except in accordance with the said statute. (iii) An appeal against an order under Section 498 or Section 499 lies under Section 500, BNSS, 2023 (old Section 454, Cr.P.C.). (iv) Where the property is a vehicle, the guidelines in Sunderbhai Ambalal Desai v. State of Gujarat, (2002) 10 SCC 283 will apply. (v) The claim of the applicant must be supported by documentary evidence of title, and the Court may order an inquiry/enquiry, if necessary.]

CR.P.C. EQUIVALENT

Old Sections 451 and 452, Cr.P.C., 1973 -> Sections 497 and 498, BNSS, 2023. Old Sections 453, 454, 455, 456, 457, 458 and 459 -> Sections 499, 500, 501, 502, 503, 504 and 505, BNSS, 2023 respectively.

PRECEDENTS REFERRED TO

- *Sunderbhai Ambalal Desai v. State of Gujarat, (2002) 10 SCC 283 - the release of seized vehicles and articles; the police cannot retain the property indefinitely.*
- *General Insurance Council v. State of A.P., (2010) 6 SCC 768 - the release of seized vehicles.*
- *State of M.P. v. Suresh Kumar Goyal, (2013) 12 SCC 708 - the release of case property after the conclusion of the trial.*

FORMAT F-60 — APPLICATION FOR COMPENSATION TO THE VICTIM

Appeal, Revision & Post-Trial

IN THE COURT OF ....., (DISTRICT .....)

CRIMINAL CASE NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....

APPLICANT / VICTIM

1. THE STATE .... RESPONDENT NO. 1

2. ....., S/o ....., R/o ....

RESPONDENT NO. 2 / CONVICTED ACCUSED

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... BNS

APPLICATION FOR COMPENSATION TO THE VICTIM UNDER SECTIONS 395, 396 AND 397 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant is the victim/the dependent of the victim in the above-noted case, and the accused ..... has been convicted by this Hon'ble Court vide judgment dated ..... for the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, and sentenced to .....

2. That the applicant has suffered loss and injury as a result of the offence committed by the convicted accused, as under:

   (i) PHYSICAL INJURY: The applicant sustained the following injuries, namely ....., and was hospitalised at ..... from ..... to ....., and has undergone medical treatment, including surgery, at a cost of Rs. ..... The medical papers, the MLC and the bills are annexed hereto as ANNEXURE A.

   (ii) PERMANENT DISABILITY: The applicant has sustained a permanent disability to the extent of .....%, as certified by ..... vide certificate dated ....., annexed as ANNEXURE B, which has affected the applicant's ability to earn a livelihood.

   (iii) LOSS OF INCOME: The applicant was earning Rs. ..... per month from ....., and has been unable to work for a period of ....., thereby suffering a loss of income of Rs. .....

   (iv) MEDICAL EXPENSES: The applicant has incurred an expenditure of Rs. ..... on medical treatment, medicines, hospitalisation, conveyance and the attendance of the attendant; the details are set out in the Statement of Expenses annexed as ANNEXURE C.

   (v) LOSS OF DEPENDENCY: The applicant is the widow/widower/minor child/aged parent of the deceased ....., who died as a result of the offence committed by the convicted accused on ....., and the applicant has been deprived of the financial support and the companionship of the deceased, who was earning Rs. ..... per month.

   (vi) MENTAL AGONY AND TRAUMA: The applicant has suffered severe mental agony, trauma, and loss of reputation on account of the offence committed by the convicted accused, and the applicant continues to suffer from .....

   (vii) LOSS OR DAMAGE TO PROPERTY: The applicant has suffered loss/damage to property, namely ....., to the extent of Rs. ....., and the same has not been recovered despite the orders of this Hon'ble Court; the valuation report is annexed as ANNEXURE D.

3. That Section 395(1), BNSS, 2023 provides that when a Court imposes a sentence of fine, or a sentence of which fine forms a part, the Court may, when passing judgment, order the whole or any part of the fine recovered to be applied (a) in defraying the expenses properly incurred in the prosecution; (b) in the payment to any person of compensation for any loss or injury caused by the offence, when compensation is, in the opinion of the Court, recoverable by such person in a Civil Court; and (c) in the case of death, in paying compensation to the persons entitled under the Fatal Accidents Act, 1855.

4. That Section 395(3), BNSS, 2023 provides that when a Court imposes a sentence of which fine does not form a part, the Court may, when passing judgment, order the accused person to pay, by way of compensation, such amount as may be specified in the order to the person who has suffered any loss or injury by reason of the act for which the accused has been sentenced; and Section 395(4) provides that an order under the said section may also be made by an Appellate Court or by the High Court or Court of Session when exercising its powers of revision.

5. That Section 396, BNSS, 2023 provides for the preparation of a Victim Compensation Scheme by every State Government in coordination with the Central Government, and provides that whenever a recommendation is made by the Court for compensation, the District Legal Service Authority or the State Legal Service Authority, as the case may be, shall decide the quantum of compensation to be awarded under the scheme; and that on receipt of such recommendation, the State or District Legal Service Authority shall, after due enquiry, award adequate compensation by completing the enquiry within two months.

6. That Section 396(6), BNSS, 2023 provides that the State or District Legal Service Authority may, to alleviate the suffering of the victim, order for immediate first-aid facility or medical benefits to be made available free of cost on the certificate of a police officer not below the rank of the officer in charge of the police station, or of a Magistrate of the area concerned, or any other interim relief as the appropriate authority deems fit.

7. That Section 397, BNSS, 2023 casts a duty upon all hospitals, public or private, whether run by the Central Government, the State Government, local bodies or any other person, to immediately provide the first-aid or medical treatment, free of cost, to the victims of any offence covered under the specified sections of the Bharatiya Nyaya Sanhita, 2023 or under Sections 4, 6, 8 or 10 of the POCSO Act, 2012.

8. That the applicant has no independent source of income, and is dependent upon ..... ; the applicant is unable to bear the cost of the treatment and the expenses of the litigation, and the applicant is entitled to the compensation as prayed for, both under Section 395, BNSS, 2023 and under the Victim Compensation Scheme framed under Section 396, BNSS, 2023 as notified by the Government of ..... vide Notification dated ....., a copy whereof is annexed as ANNEXURE E.

9. That the Hon'ble Supreme Court has held that compensation to the victim is not a matter of charity but is a right of the victim, and that the Courts have a duty to award compensation to the victim, having regard to the nature of the offence, the capacity of the accused and the damage suffered by the victim. The Court may also direct the payment of compensation from the fine imposed upon the accused, and may recommend compensation under the Victim Compensation Scheme where the accused is not in a position to pay.

10. That no compensation has been paid to the applicant by the convicted accused till date, and the applicant has not received any compensation from any other source, save ..... (specify).

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) award compensation of Rs. ..... (Rupees ..... only) to the applicant, in terms of Section 395 of the Bharatiya Nagarik Suraksha Sanhita, 2023, and direct the convicted accused to pay the said amount to the applicant, and in default, to undergo further imprisonment in accordance with

law;

(ii) direct that the whole or part of the fine imposed upon the convicted accused, namely Rs. ....., be applied in the payment of compensation to the applicant, in terms of Section 395(1)(b), BNSS, 2023;

(iii) recommend to the ..... District Legal Service Authority/State Legal Service Authority to award adequate compensation to the applicant under the Victim Compensation Scheme framed under Section 396, BNSS, 2023, and to complete the enquiry within a period of two months, in terms of Section 396(5), BNSS, 2023;

(iv) direct the payment of interim relief and free medical treatment to the applicant, in terms of Section 396(6) and Section 397, BNSS, 2023; and

(v) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / VICTIM
THROUGH
ADVOCATE / DLSA COUNSEL
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 395, BNSS, 2023 corresponds to old Section 357, Cr.P.C.; Section 396 to old Section 357A; and Section 397 to old Section 357C. (ii) The victim has a right to be heard at the appropriate stages of the criminal proceedings, and the Court must award compensation where the accused is in a position to pay. (iii) Where the accused is not in a position to pay, or where the accused is acquitted or discharged, the victim may apply to the State or District Legal Service Authority for compensation under the Victim Compensation Scheme. (iv) The compensation awarded under Section 396 is in addition to the fine payable to the victim under Sections 65, 70 and 124(1) of the BNS, 2023 in respect of the offences relating to sexual offences and acid attacks. (v) The applicant should place on record the medical bills, the disability certificate, the income proof, the death certificate, and the dependency particulars. (vi) The application for compensation may also be made at the appellate or revisional stage, in terms of Section 395(4), BNSS, 2023.]

CR.P.C. EQUIVALENT

Old Sections 357, 357A, 357B and 357C, Cr.P.C., 1973 -> Sections 395, 396, 397 and 398, BNSS, 2023. NOTE: The old Sections 357A to 357C have been consolidated and expanded, and the Victim Compensation Scheme has been given statutory backing.

PRECEDENTS REFERRED TO

- *Hari Singh v. Sukhbir Singh, (1988) 4 SCC 551 - the power to award compensation to the victim; the Court must exercise the power liberally.*
- *Ankush Shivaji Gaikwad v. State of Maharashtra, (2013) 6 SCC 770 - the duty of the Court to consider the award of compensation under Section 357, Cr.P.C.; compensation to the victim is a right, not a charity.*
- *Suresh v. State of Haryana, (2015) 2 SCC 1 - the victim's right to compensation and to participation in the criminal proceedings.*
- *State of M.P. v. Mehtaab, (2015) 5 SCC 197 - the duty to award compensation; the Court must apply its mind.*
- *Mallikarjun Kodagali v. State of Karnataka, (2019) 2 SCC 752 - the right of the victim to appeal, and the victim's right to compensation.*

FORMAT F-61 — APPLICATION FOR COMPENSATION FOR GROUNDLESS ARREST / ILLEGAL DETENTION

Appeal, Revision & Post-Trial

IN THE COURT OF ....., (DISTRICT .....)

MISC. APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....

APPLICANT

THE STATE ....., THROUGH THE PUBLIC PROSECUTOR ..... RESPONDENT

POLICE STATION .....

FIR NO. ..... OF 20.....

DATE OF ARREST: ..... DATE OF RELEASE: .....

APPLICATION FOR COMPENSATION FOR GROUNDLESS ARREST UNDER SECTION 399 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant was arrested by the officers of Police Station ..... on ..... in connection with FIR No. ..... of 20....., registered for the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, and was released on ....., after having remained in custody for a period of .....

2. That the applicant was arrested and detained on insufficient grounds, in that the applicant was arrested without there being any reasonable ground for believing that the applicant had committed the offence; the investigation ultimately revealed that the applicant was not involved in the offence, and the applicant was released/the applicant was discharged/the applicant was acquitted by this Hon'ble Court vide order/judgment dated .....

3. That the arrest of the applicant was in violation of the mandatory provisions of Sections 35, 36, 47 and 48, BNSS, 2023, in that: (i) no notice under Section 35(3), BNSS, 2023 was issued to the applicant prior to the arrest, although the applicant had not refused to cooperate; (ii) no reasons in writing were recorded by the arresting officer as to the necessity of the arrest; (iii) the grounds of the arrest were not communicated to the applicant; and (iv) the arrest memorandum was not attested in the prescribed manner.

4. That by reason of the said groundless arrest and illegal detention, the applicant has suffered immense hardship, mental agony, physical inconvenience, loss of reputation and social stigma, and pecuniary loss, in that:

   (i) The applicant was ..... (state the consequences - e.g., the applicant was a ..... and was unable to attend to his/her work, resulting in a loss of income of Rs. .....; the applicant was a student who missed the examination; the applicant's marriage prospects were adversely affected; the applicant was placed in custody with hardened criminals and was subjected to .....);

   (ii) The applicant was made to spend on legal expenses, and had to engage an Advocate and to furnish sureties, at a cost of Rs. .....;

   (iii) The applicant's reputation in the locality and among the applicant's friends and relatives has been seriously damaged, and the applicant has been ostracised;

   (iv) The applicant has suffered mental agony and trauma, which continues to this day.

5. That Section 399(1), BNSS, 2023 (old Section 358, Cr.P.C.) provides that whenever any person causes a police officer to arrest another person, if it appears to the Magistrate by whom the case is heard that there was no sufficient ground for causing such arrest, the Magistrate may award such compensation, not

exceeding one thousand rupees, to be paid by the person so causing the arrest, to the person so arrested, for his loss of time and expenses in the matter, as the Magistrate thinks fit.

6. That Section 399(3), BNSS, 2023 provides that if the person who caused the arrest is not the complainant, the compensation shall be paid to the complainant by the person who caused the arrest; and Section 399(4) provides that if the complainant or the officer or person causing the arrest does not pay the compensation, the amount may be recovered as if it were a fine.

7. That the arrests made without complying with the safeguards under Sections 35 and 41A, BNSS, 2023 (and the corresponding provisions) have been repeatedly deprecated by the Hon'ble Supreme Court, which has held that the existence of the power to arrest is not the same as the justification for the exercise of such power, and that the violation of the safeguards entitles the aggrieved person to compensation.

8. That in addition to the compensation under Section 399, BNSS, 2023, the applicant is entitled to compensation for the violation of the applicant's fundamental rights under Article 21 and Article 22 of the Constitution of India, which may be awarded in a writ petition under Article 226 of the Constitution by way of public law compensation, and the present application is being filed without prejudice to the applicant's right to seek such remedy.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) hold that the arrest and detention of the applicant in connection with FIR No. ..... of 20....., Police Station ....., were groundless and were in violation of the mandatory provisions of Sections 35, 36, 47 and 48 of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) award compensation to the applicant for the groundless arrest and illegal detention, in terms of Section 399 of the Bharatiya Nagarik Suraksha Sanhita, 2023, and direct the erring officer/the person who caused the arrest to pay the said compensation to the applicant;

(iii) direct the initiation of departmental action against the erring police officials for the violation of Sections 35, 47 and 48, BNSS, 2023 and of Sections 62, BNSS, 2023, in terms of the directions in Arnesh Kumar v. State of Bihar, (2014) 8 SCC 273; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT
THROUGH
ADVOCATE

Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 399, BNSS, 2023 corresponds to old Section 358, Cr.P.C., and provides for compensation not exceeding one thousand rupees. The constitutional remedy of compensation for the violation of fundamental rights is far more expansive, and the applicant may seek compensation by way of a writ petition under Article 226 or a petition under Article 32 of the Constitution of India - see Nilabati Behera v. State of Orissa, (1993) 2 SCC 746. (ii) The applicant should also place on record the arrest memo, the grounds of arrest, the release order, and the final outcome of the case (acquittal/discharge/closure), as these establish the groundlessness of the arrest. (iii) Compensation may also be sought for custodial violence, which attracts a higher quantum of compensation. (iv) The Court must record a finding that there was no sufficient ground for the arrest; hence the application should establish this by reference to the material on record and to the final outcome of the case.]

CR.P.C. EQUIVALENT

Old Section 358, Cr.P.C., 1973 -> Section 399, BNSS, 2023.

PRECEDENTS REFERRED TO

• Nilabati Behera v. State of Orissa, (1993) 2 SCC 746 - compensation for the violation of fundamental rights by way of public law remedy.

• *D.K. Basu v. State of West Bengal, (1997) 1 SCC 416 - compensation for illegal arrest and custodial violence.*

• *Rudul Sah v. State of Bihar, (1983) 4 SCC 141 - compensation for illegal detention.*

• *Sube Singh v. State of Haryana, (2006) 3 SCC 178 - illegal arrest and detention; the compensation payable.*

• *Arnesh Kumar v. State of Bihar, (2014) 8 SCC 273 - the directions regarding the arrest in offences punishable with imprisonment up to seven years, and the departmental action against erring officers.*

FORMAT F-62 — SPECIAL LEAVE PETITION (CRIMINAL) BEFORE THE SUPREME COURT

Appeal, Revision & Post-Trial

IN THE HON'BLE SUPREME COURT OF INDIA AT NEW DELHI

SPECIAL LEAVE PETITION (CRL.) NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....

PETITIONER(S)

1. THE STATE OF ....., THROUGH THE SECRETARY, DEPARTMENT OF HOME ..... RESPONDENT NO. 1

2. ....., S/o ....., R/o ....

RESPONDENT NO. 2

FIR NO. ..... OF 20....., POLICE STATION .....

JUDGMENT/ORDER IMPUGNED: ..... PASSED BY: THE HON'BLE HIGH COURT OF ....., IN ..... NO. ..... OF 20.....

SPECIAL LEAVE PETITION (CRIMINAL) UNDER ARTICLE 136 OF THE CONSTITUTION OF INDIA READ WITH SECTION 446 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the petitioner(s) are aggrieved by the judgment and order dated ..... passed by the Hon'ble High Court of ..... in ..... No. ..... of 20....., whereby the Hon'ble High Court was pleased to ..... (specify - e.g., dismiss the appeal of the petitioner and confirm the conviction; allow the petition and quash the FIR; reject the application for bail).

2. That the petitioner has not filed any other petition for special leave to appeal before this Hon'ble Court or any other Court in respect of the same subject matter, and the present petition is the first and only petition filed by the petitioner in this behalf.

3. That the present petition is being filed within the period of limitation prescribed under Article 136 of the Constitution of India; the petitioner has filed the present petition within sixty days of the date of the impugned judgment/order/the delay of ..... in filing the present petition may kindly be condoned in the interest of justice, the petitioner having been pursuing the remedies before the Courts below and being ..... (state the reasons for the delay).

4. That the following substantial questions of law arise for the consideration of this Hon'ble Court, namely:

   (i) WHETHER .....?

   (ii) WHETHER .....?

   (iii) WHETHER the Hon'ble High Court has erred in .....?

STATEMENT OF FACTS:

That the petitioner ..... (set out the brief facts of the case in a chronological manner, including the registration of the FIR, the investigation, the trial, the judgment of the Trial Court, and the judgment of the High Court).

GROUNDS:

(A) THAT THE IMPUGNED JUDGMENT OF THE HON'BLE HIGH COURT IS PERVERSE AND SUFFERS FROM A MISAPPRECIATION OF THE EVIDENCE, in that the Hon'ble High Court has ..... (specify).

(B) THAT THE HON'BLE HIGH COURT HAS FAILED TO CONSIDER THE MATERIAL ON RECORD, namely ....., which materially affects the decision of the case.

(C) THAT THE HON'BLE HIGH COURT HAS ERRED IN ITS INTERPRETATION AND APPLICATION OF THE PROVISIONS OF SECTION ..... OF THE BHARATIYA NYAYA SANHITA, 2023 / THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 / THE BHARATIYA SAKSHYA ADHINIYAM, 2023, in that .....

(D) THAT THE HON'BLE HIGH COURT HAS FAILED TO APPRECIATE THAT THE PROSECUTION HAS NOT PROVED ITS CASE BEYOND REASONABLE DOUBT, and that the conviction of the petitioner is based on surmises and conjectures rather than on legal evidence.

(E) THAT THE HON'BLE HIGH COURT HAS FAILED TO CONSIDER THE SETTLED LAW LAID DOWN BY THIS HON'BLE COURT IN ..... (cite the relevant decisions), which are directly applicable to the facts of the present case.

(F) THAT THERE IS A GRAVE MISCARRIAGE OF JUSTICE, in that ..... (set out the specific prejudice).

(G) THAT THE MATTER INVOLVES A SUBSTANTIAL QUESTION OF LAW OF GENERAL PUBLIC IMPORTANCE, in that ..... (specify the question and its importance, where applicable).

5. That the petitioner has raised substantial questions of law which require the consideration of this Hon'ble Court, and the present petition deserves to be allowed in the interest of justice. The petitioner prays for the grant of special leave to appeal, and for the interim protection/suspension of sentence and release on bail pending the hearing and disposal of the present petition.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) grant special leave to appeal against the judgment and order dated ..... passed by the Hon'ble High Court of ..... in ..... No. ..... of 20....., in terms of Article 136 of the Constitution of India;

(ii) stay the operation of the impugned judgment/order and suspend the execution of the sentence imposed upon the petitioner, pending the hearing and disposal of the present petition;

(iii) release the petitioner on bail, pending the hearing and disposal of the present petition, in terms of Section 430, BNSS, 2023 and/or the practice of this Hon'ble Court;

(iv) issue notice to the respondents and, after hearing the parties, set aside the impugned judgment/order and acquit the petitioner / allow the petition in terms of the prayers made in the petition; and

(v) pass such other and further order(s) as this Hon'ble Court may deem fit and proper in the facts and circumstances of the case.

PETITIONER(S)
THROUGH
ADVOCATE-ON-RECORD
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Article 136 of the Constitution confers a discretionary power of the widest amplitude on the Supreme Court, but it is to be exercised sparingly and only in cases of grave injustice or where a substantial question of law of general public importance arises. (ii) A Special Leave Petition must be filed within 60 days from the date of the impugned judgment/order (Rule 4 of Order XXI of the Supreme Court Rules, 2013, as applicable), and the period of limitation may be extended on sufficient cause being shown. (iii) The petition must be accompanied by: (a) the certified copy of the impugned judgment/order; (b) the certified copy of the judgment of the Trial Court; (c) the certified copies of the depositions/evidence (if relevant); (d) an affidavit; (e) a synopsis; and (f) a list of dates and events. (iv) The petition must be filed with the requisite court fee and must satisfy the requirements of the Supreme Court Rules, 2013. (v) An application for the condonation of delay must be filed

separately where the petition is filed beyond the period of limitation. (vi) An oral mentioning/hearing for urgent relief may be sought where the petitioner is in custody and the matter is urgent.]

[Note: An SLP is ordinarily not entertained against an interlocutory order, and the petitioner must ordinarily have exhausted the alternative remedies before the High Court. However, the Supreme Court may entertain an SLP against an interlocutory order where there is a violation of fundamental rights or where the matter is of grave urgency.]

CR.P.C. EQUIVALENT

Article 136 of the Constitution of India. Section 446, BNSS, 2023 confers the power of transfer of cases upon the Supreme Court.

PRECEDENTS REFERRED TO

- *Pritam Singh v. State, AIR 1950 SC 169 - the scope of Article 136; the discretionary power is to be exercised sparingly and in exceptional cases.*
- *Kunhayammed v. State of Kerala, (2000) 6 SCC 359 - the effect of the grant of special leave and the scope of the Supreme Court's power.*
- *State of Bombay v. Rusy Mistry, AIR 1960 SC 391 - the Supreme Court's approach in criminal appeals by special leave.*
- *Ramesh v. State of Rajasthan - the interference with concurrent findings of fact in an appeal by special leave.*

FORMAT F-63 — CRIMINAL WRIT PETITION (HABEAS CORPUS / MANDAMUS)

Appeal, Revision & Post-Trial

IN THE HON'BLE HIGH COURT OF ..... AT .....

W.P. (CRL.) NO. ..... OF 20.....

IN THE MATTER OF:

1. ....., S/o ....., R/o ....

PETITIONER NO. 1 (Detenu)

2. ....., S/o ....., R/o ....

PETITIONER NO. 2 (Next Friend / Relative)

1. THE STATE OF ....., THROUGH THE SECRETARY (HOME), ... RESPONDENT NO. 1

2. THE DIRECTOR GENERAL OF POLICE, ... RESPONDENT NO. 2

3. THE STATION HOUSE OFFICER / THE SUPERINTENDENT, ... JAIL, ... RESPONDENT NO. 3

FIR NO. ..... OF 20....., POLICE STATION .....

DATE OF DETENTION: ..... PLACE OF DETENTION: .....

CRIMINAL WRIT PETITION UNDER ARTICLE 226 OF THE CONSTITUTION OF INDIA READ WITH SECTIONS 528 AND 530 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the petitioner No. 1 is ..... (the detenu/the aggrieved person), and the petitioner No. 2 is ..... (the next friend/relative), and the petitioner No. 2 is filing the present petition in the interest of the petitioner No. 1 and after obtaining the necessary instructions.

2. That the petitioner No. 1 has been illegally detained by the respondent(s) since ....., in that:

   (i) THE DETENTION IS WITHOUT THE AUTHORITY OF LAW: The petitioner No. 1 was taken into custody on ..... at about ..... hours by the officers of Police Station ....., and has been kept in custody since then without being produced before the nearest Magistrate within a period of twenty-four hours, as mandated by Article 22(2) of the Constitution of India and Section 58, BNSS, 2023. No order of remand has been passed by any competent Court, and the detention is therefore wholly illegal.

   (ii) THE GROUNDS OF THE DETENTION HAVE NOT BEEN COMMUNICATED: The petitioner No. 1 has not been informed of the grounds of the arrest, in violation of Article 22(1) of the Constitution of India and Section 47, BNSS, 2023; the petitioner No. 1 has also not been informed of the petitioner's right to consult and to be defended by a legal practitioner of the petitioner's choice.

   (iii) THE PETITIONER NO. 1 HAS NOT BEEN PRODUCED BEFORE A MAGISTRATE: The petitioner No. 1 was not produced before the Magistrate within twenty-four hours of the arrest, and the petitioner No. 1 continues to be in the illegal custody of the police, which amounts to a violation of the fundamental rights guaranteed under Articles 21 and 22 of the Constitution of India.

   (iv) THE ARREST IS IN VIOLATION OF THE MANDATORY SAFEGUARDS: The arrest of the petitioner No. 1 was effected without complying with the mandatory provisions of Section 35, BNSS, 2023 (the notice of appearance and the recording of the reasons), Section 36 (the arrest memorandum and the identification of the arresting officer), Section 47 (the communication of the grounds of the arrest) and Section 48 (the intimation to the relative or friend of the arrested person), all of which render the arrest and the consequent detention illegal and void.

(v) THE DETENTION VIOLATES THE DIRECTIONS OF THE HON'BLE SUPREME COURT: The arrest and detention are in violation of the mandatory directions issued by the Hon'ble Supreme Court in D.K. Basu v. State of West Bengal, (1997) 1 SCC 416, Arnesh Kumar v. State of Bihar, (2014) 8 SCC 273 and Joginder Kumar v. State of U.P., (1994) 4 SCC 260, in that the arrest was effected mechanically and without the application of mind, and without the observance of the procedural safeguards.

(vi) THE DETENTION IS BEING PROLONGED WITHOUT THE AUTHORITY OF A COMPETENT COURT: ..... (set out the specific facts showing that the continued detention is without authority).

3. That the petitioner No. 1 has been subjected to ..... (state the specific instances of ill-treatment, custodial violence, denial of medical treatment, or the violation of the petitioner's rights), and the petitioner No. 1's health and safety are in serious danger.

4. That Article 226 of the Constitution of India confers upon this Hon'ble Court the power to issue directions, orders or writs, including writs in the nature of habeas corpus, mandamus, prohibition, quo warranto and certiorari, for the enforcement of the fundamental rights conferred by Part III of the Constitution and for any other purpose. The writ of habeas corpus lies to secure the release of a person who is illegally detained, and the said remedy is available notwithstanding the pendency of any other proceeding.

5. That Section 528, BNSS, 2023 saves the inherent powers of the High Court, and Section 530, BNSS, 2023 provides for the conduct of trials and proceedings in electronic mode; the present petition is maintainable under Article 226 of the Constitution and the inherent jurisdiction of this Hon'ble Court.

6. That the petitioner No. 1 has no other alternative efficacious remedy, and the illegal detention of the petitioner No. 1 causes a continuing violation of the fundamental rights guaranteed under Articles 21 and 22 of the Constitution of India; hence the present petition.

7. That the petitioner has not filed any other petition before this Hon'ble Court or before the Hon'ble Supreme Court in respect of the same subject matter, and the petitioner has no other remedy save the present petition. The petitioner is ready and willing to abide by all such orders as this Hon'ble Court may pass.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) issue a writ of habeas corpus, or any other appropriate writ, order or direction, directing the respondents to produce the petitioner No. 1, namely ....., before this Hon'ble Court forthwith, and to set the petitioner No. 1 at liberty;

(ii) issue a writ of mandamus directing the respondents to comply with the provisions of Sections 35, 36, 47, 48 and 58 of the Bharatiya Nagarik Suraksha Sanhita, 2023 and the directions issued by the Hon'ble Supreme Court in D.K. Basu v. State of West Bengal, (1997) 1 SCC 416 and Arnesh Kumar v. State of Bihar, (2014) 8 SCC 273;

(iii) hold that the detention of the petitioner No. 1 is illegal and in violation of Articles 21 and 22 of the Constitution of India, and award compensation to the petitioner No. 1 for the illegal detention, in terms of the law laid down by the Hon'ble Supreme Court in Nilabati Behera v. State of Orissa, (1993) 2 SCC 746;

(iv) direct the initiation of departmental action against the erring police officials and the registration of an FIR/prosecution in respect of the offences committed by them, if any; and

(v) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

PETITIONERS
THROUGH
ADVOCATE

Place: .....

Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) The writ of habeas corpus is a writ of right, not of course, and lies to secure the release of a person who is illegally or improperly detained. The Court will examine the legality of the detention and the authority for it. (ii) Habeas corpus is not a substitute for bail; the Court may, however, set aside an order of remand which is without jurisdiction or is illegal, and release the detenu. (iii) The petitioner should place on record the arrest memo, the medical records, the jail records, and the order of remand, if any. (iv) Article 21 and Article 22 of the Constitution guarantee the right to life and personal liberty and the safeguards against arrest and detention; the violation of these rights entitles the petitioner to the writ of habeas corpus and to compensation. (v) An SLP under Article 136 lies to the Supreme Court against the order of the High Court; a writ petition under Article 32 lies to the Supreme Court for the enforcement of the fundamental rights. (vi) The petition should be filed expeditiously, and urgent mentioning may be made where the detention is illegal and continuing.]

CR.P.C. EQUIVALENT

Article 226 of the Constitution of India; Sections 528 and 530, BNSS, 2023; Sections 57, 58 and 62, BNSS, 2023.

PRECEDENTS REFERRED TO

- *D.K. Basu v. State of West Bengal, (1997) 1 SCC 416 - the procedural safeguards to be observed in all cases of arrest and detention; the consequences of non-compliance.*
- *Joginder Kumar v. State of U.P., (1994) 4 SCC 260 - the justification for arrest; the arrest must be on a reasonable belief.*
- *Arnesh Kumar v. State of Bihar, (2014) 8 SCC 273 - the guidelines on arrest in offences punishable with imprisonment up to seven years.*
- *Nilabati Behera v. State of Orissa, (1993) 2 SCC 746 - compensation for the violation of fundamental rights; public law remedy.*
- *Rudul Sah v. State of Bihar, (1983) 4 SCC 141 - the writ of habeas corpus and compensation for illegal detention.*
- *Vihaan Kumar v. State of Haryana, 2025 SCC OnLine SC 85 - the communication of the grounds of arrest is mandatory; the Magistrate must verify the compliance.*

PART G

SPECIAL STATUTES & MISCELLANEOUS

Formats G-64 to G-70

FORMAT G-64 — COMPLAINT UNDER SECTION 138 OF THE NEGOTIABLE INSTRUMENTS ACT, 1881

Special Statutes

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS / METROPOLITAN MAGISTRATE (NI ACT), ..., (DISTRICT .....)

CRIMINAL COMPLAINT NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o / D/o / W/o ....., aged about ..... years, R/o ....., Mobile No. .... COMPLAINANT

1. M/s ....., through its Proprietor/Partner/Director .... ACCUSED NO. 1 (Company/Firm)

2. ....., S/o ....., R/o ..... (Proprietor/Partner/Director/Authorised Signatory) ..... ACCUSED NO. 2

JURISDICTION: POLICE STATION .....

PLACE OF DRAWING/PRESENTATION OF THE CHEQUE: .....

VALIDITY OF THE NOTICE: NOTICE DATED ..... 15 DAYS EXPIRED ON .....

COMPLAINT UNDER SECTION 138 OF THE NEGOTIABLE INSTRUMENTS ACT, 1881

MOST RESPECTFULLY SHOWETH:

1. That the complainant is ....., carrying on the business of ..... at ....., and is a law-abiding citizen of India, and is competent to file the present complaint.

2. That the accused No. 1 is ..... (a company/a firm/a proprietorship concern) engaged in the business of ....., and the accused No. 2 is the ..... (Proprietor/Managing Director/Director/Partner/Authorised Signatory) of the accused No. 1, and is in charge of and is responsible to the accused No. 1 for the conduct of its business, and is liable to be proceeded against under Section 141 of the Negotiable Instruments Act, 1881.

3. That the accused persons, in discharge of their existing legal liability towards the complainant, arising out of ..... (state the nature of the transaction - e.g., supply of goods vide invoice No. ..... dated .....; a loan advanced vide agreement dated .....; the balance amount due on account of .....), issued/delivered the following cheque(s) in favour of the complainant:

   Cheque No.: .....; Dated: .....; Drawn on: ..... Bank, ... Branch; Amount: Rs. .....; In favour of: .....; Signed by: ..... The original cheque is annexed hereto and marked as ANNEXURE A-1.

4. That the complainant presented the said cheque for encashment with the complainant's banker, namely ..... Bank, ... Branch, on ..... within the period of its validity, but the said cheque was dishonoured and returned unpaid vide the banker's return memo dated ..... with the remarks '.....' (e.g., INSUFFICIENT FUNDS / REFER TO DRAWER / ACCOUNT CLOSED / PAYMENT STOPPED BY DRAWER / SIGNATURE MISMATCH). The original return memo is annexed hereto and marked as ANNEXURE A-2.

5. That the reason given by the banker of the accused for the dishonour of the said cheque falls within the purview of Section 138 of the Negotiable Instruments Act, 1881, in that there was insufficient funds in the account of the accused, or the amount exceeded the arrangement made with the bank, or the cheque was returned unpaid for the reason of '.....'

6. That the complainant, within the statutory period of thirty days from the receipt of the information of the dishonour of the cheque, issued a legal notice dated ..... to the accused persons, by registered post with acknowledgement due and also by speed post/e-mail, calling upon the accused persons to pay the amount of the dishonoured cheque, namely Rs. ....., within a period of fifteen days from the receipt of the said notice. A copy of the said notice is annexed as ANNEXURE A-3 and the postal receipts/acknowledgements are annexed as ANNEXURE A-4 (colly).

7. That the said notice was duly served upon the accused persons on ..... / has been deemed to have been served upon the accused persons in terms of Section 27 of the General Clauses Act, 1897 and Section 114 of the Bharatiya Sakshya Adhiniyam, 2023, in that the notice was properly addressed, prepaid and posted by registered post; the acknowledgement due received back along with the returned envelope shows ..... (e.g., that the accused refused to accept the notice / that the accused avoided the service).

8. That the accused persons have failed and neglected to pay the amount of the dishonoured cheque to the complainant within fifteen days of the receipt of the said notice, and no payment whatsoever has been made by the accused persons till date, and the accused persons have also not sent any reply to the said notice.

9. That the cause of action for filing the present complaint arose on ..... (i.e., on the expiry of fifteen days from the date of the service of the notice) and continues, and the present complaint has been filed within one month from the date of the accrual of the cause of action, in terms of Section 142(1)(b) of the Negotiable Instruments Act, 1881, and hence the complaint is well within the period of limitation.

10. That the cheque in question was issued by the accused persons in discharge of a legally enforceable debt/liability, and the accused persons have committed the offence punishable under Section 138 of the Negotiable Instruments Act, 1881, in that they have drawn the cheque for payment of any amount of money to the complainant, the said cheque has been presented within its validity, the same has been returned unpaid by the bank for want of sufficient funds or for the other reasons specified under the said section, and the accused persons have failed to make the payment within fifteen days of the receipt of the statutory notice.

11. That this Hon'ble Court has the territorial jurisdiction to entertain and try the present complaint, in that the complainant's bank/the branch of the bank where the cheque was presented for collection is situated at ....., within the territorial limits of this Hon'ble Court, in terms of Section 142(2) of the Negotiable Instruments Act, 1881, as amended by the Negotiable Instruments (Amendment) Act, 2015.

12. That the complainant is ready and willing to be examined on oath, and the witnesses of the complainant are also ready to be examined. The complainant relies upon the documents annexed hereto and the witnesses cited in the list of witnesses annexed hereto.

13. That the present complaint is bona fide, is not actuated by any ulterior motive, and is being filed in the interest of justice; no part of the complaint is false or frivolous, and the complainant has not concealed any material fact.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) take cognizance of the offences punishable under Section 138 read with Sections 141 and 142 of the Negotiable Instruments Act, 1881, against the accused persons;

(ii) issue summons to the accused persons, and after their appearance, try and punish them in accordance with the provisions of the Negotiable Instruments Act, 1881;

(iii) direct the accused persons to pay the amount of the dishonoured cheque, namely Rs. ....., along with interest at the rate of .....% per annum from the date of the dishonour of the cheque till

the date of the actual payment, and to pay compensation to the complainant under Section 143A and Section 148 of the Negotiable Instruments Act, 1881;

(iv) award the costs of the litigation to the complainant; and

(v) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

COMPLAINANT
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) ESSENTIAL INGREDIENTS of the offence under Section 138: (a) the cheque was drawn for the payment of any amount of money to another person from out of an account maintained by the drawer for the discharge, in whole or in part, of any debt or other liability; (b) the cheque was presented within the period of its validity (three months from the date on which it is drawn or within the period of its validity, whichever is earlier); (c) the cheque was returned unpaid due to insufficiency of funds or because the amount exceeded the arrangement; (d) a written notice was given within thirty days of the receipt of the information of the dishonour; (e) the drawer failed to pay within fifteen days of the receipt of the notice; and (f) the complaint was filed within one month of the cause of action. (ii) Section 142(1)(b) prescribes the period of limitation of one month from the date on which the cause of action arises; however, the Court may take cognizance after the expiry of the said period if it is satisfied that the delay has been properly explained or that it is necessary and expedient in the interest of justice. (iii) Section 143A provides for interim compensation of up to 20% of the amount of the cheque; Section 148 provides for the deposit of a minimum of 20% of the fine or compensation awarded by the Trial Court in an appeal. (iv) Section 141 makes the persons in charge of and responsible for the conduct of the business of the company liable; the complaint must contain a specific averment in that behalf, and a mere reproduction of the language of the section is insufficient - see S.M.S. Pharmaceuticals Ltd. v. Neeta Bhalla, (2005) 8 SCC 89. (v) Section 138 is a complete code, and the offence is a 'summons case' triable in accordance with the procedure prescribed by Chapter XX of the BNSS, 2023; the trial is now to be conducted as far as possible in accordance with Sections 143 to 145 of the NI Act. (vi) Where the complainant is a company, the complaint must be filed by a person duly authorised, and the resolution/authorisation must be annexed.]

[Note: DOCUMENTS TO BE ANNEXED: (1) Original cheque; (2) Original banker's return memo; (3) Copy of the legal notice; (4) Postal receipts and acknowledgement due; (5) Copy of the invoice/bill/statement of account/agreement establishing the legally enforceable debt; (6) List of witnesses; (7) Affidavit in support (where required); (8) Vakalatnama.]

CR.P.C. EQUIVALENT

The complaint procedure is governed by Sections 223 to 228, BNSS, 2023 (old Sections 200 to 204, Cr.P.C.), read with Sections 142 to 145 of the NI Act, 1881, which prescribe a special procedure for the trial of the offences under Section 138 - namely, the examination of the complainant on affidavit, the trial in a summary manner, and the service of the summons through speed post/courier.

PRECEDENTS REFERRED TO

• S.M.S. Pharmaceuticals Ltd. v. Neeta Bhalla, (2005) 8 SCC 89 - the liability of the directors and the persons in charge of the company; the complaint must contain specific averments.

• Aneeta Hada v. Godfather Travels & Tours Pvt. Ltd., (2012) 5 SCC 661 - the complaint against the directors of a company is not maintainable without the company being arraigned as an accused.

• Dashrath Rupsingh Rathod v. State of Maharashtra, (2014) 9 SCC 129 - the question of territorial jurisdiction; subsequently altered by the 2015 Amendment (Section 142(2)).

• Bridgestone India Pvt. Ltd. v. Inderpal Singh, (2016) 2 SCC 75 - the territorial jurisdiction under Section 142(2).

• Rangappa v. Sri Mohan, (2010) 11 SCC 441 - the presumption under Section 139 of the NI Act and the burden of proof.

• Basalingappa v. Mudibasappa, (2019) 5 SCC 418 - the scope of the presumption under Sections 118 and 139 and the rebuttal thereof.

• Rajesh Jain v. Ajay Singh, (2023) 10 SCC 148 - the amount of compensation and the considerations governing its award under Section 138.

• M/s Kalamani Tex v. P. Balasubramanian, (2021) 5 SCC 283 - the standard of proof required to rebut the presumption under Section 139.

FORMAT G-65 — APPLICATION FOR MAINTENANCE OF WIFE, CHILDREN AND PARENTS UNDER SECTION 144 BNSS

Special Statutes

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS / PRINCIPAL JUDGE, FAMILY COURT, ..., (DISTRICT .....)

MAINTENANCE APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

1. Smt. ....., W/o ....., aged about ..... years, R/o .... APPLICANT NO. 1 (Wife)

2. Master/Miss ....., S/o / D/o ....., aged about ..... years, through his/her mother and natural guardian, the applicant No. 1 ..... APPLICANT NO. 2 (Child)

....., S/o ....., aged about ..... years, R/o ....., presently working as ..... at .... RESPONDENT / HUSBAND-FATHER

PLACE OF MARRIAGE: .....

DATE OF MARRIAGE: ..... DATE OF SEPARATION: .....

PLACE OF RESIDENCE OF THE APPLICANTS: .....

APPLICATION UNDER SECTION 144 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 FOR MAINTENANCE OF WIFE, CHILDREN AND PARENTS

MOST RESPECTFULLY SHOWETH:

1. That the applicant No. 1 is the legally wedded wife of the respondent, and the applicant No. 2 is the minor legitimate child of the respondent, born out of the said wedlock on ..... The applicants are ..... (Hindus/Muslims/Christians/others) and are governed by the personal law applicable to them, in so far as it is not inconsistent with the provisions of Section 144, BNSS, 2023.

2. That the marriage between the applicant No. 1 and the respondent was solemnized on ..... at ..... according to the rites and ceremonies of the ..... faith, and the marriage was duly registered vidé Certificate of Registration of Marriage No. ..... dated ..... (if applicable). A copy of the marriage certificate/ photographs of the marriage ceremony are annexed hereto as ANNEXURE A.

3. That after the marriage, the applicant No. 1 and the respondent resided together as husband and wife at ....., and out of the said wedlock, the applicant No. 2 was born on ..... The applicant No. 1 and the respondent last resided together at ..... within the territorial jurisdiction of this Hon'ble Court, and hence this Hon'ble Court has the jurisdiction to entertain and try the present application.

4. That the respondent, having sufficient means, has neglected and refused to maintain the applicants, in that:

   (i) The respondent, without any reasonable cause, ... (state the specific instances - e.g., deserted the applicant No. 1 on ..... and has not returned since; turned the applicant No. 1 out of the matrimonial home on ..... after subjecting her to cruelty and harassment; has been living in adultery with .....; has been neglecting the applicants and has not provided any maintenance to them, although repeatedly requested);

   (ii) The applicants have repeatedly requested the respondent to provide them with the maintenance and to maintain them, but the respondent has refused and neglected to do so, and has not paid a single rupee towards the maintenance of the applicants since .....;

   (iii) The applicant No. 1 has also requested ..... (the elders of the family/the Panchayat/the mediation centre) to intervene and to persuade the respondent to maintain the applicants, but all such efforts

have failed.

5. That the applicant No. 1 has no independent source of livelihood and is unable to maintain herself, in that: (i) the applicant No. 1 is a housewife and has no independent income; (ii) the applicant No. 1 was compelled to leave the matrimonial home and is presently residing with her ..... (parents/relatives) at .....; (iii) the applicant No. 1 has no movable or immovable property of her own, save .....; (iv) the applicant No. 1 has been dependent upon her aged parents, who are themselves not in a position to maintain her, and whose monthly income is only approximately Rs. .....

6. That the applicant No. 2 is a minor of ..... years and is studying in ....., and is wholly dependent upon the applicant No. 1 and the respondent for the applicant's maintenance, education and other needs, and the applicant No. 2 has no source of income whatsoever. The monthly expenses for the maintenance and education of the applicant No. 2 are approximately Rs. .....

7. That the respondent is a man of sufficient means and is well able to maintain the applicants, in that: (i) the respondent is working as ..... at ....., and is earning a gross monthly salary of Rs. ..... (the salary certificate/Form 16/Income Tax Return/bank statement of the respondent is annexed as ANNEXURE B); (ii) the respondent is also the owner of the following properties, namely ..... (a copy of the property documents is annexed as ANNEXURE C); (iii) the respondent has been leading a luxurious lifestyle, and has been spending substantial amounts on himself and on .....; (iv) the respondent has the financial capacity to maintain the applicants, and the failure to do so is wilful and is without any reasonable cause.

8. That the respondent has no other liability of any consequence, save the maintenance of the applicants, and the respondent has not been supporting any other person. [Where the respondent has remarried or has other dependents, the same should be honestly disclosed, and the applicant should address the same.]

9. That the applicants are residing at ....., which is within the territorial jurisdiction of this Hon'ble Court, and the respondent, being the husband/father of the applicants, is liable to maintain them, the applicants being unable to maintain themselves.

10. That Section 144(1), BNSS, 2023 provides that if any person having sufficient means neglects or refuses to maintain (a) his wife, unable to maintain herself; (b) his legitimate or illegitimate child, whether married or not, unable to maintain itself; (c) his legitimate or illegitimate child (not being a married daughter) who has attained majority, where such child is, by reason of any physical or mental abnormality or injury unable to maintain itself; or (d) his father or mother, unable to maintain himself or herself, a Magistrate of the first class may, upon proof of such neglect or refusal, order such person to make a monthly allowance for the maintenance of his wife or such child, father or mother, at such monthly rate as such Magistrate thinks fit, and to pay the same to such person as the Magistrate may from time to time direct.

11. That the second proviso to Section 144(1), BNSS, 2023 empowers the Magistrate, during the pendency of the proceeding regarding monthly allowance for the maintenance, to order such person to make a monthly allowance for the interim maintenance of his wife, or such child, father or mother, and the expenses of such proceeding, which the Magistrate considers reasonable; and the third proviso provides that an application for the interim maintenance and expenses of the proceeding shall, as far as possible, be disposed of within sixty days from the date of the service of the notice of the application to such person.

12. That Section 144(2), BNSS, 2023 provides that such allowance shall be payable from the date of the order, or, if so ordered, from the date of the application for maintenance; and Section 144(3) provides for the enforcement of the order by the issue of a warrant for levying the amount due in the manner provided for levying fines, and by the imposition of a sentence of imprisonment.

13. That the Explanation to Section 144(1) provides that for the purposes of the said Chapter, 'wife' includes a woman who has been divorced by, or has obtained a divorce from, her husband and has not remarried.

14. That having regard to the income and the standard of living of the respondent, the applicants are entitled to maintenance at the rate of Rs. ..... per month for the applicant No. 1 and Rs. ..... per month for the applicant No. 2, i.e., a total of Rs. ..... per month, payable from the date of the filing of the present application; the applicants are also entitled to the costs of the proceedings and to the interim maintenance during the pendency of the application.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) order the respondent to pay a monthly allowance of Rs. ..... towards the maintenance of the applicant No. 1 (wife) and Rs. ..... towards the maintenance of the applicant No. 2 (child), i.e., a total of Rs. ..... per month, from the date of the filing of the present application, in terms of Section 144 of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) order the respondent to pay interim maintenance at the rate of Rs. ..... per month to the applicants, and to pay the expenses of the present proceeding, during the pendency of the present application, in terms of the second proviso to Section 144(1), BNSS, 2023, and direct that the said application for interim maintenance be disposed of within sixty days from the date of the service of the notice;

(iii) direct the respondent to produce before this Hon'ble Court the documents relating to his income, assets and liabilities, namely the salary slips, the income tax returns, the bank statements and the property documents, for the period from ..... to .....;

(iv) direct the respondent to pay the arrears of maintenance, if any, and to continue to pay the maintenance as ordered; and

(v) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT NO. 1 (ON BEHALF OF APPLICANT NO. 2 AS WELL)
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 144, BNSS, 2023 replaces old Section 125, Cr.P.C., and contains the following significant improvements: (a) the scope of the expression 'wife' has been enlarged, by the Explanation, to include a woman who has been divorced by, or has obtained a divorce from, her husband and has not remarried; (b) the second proviso statutorily provides for interim maintenance and the expenses of the proceeding; and (c) the third proviso fixes a time limit of sixty days for the disposal of the application for interim maintenance. (ii) The application is maintainable notwithstanding the pendency of any proceeding under the personal law (e.g., a petition for divorce, or a petition under the Hindu Marriage Act, 1955 or the Protection of Women from Domestic Violence Act, 2005); the remedies are independent and not mutually exclusive. (iii) An application under Section 144 lies only before a Magistrate of the first class; where the salary/recovery is to be enforced, the order may be executed in the manner prescribed in Section 147, BNSS, 2023. (iv) The applicant should place on record the proof of the marriage, the proof of the respondent's income (which may be ascertained by seeking a direction to the employer/bank to produce the records), the proof of the applicant's inability to maintain herself, and the proof of the neglect and refusal. (v) The order of maintenance may be altered under Section 146, BNSS, 2023 upon a change in the circumstances. (vi) The Court may also direct the payment of the arrears and may order the attachment of the salary/property of the respondent. (vii) Where the respondent is the father or mother, the applicant must establish that the respondent has sufficient means and that the applicant is unable to maintain himself/herself.]

CR.P.C. EQUIVALENT

Old Section 125, Cr.P.C., 1973 -> Section 144, BNSS, 2023. Old Sections 126, 127 and 128 -> Sections 145, 146 and 147, BNSS, 2023.

PRECEDENTS REFERRED TO

• *Mohd. Ahmed Khan v. Shah Bano Begum, (1985) 2 SCC 556 - the right of a divorced Muslim woman to maintenance under Section 125, Cr.P.C.*

• *Rajnesh v. Neha, (2021) 2 SCC 324 - comprehensive guidelines on the grant of maintenance; the filing of the affidavit of disclosure of assets and liabilities by both parties; the date from which the maintenance is payable; the overlapping jurisdiction of the Courts.*

• *Kalyan Dey Chowdhury v. Rita Dey Chowdhury Nee Nandy, (2017) 14 SCC 200 - the quantum of maintenance should be determined having regard to the income of the husband and the standard of living.*

• *Chander Prakash v. Shila Rani - the means of the wife and the obligation of the husband.*

• *Reema Salkan v. Sumer Singh Salkan, (2019) 16 SCC 412 - the wife is entitled to maintain the petition at the place where she resides.*

• *Bhagwan Dutt v. Kamla Devi, (1975) 2 SCC 386 - the considerations governing the grant of maintenance under Section 125, Cr.P.C.*

FORMAT G-66 — APPLICATION FOR INTERIM MAINTENANCE

Special Statutes

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS / PRINCIPAL JUDGE, FAMILY COURT, ..., (DISTRICT .....)

MAINTENANCE APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

1. Smt. ....., W/o ....., R/o ....

APPLICANT NO. 1

2. Master/Miss ..... through his/her mother and natural guardian .....

APPLICANT NO. 2

....., S/o ....., R/o ....

RESPONDENT

APPLICATION FOR INTERIM MAINTENANCE UNDER THE SECOND PROVISO TO SECTION 144(1) OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicants have filed the accompanying application under Section 144, BNSS, 2023 for the grant of maintenance, which is pending before this Hon'ble Court, and the notice of the said application has been served upon the respondent on .....

2. That the applicants have no independent source of income and are unable to maintain themselves during the pendency of the said application, in that the applicant No. 1 is a housewife with no income and is residing with her aged parents at ....., who are themselves not in a position to provide for the applicants. The applicant No. 1 and the applicant No. 2 are, in fact, dependent upon the charity of the applicant No. 1's aged parents and are unable to meet even their basic needs, including food, clothing, shelter, medical expenses and the educational expenses of the applicant No. 2.

3. That the respondent is a man of sufficient means, and has been deliberately delaying the proceedings in order to deprive the applicants of the maintenance, in that the respondent has, on ....., sought adjournments on flimsy grounds, namely ....., with the sole object of prolonging the litigation and of avoiding the payment of the maintenance.

4. That the second proviso to Section 144(1), BNSS, 2023 expressly provides that the Magistrate may, during the pendency of the proceeding regarding monthly allowance for the maintenance under the said sub-section, order such person to make a monthly allowance for the interim maintenance of his wife or such child, father or mother, and the expenses of such proceeding which the Magistrate considers reasonable, and to pay the same to such person as the Magistrate may from time to time direct; and the third proviso provides that an application for interim maintenance and expenses of proceeding shall, as far as possible, be disposed of within sixty days from the date of the service of the notice of the application to such person.

5. That the present application is filed in terms of the second proviso to Section 144(1), BNSS, 2023, and the same has been filed promptly after the service of the notice upon the respondent, and the same deserves to be allowed expeditiously, in view of the mandate of the third proviso, which requires the application for interim maintenance to be disposed of within sixty days.

6. That having regard to the income of the respondent, namely Rs. ..... per month, and the standard of living to which the applicants were accustomed, and the needs of the applicants, namely Rs. ..... per month, the applicants are entitled to an interim maintenance at the rate of Rs. ..... per month for the applicant No. 1 and Rs. ..... per month for the applicant

No. 2, along with the expenses of the present proceeding to the extent of Rs. .....

7. That the respondent has also not paid any amount towards the maintenance of the applicants since ....., and the applicants have been compelled to borrow money from their relatives in order to meet their basic needs, and have also incurred liabilities, namely .....

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) order the respondent to pay interim maintenance at the rate of Rs. ..... per month to the applicant No. 1 and Rs. ..... per month to the applicant No. 2, i.e., a total of Rs. ..... per month, during the pendency of the accompanying application under Section 144, BNSS, 2023, in terms of the second proviso to Section 144(1), BNSS, 2023;

(ii) order the respondent to pay the expenses of the present proceeding, namely Rs. ....., in terms of the said proviso;

(iii) direct the respondent to pay the arrears of the interim maintenance from the date of the filing of the accompanying application/the date of the order, as this Hon'ble Court may deem fit;

(iv) direct the respondent to file an affidavit disclosing his assets, liabilities, income and expenditure, in terms of the guidelines laid down by the Hon'ble Supreme Court in Rajnesh v. Neha, (2021) 2 SCC 324; and

(v) direct that the present application be disposed of within a period of sixty days from the date of the service of the notice upon the respondent, in terms of the third proviso to Section 144(1), BNSS, 2023, and pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT NO. 1
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) The second proviso to Section 144(1), BNSS, 2023 is a new addition and statutorily provides for interim maintenance, which was earlier granted by the Courts in the exercise of their powers under the general law and under Section 125, Cr.P.C. (see Savitaben Somabhai Bhatiya v. State of Gujarat, (2005) 3 SCC 636 and Shail Kumari Devi v. Krishan Bhagwan Pathak, (2008) 9 SCC 632). (ii) The third proviso prescribes a period of sixty days for the disposal of the application for interim maintenance, which is a mandate and not a mere formality. (iii) The Supreme Court, in Rajnesh v. Neha, (2021) 2 SCC 324, has directed that the affidavits of disclosure of assets and liabilities be filed by both parties in all maintenance proceedings, and has laid down the criteria for the determination of the quantum of maintenance, including the status of the parties, the reasonable needs of the wife and children, the educational and medical expenses, and the standard of living. (iv) An interim maintenance order is subject to the final order, and the amount paid may be adjusted against the final award.]

CR.P.C. EQUIVALENT

New provision - the second and third provisos to Section 144(1), BNSS, 2023. Compare old Section 125, Cr.P.C., under which interim maintenance was granted by the Courts in the exercise of their judicial discretion.

PRECEDENTS REFERRED TO

- *Rajnesh v. Neha, (2021) 2 SCC 324 - the guidelines on the grant of maintenance; the affidavit of disclosure; the criteria for determining the quantum; the overlapping jurisdictions.*
- *Shail Kumari Devi v. Krishan Bhagwan Pathak, (2008) 9 SCC 632 - the power of the Magistrate to award maintenance from the date of the application.*
- *Savitaben Somabhai Bhatiya v. State of Gujarat, (2005) 3 SCC 636 - the entitlement of the wife to maintenance.*
- *Kalyan Dey Chowdhury v. Rita Dey Chowdhury Nee Nandy, (2017) 14 SCC 200 - the quantum of maintenance.*

FORMAT G-67 — APPLICATION FOR ENFORCEMENT / EXECUTION OF THE MAINTENANCE ORDER

Special Statutes

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS, ..., (DISTRICT .....)

MAINTENANCE APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

Smt. ....., W/o ....., R/o ....
APPLICANT / PETITIONER

....., S/o ....., R/o ....
RESPONDENT / OPPOSITE PARTY

APPLICATION FOR ENFORCEMENT OF THE ORDER OF MAINTENANCE UNDER SECTION 147 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That this Hon'ble Court was pleased to allow the application of the applicant under Section 144, BNSS, 2023 vidé order dated ....., and was pleased to direct the respondent to pay a monthly allowance of Rs. ..... to the applicant and Rs. ..... to the applicant No. 2, i.e., a total of Rs. ..... per month, from the date of the said order/the date of the application. A copy of the said order is annexed hereto as ANNEXURE A.

2. That the said order has become final, no appeal or revision having been preferred against the same within the prescribed period of limitation / the appeal/revision preferred against the said order has been dismissed vidé order dated ....., and the said order has attained finality.

3. That the respondent has failed, without sufficient cause, to comply with the said order of maintenance, and has not paid the amount of maintenance to the applicant since ....., and the arrears of the maintenance due and payable to the applicant as on ..... amount to Rs. ..... The details of the arrears are as under:

   Period: From ..... to .....; Amount due per month: Rs. .....; Number of months: .....; Total amount due: Rs. .....; Amount actually paid: Rs. .....; Balance amount due: Rs. .....

4. That the applicant has repeatedly requested the respondent to pay the arrears of maintenance, in person and through the elders of the family and through the mediation centre, but the respondent has wilfully and deliberately refused and neglected to pay the same, and has been evading the payment of the maintenance despite having sufficient means.

5. That the respondent is a man of sufficient means and is capable of paying the arrears of the maintenance, in that the respondent is earning Rs. ..... per month from ....., and is also the owner of the properties, namely ..... (the details of the properties/employment of the respondent are given in the Schedule annexed hereto); the respondent has, however, been spending his income on himself and on ....., and has deliberately deprived the applicant of the maintenance.

6. That Section 147(1), BNSS, 2023 (old Section 128, Cr.P.C.) provides that if any person so ordered fails without sufficient cause to comply with an order under Section 144, any such Magistrate may, for every breach of the order, issue a warrant for levying the amount due in the manner provided for levying fines, and may sentence such person, for the whole or any part of each month's allowance for the maintenance or the interim maintenance and expenses of the proceeding, remaining unpaid after the execution of the

warrant, to imprisonment for a term which may extend to one month or until payment, if sooner made.

7. That Section 147(2), BNSS, 2023 provides that no warrant shall be issued for the recovery of any amount due under the said section unless an application is made to the Court to levy such amount within a period of one year from the date on which it became due; and the proviso to the said sub-section provides that if the person against whom the order is made is outside the local limits of the jurisdiction of the Court, the application may be made to the Court within whose local jurisdiction he is, and the Court may enforce the order in the same manner as if the order had been made by that Court.

8. That the applicant, however, prays that in view of the provision contained in the third proviso to Section 147(2), BNSS, 2023, the Court may, for sufficient reasons, extend the period of one year, and the delay in making the present application, if any, may kindly be condoned; the applicant may be permitted to give oral evidence in proof of the date of the accrual of the amount due and of the non-payment thereof.

9. That the applicant has not recovered any amount from any other source, and the applicant and the applicant's child are entirely dependent upon the amount of maintenance for their survival, and the non-payment of the maintenance has caused grave hardship, and has compelled the applicant to borrow money and to incur debts in order to meet the basic needs of the applicant and of the applicant's child.

10. That the applicant has no other alternative efficacious remedy for the recovery of the said amount, save the present application, and the Court is empowered to issue a warrant for the levy of the amount due in the manner provided for levying fines, and to sentence the respondent to imprisonment in default thereof.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) issue a warrant for levying the amount of the arrears of maintenance due and payable by the respondent to the applicant, namely Rs. ....., in the manner provided for levying fines, in terms of Section 147(1) of the Bharatiya Nagarik Suraksha Sanhita, 2023;

(ii) in default of the payment of the said amount, sentence the respondent to imprisonment for a term which may extend to one month for each month's allowance remaining unpaid, or until payment, if sooner made, in terms of Section 147(1), BNSS, 2023;

(iii) direct the attachment of the salary/income of the respondent, and direct the employer of the respondent, namely ....., to deduct and to remit the amount of the monthly maintenance directly to the applicant, in terms of the applicable rules and the directions of the Hon'ble Supreme Court;

(iv) condone the delay, if any, in the making of the present application, and permit the applicant to give evidence in proof of the date of the accrual of the amount due, in terms of the third proviso to Section 147(2), BNSS, 2023; and

(v) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 147, BNSS, 2023 corresponds to old Section 128, Cr.P.C., and provides for the enforcement of the order of maintenance. (ii) The application for the levy of the amount must ordinarily be made within one year from the date on which the amount became due; the proviso permits the Court to condone the delay for sufficient reasons. (iii) The Court may, in lieu of or in addition to the issue of a warrant, direct the recovery of the amount from the salary of the respondent, by directing the employer to deduct the amount at source. (iv) The order of maintenance may also be executed under the general law relating to the execution of orders, and an application may be made to the Court where the respondent resides, in terms of the proviso to Section 147(2), BNSS, 2023. (v) An order of maintenance passed under Section 144 may also be enforced by the transferee

Court, and the order may be sent for execution in accordance with Sections 409 and 410 of the old Cr.P.C.; under the BNSS, 2023 the corresponding provisions relating to the execution of the orders of the Court are contained in Sections 457 to 471, and in the case of the maintenance order, in Section 147.]

CR.P.C. EQUIVALENT

Old Section 128, Cr.P.C., 1973 -> Section 147, BNSS, 2023.

PRECEDENTS REFERRED TO

• *Shantha v. B.G. Shivananjappa, (2005) 4 SCC 468 - the Magistrate's power to enforce the order of maintenance and to sentence the defaulter to imprisonment; the procedure to be followed.*

• *Kuldip Kaur v. Surinder Singh, (1989) 1 SCC 405 - the enforcement of the order of maintenance; imprisonment for the default in payment.*

• *Rajnesh v. Neha, (2021) 2 SCC 324 - the guidelines on the enforcement of the orders of maintenance, including the recovery of the arrears.*

FORMAT G-68 — APPLICATION UNDER SECTION 12 OF THE PROTECTION OF WOMEN FROM DOMESTIC VIOLENCE ACT, 2005

Special Statutes

IN THE COURT OF THE JUDICIAL MAGISTRATE FIRST CLASS / METROPOLITAN MAGISTRATE, ..., (DISTRICT .....)

COMPLAINT CASE NO. ..... OF 20.....

IN THE MATTER OF:

Smt. ....., W/o ....., D/o ....., aged about ..... years, R/o .... APPLICANT / AGGRIEVED PERSON

1. ....., S/o ....., R/o ..... (Husband) ..... RESPONDENT NO. 1

2. ....., W/o ....., R/o ..... (Mother-in-law) ..... RESPONDENT NO. 2

3. ....., S/o ....., R/o ..... (Brother-in-law/Sister-in-law) ..... RESPONDENT NO. 3

SHARED HOUSEHOLD: .....

PLACE OF RESIDENCE OF THE APPLICANT: .....

DATE OF MARRIAGE: ..... DATE OF LAST INCIDENT: .....

APPLICATION UNDER SECTION 12 OF THE PROTECTION OF WOMEN FROM DOMESTIC VIOLENCE ACT, 2005 FOR THE GRANT OF RELIEFS UNDER SECTIONS 18 TO 22 OF THE SAID ACT

MOST RESPECTFULLY SHOWETH:

1. That the applicant is the legally wedded wife of the respondent No. 1 and is an 'aggrieved person' within the meaning of Section 2(a) of the Protection of Women from Domestic Violence Act, 2005, and the respondents are the 'respondents' within the meaning of Section 2(q) of the said Act, being the husband and the relatives of the husband of the applicant, with whom the applicant has been/is in a 'domestic relationship' within the meaning of Section 2(f) of the said Act, having lived together in a 'shared household' within the meaning of Section 2(s) of the said Act.

2. That the marriage between the applicant and the respondent No. 1 was solemnized on ..... at ..... according to the ..... rites and ceremonies, and out of the said wedlock, ... (a child/the children) was/were born on ..... The applicant and the respondent No. 1 last resided together in the shared household at ....., which is within the territorial jurisdiction of this Hon'ble Court.

3. That the respondents have subjected the applicant to 'domestic violence' within the meaning of Section 3 of the Act, which includes physical abuse, sexual abuse, verbal and emotional abuse and economic abuse, as more particularly described hereinbelow:

   (A) PHYSICAL ABUSE: (i) On ....., the respondent No. 1, in a fit of rage, ... (narrate the specific acts - e.g., slapped, kicked, punched, dragged the applicant by the hair, pushed her down the stairs, hit her with .....); (ii) on ....., the respondent No. 2, along with the respondent No. 1, ...; (iii) as a result of the said acts, the applicant sustained the following injuries, namely .....; the applicant was medically examined at ..... on ....., and the MLC/medical papers are annexed hereto as ANNEXURE A; (iv) a complaint was lodged by the applicant with Police Station ..... on ....., vide DD No. ..... / FIR No. ..... of 20....., a copy whereof is annexed as ANNEXURE B.

(B) VERBAL AND EMOTIONAL ABUSE: The respondents have habitually insulted, humiliated, ridiculed and threatened the applicant, and have used abusive and derogatory language against the applicant and her family members, calling the applicant ..... and taunting the applicant for ..... (e.g., for bringing insufficient dowry; for not bearing a male child; for not being fair-complexioned; for her educational qualifications). The respondents have also repeatedly threatened to ..... (e.g., to kill the applicant; to throw the applicant out of the house; to remarry the respondent No. 1).

(C) ECONOMIC ABUSE: The respondents have deprived the applicant of the financial resources to which the applicant is entitled under law, in that: (i) the respondents have not provided the applicant with the money for meeting the household expenses, and the applicant has been forced to spend from her own ..... (streedhan/salary); (ii) the respondents have taken away from the applicant her jewellery/\'streedhan\', namely ....., worth approximately Rs. ....., and have refused to return the same; (iii) the respondents have prohibited the applicant from taking up employment/or have forcibly taken the entire salary of the applicant, namely Rs. ..... per month; (iv) the respondents have disposed of the ..... (household articles/vehicle) belonging to the applicant without the applicant's consent.

(D) SEXUAL ABUSE: ..... (narrate, if applicable, in a dignified manner, the specific acts of sexual abuse, including any act of sexual nature that abuses, humiliates, degrades or otherwise violates the dignity of the applicant).

(E) THE APPLICANT WAS TURNED OUT OF THE SHARED HOUSEHOLD: On ....., the respondents, after subjecting the applicant to physical violence, forcibly turned the applicant out of the shared household at ....., and the applicant has since been residing at ..... with her parents, who are themselves not in a position to maintain the applicant. The respondents have also retained the belongings of the applicant, namely ....., the details whereof are annexed hereto as ANNEXURE C.

(F) CONTINUING ACTS OF VIOLENCE AND THREATS: The respondents have been continuing to threaten the applicant through ..... (their associates/telephone calls/messages), and the applicant apprehends further acts of violence, and the applicant's life and limb are in danger.

4. That the applicant has also filed/is entitled to file an application for ..... under ..... (the personal law/BNSS, 2023); the present application is maintainable and is not barred by the pendency of any other proceeding; the remedies under the Protection of Women from Domestic Violence Act, 2005 are in addition to and not in derogation of any other law, in terms of Section 26 of the said Act.

5. That the applicant is an aggrieved person and is entitled to the following reliefs, namely:

(i) PROTECTION ORDER under Section 18: prohibiting the respondents from committing any act of domestic violence, aiding or abetting the commission of any act of domestic violence, entering the place of employment of the applicant, attempting to communicate with the applicant in any manner, alienating the assets of the applicant, or committing any other act specified in the order;

(ii) RESIDENCE ORDER under Section 19: restraining the respondents from dispossessing the applicant from the shared household, and directing the respondents to remove themselves from the shared household or from the portion in which the applicant resides;

(iii) MONETARY RELIEF under Section 20: directing the respondents to pay compensation and damages for the injuries, including the mental torture and emotional distress caused to the applicant, and to pay the monthly maintenance to the applicant and to the applicant's child;

(iv) CUSTODY ORDER under Section 21: granting the custody of the child/children of the applicant, namely ....., to the applicant;

(v) COMPENSATION ORDER under Section 22: directing the respondents to pay compensation to the applicant for the injuries caused, including the mental torture and emotional distress, and the loss of earnings and medical expenses.

6. That the applicant is in urgent need of the reliefs prayed for, and irreparable injury shall be caused to the applicant if the protection order and the interim reliefs are not granted ex parte; the applicant undertakes to abide by all such conditions as this Hon'ble Court may impose.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) take cognizance of the present application under Section 12 of the Protection of Women from Domestic Violence Act, 2005, and issue notice to the respondents;

(ii) grant an ex parte/interim protection order under Section 18 and a residence order under Section 19 of the said Act, restraining the respondents from committing any act of domestic violence, and from dispossessing the applicant from the shared household, and from entering the place of employment/residence of the applicant;

(iii) grant interim monetary relief under Section 20 of the said Act, by way of monthly maintenance of Rs. ..... for the applicant and Rs. ..... for the child/children, together with the medical expenses and the compensation for the mental torture and emotional distress;

(iv) grant the custody of the child/children, namely ....., to the applicant under Section 21 of the said Act;

(v) direct the respondents to return the articles/streedhan of the applicant, namely ....., or to pay the value thereof, namely Rs. .....;

(vi) grant a compensation order under Section 22 of the said Act, and direct the respondents to pay compensation of Rs. ..... to the applicant;

(vii) direct the Protection Officer/Service Provider to provide the applicant with the necessary assistance, including shelter, medical facilities and legal aid, and to file the Domestic Incident Report in terms of Sections 9 and 12 of the said Act; and

(viii) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / AGGRIEVED PERSON
THROUGH
ADVOCATE / PROTECTION OFFICER
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) The application under Section 12 must be accompanied by the prescribed form of the application/\'Domestic Incident Report\'; the applicant may also file the application through a Protection Officer or a Service Provider, or through the Legal Services Authority. (ii) The Court must endeavour to dispose of the application within sixty days from the date of the first hearing, in terms of Section 12(5), and may grant ex parte interim orders under Section 23(2) of the Act. (iii) The remedies under the Act are in addition to and not in derogation of any other law - Section 26; accordingly, the applicant may simultaneously pursue the remedies under the personal law, the BNSS, 2023 and the criminal law. (iv) Section 18 provides for the protection order; Section 19 for the residence order; Section 20 for the monetary relief; Section 21 for the custody order; Section 22 for the compensation order; and Section 23 for the power to grant interim and ex parte orders. (v) A breach of the protection order/ interim order is an offence under Section 31 of the Act. (vi) Where the applicant is in need of immediate shelter, the Court may direct the Protection Officer to provide shelter in a shelter home, and to provide medical assistance.]

[Note: The incidents must be set out with specific dates, times, places and the acts attributed to each respondent, so that the respondents may be able to meet the case. A general and omnibus allegation against all the relatives of the husband is liable to be rejected at the stage of the framing of the notice/the grant of reliefs, and a specific averment is necessary in respect of each respondent.]

CR.P.C. EQUIVALENT

The Protection of Women from Domestic Violence Act, 2005 is a self-contained code; the procedure prescribed under Sections 12 to 23 thereof applies, and the provisions of the BNSS, 2023 apply to the extent they are not inconsistent with the said Act (see

Section 28 of the Act, which provides that the proceedings shall be governed by the provisions of the Code of Criminal Procedure, 1973, now the BNSS, 2023).

PRECEDENTS REFERRED TO

• *Satish Chander Ahuja v. Sneha Ahuja, (2021) 1 SCC 414 - the right of the aggrieved woman to reside in the shared household; the interpretation of the expression 'shared household' under Section 2(s).*

• *Hiral P. Harsora v. Kusum Narottamdas Harsora, (2016) 10 SCC 165 - the expression 'adult male person' in Section 2(q) struck down; the respondents may include female relatives.*

• *V.D. Bhanot v. Savita Bhanot, (2012) 3 SCC 183 - the Act applies to the acts of domestic violence committed prior to the commencement of the Act, if the aggrieved person continues to be subjected to domestic violence.*

• *D. Velusamy v. D. Patchaiammal, (2010) 10 SCC 469 - the meaning of 'domestic relationship' and 'relationship in the nature of marriage'.*

• *Kunapareddy @ Nookala Shanka Balaji v. Kunapareddy Swarna Kumari, (2016) 11 SCC 774 - proceedings under Section 12 and the reliefs that may be granted.*

FORMAT G-69 — APPLICATION FOR BAIL IN CASES UNDER THE SCHEDULED CASTES AND THE SCHEDULED TRIBES (PREVENTION OF ATROCITIES) ACT, 1989

Special Statutes

IN THE COURT OF THE LEARNED SPECIAL JUDGE (SC/ST ACT), ... [OR] IN THE HON'BLE HIGH COURT OF .....

BAIL APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

....., S/o ....., R/o ....., presently lodged in ..... Jail ..... APPLICANT / ACCUSED

THE STATE ....., THROUGH THE PUBLIC PROSECUTOR ..... RESPONDENT

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... OF THE SC/ST (POA) ACT, 1989

READ WITH SECTIONS ..... OF THE BNS, 2023

APPLICATION FOR GRANT OF BAIL IN A CASE UNDER THE SCHEDULED CASTES AND THE SCHEDULED TRIBES (PREVENTION OF ATROCITIES) ACT, 1989 READ WITH SECTION 483 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant has been arrested on ..... in connection with the above-noted FIR, registered for offences punishable under Sections 3(1)(r), 3(1)(s), 3(2)(va) and other provisions of the Scheduled Castes and the Scheduled Tribes (Prevention of Atrocities) Act, 1989, read with Sections ..... of the Bharatiya Nyaya Sanhita, 2023, and has been in custody since then, i.e., for a period of ..... days as on date.

2. That the applicant is innocent and has been falsely implicated in the present case on account of a pre-existing dispute/enmity between the applicant and the complainant, arising out of ..... (specify the nature of the dispute - e.g., a dispute relating to the agricultural land/property; a dispute relating to the election to the post of the Sarpanch of the local Gram Panchayat; a dispute arising out of an earlier incident of .....; a personal rivalry).

3. That the provisions of Section 18 of the SC/ST (PoA) Act, 1989, which exclude the application of the provisions of Section 438 of the Cr.P.C. (now Section 482, BNSS, 2023) to the cases under the Act, and Section 18A, which provides that no arrest shall be made without the prior approval of the Deputy Superintendent of Police or a superior officer, and that the investigation shall be conducted by an officer not below the rank of Deputy Superintendent of Police, have been considered by the Hon'ble Supreme Court. It is respectfully submitted that:

   (i) the relief of anticipatory bail is not available to the applicant in view of the express prohibition contained in Section 18 of the SC/ST (PoA) Act, 1989, and the applicant has, therefore, applied for regular bail;

   (ii) notwithstanding the said prohibition, this Hon'ble Court retains the power to grant bail/ protection to a person who has been falsely implicated, and the Hon'ble Supreme Court has recognised that a person can be protected from arrest in exceptional circumstances, in the exercise of the constitutional powers under Articles 226 and 32 of the Constitution of India;

   (iii) in the present case, the applicant has not been arrested in compliance with the mandatory requirements of Section 18A of the SC/ST (PoA) Act, 1989, in that no prior approval of the Deputy Superintendent of Police or a superior officer was obtained before the arrest, and the investigation is not being conducted by an officer of the rank of Deputy Superintendent of Police or above, which renders the arrest and the investigation illegal.

4. That the applicant's case on merits is a strong one, in that:

(a) THE BASIC INGREDIENTS OF THE OFFENCE ARE NOT MADE OUT: The offence under Section 3(1)(r) of the SC/ST (PoA) Act, 1989 requires, inter alia, an intentional insult or intimidation with the intent to humiliate a member of a Scheduled Caste or a Scheduled Tribe in any place within public view. In the present case, the alleged incident did not occur within 'public view' within the meaning of the section, in that the alleged occurrence is stated to have taken place inside ..... (a private place/the residence of the applicant), and no member of the public was present at the time of the alleged incident. The presence of a member of the public (other than the complainant) is an essential ingredient of the offence, and the same is wholly absent.

(b) THE ALLEGATION IS VAGUE AND IMPROBABLE: The allegations levelled against the applicant are vague, general and omnibus; no specific word or act has been attributed to the applicant; the FIR does not disclose the exact words alleged to have been uttered, which is fatal to the prosecution case.

(c) THE DELAY IN LODGING THE FIR: The FIR has been lodged after an inordinate delay of ....., which has not been satisfactorily explained, and which clearly suggests that the FIR was lodged as an afterthought on account of the pre-existing enmity.

(d) THE INJURY, IF ANY, IS NOT SUCH AS WOULD ATTRACT THE PROVISIONS OF THE ACT: The applicant has been implicated on account of the pre-existing dispute between the parties, and the present FIR is a counterblast to FIR No. ..... of 20....., registered at Police Station ..... at the instance of the applicant against the complainant, a copy whereof is annexed as ANNEXURE A, which establishes that the present FIR is a counter-blast filed with a mala fide intent.

5. That the applicant has been in custody for a period of ..... days, and the trial is unlikely to be concluded in the near future; the continued detention of the applicant would amount to a violation of the right to a speedy trial under Article 21 of the Constitution of India.

6. That the applicant is a permanent resident of ....., has no criminal antecedents, is not a previous convict, and is not a proclaimed offender. The applicant has cooperated with the investigation and there is no apprehension of the applicant absconding or of tampering with the evidence, the investigation being complete and the charge-sheet having been filed on .....

7. That the applicant is the sole bread-earner of the family and the applicant's continued incarceration would cause grave hardship to the applicant's dependent family members, namely .....; the applicant is also suffering from ..... [where applicable].

8. That the applicant undertakes to abide by all such conditions as this Hon'ble Court may impose, including: (i) not entering the locality in which the complainant resides; (ii) not contacting the complainant or the witnesses directly or indirectly; (iii) reporting to the police station concerned at such intervals as may be directed; (iv) not leaving the jurisdiction without prior permission; and (v) remaining present before this Hon'ble Court on every date of hearing.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) grant bail to the applicant in connection with FIR No. ..... of 20....., Police Station ....., registered under Sections ..... of the Scheduled Castes and the Scheduled Tribes (Prevention of Atrocities) Act, 1989 read with Sections ..... of the Bharatiya Nyaya Sanhita, 2023;

(ii) hold that the arrest of the applicant was illegal, having been made in contravention of the mandatory provisions of Section 18A of the SC/ST (PoA) Act, 1989, and release the applicant accordingly;

(iii) impose such terms and conditions as this Hon'ble Court may deem fit and proper, including the conditions set out in paragraph 8 above; and

(iv) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / ACCUSED
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 18 of the SC/ST (PoA) Act, 1989 excludes the application of Section 438 of the Cr.P.C. (now Section 482, BNSS, 2023) to the cases under the Act; accordingly, anticipatory bail is not available, and the accused must apply for regular bail after arrest. (ii) Section 18A, inserted by the Amendment Act of 2018, provides that no arrest shall be made without the prior approval of the Deputy Superintendent of Police or a superior officer in the case of all offences under the Act, and that the investigation shall be conducted by an officer not below the rank of Deputy Superintendent of Police, and that the provisions of Section 41 and Section 41A of the Cr.P.C. (now Section 35, BNSS, 2023) shall apply mutatis mutandis to the arrest of a person. (iii) In Prathvi Raj Chauhan v. Union of India, (2020) 4 SCC 727, the Hon'ble Supreme Court upheld the validity of Section 18A and held that the prohibition under Section 18 would not apply where the complaint does not make out a prima facie case for the applicability of the provisions of the Act, and that the Court can exercise its jurisdiction under Article 226 or Section 482, Cr.P.C. (now Section 528, BNSS, 2023) to grant protection in such cases. (iv) Where the FIR does not disclose the essential ingredients of the offence, the accused may apply under Section 528, BNSS, 2023 for the quashing of the FIR and for the grant of protection from arrest. (v) The Court must be satisfied as to the existence of a prima facie case; at the stage of bail, the Court must not enter into a detailed appreciation of the evidence.

CR.P.C. EQUIVALENT

Section 18 and Section 18A of the SC/ST (PoA) Act, 1989; Sections 480 and 483, BNSS, 2023 (old Sections 437 and 439, Cr.P.C.).

PRECEDENTS REFERRED TO

- *Prathvi Raj Chauhan v. Union of India, (2020) 4 SCC 727 - the constitutional validity of Section 18A upheld; the observations of the Court regarding the grant of protection where the complaint does not disclose a prima facie case under the Act.*
- *Union of India v. State of Maharashtra, (2020) 4 SCC 761 - the mandatory compliance with Section 18A; the consequences of the non-compliance.*
- *Subhash Kashinath Mahajan v. State of Maharashtra, (2018) 6 SCC 454 - the guidelines laid down by the Supreme Court (later modified by Prathvi Raj Chauhan).*
- *Khuman Singh v. State of M.P., (2019) 5 SCC 513 - the Proof of the offence under the SC/ST Act; the requirement of the intention to humiliate.*
- *Ramveer Upadhyay v. State of U.P., 2022 SCC OnLine SC 621 - the necessity of the specific averments regarding the intention to humiliate on the ground of caste.*

FORMAT G-70 — APPLICATION FOR ATTACHMENT, FORFEITURE OR RESTORATION OF PROPERTY

Special Statutes

IN THE COURT OF THE ....., (DISTRICT .....) [OR] IN THE HON'BLE HIGH COURT OF .....

MISC. APPLICATION NO. ..... OF 20.....

IN THE MATTER OF:

1. THE STATE ....., THROUGH THE PUBLIC PROSECUTOR ..... APPLICANT / RESPONDENT (as applicable)

2. ....., S/o ....., R/o ....

APPLICANT / CLAIMANT (where restoration is sought)

....., S/o ....., R/o ....

RESPONDENT / ACCUSED

POLICE STATION .....

FIR NO. ..... OF 20..... UNDER SECTION ..... BNS / ..... ACT

PROPERTY SOUGHT TO BE ATTACHED: ..... VALUE: Rs. .....

APPLICATION UNDER SECTION 107 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 FOR ATTACHMENT / FORFEITURE / RESTORATION OF PROPERTY

MOST RESPECTFULLY SHOWETH:

1. That the accused ..... is facing investigation/trial in the above-noted case, registered for the offences punishable under Sections ..... of the Bharatiya Nyaya Sanhita, 2023, and the following property, namely ....., is alleged to be the property derived or obtained, directly or indirectly, as a result of the criminal activity/proceeds of the crime, or the property which has been used in the commission of the offence/property held benami:

   Description of the property: .....; Location: .....; Extent/Area: .....; Value: Rs. .....; Registered owner: .....; Documents relied upon: .....

2. That Section 107(1), BNSS, 2023 provides that the Court may, on the application of the Public Prosecutor or the officer in charge of the police station, by order in writing, attach any property, whether tangible or intangible, movable or immovable, or any interest in any such property, which is derived or obtained, directly or indirectly, as a result of criminal activity relating to an offence specified in the Schedule to the Sanhita, or which is involved in the commission of any offence, or in respect of which any offence has been committed, or which has been used for or in the commission of any offence.

3. That Section 107(2), BNSS, 2023 provides that the Court may, upon a request being made by the Central Government or the State Government, as the case may be, in this behalf, order the forfeiture of such property, and may direct the disposal of the property so forfeited in such manner as may be prescribed; and Section 107(3) provides that the Court may, upon an application made by any person claiming an interest in the property, order the restoration of the property, in whole or in part, to the person entitled to the possession thereof, on such terms and conditions as the Court may deem fit, if the Court is satisfied that the person has not been complicit in the commission of the offence.

4. That Section 107(4) to 107(9), BNSS, 2023 prescribe the procedure to be followed, including the requirement of a notice to the person in possession of the property, the opportunity of being heard, the consideration of the claims and objections, the powers of the Court to require the production of the documents, the appointment of a receiver, the management of the property during the pendency of the proceedings, the safe custody of the property, and the manner of the disposal of the property.

5. That Section 107, BNSS, 2023 is a new provision inserted with the object of ensuring that the offenders do not retain the fruits of their crime, and it supplements the provisions relating to the disposal of property contained in Chapter XXXVI (Sections 497 to 505) of the Sanhita, as well as the provisions of the special statutes such as the Prevention of Money-Laundering Act, 2002, the Narcotic Drugs and Psychotropic Substances Act, 1985, the Customs Act, 1962 and the Prohibition of Benami Property Transactions Act, 1988, which have overriding effect in respect of the matters covered thereby.

6. That the applicant submits that the property in question ..... (state the factual basis - e.g., is the property of the accused derived from the proceeds of the crime, and hence is liable to be attached and forfeited; is the property of the applicant, who is the bona fide owner thereof, and who is not complicit in the commission of the offence, and hence the same is liable to be restored to the applicant; is the property which is required to be preserved pending the conclusion of the trial, and hence the same is liable to be kept in safe custody).

7. That the applicant has placed on record the documents establishing the ownership/entitlement to the property, namely ....., and the applicant has no connection whatsoever with the alleged offence, and the applicant has not been complicit in the commission of the offence.

8. That the applicant has not transferred or created any third-party interest in the property after coming to know of the alleged offence, and the applicant undertakes not to alienate or encumber the property during the pendency of the proceedings, and to produce the property before this Hon'ble Court as and when directed.

9. That the present application is bona fide and is made in the interest of justice, and no prejudice whatsoever shall be caused to any person by the grant of the relief prayed for. The applicant undertakes to abide by all such conditions as this Hon'ble Court may impose, including the condition of furnishing a bond for the production of the property before this Hon'ble Court.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) order the attachment of the property described in paragraph 1 above, namely ....., in terms of Section 107(1) of the Bharatiya Nagarik Suraksha Sanhita, 2023 [where attachment is sought];

(ii) order the forfeiture of the said property to the Central Government/State Government, in terms of Section 107(2), BNSS, 2023 [where forfeiture is sought];

(iii) order the restoration of the said property to the applicant/claimant, in whole or in part, in terms of Section 107(3), BNSS, 2023, the applicant being the person entitled to the possession thereof and not being complicit in the commission of the offence [where restoration is sought];

(iv) direct the appointment of a receiver/make such orders as may be necessary for the proper management and safe custody of the property pending the conclusion of the proceedings, in terms of Section 107, BNSS, 2023;

(v) direct the Station House Officer, Police Station ....., to produce the property before this Hon'ble Court and to report compliance; and

(vi) pass such other and further order(s) as this Hon'ble Court may deem fit and proper.

APPLICANT / PUBLIC PROSECUTOR / CLAIMANT
THROUGH
ADVOCATE
Place: .....
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: (i) Section 107, BNSS, 2023 is a NEW provision relating to the attachment, forfeiture and restoration of property. The said provision is in addition to the provisions of Chapter XXXVI (Sections 497 to 505, BNSS, 2023) relating to the disposal of

property, and of Sections 111 to 124, BNSS, 2023 relating to the reciprocal arrangements for assistance in certain matters and the procedure for attachment and forfeiture of property. (ii) Where the property is subject to the provisions of a special statute (such as the PMLA, 2002, the NDPS Act, 1985, or the Prohibition of Benami Property Transactions Act, 1988), the provisions of the special statute will prevail over the general provisions, and the procedure prescribed thereunder must be followed. (iii) The Court must give notice to the person in possession of the property and an opportunity of being heard before ordering the attachment or forfeiture, and must consider the claims and objections filed in response to such notice. (iv) A bona fide purchaser or a person claiming an interest in the property, who is not complicit in the offence, is entitled to the restoration of the property. (v) The order of the Court under Section 107 is subject to appeal/revision in accordance with the provisions of the BNSS, 2023. (vi) The provisions of the Proceeds of Crime Act/the relevant special statute should be carefully examined before invoking Section 107, particularly in respect of the offences under the special statutes.]

[Note: This format is intended to serve as a composite template. The applicant should adapt the prayer clause to the relief actually sought - attachment, forfeiture or restoration - and strike out the prayers which are not applicable.]

CR.P.C. EQUIVALENT

New provision - Section 107, BNSS, 2023 has no direct counterpart in the Cr.P.C., 1973, although the concept of the disposal of property was dealt with in Sections 451 to 459, Cr.P.C. (now Sections 497 to 505, BNSS, 2023).

PRECEDENTS REFERRED TO

- *Vijay Madanlal Choudhary v. Union of India, (2023) 3 SCC 1 - the concept of 'proceeds of crime' and the attachment/confiscation thereof under the PMLA, 2002.*
- *Bhagwant Singh v. Commissioner of Police - the disposal of property and the rights of the persons entitled to possession.*
- *Sunderbhai Ambalal Desai v. State of Gujarat, (2002) 10 SCC 283 - the custody and disposal of property; the powers of the Court.*
- *State of Karnataka v. J. Jayalalithaa, (2017) 6 SCC 263 - the confiscation of the properties acquired from the proceeds of crime, and the considerations governing the same.*

ANNEXURE I — DELHI PRACTICE NOTES AND A WORKED DELHI EXAMPLE

The user of this compilation is reminded that every format in Parts A to G is deliberately state-neutral: the description of the Court, the parties and the police station are left blank so that the format may be used before any Court in India. This Annexure is different. It is Delhi-specific throughout. It collects (A) the practical points that arise in the District Courts and the High Court at Delhi, and (B) one complete, worked example of a bail application filled in with Delhi particulars, so that a drafter can see what a finished document looks like. The names, the FIR number and the facts of the worked example are illustrative and fictional; they must be replaced.

A. The Courts at Delhi — how to describe them

1. THE SEVEN DISTRICT COURT COMPLEXES. The District Courts of Delhi sit in seven complexes: Tis Hazari (Central, West and North Districts), Karkardooma (East, Shahdara and North-East Districts), Rohini (North-West District), Patiala House (New Delhi District), Saket (South and South-East Districts), Dwarka (South-West District), and Rouse Avenue (the Rouse Avenue District Court, for cases relating to Members of Parliament and Members of the Legislative Assembly, and for the designated special Courts). Before drafting, verify from the Delhi District Courts website (https://delhidistrictcourts.nic.in) which complex and which Court room has been assigned.

2. HOW TO DESCRIBE A MAGISTRATE'S COURT. The correct description is 'IN THE COURT OF SH./MS. ……., METROPOLITAN MAGISTRATE-…… (CENTRAL), TIS HAZARI COURTS, DELHI' or ', JUDICIAL MAGISTRATE FIRST CLASS-…… (SAKET), SAKET COURTS, DELHI'. The district name is written in brackets after the designation of the Court, followed by the name of the complex and the word 'DELHI'. A 'MAHILA COURT' is described as 'METROPOLITAN MAGISTRATE (MAHILA COURT), …… COURTS, DELHI'.

3. HOW TO DESCRIBE A SESSIONS COURT. 'IN THE COURT OF SH. ……., ADDITIONAL SESSIONS JUDGE-…… (CENTRAL), TIS HAZARI COURTS, DELHI'. A bail application under Section 483, BNSS, 2023 is maintainable before the Court of Session in Delhi, and the Court of the learned Additional Sessions Judge in charge of the district is described as 'THE LEARNED DISTRICT & SESSIONS JUDGE (CENTRAL), TIS HAZARI COURTS, DELHI'.

4. SPECIAL COURTS. Cases registered by the Central Bureau of Investigation under the Prevention of Corruption Act, 1988 are tried by the 'SPECIAL JUDGE (PC ACT) (CBI), ROUSE AVENUE COURTS, DELHI'; cases under the Prevention of Money-Laundering Act, 2002 by the 'SPECIAL JUDGE (PMLA), ROUSE AVENUE COURTS, DELHI'; and cases under the Narcotic Drugs and Psychotropic Substances Act, 1985 by the notified Special Judge. Describe the Court exactly as it is notified, and not by way of a general description.

5. THE HIGH COURT OF DELHI. A petition under Section 483, 438, 528 or 530, BNSS, 2023, or a petition for the transfer of a case under Section 447, BNSS, 2023, the quashing of an FIR, or a writ petition under Article 226 of the Constitution, is to be described as 'IN THE HIGH COURT OF DELHI AT NEW DELHI' followed by the '(CRIMINAL MISCELLANEOUS MAIN PETITION NO. …… OF 20……)' or '(CRIMINAL MISCELLANEOUS (MAIN) NO. …… OF 20……)' as allotted by the filing counter. The Bench is described by its roster, e.g. 'CORAM: HON'BLE MR. JUSTICE …… AND HON'BLE MR. JUSTICE ……'.

6. THE CORRECT DESCRIPTION OF THE STATE. In Delhi the prosecution is the State, represented by the Public Prosecutor; the Respondent in a bail or quashing application is described as 'STATE (NCT OF DELHI) THROUGH THE PUBLIC PROSECUTOR, …… COURTS, DELHI'. In a complaint case, the complainant, and not the State, is the Respondent. Where the investigating agency is the Central Bureau of Investigation, the Respondent is 'STATE THROUGH THE CENTRAL BUREAU OF

INVESTIGATION'.

B. Filing, e-filing and court fee at Delhi

1. E-FILING. Delhi was the first district judiciary in the country to make e-filing mandatory for all categories of cases. Filing is through the e-filing portal of the e-Committee (https://delhiecourts.gov.in / https://ecourts.gov.in) and, in the High Court, through the e-filing portal maintained under the Delhi High Court Rules, 1967 and the practice directions issued by the High Court of Delhi. A physical set (the 'hard copy' or 'court copy') is ordinarily required after the electronic filing is registered. The vaka, the index, the list of documents and the application are to be uploaded as separate, bookmarked PDF files bearing the prescribed naming convention.

2. COURT FEE AND PROCESS FEE. In criminal proceedings at Delhi, no court fee is ordinarily payable on an application, a bail application or an application for the supply of documents; the applicable court fee is that prescribed by the Court Fees Act, 1870 as extended to Delhi, and must be verified from the current schedule. Process fee is payable for the issue of each summons, notice or warrant at the instance of a party and is deposited through the e-courts payment gateway or by way of a fee receipt as directed by the Court. The e-stamping facility for court fee is available through the Stock Holding Corporation of India (SHCIL) counters in the court complexes.

3. CERTIFIED COPIES AND DIGITAL COPIES. Certified copies of orders and judgments of the District Courts at Delhi are obtained from the copying agency of the Court concerned on an application, and, in respect of the record of the District Courts, may also be downloaded from the e-Courts 'Judgment/Order' facility and from the National Judicial Data Grid. The time taken to obtain the certified copy is excluded from the period of limitation. For the High Court of Delhi, the digital copy facility is available through the High Court's website.

4. FILING OF A FINAL REPORT. In Delhi the charge-sheet (final report under Section 193, BNSS, 2023) is filed through the 'e-Courts / Delhi Police integrated' system and is assigned a 'Court Case' number; the FIR number continues to identify the case in the District Court and in the jail records. Quote both the FIR number and, where allotted, the Court Case / Sessions Case number in the cause title.

5. THE JAIL. Persons in custody at Delhi are lodged at the Central Jail, Tihar (Jail Nos. 1 to 9 and the Women's Jail), the Central Jail, Mandoli, or the Jail at Rohini (Jail No. 14), according to the order of the Court. A bail order is communicated to the Superintendent of the Jail concerned through the Court's 'release order / bail bond' process, and the surety is ordinarily verified before the Secretary / Reader of the Court or before the Jail Visiting Advocate; a delay in the verification of the surety is the most common cause of delay in the actual release of a person who has been granted bail. The jail particulars to be stated in a bail or parole application are: the jail number, the prisoner's number (P.R. number), the date of the arrest and the date of the last remand.

6. LEGAL AID. Free legal aid at Delhi is administered by the Delhi State Legal Services Authority (DSLSA), 11/7, Rouse Avenue Institutional Area, New Delhi, and by the District Legal Services Authorities (DLSA) functioning in each of the seven District Court complexes, through the legal aid clinics, the para-legal volunteers and the Jail Visiting Advocates. An accused who cannot engage counsel may apply to the DLSA of the district concerned, or move the Court under Section 341, BNSS, 2023 (Format A-7).

7. THE SPECIALISED UNITS. A complaint relating to a crime against a woman may be made to the Special Police Unit for Women and Children (SPUWAC) or the Special Cell for Women, in addition to the jurisdictional police station; a complaint relating to a senior citizen may be made to the Senior Citizens' Cell; and a complaint against a woman is ordinarily investigated by a woman officer. For the purposes of Section 173(1), BNSS, 2023, the place of information is not material, and the Delhi Police Citizen Services portal (https://delhipolice.gov.in) permits the online registration of certain categories of information.

8. VICTIM COMPENSATION AT DELHI. Victim compensation at Delhi is governed by the Delhi Victim Compensation Scheme framed under Section 396, BNSS, 2023 (formerly Section 357A, Cr.P.C.). The application is made before the Court / the DSLSA in the prescribed form, and the order of compensation, once made, is disbursed through the DSLSA / DLSA. The enquiry into the application is, under Section 396(5), to be completed within two months of the date of the receipt of the application.

C. A Worked Delhi Example — a Complete Bail Application

What follows is one format from Part C of this compilation — the application for regular bail under Section 480, BNSS, 2023 — filled in from beginning to end with Delhi particulars, so that a drafter may see a finished document. The names of the parties, the FIR and the facts are illustrative and fictional.

FORMAT X-01 — WORKED DELHI EXAMPLE — APPLICATION FOR REGULAR BAIL UNDER SECTION 480, BNSS, 2023

Worked Delhi example

IN THE COURT OF SH. ....., METROPOLITAN MAGISTRATE-..... (CENTRAL), TIS HAZARI COURTS, DELHI

CRIMINAL MISC. (BAIL) APPLICATION NO. ..... OF 2026 IN FIR NO. 0123 OF 2026

IN THE MATTER OF:

RAMESH KUMAR S/O SH. SURESH KUMAR, AGED ABOUT 34 YEARS, R/O 12-B, GALI NO. 5, KAROL BAGH, NEW DELHI – 110005 ..... APPLICANT / ACCUSED

VERSUS

STATE (NCT OF DELHI) THROUGH THE PUBLIC PROSECUTOR, TIS HAZARI COURTS, DELHI ..... RESPONDENT / COMPLAINANT

POLICE STATION: KAROL BAGH, DISTRICT: CENTRAL, DELHI
FIR NO. 0123 OF 2026, DATED 12.02.2026
UNDER SECTIONS 318(4) / 316(2) / 61(2) OF THE BHARATIYA NYAYA SANHITA, 2023

APPLICATION FOR GRANT OF REGULAR BAIL UNDER SECTION 480 OF THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

MOST RESPECTFULLY SHOWETH:

1. That the applicant is the accused in the above-noted case registered at Police Station Karol Bagh, Delhi, upon the written complaint of one Sh. Mahesh Gupta of Karol Bagh, New Delhi, alleging that the applicant, in the course of a business transaction relating to the supply of furniture, induced the complainant to part with goods of the value of Rs. 8,40,000 without paying for them, and thereby committed the offences of criminal breach of trust and cheating.

2. That in the said case, the applicant was arrested on 12.03.2026, was produced before this Hon'ble Court on 13.03.2026, and has been in judicial custody at the Central Jail, Tihar, New Delhi (Jail No. 03, P.R. No. 4..... of 2026) since that date. The applicant has thus been in custody for about ..... days as on the date of this application.

3. That the investigation in the case was completed and the final report under Section 193 of the Bharatiya Nagarik Suraksha Sanhita, 2023 was filed before this Hon'ble Court on ....., and this Hon'ble Court was pleased to take cognizance of the offences on ..... The applicant has been summoned for the offence under Section 318(4) of the Bharatiya Nyaya Sanhita, 2023, punishable with imprisonment which may extend to seven years.

4. That the applicant is innocent and has been falsely implicated. The transaction in question was a commercial transaction between two businessmen, and the dispute, if any, is purely civil in nature and arises out of the

non-payment of the price of goods supplied in the ordinary course of business. The applicant neither induced the complainant at any point of time nor had, at any point of time, any dishonest intention to cheat him from the inception of the transaction.

5. That the entire dispute has, during the pendency of the proceedings, been amicably settled between the applicant and the complainant and a written settlement deed dated ..... has been executed between them, a copy whereof is annexed hereto as Annexure A-1. The complainant, by his affidavit dated ..... annexed hereto as Annexure A-2, has confirmed the settlement, has stated that he has received the entire outstanding amount of Rs. ..... and has no objection whatsoever to the grant of bail to the applicant.

6. That the applicant is a permanent resident of Delhi, being a resident of 12-B, Gali No. 5, Karol Bagh, New Delhi, where he resides with his wife and two minor children, as is evident from the copies of his Election Identity Card, his Aadhaar Card and the electricity bill annexed hereto as Annexure A-3 (Colly). The applicant has deep roots in the society and there is no apprehension whatsoever of his absconding from justice or of his tampering with the evidence.

7. That the applicant is the sole breadwinner of his family and is the proprietor of a small furniture business, M/s Ramesh Furniture House; he has a permanent place of business with a valid registration and current account. The applicant has already suffered the closure of his business and the consequent loss of livelihood and reputation during the period of his incarceration, and a continuation of the custody of the applicant would reduce his family to destitution.

8. That the applicant has no previous criminal antecedent, as would appear from the report of the Station House Officer concerned, and is not involved in any other criminal case whatsoever. The applicant has never been convicted of any offence in the past.

9. That the offences alleged are punishable with imprisonment of up to seven years, and the investigation having been completed and the charge-sheet filed, no useful purpose would be served by the continued detention of the applicant. The presence of the applicant is no longer required for the purpose of any custodial investigation, and the possibility of his tampering with the evidence is negligible, all the witnesses being known to the parties and the documentary evidence having already been taken into the custody of the Investigating Officer.

10. That the applicant undertakes to appear before this Hon'ble Court on each and every date of hearing, to comply with all the terms and conditions that may be imposed upon him, not to leave the jurisdiction of this Hon'ble Court without its prior permission, not to tamper with the evidence nor to influence any witness, and to surrender his passport, if he holds one, and his presence before the Investigating Officer or the Court as and when directed.

11. That the applicant is ready and willing to furnish a personal bond with surety to the satisfaction of this Hon'ble Court, and will abide by any condition that may be imposed in the interest of justice.

12. That the applicant has not filed any earlier application for bail before this Hon'ble Court or before any other Court; the present application is the first application for regular bail moved on behalf of the applicant. [The applicant was previously granted interim bail by the order dated ..... for a period of ..... days, in terms whereof he remained present before this Hon'ble Court.]

13. That the custodial detention of the applicant, whose trial is likely to take considerable time in view of the heavy pendency of the cases before this Hon'ble Court, would amount to pre-trial punishment and would render infructuous his right to a fair trial guaranteed by Article 21 of the Constitution of India. Upon the completion of the investigation, the seriousness of the offence can be tested by the Court at the time of the trial, and for the purposes of the present application the continuing custody of the applicant serves no purpose.

14. That the applicant has, in the alternative, filed a separate application under Section 262 of the Bharatiya Nagarik Suraksha Sanhita, 2023 for discharge, and is pressing this application for bail without prejudice to the said application.

PRAYER:

It is, therefore, most respectfully prayed that this Hon'ble Court may kindly be pleased to:

(i) release the applicant on regular bail in the above-noted case in terms of Section 480 of the Bharatiya Nagarik Suraksha Sanhita, 2023, upon the applicant's furnishing a personal bond in the sum of Rs. 50,000/- (Rupees Fifty Thousand only) with one surety in the like amount to the satisfaction of this Hon'ble Court, and on such other terms and conditions as this Hon'ble Court may deem fit and proper;

(ii) in the event of the applicant's being unable to furnish a surety, release the applicant upon his personal bond and/or upon the deposit of an amount in lieu of the surety, in terms of Sections 485 and 490 of the Bharatiya Nagarik Suraksha Sanhita, 2023; and

(iii) pass such other and further order(s) as this Hon'ble Court may deem fit and proper in the facts and circumstances of the present case, in the interest of justice.

APPLICANT
THROUGH
ADVOCATE
Place: NEW DELHI
Date: .....

NOTES, PRACTICE POINTS AND DOCUMENTS TO BE ANNEXED

[Note: This worked example is illustrative. The names of the parties, the particulars of the FIR, and the facts are fictional; they must be replaced with the actual particulars, and the paragraphs that do not apply must be deleted. The blanks for the dates, the amounts, the jail particulars and the case numbers must be filled in.]

[Note: The three things a bail application on a police report must always show are (i) the custody particulars — the date of the arrest, the date of the remand and the period undergone, which can be verified by the Court from the jail warrant and the custody certificate; (ii) the progress of the investigation — whether the charge-sheet has been filed, and if not, the stage of the investigation; and (iii) the absence of the risk of absconding or of tampering — the roots of the applicant in society, the absence of antecedents, the filing of the charge-sheet and the completion of the documentary evidence being the usual circumstances relied upon.]

[Note: In an offence punishable with up to seven years, Section 35(3), BNSS, 2023 read with Satender Kumar Antil v. CBI, 2026 INSC 115, requires that a notice of appearance, and not an arrest, is the rule; the record of the arrest should be examined and, if the requirement of the recorded necessity of the arrest was not satisfied, the factum, the manner and the timing of the arrest should be brought out in the bail application, and, if appropriate, an application for compensation under Section 399, BNSS, 2023, may be moved (Format F-61).]

[Note: Delhi practice — the application is to be filed through the e-filing portal with the court copy being submitted thereafter; the cause title must carry the FIR number, the Court Case number (after the charge-sheet is filed, if allotted) and the name of the Court complex; and the surety, once accepted, must be verified before the Reader / the Jail Visiting Advocate before the release order is issued to the Superintendent, Central Jail, Tihar / Mandoli.]

[Note: DOCUMENTS TO BE ANNEXED — (1) Copy of the FIR and, where filed, of the final report under Section 193, BNSS, 2023; (2) The order of arrest / the custody certificate / the jail warrant showing the date of arrest and the period undergone; (3) The settlement deed and the affidavit of the complainant (where the matter is settled); (4) Proof of the residence and the identity of the applicant; (5) Proof of the permanent place of business; (6) The report of the Station House Officer regarding the antecedents; (7) The Vakalatnama and the affidavit in support; (8) A list of documents with page numbers in the index.]

CR.P.C. EQUIVALENT

The corresponding Cr.P.C. provision is Section 437 (Further, the provisions of Section 437A, Cr.P.C. relating to the appearance of the accused before the next appellate Court, now find place in Section 481, BNSS, 2023).

PRECEDENTS REFERRED TO

• *State of Rajasthan v. Balchand, (1977) 4 SCC 308 — bail, and not jail, is the rule; the object of bail is to secure the attendance of the accused at the trial.*

• *Sanjay Chandra v. CBI, (2012) 1 SCC 40 — the gravity of the charge alone is not a sufficient reason to refuse bail; the Court must consider whether the detention is necessary to secure the presence of the accused at the trial.*

• *Satender Kumar Antil v. CBI, (2022) 10 SCC 51 and Satender Kumar Antil v. CBI, 2026 INSC 115 — the categorisation of offences for the purposes of bail, and the primacy of the notice under Section 35(3), BNSS, 2023 in offences punishable with up to seven years.*

• *Gudikanti Narasimhulu v. Public Prosecutor, (1978) 1 SCC 240 — the considerations that weigh in the grant of bail; the risk of absconding and of interference with the evidence.*

• *P. Chidambaram v. Directorate of Enforcement, (2020) 13 SCC 337 — the triple test of the flight risk, the tampering of evidence and the influencing of witnesses, and the requirement of a prima facie satisfaction.*

• *Vihaan Kumar v. State of Haryana, 2025 SCC OnLine SC 85 — the grounds of arrest must be furnished in writing, and the failure to do so vitiates the arrest.*

ANNEXURE II — FILING, E-FILING AND THE ELECTRONIC MODE

Filing, e-filing and the electronic mode — practical notes

1. E-FILING. Most High Courts and District Courts now require filing through the e-filing portal of the e-Committee of the Supreme Court of India (https://ecourts.gov.in). Before e-filing, check the filing rules of the Court concerned: the prescribed file-naming convention, the maximum size of the PDF, the requirement of bookmarks, the pagination, and whether a physical set is also required. Where e-filing is mandatory, a physical filing may be rejected or returned.

2. CERTIFIED COPIES. Certified copies of orders and judgments may be obtained from the copying section of the Court concerned, or through the e-Courts digital certified copy facility where available. For the purposes of limitation, the period between the application for a certified copy and its supply is excluded — Section 12, Limitation Act, 1963, and Section 516, BNSS, 2023.

3. COURT FEE. Court fee in criminal matters is nominal or nil in most States; the applicable court fee and the process fee must be verified from the Court Fees Act of the State concerned and the Rules of the High Court. Process fee is payable for each process (summons, notice, warrant) issued at the request of a party.

4. COST OF A SUMMONS TO A DEFENCE WITNESS. Where the accused applies for the issue of process to a defence witness, the cost of the process and the diet money of the witness must ordinarily be deposited, unless the Court directs otherwise on the ground of the indigence of the accused or of the witness being a Government servant.

5. SERVICE THROUGH ELECTRONIC COMMUNICATION. Sections 63 to 70, BNSS, 2023 permit the service of summons through electronic communication; the State Government is to prescribe the form and manner. Where the opposite party has an e-mail address or a mobile number on record, an application may be made for service through electronic communication to avoid delay.

6. AUDIO-VIDEO ELECTRONIC MEANS. Section 530, BNSS, 2023 permits trials, inquiries and proceedings to be held in electronic mode. Where the witness is a child, a victim of a sexual offence, a person with a disability, an expert, or a person residing outside the jurisdiction of the Court, an application for recording the evidence through audio-video electronic means should ordinarily be moved (Format E-48). The video-conferencing rules and the practice directions of the High Court concerned must be complied with, including the requirement of the identity verification of the witness, the presence of the Advocate of the accused, and the recording and preservation of the proceedings.

7. ELECTRONIC EVIDENCE. Electronic records must be proved in accordance with Sections 57 to 63 of the Bharatiya Sakshya Adhiniyam, 2023. The certificate required by Section 63 (formerly Section 65B of the Indian Evidence Act, 1872) must be obtained at the time of the collection of the record, and the two-signature requirement and the Schedule format prescribed by the said section must be complied with. Where an application relies upon electronic evidence, ensure that the certificate is on record; a failure to obtain the certificate is frequently fatal.

8. THE JAIL ROUTE. Where the applicant is in custody, the application may be presented through the Superintendent of the Jail, in terms of Section 424, BNSS, 2023 (petition of appeal) and the corresponding practice for other applications. In bail matters, a pairokar or a relative may file the application along with the affidavit; the Vakalatnama must be attested by the Jail Superintendent.

9. PRO BONO AND LEGAL AID. Where the applicant cannot engage counsel, legal aid may be sought from the District Legal Services Authority, the Jail Legal Aid Clinic or the Legal Aid Committee of the Bar Association. An application under Section 341, BNSS, 2023 may also be moved before the Court (Format A-7).

10. COPIES FOR SERVICE. As a general practice, file the original application along with a copy for the Court's file, a copy for the Public Prosecutor, and a copy for each of the opposite parties; the filing counter will ordinarily require an additional set for the record.